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No. ——

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IN THE

Supreme Court of the United States

OCTOBER TERM, 1996

BROWN UNIVERSITY, *et al.*,
Petitioners,

v.

AMY COHEN, *et al.*,
Respondents.

Petition for a Writ of Certiorari to the United States Court of Appeals for the First Circuit

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APPENDIX TO PETITION FOR A WRIT OF CERTIORARI

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APPENDIX

UNITED STATES COURT OF APPEALS FOR THE FIRST CIRCUIT

No. 95-2205

AMY COHEN, *et al.*,
Plaintiffs-Appellees,
v.
BROWN UNIVERSITY, *et al.*,
Defendants-Appellants.

Appeal from the United States District Court
for the District of Rhode Island
[Hon. Raymond J. Pettine, *Senior U.S. District Judge*]

Before

Torruella, *Chief Judge*,
Bownes, *Senior Circuit Judge*,
and Stahl, *Circuit Judge*.

November 21, 1996

BOWNES, *Senior Circuit Judge*. This is a class action lawsuit charging Brown University, its president, and its athletics director (collectively "Brown") with discrimina-

tion against women in the operation of its intercollegiate athletics program, in violation of Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681-1688 ("Title IX"), and its implementing regulations, 34 C.F.R. §§ 106.1-106.71. The plaintiff class comprises all present, future, and potential Brown University women students who participate, seek to participate, and/or are deterred from participating in intercollegiate athletics funded by Brown.

This suit was initiated in response to the demotion in May 1991 of Brown's women's gymnastics and volleyball teams from university-funded varsity status to donor-funded varsity status. Contemporaneously, Brown demoted two men's teams, water polo and golf, from university-funded to donor-funded varsity status. As a consequence of these demotions, all four teams lost, not only their university funding, but most of the support and privileges that accompany university-funded varsity status at Brown.

Prior to the trial on the merits that gave rise to this appeal, the district court granted plaintiffs' motion for class certification and denied defendants' motion to dismiss. Subsequently, after hearing fourteen days of testimony, the district court granted plaintiffs' motion for a preliminary injunction, ordering, *inter alia*, that the women's gymnastics and volleyball teams be reinstated to university-funded varsity status, and prohibiting Brown from eliminating or reducing the status or funding of any existing women's intercollegiate varsity team until the case was resolved on the merits. *Cohen* v. *Brown Univ.*, 809 F. Supp. 978, 1001 (D.R.I. 1992) ("*Cohen I*"). A panel of this court affirmed the district court's decision granting a preliminary injunction to the plaintiffs. *Cohen* v. *Brown Univ.*, 991 F.2d 888, 907 (1st Cir. 1993) ("*Cohen II*"). In so doing, we upheld the district court's analysis and ruled that an institution violates Title IX if it ineffectively accommodates its students' interests and

abilities in athletics under 34 C.F.R. § 106.41(c)(1) (1995), regardless of its performance with respect to other Title IX areas. *Id.* at 897.

On remand, the district court determined after a lengthy bench trial that Brown's intercollegiate athletics program violates Title IX and its supporting regulations. *Cohen* v. *Brown Univ.*, 879 F. Supp. 185, 214 (D.R.I. 1995) ("*Cohen III*"). The district court ordered Brown to submit within 120 days a comprehensive plan for complying with Title IX, but stayed that portion of the order pending appeal. *Id.* The district court subsequently issued a modified order, requiring Borwn to submit a compliance plan within 60 days. Modified Order of May 4, 1995. This action was taken to ensure that the Order was "final" for purposes of this court's jurisdiction, and to expedite the appeal process. *Id.* Finding that Brown's proposed compliance plan was not comprehensive and that it failed to comply with the opinion and order of *Cohen III*, the district court rejected the plan and ordered in its place specific relief consistent with Brown's stated objectives in formulating the plan. Order of August 17, 1995 at 11. The court's remedial order required Brown to elevate and maintain at university-funded varsity status the women's gymnastics, fencing, skiing, and water polo teams. *Id.* at 12. The district court's decision to fashion specific relief was made, in part, to avoid protracted litigation over the compliance plan and to expedite the appeal on the issue of liability. *Id.* at 11. The district court entered final judgment on September 1, 1995, and on September 27, 1995, denied Brown's motion for additional findings of fact and to amend the judgment. This appeal followed.

Brown claims error in certain evidentiary rulings made during the trial and in the district court's order of specific relief in place of Brown's proposed compliance plan. In addition, and as in the previous appeal, Brown challenges on constitutional and statutory grounds the test employed

by the district court in determining whether Brown's intercollegiate athletics program complies with Title IX. In the first appeal, a panel of this court elucidated the applicable legal framework, upholding the substance of the district court's interpretation and application of the law in granting plaintiffs' motion for a preliminary injunction,[1] and rejecting essentially the same legal arguments Brown makes here.

Brown contends that we are free to disregard the prior panel's explication of the law in *Cohen II*. Brown's efforts to circumvent the controlling effect of *Cohen II* are unavailing, however, because, under the law of the case doctrine, we are bound in this appeal, as was the district court on remand, by the prior panel's rulings of law. While we acknowledge that the law of the case doctrine is subject to exceptions, we conclude that none applies here, and that the decision rendered by the prior panel in the first appeal is not, as Brown claims, "legally defective." Accordingly, we decline Brown's invitation to undertake plenary review of issues decided in the previous appeal and treat *Cohen II* as controlling authority, dispositive of the core issues raised here.

We find no error in the district court's factual findings or in its interpretation and application of the law in determining that Brown violated Title IX in the operation of its intercollegiate athletics program. We therefore affirm in all respects the district court's analysis and rulings on the issue of liability. We do, however, find error in the district court's award of specific relief and therefore remand the case to the district court for reconsideration of the remedy in light of this opinion.

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[1] The prior panel upheld the district court's rulings in all respects save one. We held that the district court erred in placing upon Brown the burden of proof under prong three of the three-part test used to determine whether an intercollegiate athletics program complies with Title IX, discussed *infra*. *Cohen II*, 991 F.2d at 903.

I.

The relevant facts, legal principles, and procedural history of this case have been set forth in exhaustive detail in the previous opinions issued in this case. Thus, we recite the facts as supportably found by the district court in the course of the bench trial on the merits in a somewhat abbreviated fashion.

As a Division I institution within the National Collegiate Athletic Association ("NCAA") with respect to all sports but football, Brown participates at the highest level of NCAA competition.[2] *Cohen III*, 879 F. Supp. at 188. Brown operates a two-tiered intercollegiate athletics program with respect to funding: although Brown provides the financial resources required to maintain its university-funded varsity teams, donor-funded varsity athletes must themselves raise the funds necessary to support their teams through private donations. *Id.* at 189. The district court noted that the four demoted teams were eligible for NCAA competition, provided that they were able to raise the funds necessary to maintain a sufficient level of competitiveness, and provided that they continued to comply with NCAA requirements. *Id.* at 189 n.6. The court found, however, that it is difficult for donor-funded varsity athletes to maintain a level of competitiveness commensurate with their abilities and that these athletes operate at a competitive disadvantage in comparison to university-funded varsity athletes. *Id.* at 189. For example, the district court found that some schools are reluctant to include donor-funded teams in their varsity schedules[3] and that donor-funded teams are unable to obtain varsity-level coaching, recruits, and funds for

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[2] Brown's football team competes in Division I-AA, the second highest level of NCAA competition. *Cohen III*, 879 F. Supp. at 188 n.4.

[3] Two schools declined to include Brown in future varsity schedules when women's volleyball was demoted to donor-funded status. *Cohen II*, 991 F.2d at 892 n.2; *Cohen I*, 809 F. Supp. at 993.

travel, equipment, and post-season competition. *Id.* at 189-90.

Brown's decision to demote the women's volleyball and gymnastics teams and the men's water polo and golf teams from university-funded varsity status was apparently made in response to a university-wide cost-cutting directive. *Cohen I*, 809 F. Supp. at 981. The district court found that Brown saved $62,028 by demoting the women's teams and $15,795 by demoting the men's teams, but that the demotions "did not appreciably affect the athletic participation gender ratio." *Cohen III* at 187 n.2.

Plaintiffs alleged that, at the time of the demotions, the men students at Brown already enjoyed the benefits of a disproportionately large share of both the university resources allocated to athletics and the intercollegiate participation opportunities afforded to student athletes. Thus, plaintiffs contended, what appeared to be the even-handed demotions of two men's and two women's teams, in fact, perpetuated Brown's discriminatory treatment of women in the administration of its intercollegiate athletics program.

In the course of the preliminary injunction hearing, the district court found that, in the academic year 1990-91, Brown funded 31 intercollegiate varsity teams, 16 men's teams and 15 women's teams, *Cohen I*, 809 F. Supp. at 980, and that, of the 894 undergraduate students competing on these teams, 63.3% (566) were men and 36.7% (328) were women, *id.* at 981. During the same academic year, Brown's undergraduate enrollment comprised 52.4% (2,951) men and 47.6% (2,683) women. *Id.* The district court also summarized the history of athletics at Brown, finding, *inter alia*, that, while nearly all of the men's varsity teams were established before 1927, virtually all of the women's varsity teams were created between 1971 and 1977, after Brown's merger with Pembroke College. *Id.* The only women's varsity team created after this period was winter track, in 1982. *Id.*

In the course of the trial on the merits, the district court found that, in 1993-94, there were 897 students participating in intercollegiate varsity athletics, of which 61.87% (555) were men and 38.13% (342) were women. *Cohen III,* 879 F. Supp. at 192. During the same period, Brown's undergraduate enrollment comprised 5,722 students, of which 48.86% (2,796) were men and 51.14% (2,926) were women. *Id.* The district court found that, in 1993-94, Brown's intercollegiate athletics program consisted of 32 teams, 16 men's teams and 16 women's teams. *Id.* Of the university-funded teams, 12 were men's teams and 13 were women's teams; of the donor-funded teams, three were women's teams and four were men's teams. *Id.* At the time of trial, Brown offered 479 university-funded varsity positions for men, as compared to 312 for women; and 76 donor-funded varsity positions for men, as compared to 30 for women. *Id.* at 211. In 1993-94, then, Brown's varsity program—including both university- and donor-funded sports—afforded over 200 more positions for men than for women. *Id.* at 192. Accordingly, the district court found that Brown maintained a 13.01% disparity between female participation in intercollegiate athletics and female student enrollment, *id.* at 211, and that "[a]lthough the number of varsity sports offered to men and women are equal, the selection of sports offered to each gender generates far more individual positions for male athletes than for female athletes," *id.* at 189.

In computing these figures, the district court counted as participants in intercollegiate athletics for purposes of Title IX analysis those athletes who were members of varsity teams for the majority of the last complete season. *Id.* at 192. Brown argued at trial that "there is no consistent measure of actual participation rates because team size varies throughout the athletic season," and that "there is no consistent measure of actual participation rates because there are alternative definitions

of 'participant' that yield very different participation totals." *Id.* Reasoning that "[w]here both the athlete and coach determine that there is a place on the team for a student, it is not for this Court to second-guess their judgment and impose its own, or anyone else's, definition of a valuable or genuine varsity experience," the district court concluded that "[e]very varsity team member is therefore a varsity 'participant.'" *Id.* (original emphasis omitted). Thus, the district court held that

> the "participation opportunities" offered by an institution are measured by counting the *actual participants* on intercollegiate teams. The number of participants in Brown's varsity athletic program accurately reflects the number of participation opportunities Brown offers because the University, through its practices "predetermines" the number of athletic positions available to each gender.

Id. at 202-03.

The district court found from extensive testimony that the donor-funded women's gymnastics, women's fencing and women's ski teams, as well as at least one women's club team, the water polo team, had demonstrated the interest and ability to compete at the top varsity level and would benefit from university funding.[4] *Id.* at 190.

The district court did *not* find that full and effective accommodation of the athletics interests and abilities of Brown's female students would disadvantage Brown's male students.

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[4] The district court noted that "there may be other women's club sports with sufficient interest and ability to warrant elevation to varsity status," but that plaintiffs did not introduce at trial substantial evidence demonstrating the existence of other women's club teams meeting the criteria. *Cohen III*, 879 F. Supp. at 190 n. 14.

II.

Title IX provides that "[n]o person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance." 20 U.S.C.A. § 1681(a) (West 1990). As a private institution that receives federal financial assistance, Brown is required to comply with Title IX.

Title IX also specifies that its prohibition against gender discrimination shall not "be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist" between the total number or percentage of persons of that sex participating in any federally supported program or activity, and "the total number or percentage of persons of that sex in any community, State, section, or other area." 20 U.S.C.A. § 1681(b) (West 1990). Subsection (b) also provides, however, that it "shall not be construed to prevent the consideration in any . . . proceeding under this chapter of statistical evidence tending to show that such an imbalance exists with respect to the participation in, or receipt of the benefits of, any such program or activity by the members of one sex." *Id.*

Applying § 1681(b), the prior panel held that Title IX "does not mandate strict numerical equality between the gender balance of a college's athletic program and the gender balance of its student body." *Cohen II*, 991 F.2d at 894. The panel explained that, while evidence of a gender-based disparity in an institution's athletics program is relevant to a determination of noncompliance, "a court assessing Title IX compliance may not find a violation *solely* because there is a disparity between the gender composition of an educational institution's student constituency, on the one hand, and its athletic programs, on the other hand." *Id.* at 895.

Congress enacted Title IX in response to its finding—after extensive hearings held in 1970 by the House Special Subcommittee on Education—of pervasive discrimination against women with respect to educational opportunities. 118 Cong. Rec. 5804 (1972) (remarks of Sen. Bayh); *North Haven Bd. of Educ.* v. *Bell*, 456 U.S. 512, 523 n.13 (1982).

Title IX was passed with two objectives in mind: "to avoid the use of federal resources to support discriminatory practices," and "to provide individual citizens effective protection against those practices" *Cannon* v. *University of Chicago*, 441 U.S. 677, 704 (1979). To accomplish these objectives, Congress directed all agencies extending financial assistance to educational institutions to develop procedures for terminating financial assistance to institutions that violate Title IX. 20 U.S.C. § 1682.

The agency responsible for administering Title IX is the United States Department of Education ("DED"), through its Office for Civil Rights ("OCR").[5] Congress expressly delegated to DED the authority to promulgate regulations for determining whether an athletics program complies with Title IX. Pub. L. No. 93-380, 88 Stat. 612 (1974).[6] The regulations specifically address ath-

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[5] Agency responsibility for administration of Title IX shifted from the Department of Health, Education and Welfare ("HEW") to DED when HEW split into two agencies, DED and the Department of Health and Human Services. The regulations and agency documents discussed herein were originally promulgated by HEW, the administering agency at the time, and later adopted by the present administering agency, DED. *See Cohen II*, 991 F.2d at 895; *Cohen III*, 879 F. Supp. at 194-95 n.23. For simplicity, we treat DED as the promulgating agency.

[6] HEW apparently received an unprecedented 9,700 comments on the proposed Title IX athletics regulations, *see Haffer* v. *Temple Univ. of the Commonwealth Sys. of Higher Educ.*, 524 F. Supp. 531, 536 n.9 (1981) (citing Thomas A. Cox, *Intercollegiate Athletics and Title IX*, 46 Geo. Wash. L. Rev. 34, 40 (1977) ("Cox")), prompting former HEW Secretary Caspar Weinberger to remark,

letics at 34 C.F.R. §§ 106.37(c) and 106.41. The regulation at issue in this case, 34 C.F.R. § 106.41 (1995), provides:

> (a) *General.* No person shall, on the basis of sex, be excluded from participation in, be denied the benefits of, be treated differently from another person or otherwise be discriminated against in any interscholastic, intercollegiate, club or intramural athletics offered by a recipient, and no recipient shall provide any such athletics separately on such basis.
>
> (b) *Separate teams.* Notwithstanding the requirements of paragraph (a) of this section, a recipient may operate or sponsor separate teams for members of each sex where selection of such teams is based upon competitive skill or the activity involved is a contact sport. However, where a recipient operates or sponsors a team in a particular sport for members of one sex but operates or sponsors no such team for members of the other sex, and athletic opportunities for members of that sex have previously been limited, members of the excluded sex must be allowed to try-out for the team offered unless the sport involved is a contact sport. For the purposes of this part, contact sports include boxing, wrestling, rugby, ice hockey, football, basketball and other sports the purpose or major activity of which involves bodily contact.
>
> c) *Equal Opportunity.* A recipient which operates or sponsors interscholastic, intercollegiate, club or intramural athletics shall provide equal athletic opportunity for members of both sexes. In determining whether equal opportunities are available the Director will consider, among other factors:

"I had not realized until the comment period that athletics is the single most important thing in the United States," *id.* (citing Cox at 34, quoting N.Y. Times, June 27, 1975, at 16, col. 4).

(1) Whether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes;

(2) The provision of equipment and supplies;

(3) Scheduling of games and practice time;

(4) Travel and per diem allowance;

(5) Opportunity to receive coaching and academic tutoring;

(6) Assignment and compensation for coaches and tutors;

(7) Provision of locker rooms, practice and competitive facilities;

(8) Provision of medical and training facilities and services;

(9) Provision of housing and dining facilities and services;

(10) Publicity.

In the first appeal, this court held that an institution's failure effectively to accommodate both genders under § 106.41(c)(1) is sufficient to establish a violation of Title IX. *Cohen II*, 991 F.2d at 897.

In 1978, several years after the promulgation of the regulations, OCR published a proposed "Policy Interpretation," the purpose of which was to clarify the obligations of federal aid recipients under Title IX to provide equal opportunities in athletics programs. "In particular, this Policy Interpretation provides a means to assess an institution's compliance with the equal opportunity requirements of the regulation which are set forth at [34 C.F.R. §§ 106.37(c) and 106.41(c)]." 44 Fed. Reg. at 71,415. After considering a large number of public comments, OCR published the final Policy Interpretation. 44 Fed. Reg. 71,413-71,423 (1979). While the Policy Interpre-

tation covers other areas, this litigation focuses on the "Effective Accommodation" section, which interprets 34 C.F.R. § 106.41(c)(1), the first of the non-exhaustive list of ten factors to be considered in determining whether equal athletics opportunities are available to both genders. The Policy Interpretation establishes a three-part test, a two-part test, and factors to be considered in determining compliance under 34 C.F.R. § 106.41(c)(1). At issue in this appeal is the proper interpretation of the first of these, the so-called three-part test,[7] which inquires as follows:

> (1) Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments; or
>
> (2) Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex; or
>
> (3) Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a continuing practice of program expansion such as that cited above, whether it can be demonstrated that the interests and abilities of the members of that sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. at 71,418.

The district court held that, "because Brown maintains a 13.01% disparity between female participation in intercollegiate athletics and female student enrollment, it can-

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[7] For clarification, we note that the cases refer to each part of this three-part test as a "prong" or a "benchmark." Prong one is also called the "substantial proportionality test."

not gain the protection of prong one." *Cohen III*, 879 F. Supp. at 211. Nor did Brown satisfy prong two. While acknowledging that Brown "has an impressive *history* of program expansion," the district court found that Brown failed to demonstrate that it has "maintained a *continuing practice* of intercollegiate program expansion for women, the underrepresented sex." *Id.* The court noted further that, because merely reducing program offerings to the overrepresented gender does not constitute program expansion for the underrepresented gender, the fact that Brown has eliminated or demoted several men's teams does not amount to a continuing practice of program expansion for women. *Id.* As to prong three, the district court found that Brown had not "*fully* and effectively accommodated the interest and ability of the underrepresented sex 'to the extent necessary to provide equal opportunity in the selection of sports and levels of competition available to members of both sexes.'" *Id.* (quoting the Policy Interpretation, 44 Fed. Reg. at 71,417).

On January 16, 1996, DED released a "Clarification Memorandum," which does not change the existing standards for compliance, but which does provide further information and guidelines for assessing compliance under the three-part test. The Clarification Memorandum contains many examples illustrating how institutions may meet each prong of the three-part test and explains how participation opportunities are to be counted under Title IX.

The district court found that Brown predetermines the approximate number of varsity positions available to men and women, and, thus, that "the concept of any measure of unfilled but available athletic slots does not comport with reality." *Cohen III*, 879 F. Supp. at 203 n.36. The district court concluded that intercollegiate athletics opportunities "means real opportunities, not illusory ones, and therefore should be measured by counting *actual par-*

ticipants." Id. at 204 (internal quotation marks and citations omitted).

Title IX is an anti-discrimination statute, modeled after Title VI of the Civil Rights Act of 1964, 42 U.S.C. § 2000d ("Title VI").[8] *See Cannon*, 441 U.S. at 696 ("The drafters of Title IX explicitly assumed that it would be interpreted and applied as Title VI had been during the preceding eight years."). Thus, Title IX and Title VI share the same constitutional underpinnings. *See* Jeffrey H. Orleans, *An End To The Odyssey: Equal Athletic Opportunities For Women*, 3 Duke J. Gender L. & Pol'y 131, 133-34 (1996).

Although the statute itself provides for no remedies beyond the termination of federal funding, the Supreme Court has determined that Title IX is enforceable through an implied private right of action, *Cannon*, 441 U.S. at 703, and that damages are available for an action brought under Title IX, *Franklin* v. *Gwinnett County Pub. Sch.*, 503 U.S. 60, 76 (1992). The right to injunctive relief under Title IX appears to have been impliedly accepted by the Supreme Court in *Franklin*. *Id.* at 64-66, 71-73. In addition, a majority of the Court in *Guardians Ass'n* v. *Civil Serv. Comm'n*, 463 U.S. 582 (1983), agreed that injunctive relief and other equitable remedies are appropriate for violations of Title VI.

According to the statute's senate sponsor, Title IX was intended to

> provide for the women of America something that is rightfully theirs—an equal chance to attend the schools of their choice, to develop the skills they want, and to apply those skills with the knowledge that they will have a fair chance to secure the jobs of their choice with equal pay for equal work.

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[8] Title VI prohibits discrimination on the basis of race, color, or national origin in institutions benefitting from federal funds.

118 Cong. Rec. 5808 (1972) (remarks of Sen. Bayh) (*quoted in Haffer*, 524 F. Supp. at 541).

III.

In *Cohen II*, a panel of this court squarely rejected Brown's constitutional and statutory challenges to the Policy Interpretation's three-part test, upholding the district court's interpretation of the Title IX framework applicable to intercollegiate athletics, *Cohen II*, 991 F.2d at 899-902, as well as its grant of a preliminary injunction in favor of the plaintiffs, *id.* at 906-07. Despite the fact that it presents substantially the same legal arguments in this appeal as were raised and decided in the prior appeal, Brown asserts that there is "no impediment" to this court's plenary review of these decided issues. We disagree.

The law of the case doctrine precludes relitigation of the legal issues presented in successive stages of a single case once those issue have been decided. *See* 1B James W. Moore et al., Moore's Federal Practice ¶ 0.404[1] (2d ed. 1993) (hereinafter "Moore"). "The doctrine of the law of the case directs that a decision of an appellate court on an issue of law, unless vacated or set aside, governs the issue during all subsequent stages of litigation in the *nisi prius* court and thereafter on any further appeal." *Commercial Union Ins. Co.* v. *Walbrook Ins. Co.*, 41 F.3d 764, 769 (1st. Cir. 1994) (citing *United States* v. *Rivera-Martinez*, 931 F.2d 148 (1st Cir.), *cert. denied*, 502 U.S. 862 (1991)). The reviewing court's mandate "constitutes the law of the case on such issues of law as were actually considered and decided by the appellate court, or as were necessarily inferred from the disposition on appeal." *Commercial Union Ins. Co.*, 41 F.3d at 770 (citing 1B Moore at ¶ 0.404[10]). The doctrine requires a trial court on remand to dispose of the case in accordance with the appellate court's mandate by implementing " 'both the letter and the spirit of the mandate, taking into account the appellate court's opinion and the circum-

stances it embraces,' " *United States* v. *Connell*, 6 F.3d 27, 30 (1st Cir. 1993) (quoting *United States* v. *Kikumura*, 947 F.2d 72, 76 (3d Cir. 1991)), and binds newly constituted panels to prior panel decisions on point, *e.g.*, *Irving* v. *United States*, 49 F.3d 830, 833-34 (1st Cir. 1995); *Metcalf & Eddy, Inc.* v. *Puerto Rico Aqueduct and Sewer Auth.*, 991 F.2d 935, 939 n.3 (1st Cir. 1993).

While we have acknowledged that there are exceptions to the law of the case doctrine, we have emphasized that the circumstances in which they apply are rare. As have a number of other circuits, we have determined that issues decided on appeal should not be reopened " 'unless the evidence on a subsequent trial was substantially different, controlling authority has since made a contrary decision of law applicable to such issues, or the decision was clearly erroneous and would work a manifest injustice. " *Rivera-Martinez*, 931 F.2d at 151 (quoting *White* v. *Murtha*, 377 F.2d 428, 432 (5th Cir. 1967)) (other citations omitted).

Brown's argument that the Supreme Court's recent decision in *Adarand Constr., Inc.* v. *Pena*, —— U.S. ——, 115 S. Ct. 2097 (1995) ("*Adarand*"), controls this case necessarily presumes that *Adarand* constitutes a contrary intervening decision by controlling authority on point that (i) undermines the validity of *Cohen II*; (ii) compels us to depart from the law of the case doctrine; and (iii) therefore mandates that we reexamine Brown's equal protection claim.

We have narrowly confined the "intervening controlling authority exception" to Supreme Court opinions, *en banc* opinions of this court, or statutory overrulings. *Irving*, 49 F.3d at 834. We have also recognized that this exception may apply "in those rare situations where newly emergent authority, although not directly controlling, nevertheless offers a convincing reason for believing that the earlier panel, in light of the neoteric developments, would change its course." *Id.* (internal quotation marks and citation omitted).

The law of the case doctrine is a prudential rule of policy and practice, rather than "an absolute bar to reconsideration [ ]or a limitation on a federal court's power." *Rivera-Martinez*, 931 F.2d at 150-51. Thus, we have not construed the doctrine as "an inflexible straitjacket that invariably requires rigid compliance." *Northeast Utils. Serv. Co.* v. *Federal Energy Regulatory Comm'n*, 55 F.3d 686, 688 (1st Cir. 1995). Nevertheless, the doctrine serves important goals and must be "treated respectfully and, in the absence of exceptional circumstances, applied according to its tenor." *Rivera-Martinez*, 931 F.2d at 151. Accordingly, we have held that only a few exceptional circumstances can overcome the interests served by adherence to the doctrine and these exceptions are narrowly circumscribed. *See id.*; *see also United States* v. *Reveron Martinez*, 836 F.2d 684, 687 n.2 (1st Cir. 1988) ("To be sure, there may be occasions when courts can—and should—loosen the iron grip of *stare decisis*. But any such departure 'demands special justification.' ") (quoting *Arizona* v. *Rumsey*, 467 U.S. 203, 212 (1984)).[9]

For the reasons that follow, we conclude that no exception to the law of the case doctrine applies here and, therefore, that *Cohen II*'s rulings of law control the disposition of this appeal.

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[9] The law of the case doctrine is "akin to the doctrines of *collateral estoppel*, *res judicata*, and *stare decisis*," Joan Steinman, *Law Of The Case: A Judicial Puzzle In Consolidated And Transferred Cases And In MultiDistrict Litigation*, 135 U. Penn. L. Rev. 595, 598-99 (1987) (footnotes omitted), and "has been said to lie half way between *stare decisis* and *res judicata*," 1B Moore at ¶ 0.404[1] n.3 (internal quotation marks and citation omitted). As applied in the federal courts today, the law of the case doctrine more closely resembles the doctrine of *stare decisis*. 1B Moore at ¶ 0.404[1]. Both doctrines reflect concerns that have long been recognized as fundamentally important to the rule of law—e.g., stability, predictability, and respect for judicial authority—and both doctrines are applied "with more or less rigidity depending on which interest is served." *Id.* at II-2.

Brown contends that *stare decisis* does not bind this panel "to the previous preliminary ruling of this Court because it lacks the element of finality," Reply Br. at 24, and that the law of the case doctrine does not prevent a court from "changing its mind," *id.* at n.47.

We acknowledge that we have repeatedly emphasized that conclusions and holdings regarding the merits of issues presented on appeal from a grant of a preliminary injunction are to be understood as statements as to probable outcomes. *E.g., A.M. Capens Co.* v. *American Trading and Prod. Co.*, 74 F.3d 317, 322 (1st Cir. 1996); *Narragansett Indian Tribe* v. *Guilbert*, 934 F.2d 4, 6 (1st Cir. 1991). The concern informing this caveat arises when we are asked to rule on the propriety of a district court's grant of a preliminary injunction (or otherwise issue a preliminary ruling) without benefit of full argument and a well-developed record. In this case, however, the record before the prior panel was "sufficiently developed and the facts necessary to shape the proper legal matrix [we]re sufficiently clear," *Cohen II*, 991 F.2d at 904, and nothing in the record subsequently developed at trial constitutes substantially different evidence that might undermine the validity of the prior panel's rulings of law. In considering plaintiff's motion for a preliminary injunction in *Cohen I*, the district court (i) "paid meticulous attention to the parties' prospects for success over the long haul;" (ii) "plainly visualized both the factual intricacies and legal complexities that characterize Title IX litigation;" (iii) "held a lengthy adversary hearing and reviewed voluminous written submissions;' and (iv) "correctly focused on the three-part accommodation test. *Cohen II*, 991 F.2d at 903. Further, as the district court noted in its opinion after the trial on the merits, "[n]othing in the record before me, now fully developed, undermines the considered legal framework established by the First Circuit at the preliminary injunction stage." *Cohen III*, 879 F. Supp. at 194.

Brown offers remarkably little in the way of analysis or authority to support its blithe contention that we are free to disregard *Cohen II* in disposing of this appeal. Indeed, Brown argues as if the prior panel had not decided the precise statutory interpretation questions presented (which it clearly did) and as if the district court's liability analysis were contrary to the law enunciated in *Cohen II* (which it clearly is not). Finding Brown's bare assertions to be unpersuasive, we decline the invitation to this court to "change its mind." The precedent established by the prior panel is not clearly erroneous; it is the law of this case and the law of this circuit.

IV.

Brown contends that the district court misconstrued and misapplied the three-part test. Specifically, Brown argues that the district court's interpretation and application of the test is irreconcilable with the statute, the regulation, and the agency's interpretation of the law, and effectively renders Title IX an "affirmative action statute" that mandates preferential treatment for women by imposing quotas in excess of women's relative interests and abilities in athletics. Brown asserts, in the alternative, that if the district court properly construed the test, then the test itself violates Title IX and the United States Constitution.

We emphasize two points at the outset. First, notwithstanding Brown's persistent invocation of the inflammatory terms "affirmative action," "preference," and "quota," this is not an affirmative action case. Second, Brown's efforts to evade the controlling authority of *Cohen II* by recasting its core legal arguments as challenges to the "district court's interpretation" of the law are unavailing; the primary arguments raised here have already been litigated and decided adversely to Brown in the prior appeal.

A.

Brown's talismanic incantation of "affirmative action" has no legal application to this case and is not helpful to Brown's cause. While "affirmative action" may have different connotations as a matter of politics, as a matter of law, its meaning is more circumscribed. True affirmative action cases have historically involved a voluntary [10] undertaking to remedy discrimination (as in a program implemented by a governmental body, or by a private employer or institution), by means of specific group-based preferences or numerical goals, and a specific timetable for achieving those goals. *See Adarand*, —— U.S. ——, 115 S. Ct. 2097 (1995) (remanding for review under strict scrutiny a challenge to a federal statute establishing a government-wide goal for awarding to minority businesses not less than 5% of the total value of all prime contracts and subcontracts for each fiscal year); *Metro Broadcasting* v. *FCC*, 497 U.S. 547 (1990) (upholding a federal program requiring race-based preferences); *City of Richmond* v. *J.A. Croson Co.*, 488 U.S. 469 (1989) (striking down a municipal set-aside program requiring that 30% of the city's construction dollars be paid to racial minority subcontractors on an annual basis); *Johnson* v. *Transportation Agency*, 480 U.S. 616 (1986) (upholding a temporary program authorizing a county agency to consider sex and race as factors in making promotions in order to achieve a statistically

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[10] Cases and commentators sometimes treat cases involving involuntarily implemented plans—e.g., plans adopted pursuant to a consent decree or a contempt order—as affirmative action cases. *See, e.g., United States* v. *Paradise*, 480 U.S. 149 (1987) (upholding a "one-black-for-one-white" promotion requirement ordered by a district court as an interim measure in response to proven discrimination by a state employer); *Sheet Metal Workers* v. *EEOC*, 478 U.S. 421 (1986) (upholding a federal district court's imposition on the union a goal for racial minority membership as a remedy for the union's contempt of the court's earlier orders to cease racially discriminatory admissions practices).

measurable improvement in the representation of women and minorities in major pob classifications in which they had been historically underrepresented); *Wygant* v. *Jackson Bd. of Educ.*, 476 U.S. 267 (1986) (striking down a collective-bargaining faculty layoff provision requiring preferential treatment for certain racial minorities); *Fullilove* v. *Klutznick*, 448 U.S. 448 (1980) (upholding a federal program requiring state and local recipients of federal public works grants to set aside 10% of funds for procuring goods and services from minority business enterprises); *United Steelworkers* v. *Weber*, 443 U.S. 193 (1979) (upholding a collective bargaining agreement that set aside for blacks half the places in a new training program until the percentage of blacks among skilled workers at the plant was commensurate with the percentage of blacks in the local labor force); *Regents of the Univ. of Cal.* v. *Bakke*, 438 U.S. 265 (1978) (striking down a state medical school's admissions policy that set aside 16 of its places for racial minorities).

Title IX is not an affirmative action statute; it is an anti-discrimination statute, modeled explicitly after another anti-discrimination statute, Title VI. No aspect of the Title IX regime at issue in this case—inclusive of the statute, the relevant regulation, and the pertinent agency documents—mandates gender-based preferences or quotas, or specific timetables for implementing numerical goals.

Like other anti-discrimination statutory schemes, the Title IX regime *permits* affirmative action.[11] In addition,

[11] As previously noted, Title IX itself specifies only that the statute shall not be interpreted to *require* gender-based preferential or disparate treatment. 20 U.S.C. § 1681(b). However, although Congress could easily have done so, it did not ban affirmative action or gender-conscious remedies under Title IX. *See also Weber*, 443 U.S. at 201-02 (construing the prohibition against race discrimination contained in §§ 703(a) and (d) of Title VII, and concluding that "an interpretation of the sections that forbade all race-conscious affirmative action would bring about an end completely

Title IX, like other anti-discrimination schemes, permits an inference that a significant gender-based statistical disparity may indicate the existence of discrimination. Consistent with the school desegregation cases, the question of substantial proportionality under the Policy Interpretation's three-part test is merely the starting point for analysis, rather than the conclusion; a rebuttable presumption, rather than an inflexible requirement. *See, e.g., Swann* v. *Charlotte-Mecklenburg Bd. of Educ.*, 402 U.S. 1, 25 (1971). In short, the substantial proportionality test is but one aspect of the inquiry into whether an institution's athletics program complies with Title IX.

Also consistent with the school desegregation cases, the substantial proportionality test of prong one is applied under the Title IX framework, not mechanically, but case-by-case, in a fact-specific manner. As with other anti-discrimination regimes, Title IX neither mandates a finding of discrimination based solely upon a gender-based statistical disparity, *see Cohen II*, 991 F.2d at 895, nor prohibits gender-conscious remedial measures. *See Missouri* v. *Jenkins*, —— U.S. ——, ——, 115 S. Ct. 2038, 2048 (1995) (acknowledging the constitutional permissibility of court-ordered, race-conscious remedial plans designed to restore victims of discrimination to the positions they would have occupied in the absence of such conduct); *Fullilove*, 448 U.S. at 483 (recognizing that the authority of a federal court to incorporate racial criteria into a remedial decree also extends to statutory

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at variance with the purpose of the statute and must be rejected") (internal quotation marks and citations omitted); *id.* at 205-06 (construing § 703(j) of Title VII, upon which § 1681(b) of Title IX was based, and concluding that "[t]he natural inference is that Congress chose not to forbid all voluntary race-conscious affirmative action").

In addition, remedial action and voluntary affirmative action to overcome the effects of gender discrimination are permitted under the Title IX regulations, 34 C.F.R. § 106.3, and by the Policy Interpretation, 44 Fed. Reg. at 71,416.

violations and that, where federal anti-discrimination laws have been violated, race-conscious remedies may be appropriate); *Weber*, 443 U.S. at 197 (holding that Title VII does not prohibit private employers from voluntarily implementing race-conscious measures to eliminate "manifest racial imbalances in traditionally segregated job categories"); *McDaniel* v. *Barresi*, 402 U.S. 39, 41 (1971) (recognizing that measures required to remedy race discrimination "will almost invariably require" race conscious classifications, and that "[a]ny other approach would freeze the status quo that is the very target of all desegregation processes").

Another important distinction between this case and affirmative action cases is that the district court's remedy requiring Brown to accommodate fully and effectively the athletics interests and abilities of its women students does not raise the concerns underlying the Supreme Court's requirement of a particularized factual predicate to justify voluntary affirmative action plans. In reviewing equal protection challenges to such plans, the Court is concerned that government bodies are reaching out to implement race- or gender-conscious remedial measures that are "ageless in their reach into the past, and timeless in their ability to affect the future," *Wygant*, 476 U.S. at 276, on the basis of facts insufficient to support a prima facie case of a constitutional or statutory violation, *Croson*, 488 U.S. at 500, to the benefit of unidentified victims of past discrimination, *see id.* at 469; *Wygant*, 476 U.S. at 276. Accordingly, the Court has taken the position that voluntary affirmative action plans cannot be constitutionally justified absent a particularized factual predicate demonstrating the existence of "identified discrimination," *see Croson*, 488 U.S. at 500-06, because "[s]ocietal discrimination, without more, is too amorphous a basis for imposing a racially classified remedy," *Wygant*, 476 U.S. at 276.

From a constitutional standpoint, the case before us is altogether different. Here, gender-conscious relief was ordered by an Article III court, constitutionally compelled to have before it litigants with standing to raise the cause of action alleged; for the purpose of providing relief upon a duly adjudicated determination that specific defendants had discriminated against a certified class of women in violation of a federal anti-discrimination statute; based upon findings of fact that were subject to the Federal Rules of Evidence. The factual problem presented in affirmative action cases is, "Does the evidence support a finding of discrimination such that race- or gender-conscious remedial measures are appropriate?" We find these multiple indicia of reliability and specificity to be sufficient to answer that question in the affirmative.

From the mere fact that a remedy flowing from a judicial determination of discrimination is gender-conscious, it does not follow that the remedy constitutes "affirmative action." Nor does a "reverse discrimination" claim arise every time an anti-discrimination statute is enforced. While some gender-conscious relief may adversely impact one gender—a fact that has not been demonstrated in this case—that alone would not make the relief "affirmative action" or the consequence of that relief "reverse discrimination." To the contrary, race- and gender-conscious remedies are both appropriate and constitutionally permissible under a federal anti-discrimination regime, although such remedial measures are still subject to equal protection review. *See Miller* v. *Johnson*, —— U.S. ——, ——, 115 S. Ct. 2475, 2491 (1995) ("compliance with federal antidiscrimination laws cannot justify race-based districting where the challenged district was not reasonably necessary under a constitutional reading and application of those laws") (citing *Shaw* v. *Reno*, 509 U.S. 630, 653-54 (1993)).

B.

Cohen II squarely rejected Brown's interpretation of the three-part test and carefully delineated its own, which is now the law of this circuit as well as the law of this case. On remand, the district court's liability analysis explicitly and faithfully adhered to *Cohen II*'s mandate, and we are bound to do the same at this stage of the litigation, absent one of the exceptional circumstances discussed *supra*. Because the precise questions presented regarding the proper interpretation of the Title IX framework were considered and decided by a panel of this court in the prior appeal, and because no exception to the law of the case doctrine is presented, we have no occasion to reopen the issue here. Brown's rehashed statutory challenge is foreclosed by the law of the case doctrine and we are therefore bound by the prior panel's interpretation of the statute, the regulation, and the relevant agency pronouncements.

In its liability analysis, the district court expressly accepted *Cohen II*'s elucidation of the applicable law, *Cohen III*, 879 F. Supp. at 194, and applied the law in accordance with its mandate, *id.* at 210-13. Indeed, every circuit court to have reviewed a Title IX claim of discrimination in athletics since *Cohen II* was decided is in accord with its explication of the Title IX regime as it applies to athletics. *See Horner* v. *Kentucky High Sch. Athletics Ass'n*, 43 F.3d 265 (6th Cir. 1994); *Kelley* v. *Board of Trustees*, 35 F.3d 265 (7th Cir. 1994), *cert. denied*, —— U.S. ——, 115 S. Ct. 938 (1995); *Favia* v. *Indiana Univ. of Pa.*, 7 F.3d 332 (3d Cir. 1993); *Roberts* v. *Colorado State Bd. of Agric.*, 998 F.2d 824 (10th Cir.), *cert. denied*, 510 U.S. 1004 (1993).

Cohen II held that the Policy Interpretation is entitled to substantial deference because it is the enforcing agency's "considered interpretation of the regulation." 991 F.2d at 896-97. Brown argues that the district court

erred in concluding that it was obligated to give substantial deference to the Policy Interpretation, on the ground that "the interpretation is not a worthy candidate for deference," Reply Br. at 15, because "the urged interpretation is illogical, conflicts with the Constitution, the Statute, the Regulation, other Agency materials and practices, existing analogous caselaw and, in addition, is bad policy," *id.* We reject Brown's kitchen-sink characterization of the Policy Interpretation and its challenge to the substantial deference accorded that document by the district court.

The Policy Interpretation represents the responsible agency's interpretation of the intercollegiate athletics provisions of Title IX and its implementing regulations. 44 Fed. Reg. at 71,413. It is well settled that, where, as here, Congress has expressly delegated to an agency the power to "elucidate a specific provision of a statute by regulation," the resulting regulations should be accorded "controlling weight unless they are arbitrary, capricious, or manifestly contrary to the statute." *Chevron U.S.A. Inc.* v. *Natural Resources Defense Council, Inc.*, 467 U.S. 837, 844 (1984). It is also well established " 'that an agency's construction of its own regulations is entitled to substantial deference.' " *Martin* v. *Occupational Safety and Health Review Comm'n*, 499 U.S. 144, 150 (1991) (quoting *Lyng* v. *Payne*, 476 U.S. 926, 939 (1986)) (other citation omitted). As the Supreme Court has explained, "[b]ecause applying an agency's regulation to complex or changing circumstances calls upon the agency's unique expertise and policymaking prerogatives, we presume that the power authoritatively to interpret its own regulations is a component of the agency's delegated lawmaking powers." *Martin*, 499 U.S. at 151 (citation omitted).

Applying these principles, *Cohen II* held that the applicable regulation, 34 C.F.R. § 106.41, deserves controlling weight, 991 F.2d at 895; that the Policy Interpretation

warrants substantial deference, *id.* at 896-97; and that, "[b]ecause the agency's rendition stands upon a plausible, if not inevitable, reading of Title IX, we are obligated to enforce the regulation according to its tenor," *id.* at 899 (citations omitted). *Accord Horner*, 43 F.3d at 274-75; *Kelley*, 35 F.3d at 270; *Favia* v. *Indiana Univ. of Pa.*, 812 F. Supp. 578, 584 (W.D. Pa.), *aff'd*, 7 F.3d 332 (3d Cir. 1993). On remand, the district court properly applied the legal framework elucidated in *Cohen II* and explicitly followed this court's mandate in according controlling weight to the regulation and substantial deference to the Policy Interpretation. *Cohen III*, 879 F. Supp. at 197-99; *accord Kelley*, 35 F.3d at 272 (holding that "neither the regulation nor the policy interpretation run afoul of the dictates of Title IX"). We hold that the district court did not err in the degree of deference it accorded the regulation and the relevant agency pronouncements.

C.

As previously noted, the district court held that, for purposes of the three-part test, the intercollegiate athletics participation opportunities offered by an institution are properly measured by counting the number of actual participants on intercollegiate teams. *Cohen III*, 879 F. Supp. at 202. The Policy Interpretation was designed specifically for intercollegiate athletics.[12] 44 Fed. Reg. at 71,413. Because the athletics regulation distinguishes between club sports and intercollegiate sports, under the Policy Interpretation, "club teams will not be considered to be intercollegiate teams except in those instances where they regularly participate in varsity competition." *Id.* at n.1. Accordingly, the district court excluded club varsity teams from the definition of "intercollegiate teams" and,

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[12] Application of the Policy Interpretation is not limited to intercollegiate athletics, however. The Policy Interpretation states that "its general principles will often apply to club, intramural, and interscholastic athletic programs, which are also covered by the regulation." 44 Fed. Reg. at 71,413.

therefore, from the calculation of participation opportunities, because the evidence was inadequate to show that the club teams regularly participated in varsity competition. *Cohen III*, 879 F. Supp. at 200.

The district court's definition of athletics participation opportunities comports with the agency's own definition. *See* Clarification Memorandum at 2 ("In determining participation opportunities, OCR counts the number of actual athletes participating in the athletic program."). We find no error in the district court's definition and calculation of the intercollegiate athletics participation opportunities afforded to Brown students, and no error in the court's finding of a 13.01% disparity between the percentage of women participating in intercollegiate varsity athletics at Brown and the percentage of women in Brown's undergraduate student body.

D.

Brown contends that an athletics program equally accommodates both genders and complies with Title IX if it accommodates the *relative* interests and abilities of its male and female students. This "relative interests" approach posits that an institution satisfies prong three of the three-part test by meeting the interests and abilities of the underrepresented gender only to the extent that it meets the interests and abilities of the overrepresented gender.[13] *See Cohen II*, 991 F.2d at 899.

Brown maintains that the district court's decision imposes upon universities the obligation to engage in prefer-

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[13] We note that Brown presses its relative interests argument under both prong one and prong three. At trial, Brown argued that, "in order to succeed on prong one, plaintiffs bear the burden of proving that the percentage of women among varsity athletes is not substantially proportionate to the percentage of women among *students interested in participating in varsity athletics*." *Cohen III*, 879 F. Supp. at 205. At the preliminary injunction stage, Brown propounded the same relative interests argument under prong three. *Id.* at n.41.

ential treatment for women by requiring quotas in excess of women's relative interests and abilities. With respect to prong three, Brown asserts that the district court's interpretation of the word "fully" "requires universities to favor women's teams and treat them better than men's [teams]. . . . forces them to eliminate or cap men's teams. . . . [and] forces universities to impose athletic quotas in excess of relative interests and abilities." Appellant's Br. at 55.

The prior panel considered and rejected Brown's approach, observing that "Brown reads the 'full' out of the duty to accommodate 'fully and effectively.'" *Cohen II*, 991 F.2d at 899. Under *Cohen II*'s controlling interpretation, prong three "demands not merely some accommodation, but full and effective accommodation. If there is sufficient interest and ability among members of the statistically underrepresented gender, not slaked by existing programs, an institution necessarily fails this prong of the test." *Id.* at 898.

Brown's interpretation of full and effective accommodation is "simply not the law." *Cohen III*, 879 F. Supp. at 208. We agree with the prior panel and the district court that Brown's relative interests approach "cannot withstand scrutiny on either legal or policy grounds," *Cohen II*, 991 F.2d at 900, because it "disadvantages women and undermines the remedial purposes of Title IX by limiting required program expansion for the underrepresented sex to the status quo level of relative interests," *Cohen III*, 879 F. Supp. at 209. After *Cohen II*, it cannot be maintained that the relative interests approach is compatible with Title IX's equal accommodation principle as it has been interpreted by this circuit.

Brown argues that the district court's interpretation of the three-part test *requires* numerical proportionality, thus imposing a gender-based quota scheme in contravention of the statute. This argument rests, in part, upon Brown's reading of 20 U.S.C. § 1681(b) as a categorical proscrip-

tion against consideration of gender parity. Section 1681(b) provides:

> Nothing contained in subsection (a) of this section shall be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist with respect to the total number or percentage of persons of that sex participating in or receiving the benefits of any federally supported program or activity, in comparison with the total number or percentage of persons of that sex *in any community, State, section or other area* . . . .

20 U.S.C.A. § 1681(b) (West 1990) (emphasis added).

The prior panel, like Brown, assumed without analysis that § 1681(b) applies unequivocally to intercollegiate athletics programs. We do not question *Cohen II*'s application of § 1681(b). We think it important to bear in mind, however, the congressional concerns that inform the proper interpretation of this provision. Section 1681(b) was patterned after § 703(j) of Title VII, 42 U.S.C. § 2000e-2(j), and was specifically designed to prohibit quotas in university admissions and hiring, based upon the percentage of individuals of one gender in a geographical community. *See* H.R. Rep. No. 554, 92d Cong., 1st Sess. (1971), *reprinted in* 1972 U.S.C.C.A.N. 2462, 2590-92 (Additional Views); 117 Cong. Rec. 39,261-62 (1971) (remarks of Rep. Quie); 117 Cong. Rec. 30,406, 30,409 (remarks of Sen. Bayh); 117 Cong. Rec. 39,251-52 (remarks of Rep. Mink and Rep. Green). Thus, the legislative history strongly suggests that the underscored language defines what is proscribed (in the contexts of admissions and hiring) in terms of a geographical area, *beyond the institution*, and does not refer to an imbalance *within the university*, with respect to the representation of each gender in intercollegiate athletics, as compared to the gender makeup of the student body.

In any event, the three-part test is, on its face, entirely consistent with § 1681(b) because the test does not *require* preferential or disparate treatment for either gender. Neither the Policy Interpretation's three-part test, nor the district court's interpretation of it, *mandates* statistical balancing; "[r]ather, the policy interpretation merely creates a presumption that a school is in compliance with Title IX and the applicable regulation when it achieves such a statistical balance." *Kelley*, 35 F.3d at 271.

The test is also entirely consistent with § 1681(b) as applied by the prior panel and by the district court. As previously noted, *Cohen II* expressly held that "a court assessing Title IX compliance may not find a violation *solely* because there is a disparity between the gender composition of an educational institution's student constituency, on the one hand, and its athletic programs, on the other hand." 991 F.2d at 895. The panel then carefully delineated the burden of proof, which requires a Title IX plaintiff to show, not only "disparity between the gender composition of the institution's student body and its athletic program, thereby proving that there is an underrepresented gender," *id.* at 901, but also "that a second element—unmet interest—is present," *id.*, meaning that the underrepresented gender has not been fully and effectively accommodated by the institution's present athletic program, *id.* at 902 (citing 44 Fed. Reg. at 71,418). Only where the plaintiff meets the burden of proof on these elements *and* the institution fails to show as an affirmative defense a history and continuing practice of program expansion responsive to the interests and abilities of the underrepresented gender will liability be established. Surely this is a far cry from a one-step imposition of a gender-based quota.

Brown simply ignores the fact that it is required to accommodate fully the interests and abilities of the underrepresented gender, not because the three-part test mandates preferential treatment for women *ab initio*, but be-

cause Brown has been found (under prong one) to have allocated its athletics participation opportunities so as to create a significant gender-based disparity with respect to these opportunities, and has failed (under prong two) to show a history and continuing practice of expansion of opportunities for the underrepresented gender. Brown's interpretation conflates prongs one and three and distorts the three-part test by reducing it to an abstract, mechanical determination of strict numerical proportionality. In short, Brown treats the three-part test for compliance as a one-part test for strict liability.

Brown also fails to recognize that Title IX's remedial focus is, quite properly, not on the overrepresented gender, but on the underrepresented gender; in this case, women. Title IX and its implementing regulations protect the class for whose special benefit the statute was enacted. *See Cannon*, 441 U.S. at 694. It is women and not men who have historically and who continue to be underrepresented in sports, not only at Brown, but at universities nationwide. *See Williams* v. *School Dist. of Bethlehem, Pa.*, 998 F.2d 168, 175 (1993) (observing that, although Title IX and its regulations apply equally to boys and girls, "it would require blinders to ignore that the motivation for promulgation of the regulation on athletics was the historic emphasis on boys' athletic programs to the exclusion of girls' athletic programs in high schools as well as colleges"), *cert. denied*, 510 U.S. 1043 (1994).

The prior panel held that "[t]he fact that the overrepresented gender is less than fully accommodated will not, in and of itself, excuse a shortfall in the provision of opportunities for the underrepresented gender." *Cohen II*, 991 F.2d at 899. Instead, the law requires that, absent a demonstration of continuing program expansion for the underrepresented gender under prong two of the three-part test, an institution must either provide athletics opportunities in proportion to the gender composition of the student body so as to satisfy prong one, or fully

accommodate the interests and abilities of athletes of the underrepresented gender under prong three. *Id.* In other words,

> If a school, like Brown, eschews the first two benchmarks of the accommodation test, electing to stray from substantial proportionality and failing to march uninterruptedly in the direction of equal athletic opportunity, it must comply with the third benchmark. To do so, the school must fully and effectively accommodate the underrepresented gender's interests and abilities, even if that requires it to give the underrepresented gender (in this case, women) what amounts to a larger slice of a shrinking athletic-opportunity pie.

Id. at 906.

We think it clear that neither the Title IX framework nor the district court's interpretation of it mandates a gender-based quota scheme. In our view, it is Brown's relative interests approach to the three-part test, rather than the district court's interpretation, that contravenes the language and purpose of the test and of the statute itself. To adopt the relative interests approach would be, not only to overrule *Cohen II*, but to rewrite the enforcing agency's interpretation of its own regulation so as to incorporate an entirely different standard for Title IX compliance. This relative interests standard would entrench and fix by law the significant gender-based disparity in athletics opportunities found by the district court to exist at Brown, a finding we have held to be not clearly erroneous. According to Brown's relative interests interpretation of the equal accommodation principle, the gender-based disparity in athletics participation opportunities at Brown is due to a lack of interest on the part of its female students, rather than to discrimination, and any attempt to remedy the disparity is, by definition, an unlawful quota. This approach is entirely contrary to "Congress's unmistakably clear mandate that educational

institutions not use federal monies to perpetuate gender-based discrimination," *id.* at 907, and makes it virtually impossible to effectuate Congress's intent to eliminate sex discrimination in intercollegiate athletics.

E.

Brown also claims error in the district court's failure to apply Title VII standards to its analysis of whether Brown's intercollegiate athletics program complies with Title IX. The district court rejected the analogy to Title VII, noting that, while Title VII "seeks to determine whether gender-neutral job openings have been filled without regard to gender[,] Title IX . . . was designed to address the reality that sports teams, unlike the vast majority of jobs, *do* have official gender requirements, and this statute accordingly approaches the concept of discrimination differently from Title VII." *Cohen III*, 879 F. Supp. at 205.

It does not follow from the fact that § 1681(b) was patterned after a Title VII provision that Title VII standards should be applied to a Title IX analysis of whether an intercollegiate athletics program equally accommodates both genders, as Brown contends. While this court has approved the importation of Title VII standards into Title IX analysis, we have explicitly limited the crossover to the employment context. *See Cohen II*, 991 F.2d at 902 (citing *Lipsett* v. *University of P.R.*, 864 F.2d 881, 897 (1st Cir. 1988)); *but see Brown* v. *Hot, Sexy and Safer Prods., Inc.*, 68 F.3d 525, 540 (1st Cir. 1995) (Title VII sexual harassment standards applied to Title IX sexual harassment case in non-employment context), *cert. denied*, —— U.S. ——, 116 S. Ct. 1044 (1996).

As *Cohen II* recognized, "[t]he scope and purpose of Title IX, which merely conditions government grants to educational institutions, are substantially different from those of Title VII, which sets basic employment stand-

ards." 991 F.2d at 902 (citation omitted). "[W]hereas Title VII is largely peremptory," Title IX is "largely aspirational," and thus, a "loosely laced buskin.' *Id.; see also North Haven,* 456 U.S. at 521 (directing that Title IX must be accorded "a sweep as broad as its language").

It is imperative to recognize that athletics presents a distinctly different situation from admissions and employment and requires a different analysis in order to determine the existence *vel non* of discrimination. While the Title IX regime *permits* institutions to maintain gender-segregated teams, the law does not require that student-athletes attending institutions receiving federal funds must compete on gender-segregated teams; nor does the law require that institutions provide completely gender-integrated athletics programs.[14] To the extent that Title IX allows institutions to maintain sngle-sex teams and gender-segregated athletics programs, men and women do not compete against each other for places on team rosters. Accordingly, and notwithstanding Brown's protestations

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[14] *See* 34 C.F.R. 106.41(b) (1995) ("[A] recipient *may* operate or sponsor separate teams for members of each sex where selection for such teams is based upon competitive skill or the activity involved is a contact sport.") (emphasis added). Nor do the regulations *require* institutions to field gender-integrated teams:

> However, where a recipient operates or sponsors a team in a particular sport for members of one sex but operates or sponsors no such team for members of the other sex, and athletic opportunities for members of that sex have previously been limited, members of the excluded sex must be allowed to try-out for the team offered unless the sport involved is a contact sport.

Id.

Whether or not the institution maintains gender-segregated teams, it must provide "gender-blind equality of opportunity to its student body." *Cohen II,* 991 F.2d at 896. While this case presents only the example of members of the underrepresented gender seeking the opportunity to participate on single-sex teams, the same analysis would apply where members of the underrepresented gender sought opportunities to play on co-ed teams.

to the contrary, the Title VII concept of the "qualified pool" has no place in a Title IX analysis of equal opportunities for male and female athletes because women are not "qualified" to compete for positions on men's teams, and vice-versa. In addition, the concept of "preference' does not have the same meaning, or raise the same equality concerns, as it does in the employment and admissions contexts.

Brown's approach fails to recognize that, because gender-segregated teams are the norm in intercollegiate athletics programs, athletics differs from admissions and employment in analytically material ways. In providing for gender-segregated teams, intercollegiate athletics programs *necessarily* allocate opportunities separately for male and female students, and, thus, any inquiry into a claim of gender discrimination *must* compare the athletics participation opportunities provided for men with those provided for women. For this reason, and because recruitment of interested athletes is at the discretion of the institution, there is a risk that the institution will recruit only enough women to fill positions in a program that already underrepresents women, and that the smaller size of the women's program will have the effect of discouraging women's participation.

In this unique context, Title IX operates to ensure that the gender-segregated allocation of athletics opportunities does not disadvantage either gender. Rather than create a quota or preference, this unavoidably gender-conscious comparison merely provides for the allocation of athletics resources and participation opportunities between the sexes in a non-discriminatory manner. As the Seventh Circuit observed, "Congress itself recognized that addressing discrimination in athletics presented a unique set of problems not raised in areas such as employment and academics." *Kelley*, 35 F.3d at 270 (citing *Sex Discrimination Regulations, Hearings Before the Subcommittee on Post Secondary Education of the Committee on Education*

and Labor, 94th Cong., 1st Sess. at 46, 54, 125, 129, 152, 177, 299-300 (1975); 118 Cong. Rec. 5807 (1972) (statement of Sen. Bayh); 117 Cong. Rec. 30,407 (1971) (same)).

In contrast to the employment and admissions contexts, in the athletics context, gender is not an irrelevant characteristic. Courts and institutions must have some way of determining whether an institution complies with the mandate of Title IX and its supporting regulations to provide equal athletics opportunities for both genders, despite the fact that the institution maintains single-sex teams, and some way of fashioning a remedy upon a determination that the institution does not equally and effectively accommodate the interests and abilities of both genders. As the *Kelley* Court pointed out (in the context of analyzing the deference due the relevant athletics regulation and the Policy Interpretation):

> Undoubtedly the agency responsible for enforcement of the statute could have required schools to sponsor a women's program for every men's program offered and vice versa. . . . It was not unreasonable, however, for the agency to reject this course of action. Requiring parallel teams is a rigid approach that denies schools the flexibility to respond to the differing athletic interests of men and women. It was perfectly acceptable, therefore, for the agency to chart a different course and adopt an enforcement scheme that measures compliance by analyzing how a school has allocated its various athletic resources.

Kelley, 35 F.3d at 271 (footnotes omitted).

Each prong of the Policy Interpretation's three-part test determines compliance in this manner.

> Measuring compliance through an evaluation of a school's allocation of its athletic resources allows schools flexibility in meeting the athletic interests of

> their students and increases the chance that the actual interests of those students will be met. And if compliance with Title IX is to be measured through this sort of analysis, it is only practical that schools be given some clear way to establish that they have satisfied the requirements of the statute. The substantial proportionality contained in Benchmark 1 merely establishes such a safe harbor.

Id. (citations omitted).

We find no error in the district court's refusal to apply Title VII standards in its inquiry into whether Brown's intercollegiate athletics program complies with Title IX. *See Cohen II*, 991 F.2d at 901 ("[T]here is no need to search for analogies where, as in the Title IX milieu, the controlling statutes and regulations are clear."). We conclude that the district court's application of the three-part test does not create a gender-based quota and is consistent with Title IX, 34 C.F.R. § 106.41, the Policy Interpretation, and the mandate of *Cohen II*.

F.

Brown has contended throughout this litigation that the significant disparity in athletics opportunities for men and women at Brown is the result of a gender-based differential in the level of interest in sports and that the district court's application of the three-part test requires universities to provide athletics opportunities for women to an extent that exceeds their relative interests and abilities in sports. Thus, at the heart of this litigation is the question whether Title IX permits Brown to deny its female students equal opportunity to participate in sports, based upon its unproven assertion that the district court's finding of a significant disparity in athletics opportunities for male and female students reflects, not discrimination in Brown's intercollegiate athletics program, but a lack

of interest on the part of its female students that is unrelated to a lack of opportunities.

We view Brown's argument that women are less interested than men in participating in intercollegiate athletics, as well as its conclusion that institutions should be required to accommodate the interests and abilities of its female students only to the extent that it accommodates the interests and abilities of its male students, with great suspicion. To assert that Title IX permits institutions to provide fewer athletics participation opportunities for women than for men, based upon the premise that women are less interested in sports than are men, is (among other things) to ignore the fact that Title IX was enacted in order to remedy discrimination that results from stereotyped notions of women's interests and abilities.

Interest and ability rarely develop in a vacuum; they evolve as a function of opportunity and experience. The Policy Interpretation recognizes that women's lower rate of participation in athletics reflects women's historical lack of opportunities to participate in sports. *See* 44 Fed. Reg. at 71,419 ("Participation in intercollegiate sports has historically been emphasized for men but not women. Partially as a consequence of this, participation rates of women are far below those of men.").

Moreover, the Supreme Court has repeatedly condemned gender-based discrimination based upon "archaic and overbroad generalizations" about women. *Schlesinger* v. *Ballard*, 419 U.S. 498, 508 (1975). *See, e.g., Mississippi Univ. for Women* v. *Hogan*, 458 U.S. 718, 725 (1982); *Califano* v. *Webster*, 430 U.S. 313, 317 (1977); *Frontiero* v. *Richardson*, 411 U.S. 677, 684-86 (1973). The Court has been especially critical of the use of statistical evidence offered to prove generalized, stereotypical notions about men and women. For example, in holding that Oklahoma's 3.2% beer statute invidiously discrim-

inated against males 18-20 years of age, the Court in *Craig* v. *Boren*, 429 U.S. 190, 208-209 (1976), stressed that "the principles embodied in the Equal Protection Clause are not to be rendered inapplicable by statistically measured but loose-fitting generalities." *See also id.* at 202 ("statistics exhibit a variety of . . . shortcomings that seriously impugn their value to equal protection analysis"); *id.* at 204 ("proving broad sociological propositions by statistics is a dubious business, and one that inevitably is in tension with the normative philosophy that underlies the Equal Protection Clause"); *Cannon*, 441 U.S. at 681 n.2 (observing with respect to the relevance of the University of Chicago's statistical evidence regarding the small number of female applicants to its medical school, in comparison to male applicants, that "the dampening impact of a discriminatory rule may undermine the relevance of figures relating to *actual* applicants").

Thus, there exists the danger that, rather than providing a true measure of women's interest in sports, statistical evidence purporting to reflect women's interest instead provides only a measure of the very discrimination that is and has been the basis for women's lack of opportunity to participate in sports. Prong three requires some kind of evidence of interest in athletics, and the Title IX framework permits the use of statistical evidence in assessing the level of interest in sports.[15] Nevertheless,

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[15] Under the Policy Interpretation,

> Institutions may determine the athletic interests and abilities of students by nondiscriminatory methods of their choosing provided:
>
> a. The processes take into account the nationally increasing levels of women's interests and abilities;
>
> b. The methods of determining interest and ability do not disadvantage the members of an underrepresented sex;
>
> c. The methods of determining ability take into account team performance records; and

to allow a numbers-based lack-of-interest defense to become the instrument of further discrimination against the underrepresented gender would pervert the remedial purpose of Title IX. We conclude that, even if it can be empirically demonstrated that, at a particular time, women have less interest in sports than do men, such evidence, standing alone, cannot justify providing fewer athletics opportunities for women than for men. Furthermore, such evidence is completely irrelevant where, as here, viable and successful women's varsity teams have been demoted or eliminated. We emphasize that, on the facts of this case, Brown's lack-of-interest arguments are of no con-

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d. The methods are responsive to the expressed interests of students capable of intercollegiate competition who are members of an underrepresented sex.

44 Fed. Reg. at 71,417.

The 1990 version of the Title IX Athletics Investigator's Manual, an internal agency document, instructs investigating officials to consider, *inter alia*, the following: (i) any institutional surveys or assessments of students' athletics interests and abilities, *see* Valerie M. Bonnette & Lamar Daniel, Department of Education, Title IX Athletics Investigator's Manual at 22 (1990); (ii) the "expressed interests" of the underrepresented gender, *id.* at 25; (iii) other programs indicative of interests and abilities, such as club and intramural sports, sports programs at "feeder" schools, community and regional sports programs, and physical education classes, *id.*

As the district court noted, however, the agency characterizes surveys as a "simple way to identify which additional sports might appropriately by created to achieve compliance. . . . Thus, a survey of interests would *follow* a determination that an institution does not satisfy prong three; it would not be utilized to make that determination in the first instance." *Cohen III*, 897 F. Supp. at 210 n.51; *see* 1990 Investigator's Manual at 27 (explaining that a survey or assessment of interests and abilities is not required by the Title IX regulation or the Policy Interpretation but may be required as part of a remedy when OCR has concluded that an institution's current program does not equally effectively accommodate the interests and abilities of students). (We note that the text of the 1990 Invesigator's Manual cited herein at page 25 was apparently at page 27 of the copy of the Manual before the district court.)

sequence. As the prior panel recognized, while the question of full and effective accommodation of athletics interests and abilities is potentially a complicated issue where plaintiffs seek to create a new team or to elevate to varsity status a team that has never competed at the varsity level, no such difficulty is presented here, where plaintiffs seek to reinstate what were successful university-funded teams right up until the moment the teams were demoted.[16] *Cohen II*, 991 F.2d at 904; *see also Cohen I*, 809 F. Supp. at 992 ("Brown is cutting off varsity opportunities where there is great interest and talent, *and* where Brown still has an imbalance between men and women varsity athletes in relation to their undergraduate enrollments.").

On these facts, Brown's failure to accommodate fully and effectively the interests and abilities of the underrepresented gender is clearly established. *See* Clarification Memorandum at 8 ("If an institution has recently eliminated a viable team from the intercollegiate program, OCR will find that there is sufficient interest, ability, and available competition to sustain an intercollegiate team in that sport unless an institution can provide strong evidence that interest, ability or available competition no longer exists."); *id.* at 8-9 n.2 ("While [other] indications of interest may be helpful to OCR in ascertaining likely interest on campus, particularly in the absence of more direct indicia[,] an institution is expected to meet the actual interests and abilities of its students and admitted

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[16] The district court found that the women's gymnastics team had won the Ivy League championship in 1989-90 and was a "thriving university-funded varsity team prior to the 1991 demotion;" that the donor-funded women's fencing team had been successful for many years and that its request to be upgraded to varsity status had been supported by the athletics director at the time; that the donor-funded women's ski team had been consistently competitive despite a meager budget; and that the club-status women's water polo team had demonstrated the interest and ability to compete at full varsity status. *Cohen III*, 879 F. Supp. at 190.

students."). Under these circumstances, the district court's finding that there are interested women able to compete at the university-funded varsity level, *Cohen III*, 879 F. Supp. at 212, is clearly correct.

Finally, the tremendous growth in women's participation in sports since Title IX was enacted disproves Brown's argument that women are less interested in sports for reasons unrelated to lack of opportunity. *See, e.g.*, Mike Tharp et al., *Sports crazy! Ready, set, go. Why we love our games*, U.S. News & World Report, July 15, 1996, at 33-34 (attributing to Title IX the explosive growth of women's participation in sports and the debunking of "the traditional myth that women aren't interested in sports").

Brown's relative interests approach is not a reasonable interpretation of the three-part test. This approach contravenes the purpose of the statute and the regulation because it does not permit an institution or a district court to remedy a gender-based disparity in athletics participation opportunities. Instead, this approach freezes that disparity by law, thereby disadvantaging further the underrepresented gender. Had Congress intended to entrench, rather than change, the status quo—with its historical emphasis on men's participation opportunities to the detriment of women's opportunities—it need not have gone to all the trouble of enacting Title IX.

V.

In the first appeal, this court rejected Brown's Fifth Amendment equal protection challenge to the statutory scheme. *Cohen II*, 991 F.2d at 900-901. Here, Brown argues that its challenge is to the decision of the district court. As Brown puts it, "[t]he [equal protection] violation arises from the court's holding that Title IX requires the imposition of quotas, preferential treatment, and disparate treatment in the absence of a compelling state interest and a determination that the remedial measure

is 'narrowly tailored' to serve that interest." Reply Br. at 18 (citing *Adarand*, —— U.S. at ——, 115 S. Ct. at 2117).

A.

To the extent that Brown challenges the constitutionality of the statutory scheme itself, the challenge rests upon at least two erroneous assumptions: first, that *Adarand* is controlling authority on point that compels us, not only to consider Brown's constitutional challenge anew, but also to apply strict scrutiny to the analysis; second, that the district court's application of the law in its liability analysis on remand is inconsistent with the interpretation expounded in the prior appeal. We reject both premises.[17] Brown's implicit reliance on *Adarand* as contrary intervening controlling authority that warrants a departure from the law of the case doctrine is misplaced because, while *Adarand* does make new law, the law it makes is wholly irrelevant to the disposition of this appeal, and, even if *Adarand* did apply, it does not mandate the level of scrutiny to be applied to gender-conscious government action.

In rejecting Brown's equal protection claim, the *Cohen II* panel stated, "It is clear that Congress has broad powers under the Fifth Amendment to remedy past discrimination." 991 F.2d at 901. The panel cited as authority *Metro Broadcasting*, 497 U.S. at 565-66 (for the proposition that "Congress need not make specific findings of discrimination to grant race-conscious relief"), and

[17] We assume, without deciding, that Brown has not waived its equal protection claim and has standing to raise it. Appellees argue that this claim is waived because Brown did not raise it in the district court. Appellee's Br. at 55 (citing *Desjardins* v. *Van Buren Community Hosp.*, 969 F.2d 1280, 1282 (1st Cir. 1992)). Appellees also argue that, to the extent that the equal protection claim is viable, Brown lacks standing to raise it. Appellee's Br. at 56 (citing *Powers* v. *Ohio*, 499 U.S. 400, 111 S. Ct. 1364, 1370-71 (1991)). Given our disposition of this claim, we do not address these arguments.

Califano v. *Webster*, 430 U.S. at 317 (noting that *Webster* upheld a social security wage law that benefitted women "in part because its purpose was 'the permissible one of redressing our society's longstanding disparate treatment of women' "). *Cohen II*, 991 F.2d at 901. The panel also noted that, in spite of the scant legislative history regarding Title IX as it applies to athletics, Congress heard a great deal of testimony regarding discrimination against women in higher education and acted to reverse the Supreme Court's decision in *Grove City College* v. *Bell*, 465 U.S. 555, 573-74 (1984) (holding that Title IX was "program-specific" and thus applied only to those university programs that actually receive federal funds and not to the rest of the university), with athletics prominently in mind. *Cohen II*, 991 F.2d at 901.

In *Metro Broadcasting*, the Court upheld two federally mandated race-based preference policies under intermediate scrutiny. 497 U.S. at 564-65 (holding that benign race-conscious measures mandated by Congress "are constitutionally permissible to the extent that they serve important governmental objectives within the power of Congress and are substantially related to achievement of those objectives"). The *Metro Broadcasting* Court applied intermediate scrutiny, nothwithstanding that the previous year; in *Croson*, 488 U.S. 469, the Court applied strict scrutiny in striking down a municipal minority set-aside program for city construction contracts. The *Metro Broadcasting* Court distinguished *Croson*, noting that "[i]n fact, much of the language and reasoning in *Croson* reaffirmed the lesson of *Fullilove*[18] that race-

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[18] In *Fullilove*, a plurality of the Court applied a standard subsequently acknowledged to be intermediate scrutiny, *see Metro Broadcasting*, 497 U.S. at 564, in upholding against a Fifth Amendment equal protection challenge a benign race-based affirmative action program that was adopted by an agency at the explicit direction of Congress. The *Fullilove* plurality inquired "whether the *objectives* of th[e] legislation are within the power of Con-

conscious classifications adopted by Congress to address racial and ethnic discrimination are subject to a different standard than such classifications prescribed by state and local governments." *Metro Broadcasting*, 497 U.S. at 565.

Adarand overruled *Metro Broadcasting* to the extent that *Metro Broadcasting* is inconsistent with *Adarand*'s holding that "all racial classifications, imposed by whatever federal, state, or local government actor, must be analyzed by a reviewing court under strict scrutiny." *Adarand*, —— U.S. at ——, 115 S. Ct. at 2113. Brown impliedly assumes that *Adarand*'s partial overruling of *Metro Broadcasting* invalidates the prior panel's disposition of Brown's equal protection challenge by virtue of its passing citation to *Metro Broadcasting*. This assumption is erroneous because the proposition for which *Cohen II* cited *Metro Broadcasting* as authority has not been vitiated by *Adarand*, is of no consequence to our disposition of the issues raised in this litigation, and is, in any event, unchallenged here.[19]

The prior panel rejected Brown's Fifth Amendment equal protection[20] and "affirmative action" challenges to the statutory scheme. *Cohen II*, 991 F.2d at 901 (finding

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gress[]" and "whether the limited use of racial and ethnic criteria . . . is a constitutionally permissible *means* for achieving the congressional objectives." 488 U.S. at 473.

[19] *Cohen II* cited *Metro Broadcasting* for a general principle regarding Congress's broad powers to remedy discrimination, a proposition that was not reached by *Adarand*. Moreover, *Webster*, which *Cohen II* cited along with *Metro Broadcasting*, was not overruled or in any way rendered suspect by *Adarand*.

[20] It is well settled that the reach of the equal protection guarantee of the Fifth Amendment Due Process Clause—the basis for Brown's equal protection claim—is coextensive with that of the Fourteenth Amendment Equal Protection Clause. *E.g.*, *United States* v. *Paradise*, 480 U.S. at 166 n.16; *Weinberger* v. *Wiesenfeld*, 420 U.S. 636, 638 n.2 (1975).

no constitutional infirmity, assuming *arguendo*, that the regulation creates a classification somewhat in favor of women). Thus, to the extent that Brown challenges the statutory scheme itself, that challenge is foreclosed under the law of the case doctrine. Nevertheless, the remedy ordered for a violation of a federal anti-discrimination statute is still subject to equal protection review, assuming that it constitutes gender-conscious government action. *See Miller*, —— U.S. at ——, 115 S. Ct. at 2491. Therefore, we review the constitutionality of the district court's order requiring Brown to comply with Title IX by accommodating fully and effectively the athletics interests and abilities of its women students. Because the challenged classification is gender-based, it must be analyzed under the intermediate scrutiny test. Before proceeding to the analysis, however, we must first address Brown's challenge to the standard of review.

Brown concedes that *Adarand* "does not, in partially overruling *Metro Broadcasting*, set forth the proper standard of review for this case." Appellant's Br. at 29. Nevertheless, Brown asserts that "[w]hile *Adarand* is a case involving racial classification, its analysis clearly applies to gender classification as well." *Id.* at 27. Further, inappropriately relying on *Frontiero*, 411 U.S. 677, and *Croson*, 488 U.S. 469, Brown concludes that strict scrutiny applies to gender-based classifications.[21] Appellant's

[21] In *Frontiero*, a plurality of the Court concluded that gender-based classifications, "like classifications based upon race, alienage, or national origin, are inherently suspect, and must therefore be subjected to strict judicial scrutiny." 411 U.S. at 688. In the 23 years that have since elapsed, this position has never commanded a majority of the Court, and has never been adopted by this court. Whatever may be the merits of adopting strict scrutiny as the standard to be applied to gender-based classifications, it is inappropriate to suggest, as Brown does, that *Frontiero* compels its application here.

Brown's assertion that *Adarand* obligates this court to apply *Croson* to its equal protection claim is also incorrect. As noted

Br. at 29; Reply Br. at 19-20. These conclusory assertions do not comport with the law in this circuit.

First, as explained earlier, *Adarand* and *Croson* apply to review of legislative affirmative action schemes. This case presents the issue of the legality of a federal district court's determination, based upon adjudicated findings of fact, that a federal anti-discrimination statute has been violated, and of the statutory and constitutional propriety of the judicial remedy ordered to provide redress to plaintiffs with standing who have been injured by the violation.

Second, *Adarand* does not even discuss gender discrimination, and its holding is limited to explicitly race-based classifications. —— U.S. at ——, 115 S. Ct. at 2113. It can hardly be *assumed* that the Court intended to include gender-based classifications within *Adarand*'s precedential scope or to elevate, *sub silentio*, the level of scrutiny to be applied by a reviewing court to such classifications.

Third, even if *Adarand* did apply, it does not dictate the level of scrutiny to be applied in this case, as Brown concedes. For the last twenty years, the Supreme Court has applied intermediate scrutiny to all cases raising equal protection challenges to gender-based classifications, including the Supreme Court's most recent gender discrim-

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previously, *Croson* is an affirmative action case and does not control review of a judicial determination that a federal anti-discrimination statute has been violated. To the extent that Brown assumes that Croson governs the issue of the sufficiency of the factual predicate required to uphold a federally mandated, benign race- or gender-based classification, that assumption is also unfounded. As we have explained, *Croson*'s factual concerns are not raised by a district court's determination—predicated upon duly adjudicated factual findings bearing multiple indicia of reliability and specificity—of gender discrimination in violaton of a federal statute. We also point out that *Adarand* did not reach the question of the sufficiency of the factual predicate required to satisfy strict scrutiny review of a congressionally mandated race-based classification.

ination case, *United States* v. *Virginia*, —— U.S. ——, 116 S. Ct. 2264 (1996) ("*Virginia*"); *see id.* at 2288 (Rehnquist, C.J., concurring in the judgment) (collecting cases).[22]

Fourth, it is important to recognize that controlling authority does not distinguish between invidious and benign discrimination in the context of gender-based classifications, as it has in the context of racial classifications. Neither this court nor the Supreme Court has drawn this distinction in the context of gender discrimination claims or held that a less stringent standard applies in cases involving benign, rather than invidious, gender discrimination. *See Hogan*, 458 U.S. at 724 & n.9 (reviewing benign gender-conscious admissions policy under intermediate scrutiny and recognizing that the analysis does not change with the objective of the classification); *accord Wygant*, 476 U.S. at 273. Thus, the analytical result would be same, even if this were an affirmative action case.

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[22] We point out that *Virginia* adds nothing to the analysis of equal protection challenges to gender-based classifications that has not been part of that analysis since 1979, long before *Cohen II* was decided. While the *Virginia* Court made liberal use of the phrase "exceedingly persuasive justification," and sparse use of the formulation "substantially related to an important governmental objective," the Court nevertheless struck down the gender-based admissions policy at issue in that case under intermediate scrutiny, —— U.S. at ——, 116 S. Ct. at 2271, 2275; *id.* at 2288 (Rehnquist, C.J., concurring in the judgment), the standard applied to gender-based classifications since 1976, when it was first announced in *Craig* v. *Boren*, 429 U.S. at 197, and the test applied in both *Metro Broadcasting* and *Webster*.

The phrase "exceedingly persuasive justification" has been employed routinely by the Supreme Court in applying intermediate scrutiny to gender discrimination claims and is, in effect, a shorthand expression of the well-established test. *See Personnel Adm'r* v. *Feeney*, 442 U.S. 256, 273 (1979); *Kirchberg* v. *Feenstra*, 450 U.S. 455, 461 (1981); *Hogan*, 458 U.S. at 724; *J.E.B.* v. *Alabama ex rel. T.B.*, 511 U.S. 127, 136-37 (1994).

Under intermediate scrutiny, the burden of demonstrating an exceedingly persuasive justification for a government-imposed, gender-conscious classification is met by showing that the classification serves important governmental objectives, and that the means employed are substantially related to the achievement of those objectives. *E.g., Hogan,* 458 U.S. at 724. Applying that test, it is clear that the district court's remedial order passes constitutional muster.

We find that the first part of the test is satisfied. The governmental objectives of "avoid[ing] the use of federal resources to support discrimnatory practices," and "provid[ing] individual citizens effective protection against those practices," *Cannon,* 441 U.S. at 704, are clearly important objectives. We also find that judicial enforcement of federal anti-discrimination statutes is at least an important governmental objective.

Applying the second prong of the intermediate scrutiny test, we find that the means employed by the district court in fashioning relief for the statutory violation are clearly substantially related to these important objectives. Intermediate scrutiny does not require that there be no other way to accomplish the objectives, but even if that were the standard, it would be satisfied—in the unique context presented by the application of Title IX to athletics.

As explained previously, Title IX as it applies to athletics is distinct from other anti-discrimination regimes in that it is impossible to determine compliance or to devise a remedy without counting and comparing opportunities with gender explicitly in mind. Even under the individual rights theory of equal protection, reaffirmed in *Adarand,* ——U.S. at ——, 115 S. Ct. at 2112 (the equal protection guarantee "protect[s] persons, not groups"), the only way to determine whether the rights of an individual athlete have been violated and what relief is necessary to remedy the violation is to engage in an explicitly gender-

conscious comparison. Accordingly, even assuming that the three-part test creates a gender classification that favors women, allowing consideration of gender in determining the remedy for a Title IX violation serves the important objective of "ensur[ing] that in instances where overall athletic opportunities decrease, the actual opportunities available to the underrepresented gender do not." *Kelley*, 35 F.3d at 272. In addition, a gender-conscious remedial scheme is constitutionally permissible if it directly protects the interests of the disproportionately burdened gender. *See Hogan*, 458 U.S. at 728 ("In limited circumstances, a gender-based classification favoring one sex can be justified if it intentionally and directly assists members of the sex that is disproportionately burdened.").

Under Brown's interpretation of the three-part test, there can never be a remedy for a violation of Title IX's equal opportunity mandate. In concluding that the district court's interpretation and application of the three-part test creates a quota, Brown errs, in part, because it fails to recognize that (i) the substantial proportionality test of prong one is only the starting point, and not the conclusion, of the analysis; and (ii) prong three is not implicated unless a gender-based disparity with respect to athletics participation opportunities has been shown to exist. Where such a disparity has been established, the inquiry under prong three is whether the athletics interests and abilities of the underrepresented gender are fully and effectively accommodated, such that the institution may be found to comply with Title IX, notwithstanding the disparity.[23]

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[23] Under the three-part test, the institution may also excuse the disparity under prong two, by showing a "history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the [underrepresented gender]," 44 Fed. Reg. at 71,418, in which case the compliance inquiry ends without reaching prong three. It has been determined that Brown cannot avail itself of this defense. *See Cohen III*, 879 F. Supp. at 211.

Of course, a remedy that requires an institution to cut, add, or elevate the status of athletes or entire teams may impact the genders differently, but this will be so only if there is a gender-based disparity with respect to athletics opportunities to begin with, which is the only circumstance in which prong three comes into play. Here, however, it has not been shown that Brown's men students will be disadvantaged by the full and effective accommodation of the athletics interests and abilities of its women students.

VI.

Brown assigns error to the district court's exclusion of certain evidence pertaining to the relative athletics interests of men and women. Reviewing the district court's evidentiary rulings for abuse of discretion, *see Sinai* v. *New England Tel. and Tel. Co.*, 3 F.3d 471, 475 (1st Cir. 1993), *cert. denied*, ——U.S.——, 115 S. Ct. 597 (1994), we find none.

Brown first contends that the court erred in barring cross-examination of plaintiffs' expert Dr. Sabor on the issue of why girls drop out of sports before reaching college. Because Dr. Sabor's direct testimony did not address this issue, it was within the district court's discretion to limit cross-examination "to the subject matter of the direct examination." Fed. R. Evid. 611(b); *see Ferragama* v. *Chubb Life Ins. Co. of Am.*, 94 F.3d 26, 28 (1st Cir. 1996).

Brown also suggests that the district court's exclusion of statistical and survey data offered in support of its relative interests argument constitutes error. Although the district court excluded as full exhibits two studies, the NCAA Gender Equity Study and the results of an undergraduate poll on student interest in athletics, it nevertheless permitted Brown's experts to rely on the data contained in these two reports as a basis for their expert

opinions.[24] Because Brown's experts relied upon the excluded data in providing their opinions on the issue of a gender-based differential in student interest in athletics, the evidence was before the trier of fact and any error was, therefore, harmless. *See McDonough Power Equip., Inc.* v. *Greenwood*, 464 U.S. 548, 553 (1984) (instructing apppellate courts to "ignore errors that do not affect the essential fairness of the trial").

VII.

It does not follow from our statutory and constitutional analyses that we endorse the district court's remedial order. Although we decline Brown's invitation to find that the district court's remedy was an abuse of discretion, we do find that the district court erred in substituting its own specific relief in place of Brown's statutorily permissible proposal to comply with Title IX by cutting men's teams until substantial proportionality was achieved.

In *Cohen II* we stated that it is "established beyond peradventure that, where no contrary legislative directive appears, the federal judiciary possesses the power to grant *any* appropriate relief on a cause of action appropriately brought pursuant to a federal statute." 991 F.2d at 901 (citing *Franklin*, 503 U.S. at 70-71). We also observed, however, that "[w]e are a society that cherishes academic freedom and recognizes that universities deserve great leeway in their operations." 991 F.2d at 906 (citing *Wynne* v. *Tufts Univ. Sch. of Med.*, 976 F.2d 791, 795 (1st Cir.

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[24] Brown also contends that the district court erred in excluding the NCAA Annual Report. Appellant's Br. at 56-57. Brown merely asserts, however, that the "study was admissible under Rule 803," *id.* at 57, and offers no explanation as to how it was prejudiced by the exclusion. Accordingly, we deem the argument waived. *Ryan* v. *Royal Ins. Co. of Am.*, 916 F.2d 731, 734 (1st Cir. 1990) ("It is settled in this circuit that issues adverted to on appeal in a perfunctory manner, unaccompanied by some developed argumentation, are deemed to have been abandoned.") (citations omitted).

1992), *cert. denied*, 507 U.S. 1030 (1993); *Lamphere* v. *Brown Univ.*, 875 F.2d 916, 922 (1st Cir. 1989). Nevertheless, we have recognized that academic freedom does not embrace the freedom to discriminate. *Villanueva* v. *Wellesley College*, 930 F.2d 124, 129 (1st Cir. 1991) (citations omitted).

The district court itself pointed out that Brown may achieve compliance with Title IX in a number of ways:

> It may eliminate its athletic program altogether, it may elevate or create the requisite number of women's positions, it may demote or eliminate the requisite number of men's positions, or it may implement a combination of these remedies. I leave it entirely to Brown's discretion to decide how it will balance its program to provide equal opportunities for its men and women athletes. I recognize the financial constraints Brown faces; however, its own priorities will necessarily determine the path to compliance it elects to take.

Cohen III, 879 F. Supp. at 214; *see also Cohen II*, 991 F.2d at 898 n.15 (noting that a school may achieve compliance with Title IX by "reducing opportunities for the overrepresented gender").

With these precepts in mind, we first examine the compliance plan Brown submitted to the district court in response to its order. We then consider the district court's order rejecting Brown's plan and the specific relief ordered by the court in its place.

Brown's proposed compliance plan stated its goal as follows:

> The plan has one goal: to make the gender ratio among University-funded teams at Brown substantially proportionate to the gender ratio of the undergraduate student body. To do so, the University must disregard the expressed athletic interests of one

> gender while providing advantages for others. *The plan focuses only on University-funded sports, ignoring the long history of successful donor-funded student teams.*

Brown's Plan at 1 (emphasis added).

In its introduction, Brown makes clear that it "would prefer to maintain its current program" and that the plan submitted

> is inconsisent with Brown's philosophy to the extent that it grants advantages and enforces disadvantages upon student athletes solely because of their gender and curbs the historic role of coaches in determining the number of athletes which can be provided an opportunity to participate. Nevertheless, the University wishes to act in good faith with the order of the Court, notwithstanding issues of fact and law which are currently in dispute.

Id. at 2.

Brown states that it "seeks to address the issue of proportionality while minimizing additional undue stress on already strained physical and fiscal resources." *Id.*

The general provisions of the plan may be summarized as follows: (i) Maximum squad sizes for men's teams will be set and enforced. (ii) Head coaches of all teams must field squads that meet minimum size requirements. (iii) No additional discretionary funds will be used for athletics. (iv) Four new women's junior varsity teams—basketball, lacrosse, soccer, and tennis—will be university-funded. (v) Brown will make explicit a *de facto* junior varsity team for women's field hockey. *Id.* at 3-4.

The plan sets forth nine steps for its implementation, *id.* at 4-5, and concludes that "if the Court determines that this plan is not sufficient to reach proportionality, phase two will be the elimination of one or more men's teams," *id.* at 5.

The district court found Brown's plan to be "fatally flawed" for two reasons. First, despite the fact that 76 men and 30 women participated on donor-funded varsity teams, Brown's proposed plan disregarded donor-funded varsity teams. District Court Order at 5-6. Second, Brown's plan "artificially boosts women's varsity numbers by adding varsity positions on four women's teams." *Id.* at 6. As to the propriety of Brown's proposal to come into compliance by the addition of junior varsity positions, the district court held:

> Positions on distinct junior varsity squads do not qualify as "intercollegiate competition" opportunities under the Policy Interpretation and should not be included in defendants' plan. As noted in *Cohen*, 879 F. Supp. at 200, "intercollegiate" teams are those that "regularly participate in varsity competition." *See* 44 Fed. Reg. at 71,413 n.1. Junior varsity squads, by defintion, do not meet this criterion. Counting new women's junior varsity positions flagrantly violates the spirit and letter of Title IX; in no sense is an institution providing equal opportunity if it affords varsity positions to men but junior varsity positions to women.

District Court Order at 6 (footnote omitted).

The district court found that these two flaws in the proposed plan were sufficient to show that Brown had "not made a good faith effort to comply with this Court's mandate." *Id.* at 8.

In criticizing another facet of Brown's plan, the district court pointed out that

> [a]n institution does not provide equal opportunity if it caps its men's teams after they are well-stocked with high-caliber recruits while requiring women's teams to boost numbers by accepting walkons. A University does not treat its men's and women's teams equally if it allows the coaches of men's teams to

> set their own maximum capacity limits but overrides the judgment of coaches of women's teams on the same matter.

Id. at 8-9.

After rejecting Brown's proposed plan, but bearing in mind Brown's stated objectives, the district court fashioned its own remedy:

> I have concluded that Brown's stated objectives will be best served if I design a remedy to meet the requirements of prong three rather than prong one. In order to bring Brown into compliance with prong one under defendants' Phase II, I would have to order Brown to cut enough men's teams to eradicate approximately 213 men's varsity positions. This extreme action is entirely unnecessary. The easy answer lies in ordering Brown to comply with prong three by upgrading the women's gymnastics, fencing, skiing, and water polo teams to university-funded varsity status. In this way, Brown could easily achieve prong three's standard of "full and effective accommodation of the underrepresented sex." This remedy would entail upgrading the positions of approximately 40 women. In order to finance the 40 additional women's positions, Brown certainly will not have to eliminate as many as the 213 men's positions that would be cut under Brown's Phase II proposal. Thus, Brown will fully comply with Title IX by meeting the standards of prong three, without approaching satisfaction of the standards of prong one.
>
> It is clearly in the best interest of both the male and the female athletes to have an increase in women's opportunities and a small decrease in men's opportunities, if necessary, rather than, as under Brown's plan, *no* increase in women's opportunities and a *large* decrease in men's opportunities. Expanding

> women's athletic opportunities in areas where there is proven ability and interest is the very purpose of Title IX and the simplest, least disruptive, route to Title IX compliance at Brown.

Id. at 11-12.

The district court ordered Brown to "elevate and maintain women's gymnastics, women's water polo, women's skiing, and women's fencing to university-funded varsity status." *Id.* at 12. The court stayed this part of the order pending appeal and further ordered that, in the interim, the preliminary injunction prohibiting Brown from eliminating or demoting any existing women's varsity team would remain in effect. *Id.*

We agree with the district court that Brown's proposed plan fell short of a good faith effort to meet the requirements of Title IX as explicated by this court in *Cohen II* and as applied by the district court on remand. Indeed, the plan is replete with argumentative statements more appropriate for an appellate brief. It is obvious that Brown's plan was addressed to this court, rather than to offering a workeable solution to a difficult problem.

It is clear, nevertheless, that Brown's proposal to cut men's teams is a permissible means of effectuating compliance with the statute. Thus, although we understand the district court's reasons for substituting its own specific relief under the circumstances at the time, and although the district court's remedy is within the statutory margins and constitutional, we think that the district court was wrong to reject out-of-hand Brown's alternative plan to reduce the number of men's varsity teams. After all, the district court itself stated that one of the compliance options available to Brown under Title IX is to "demote or eliminate the requisite number of men's positions." *Cohen III*, 879 F. Supp. at 214. Our respect for academic freedom and reluctance to interject ourselves into the conduct of university affairs counsels that we give universities

as much feedom as possible in conducting their operations consonant with constitutional and statutory limits. *Cohen II*, 991 F.2d at 906; *Villaneuva*, 930 F.2d at 129.

Brown therefore should be afforded the opportunity to submit another plan for compliance with Title IX. The context of the case has changed in two significant respects since Brown presented its original plan. First, the substantive issues have been decided adversely to Brown. Brown is no longer and appellant seeking a favorable result in the Court of Appeals. Second, the district court is not under time constraints to consider a new plan and fashion a remedy so as to expedite appeal. Accordingly, we remand the case to the district court so that Brown can submit a further plan for its consideration. In all other respects the judgment of the district court is affirmed. The preliminary injunction issued by the district court in *Cohen I*, 809 F. Supp. at 1001, will remain in effect pending a final remedial order.

VIII.

There can be no doubt that Title IX has changed the face of women's sports as well as our society's interest in and attitude toward women athletes and women's sports. *See, e.g.*, Frank DeFord, *The Women of Atlanta*, Newsweek, June 10, 1996, at 62-71; Tharp, *supra*, at 33; Robert Kuttner, *Vicious Circle of Exclusion*, Washington Post, September 4, 1996, at A15. In addition, there is ample evidence that increased athletics participation opportunities for women and young girls, available as a result of Title IX enforcement, have had salutary effects in other areas of societal concern. *See* DeFord, *supra*, at 66.

One need look no further than the impressive performances of our country's women athletes in the 1996 Olympic Summer Games to see that Title IX has had a dramatic and positive impact on the capabilities of our women athletes, particularly in team sports. These

Olympians represent the first full generation of women to grow up under the aegis of Title IX. The unprecedented success of these athletes is due, in no small measure, to Title IX's beneficient effects on women's sports, as the athletes themselves have acknowledged time and again. What stimulated this remarkable change in the quality of women's athletic competition was not a sudden, anomalous upsurge in women's interest in sports, but the enforcement of Title IX's mandate of gender equity in sports. Kuttner, *supra,* at A15.

Affirmed in part, reversed in part, and remanded for further proceedings. No costs on appeal to either party.

TORRUELLA, *Chief Judge* (Dissenting). Because I am not persuaded that the majority's view represents the state of the law today, I respectfully dissent.

I. THE LAW OF THE CASE

Under the doctrine of the "law of the case," a decision on an issue of law made by the court at one stage of a case becomes a binding precedent to be followed in successive stages of the same litigation except in unusual circumstances. *See Abbadessa* v. *Moore Business Forms, Inc.*, 987 F.2d 18, 22 (1st Cir. 1993); *EEOC* v. *Trabucco*, 791 F.2d 1, 2 (1st Cir. 1986). It is well established however, that a decision of the Supreme Court, that is rendered between two appeals and is irreconcilable with the decision on the first appeal, must be followed on the second appeal. *See Linkletter* v. *Walker*, 381 U.S. 618, 627 (1965); *Metcalf & Eddy, Inc.* v. *Puerto Rico Aqueduct and Sewer Auth.*, 945 F.2d 10, 12 (1st Cir. 1991), *rev'd on other grounds*, 506 U.S. 139 (1993); *Young* v. *Herring*, 917 F.2d 858 (5th Cir. 1990); *Fogel* v. *Chestnutt*, 668 F.2d 100, 109 (2d Cir. 1981), *cert. denied*, 459 U.S. at 828 (1982). I believe that we face such a situation in the instant case.

A. *Adarand* and *Metro Broadcasting*

At the time of *Cohen* v. *Brown University*, 991 F.2d 888 (1st Cir. 1993) (*Cohen II*), the standard intermediate scrutiny test for discriminatory classifications based on sex required that "a statutory classification must be substantially related to an important government objective." *Clark* v. *Jeter*, 486 U.S. 456, 461 (1988); *see also Mississippi Univ. for Women* v. *Hogan*, 458 U.S. 718, 723-24, and n.9 (1982); *Mills* v. *Habluetzel*, 456 U.S. 91, 99 (1982); *Craig* v. *Boren*, 429 U.S. 190, 197 (1976); *Matthews* v. *Lucas*, 427 U.S. 495, 505-06 (1976). As was also the case under strict scrutiny review prior to

Adarand Construction Inc. v. *Pena*, ——U.S. ——, 115 S. Ct. 2097 (1995), however, courts applying intermediate scrutiny sometimes allowed "benign" gender classifications on the grounds that they were a "reasonable means of compensating women as a class for past . . . discrimination." Ronald D. Rotunda & John E. Novack, 3 *Treatise on Constitutional Law* § 18.23, at 277; *see Califano* v. *Webster*, 430 U.S. 313-317 (1977) (allowing women to compute certain social security benefits with a more favorable formula than could be used by men); *Lewis* v. *Cohen*, 435 U.S. 948 (1978) (summary affirmance of a district court decision upholding a provision of the Railroad Retirement Act that allowed women to retire at age 60 while men could not retire until age 65).

In *Cohen II*, we applied precisely this type of benign-classification analysis to what we viewed to be benign gender discrimination by the federal government. Although *Cohen II*, in its brief discussion of the equal protection issue, does not specify the precise standard it used, the court stated that "even if we were to assume . . . that the regulation creates a gender classification slanted somewhat in favor of women, we would find no constitutional infirmity." *Cohen II*, 991 F.2d at 901. Note that the focus is on the government's ability to favor women in this context, rather than on an "important government objective," suggesting that the court considered the issue to be one of benign discrimination. Indeed, no governmental interest is even identified in *Cohen II*. Furthermore, both of the cases cited by the court in *Cohen II* are cases in which a suspect classification was allowed because it was judged benign, *see id.* at 901 (citing *Metro Broadcasting Inc.* v. *FCC*, 497 U.S. 547 (1990) (race); *Califano* v. *Webster*, 430 U.S. 313 (1977) (sex)).

Cohen II's assumption that a regulation slanted in favor of women would be permissible, *Cohen II* 991 F.2d at 901, and by implication that the same regulation would

be impermissible if it favored men, was based on *Metro Broadcasting*, which held that benign race-based action by the federal government was subject to a lower standard than non-remedial race-based action. *See Metro Broadcasting*, 497 U.S. at 564. Specifically, the Supreme Court announced that

> benign race-conscious measures mandated by Congress are constitutionally permissible *to the extent that they serve important governmental objectives within the power of Congress and are substantially related to achievement of those objectives.*

Id. at 565 (emphasis added). Although *Metro Broadcasting* explicitly discussed race-conscious rather than gender-conscious classifications, we applied its standard in *Cohen II*. *See Cohen II*, 991 F.2d at 901.

Since *Cohen II*, however, *Metro Broadcasting* has been overruled, at least in part. *See Adarand Constr. Inc.* v. *Pena*, ——U.S.——, ——, 115 S. Ct. 2097, 2111-12 (1995). In *Adarand*, the Supreme Court held that "all racial classifications . . . must be analyzed under strict scrutiny." *Adarand*, 115 S. Ct. at 2113. The Court in *Adarand* singled out *Metro Broadcasting* as a "significant departure" from much of the Equal Protection jurisprudence that had come before it, in part because it suggested that "benign" government race-conscious classifications should be treated less skeptically than others. *See Adarand*, 115 S. Ct. at 2112.

In *Adarand*, the Supreme Court reasoned that " 'it may not always be clear that a so-called preference is in fact benign.' " *Id.* (quoting *Regents of Univ. of Cal.* v. *Bakke*, 438 U.S. 265 (1978) (opinion of Powell, J.)). Additionally, the Supreme Court endorsed the view that

> [a]bsent searching judicial inquiry into the justification for such race-based measures, there is simply no way of determining what classifications are 'benign'

> or 'remedial' and what classifications are in fact motivated by illegitimate notions of racial inferiority or simple racial politics.

Id. at 2112; *see also Richmond* v. *J.A. Croson Co.*, 488 U.S. 469, 493 (1989).

It is not necessary to equate race and gender to see that the logic of *Adarand*—counseling that we focus on the categories and justifications proffered rather than the labels attached— applies in the context of gender. While cognizant of differences between race-focused and gender-focused Equal Protection precedent, I nevertheless think that *Adarand* compels us to view so-called "benign" gender-conscious governmental actions under the same lens as any other gender-conscious governmental actions. *See Adarand,* 115 S. Ct. at 2112; *see also United States* v. *Virginia,* 116 S.Ct. 2264, 2274, 2277 (1996)) (viewing Virginia's benign justification for a gender classification skeptically); *Shuford* v. *Alabama State Bd. of Educ.,* 897 F. Supp. 1535. 1557 (D. Ala. 1995) (stating that courts "must look behind the recitation of a benign purpose to ensure that sex-based classifications redress past discrimination"). Rather than conduct an inquiry into whether Title IX and its resulting interpretations are "benign" or "remedial," and conscious of the fact that labels can be used to hide illegitimate notions of inferiority or simple politics just as easily in the context of gender as in the context of race, we should now follow *Adarand*'s lead and subject all gender-conscious government action to the same inquiry.[25]

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[25] Our discussion in *Cohen II* also cited *Califano* v. *Webster,* 430 U.S. 313 (1977), which has not been explicitly overruled. That case concerned Congress' provision, under the Social Security Act, for a lower retirement age for women than for men, with the result that, as between similarly situated male and female wage-earners, the female wage-earner would be awarded higher monthly social security payments, *id.* at 314-16. In that case, Congress specifically found that more frequent and lower age limits were

B. *United States* v. *Virginia*

A second Supreme Court case has also made it necessary to review our decision in *Cohen II*. In *United States* v. *Virginia*, 116 S.Ct. 2264 (1996), the Court faced an Equal Protection challenge to Virginia's practice of maintaining the Virginia Military Institute as an all male institution. Rather than simply apply the traditional test requiring that gender classifications be "substantially related to an important government objective," *Clark* v. *Jeter* 486 U.S 456, 461 (1988), the Supreme Court applied a more searching "skeptical scrutiny of official action denying rights or opportunities based on sex," *id.*, at 2274, which requires that "[p]arties who seek to defend gender-based government action must demonstrate an 'exceedingly persuasive justification' for that action," *id.* In its discussion, the Court stated that, in order to prevail in a gender case, "the State must show *at least* that the challenged and that the discriminatory means employed are substantially related to the achievement of those objectives." *Id.* at 2275 (internal quotations omitted) (emphasis added). Being "substantially related to an important government objective," therefore, is considered a necessary but not sufficient condition. The Court also requires a focus on "whether the proffered justification is "exceedingly persuasive." *Id.*

Virginia "drastically revise[d] our established standards for reviewing sex-based classifications." *Id.* at 2291

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being applied to women than to men in the labor market. *Id.* at 319. This led the Supreme Court to characterize the provision at issue as remedial rather than benign, noting that the provision had been repealed in 1972, roughly contemporaneously with "congressional [antidiscrimination] reforms [that] . . . have lessened the economic justification for the more favorable benefit computation" for women. *Id.* at 320. The instant case should be distinguished from *Califano* for two reasons. First, *Califano* did not necessarily rule on benign classifications, as *Metro Broadcasting* and *Adarand* clearly did. Second, *Califano*, unlike the instant case, contained an "exceedingly persuasive justification" for its gender-conscious state action.

(Scalia, J. dissenting). "Although the Court in two places . . . asks whether the State has demonstrated that the classification serves important governmental objectives and that the discriminatory means employed are substantially related to the achievement of those objectives . . . the Court proceeds to interpret 'exceedingly persuasive justification' in a fashion that contradicts the reasoning of *Hogan* and our other precedents." *Id.*

What is important for our purposes is that the Supreme Court appears to have elevated the test applicable to sex discrimination cases to require an "exceedingly persuasive justification." This is evident from the language of both the majority opinion and the dissent in *Virginia.*

This is not just a matter of semantics. *Metro Broadcasting,* and our application of its intermediate scrutiny standard in *Cohen II,* omitted the additional "skeptical scrutiny" requirement of an "exceedingly persuasive justification" for gender-based government action. *Compare Virginia,* 116 S.Ct. at 2274 (citing *J.E.B.* v. *Alabama ex rel. T.B.,* 511 U.S 127, 136-37, and n.6 (1994)), and *Mississippi Univ. for Women* v. *Holden,* 458 U.S. 718, 724 (1982), *with Metro Broadcasting,* 497 U.S. at 564-65.

I conclude, therefore, that *Adarand* and *Virginia* are irreconcilable with the analysis in *Cohen II* and, accordingly, we must follow the guidance of the Supreme Court in this appeal. Under the new standards established in those cases, *Cohen II* is flawed both because it applies a lenient version of intermediate scrutiny that is impermissible following *Adarand* and because it did not apply the "exceedingly persuasive justification" test of *Virginia.* We must, as Brown urges, reexamine the Equal Protection challenge to the three-prong test as interpreted by the district court.

C. Preliminary Injunction

In addition to the above reasons for considering the merits of this appeal, it is important to note that *Cohen II* was an appeal from a preliminary injunction. "When an appeal comes to us in that posture, the appellate court's conclusions as to the merits of the issues presented on preliminary injunction are to be understood as statements of probable outcomes, rather than as comprising the ultimate law of the case." *A.M. Capen's Co.* v. *American Trading and Prod. Co.*, 74 F.3d 317, 322 (1st Cir. 1996) (internal quotations omitted); *see also Narrangansett Indian Tribe* v. *Gilbert*, 934 F.2d 4, 6 (1st Cir. 1991).

The binding authority of *Cohen II*, therefore, is lessened by the fact that it was an appeal from a preliminary injunction. First, we now have a full record before us and a set of well-defined legal questions presented by the appellant. Trial on the merits has served to focus these questions and to provide background that allows us to consider these questions in the proper context and in detail. In its decision in *Cohen II*, this court recognized and, indeed, emphasized the fact that its holding was only preliminary. *Cohen II*, 991 F.2d at 902 ("a party losing the battle on likelihood of success may nonetheless win the war at a succeeding trial"). Rather than turning that ruling into a permanent one, we should review the question in light of the full set of facts now available.

Second, the standard of review has changed. The *Cohen II* court stated that it was adopting a deferential standard of review, and that "if . . . the district court made no clear error of law or fact, we will overturn its calibration . . . only for manifest abuse of discretion." *Id.* at 902. The test applied by the court was based on "(1) the movant's probability of victory on the merits; (2) the potential for irreparable harm if the injunction is refused; (3) the balance of interests as between the parties . . . and (4) the public interest." *Id.* The case is now before us on appeal

from the merits and we must review it accordingly. For the purposes of this appeal, we must review findings of fact under a clearly erroneous standard, *Reich* v. *Newspapers of New England, Inc.*, 44 F.3d 1060, 1069 (1st Cir. 1995) and findings of law *de novo*, *Portsmouth* v. *Schlesinger*, 57 F.3d 12, 14 (1st Cir. 1995). Because the standard has changed, it is conceivable that the result of the analysis will change, making review appropriate.

II. BROWN'S EQUAL PROTECTION CHALLENGE

Appellees have argued that the three-prong test does not create a gender classification because the classification applies to both women and men. Although I agree that by its words, the test would apply to men at institutions where they are proportionately underrepresented in intercollegiate athletics, I cannot accept the argument that, via this provision, the Government does not classify its citizens by gender. *See United States* v. *Virginia*, —— U.S. ——, 116 S. Ct. 2264, 2274-76 (1996) (applying Equal Protection review to "gender-based government action" where Commonwealth of Virginia attempted to maintain two purportedly equal single-sex institutions). *Cf. Loving* v. *Virginia*, 388 U.S. 1, 8-9 (1967) (stating that even though the statute at issue applied equally to members of different racial classifications, it still implicated race-related Equal Protection concerns, since the statute itself contained race-conscious classifications). The fact of gender-conscious classification, even with equal enforcement with respect to both genders, requires the application of a higher level of scrutiny than rational basis review. We cannot pretend that an interpretation of a statute that contains explicit categorization according to gender and that has intentional gender-conscious effect does not represent gender-based government action. Equal Protection is implicated where the claim is made that a classification made by the government intentionally subjects an individual to treatment different from similarly situated individuals based on an impermissible characteris-

tic, such as race, national origin, or gender. Ronald D. Rotunda & John E. Nowak, 3 *Treatise on Constitutional Law* § 18.2, at 7-8 (2d ed. 1992).

A. The District Court's Construction of the Three-Prong Test

1. Prong One

A central issue in this case is the manner in which athletic "participation opportunities" are counted. During the 1990-91 academic year, Brown fielded 16 men's and 15 women's varsity teams on which 566 men and 328 women participated. By the 1993-94 year, there were 12 university-funded men's teams and 13 university funded women's teams. These teams included 479 men and 312 women. Based on an analysis of membership in varsity teams, the district court concluded that there existed a disparity between female participation in intercollegiate athletics and female student enrollment.

Even assuming that membership numbers in varsity sports is a reasonable proxy for participation opportunities —a view with which I do not concur—contact sports should be eliminated from the calculus. The regulation at 34 C.F.R. § 106.41(b) (1995) provides that an academic instruction may operate separate teams for members of each sex "where selection of such teams is based upon competitive skill or the activity involved is a contact sport." 34 C.F.R. § 106.41(b). When a team is sponsored only for one sex, however, and where "athletic opportunities for members of that sex have previously been limited, members of the excluded sex must be allowed to try-out for the team offered *unless the sport involved is a contact sport*," *id.* (emphasis added). The regulation, therefore, allows schools to operate single-tax teams in contact sports. In counting participation opportunities, therefore, it does not make sense to include in the calculus athletes participating in contact sports that include only

men's teams. For example, if a university chooses to sponsor a football team, it is permitted to sponsor only a men's team. Not all sports are the same and the university should be given the flexibility to determine which activities are most beneficial to its student body. By including in its accounting a contact sport that requires very large numbers of participants, e.g., football, the district court skews the number of athletic participants—making it impossible for the university to provide both men's and women's teams in other sports.

If the athletes competing in sports for which the university is permitted to field single-sex teams are excluded from the calculation of participation rates, the proportion of women participants would increase dramatically and prong one might be satisfied. If so, the inquiry ends and Brown should be judged to be in compliance.

2. Prong Two

The district court concluded, and the majority appears to agree, that Brown failed to satisfy prong two because "merely reducing program offerings to the overrepresented gender does not constitute program expansion for the underrepresented gender." Majority Opinion at 18. This is a curious result because the entire three-prong test is based on *relative* participation rates. Prong one, for example, requires that participation opportunities be provided proportionately to enrollment, but does not mandate any absolute number of such opportunities. The district court's conclusion with respect to prong two, however, implies that a school must not only demonstrate that the proportion of women in their program is growing over time, it must also show that the *absolute* number of women participating is increasing.[26]

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[26] This requirement presents a dilemma for a school in which women are less interested in athletics, as Brown contends is the case. Under such conditions, a school may be unable to succeed under the second prong because there may not be enough interested

Under the district court's interpretation, a school facing budgetary constraints must, in order to comply with prong two, *increase* the opportunities available to the underrepresented gender, even if it cannot afford to do so. Rather than respecting the school's right to determine the role athletics will play in the future—including reducing the opportunities available to the formerly overrepresented gender to ensure proportionate opportunities—the district court and the majority demand that the *absolute* number of opportunities provided to the underrepresented gender be increased. I see no possible justification for this interpretation—the regulation is intended to protect against discrimination, not to promote athletics on college campuses. A school is not required to sponsor an athletic program of any particular size. It is not for the courts, or the legislature, for that matter, to mandate programs of a given size. The most that can be demanded is that athletics be provided in a non-discriminatory manner.

Furthermore, the claim that a reduction in the opportunities given to the overrepresented gender is an unacceptable method of coming into compliance with the three prong test is contrary to both *Cohen II* and comments of the majority opinion. The majority quotes approvingly from *Cohen* v. *Brown Univ.*, 879 F. Supp. 185 (D.R.I. 1995) (*Cohen III*), to demonstrate the many ways in which a university might achieve compliance:

> It may eliminate its athletic program altogether, it may elevate or create the requisite number of women's positions, it may demote or eliminate the requisite number of men's positions, or it may implement a combination of these remedies.

Majority Opinion at 70 (quoting *Cohen III*). This conclusion is consistent with *Cohen II*, which states that a

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female students to achieve a continuing increase in the number of female participants.

school may achieve compliance by reducing opportunities for the overrepresented gender. *See Cohen II*, 991 F.2d at 898 n.15. I fail to see how these statements can be reconciled with the claim that Brown cannot satisfy prong two by reducing the number of participation opportunities for men.

3. Prong Three

Prong Three of the three-prong test states that, where an institution does not comply with prongs one or two, compliance will be assesed on the basis of

> whether it can be demonstrated that the interests and abiilties of the members of th[e] [proportionately underrepresented] sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. 71,413, 71,418 (December 11, 1979).

According to the district court, Brown's athletics program violates prong three because members of the proportionately underrepresented sex have demonstrated interest sufficient for a university-funded varsity team that is not in fact being funded. The district court asserts that this is not a quota. Brown, on the other hand, argues that prong three is satisfied when (1) the interests and abilities of members of the proportionately underrepresented gender (2) are accommodated to the same degree as the proportionatly overrepresented gender.

Th district court's narrow, literal interpretation should be rejected because prong three cannot be read in isolation. First, as Brown points out, the Regulation that includes prong three provides that, in assessing compliance under the regulation, "the governing principle in this area is that the *athletic interests and abilities of male and female students be equally effectively accommodated.*" *Policy Interpretation*, 44 Fed. Reg. 71,413, 71,414. Thus, Brown contends, to meet "fully"—in an absolute sense—the interests and abilities of an underrepresented gender,

while unmet interest among the overrepresented gender continues, would contravene the governing principle of "equally effective accommodat[ion]" of the interests and abilities of students of both genders.

It is also worthwhile to note that to "fully" accommodate the interests and abilities of the underrepresented sex is an extraordinarily high—perhaps impossibly so—requirement. How could an academic institution with a large and diverse student body ever "fully" accommodate the athletic interests of its students? Under even the largest athletic program, it would be surprising to find that there is not a single student who would prefer to participate in athletics but does not do so because the school does not offer a program in the particular sport that interests the student. To read fully in an absolute sense would make the third prong virtually impossible to satisfy and, therefore, an irrelevant addition to the test.

This difficulty was recognized in *Cohen II*, which stated that "the mere fact that there are some female students interested in a spot does not *ipso facto* require the school to provide a varsity team in order to comply with the third benchmark." *Cohen II* 991 F.2d at 898. The balance that *Cohen II* advocates would require the institution to ensure "participatory opportunities . . . when, and to the extent that, there is sufficient interest and ability among the members of the excluded sex to sustain a viable team." *Id.* (internal citations omitted). This standard may be practical for certain sports that require large teams, but what of individual sports? A "viable" tennis team may require only a single player. The same could be said of any individual sport, including golf, track and field, cycling, fencing, archery, and so on. Therefore, we still have the problem that to "fully accommodate" the interests of the underrepresented sex may be impossible under the district court's interpretation.

In light of the above, Brown argues that prong three is in fact ambiguous with respect to whether "fully"

means (1) an institution must meet 100% of the underrepresented gender's unmet reasonable interest and ability, or (2) an institution must meet the underrepresented gender's unmet reasonable interest and ability as fully as it meets those of the overrepresented gender. I agree with Brown that, in the context of OCR's Policy Interpretation, prong three is susceptible to at least these two plausible interpretations.

Additionally, section 1681(a), a provision enacted by Congress as part of Title IX itself, casts doubt on the district court's reading of prong three. 20 U.S.C. § 1681 (a) (1988). As Brown points out, Title IX, of which the Policy Interpretation is an administrative interpretation, contains language that prohibits the ordering of preferential treatment on the basis of gender due to a failure of a program to substantially mirror the gender ratio of an institution. Specifically, with respect to Title IX's guarantee that no person shall be excluded on the basis of sex from "participation in, denied the benefits of or subjected to discrimination under any education program or activity receiving Federal financial assistance," 20 U.S.C. § 1681(a),

> [n]othing contained [therein] shall be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist with respect to the total number or percentage of persons of the sex participating in or receiving the benefits of any federally supported program or activity, in comparison with the total number of percentage of persons of that sex in any community.

Id. § 1681(b). Section 1681(b) provides yet another reason why the district court's reading of prong three is troublesome and why Brown's reading is a reasonable alternative.

Since the application regulation, 34 C.F.R. § 106.41, and policy interpretation, 44 Fed. Reg. 71,418, are not

manifestly contrary to the objectives of Title IX, and Congress has specifically delegated to an agency the responsibility to articulate standards governing a particular area, we must accord the ensuing regulation considerable deference. *Chevron, U.S.A.* v. *Natural Resources Defense Council, Inc.*, 467 U.S. 837, 844 (1984). That notwithstanding, where—as here—the resulting regulation is susceptible to more than one reaosnable interpretation, we owe no such deference to the interpretation chosen where the choice is made not by the agency but by the district court. Therefore, like other cases of statutory interpretation, we should review the district court's reading *de novo*.

B. The District Court's Interpretation and the Resulting Equal Protection Problem

The district court's interpretation of prongs one and three creates an Equal Protection problem, which I analyze in two steps. First, the district court's interpretation creates a quota scheme. Second, even assuming such a quota scheme is otherwise constitutional, appellees have not pointed to an "exceedingly persuasive justification," *see Virginia*, 116 at 2274, for this particular quota scheme.

1. The Quota

I believe that the three prong test, as the district court interprets it, is a quota. I am in square disagreement with the majority, who believe that "[n]o aspect of the Title IX regime at issue in this case . . . mandates gender-based preferences or quotas." Majority Opinion at 29. Put another way, I agree that "Title IX is not an affirmative action statute," *id.*, but I believe that is exactly what the district court has made of it. As interpreted by the district court, the test constitutes an affirmaive action, quota-based scheme.

I am less interested in the actual term "quota" than the legally cognizable characteristics that render a quota

scheme impermissible. And those characteristics are present here in spades. I am not persuaded by the majority's argument that the three-part test does not constitute a quota because it does not permit an agency or court to find a violation solely on the basis of prong one of the test; instead, an institution must also fail prongs two and three. As Brown rightly argues, the district court's application of the three-prong test requires Brown to allocate its athletic resources to meet the as-yet-unmet interest of a member of the underrepresented sex, women in this case, while simultaneously neglecting any unmet interest among individuals of the overrepresented sex. To the extent that the rate of interest in athletics diverges between men and women at any institution, the district court's interpretation would require that such an institution treat an individual male student's athletic interest and an individual female student's athletic interest completely differently: one student's reasonable interest would have to be met, *by law*, while meeting the other student's interest would only aggravate the lack of proportionality giving rise to the legal duty. "The injury in cases of this kind is that a 'discriminatory classification prevent[s] . . . competition on an equal footing.'" *Adarand*, 115 S. Ct. at 2104 (quoting *Northeast Fla. Chapter, Assoc'd Gen'l Contractors of America* v. *Jacksonville*, 508 U.S. 656, 666 (1993)). As a result, individual male and female students would be precluded from competing against each other for scarce resources; they would instead compete only against members of their own gender. *Cf. Hopwood* v. *Texas*, 78 F.3d 932, 943-46 (5th Cir.) (concluding that not only would government action precluding competition between individuals of different races for law school admissions be unconstitutional, but in fact even partial consideration of race among other factors would be unconstitutional), *cert. denied*, 116 S.Ct. 2581 (1996).[27]

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[27] In response, appellees cite *Kelley* v. *Board of Trustees*, 35 F.3d 265, 271 (1994), for the proposition that the three-prong test does

The majority claims that "neither the Policy Interpretation nor the district court's interpretation of it, *mandates* statistical balancing." Majority Opinion at 41. The logic of this position escapes me. A school can satisfy the test in three ways. The first prong is met if the school provides participation opportunities for male and female students in numbers substantially proportionate to their enrollments. This prong surely requires statistical balancing. The second prong is satisfied if an institution that cannot meet prong one can show a "continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of the underrepresented sex." 44 Fed. Reg. at 71,418. It can hardly be denied that this prong requires statistical balancing as it is essentially a test that requires the school to show that it is moving in the direction of satisfying the first prong. Establishing that a school is moving inexorably closer to satisfying a requirement that demands statistical balancing can only be done by demonstrating an improvement in the statistical balance. In other words, the second prong also requires balancing. Finally, the third prong, interpreted as the majority advocates, dispenses with statistical balancing only because it choose to accord zero weight to one side of the balance. Even a single person with a reasonable unmet interest defeats

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not constitute a quota, because it does not "require any educational institution to grant preferential or disparate treatment" to the gender underrepresented in that institution's athletic program. *Id.* However, in *Kelley*, the Seventh Circuit, unlike the district court, did not use the three-prong test as a definitive test for liability. Rather, the Seventh Circuit endorsed the test as one for compliance in *dismissing the plaintiff's* claims. The Seventh Circuit did not consider the question of whether, had the defendant University of Illinois *not* been in compliance, lack of compliance with the three-prong test *alone* would trigger automatic liability, nor did the Seventh Circuit spell out what steps would have been required of defendant. At any rate, *Kelley* pre-dates the Supreme Court's opinions in *Adarand* and *Virginia*, meaning that it suffers from the same defects as *Cohen II*.

compliance. This standard, in fact, goes farther than the straightforward quota test of prong one. According to the district court, the unmet interests of the underrepresented sex must be *completely* accommodated before *any* of the interest of the overrepresented gender can be accommodated.[28]

A pragmatic overview of the effect of the three-prong test leads me to reject the majority's claim that the three-prong test does not amount to a quota because it involves multiple prongs. In my view it is the result of the test, and not the number of steps involved, that should determine if a quota system exists. Regardless of how many steps are involved, the fact remains that the test requires proportionate participation opportunities for both sexes (prong one) unless one sex is simply not interested in participating (prong three). It seems to me that a quota with an exception for situations in which there are insufficient interested students to allow the school to meet it remains a quota. All of the negative effects of a quota remain,[29] and the school can escape the quota under prong

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[28] The problem with the majority's argument can be illustrated with a hypothetical college admissions policy that would require proportionality between the gender ratio of the local student aged population and that of admitted students. This policy is comparable to prong one of the three prong test and is, without a doubt, a quota. It is no less a quota if an exception exists for schools whose gender ratio differs from that of the local population but which admit every applicant of the underrepresented gender. It remains a quota because the school is forced to admit every female applicant until it reaches the requisite proportion. Similarly, the district court's interpretation requires the school to accommodate the interests of every female student until proportionality is reached.

[29] Nor does the second prong of the test change the analysis. That prong merely recognizes that a school may not be able to meet the quotas of the first or third prong immediately, and therefore deems it sufficient to show program expansion that is responsive to the interests of the underrepresented sex.

three only by offering preferential treatment to the group that has demonstrated less interest in athletics.

2. "Extremely Persuasive Justification" Test

In view of the quota scheme adopted by the district court, and Congress' specific disavowal of any intent to require quotas as part of Title IX, appellees have not met their burden of showing an "exceedingly persuasive justification" for this gender-conscious exercise of government authority. As recently set forth in *Virginia*, "[p]arties who seek to defend gender-based government action must demonstrate an 'exceedingly persuasive justification' for that action." *Virginia*, 116 S.Ct. at 2274. While the Supreme Court in *Virginia* acknowledged that "[p]hysical differences between men and women . . . are enduring," *id.* at 2276, it went on to state that such " '[i]nherent differences' between men and women, we have come to appreciate, remain cause for celebration, but not for . . . artificial constraints on an individual's opportunity." *Id.*

Neither appellees nor the district court have demonstrated an "exceedingly persuasive justification" for the government action that the district court has directed in this case. In fact, appellees have failed to point to *any* congressional statement or indication of intent regarding a proportional representation scheme as applied by the district court. While they point to Congress' decision to delegate authority to the relevant agencies, this does not amount to a genuine—that is, not hypothesized or invented in view of litigation, *id.* at 2275—exceedingly persuasive justification in light of section 1681(b)'s "no quota" provision. We are left with the explanations discussed in *Cohen II* to the effect that Congress conducted hearings on the subject of discrimination against women in education. There is little more than that, because Congress adopted Title IX as a floor amendment without committee hearings or reports. *See Cohen II*, 991 F.2d at 893.

I believe that the district court's interpretation of the Policy Interpretation's three-prong test poses serious constitutional difficulties. "[W]here an otherwise acceptable construction of a statute would raise serious constitutional problems, [we] construe the statute to avoid such problems unless such construction is plainly contrary to the intent of Congress." *Edward J. DeBartolo Corp.* v. *Florida Gulf Coast Bldg. & Constr. Trades Council*, 485 U.S. 568 (1988); *see NLRB* v. *Catholic Bishop of Chicago*, 440 U.S. 490, 507 (1979). To the extent that Congress expressed a specific intent germane to the district court's interpretation, Congress, if anything, expressed an aversion to quotas as a method to enforce Title IX. As a result, I opt for Brown's construction of prong three, which, as we have discussed, *infra*, is also a reasonable reading.

Accordingly, I would reverse and remand for further proceedings.

III. EVIDENTIARY ISSUES

In disputes over the representation of women in athletic programs, it is inevitable that statistical evidence will be relevant. There is simply no other way to assess participation rates, interest levels, and abilities. The majority opinion, however, offers inconsistent guidance with respect to the role of statistics in Title IX claims. Early in the opinion, the majority approvingly cites to the statistical evaluations conducted in *Cohen I*, *Cohen II*, and *Cohen III*. Majority Opinion at 8-10. The figures in question demonstrate that women's participation in athletics is less than proportional to their enrollment. Later in the opinion, however, when the level of interest among women at Brown is at issue, the court adopts a much more critical attitude towards statistical evidence: "[T]here exists the danger that, rather than providing a true measure of women's interest in sports, statistical evidence purporting to reflect women's interest instead provides only a measure of the very discrimination that is and has been the basis

for women's lack of opportunity." Majority Opinion at 53. In other words, evidence of differential levels of interest is not to be credited because it may simply reflect the result of past discrimination.

The refusal to accept surveys of interest levels as evidence of interest raises the question of what indicators might be used. The majority offers no guidance to a school seeking to assess the levels of interest of its students. Although the three-prong test, even as interpreted by the district court, appears to allow the school the opportunity to show a lack of interest, the majority rejects the best—and perhaps the only—mechanism for making such a showing.

Brown claims that the district court erred in excluding evidence pertaining to the relative athletic interests of men and women at the university. Brown sought to introduce the NCAA Gender Equity Study and the results of an undergraduate poll on student interest in athletics, but was not permitted to do so. The majority is unsympathetic to Brown's claim that the disparity between athletic opportunities for men and women reflect a gender-based difference in interest levels. Indeed, despite Brown's attempt to present evidence in support of its claim, the majority characterizes Brown's argument as an "unproven assertion." Majority Opinion at 51.[30]

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[30] Among the evidence submitted by Brown are: (i) admissions data showing greater athletic interest among male applicants than female applicants; (ii) college board data showing greater athletic interest and prior participation rates by prospective male applicants than female applicants; (iii) data from the Cooperative Institutional Research Program at UCLA indicating greater athletic interest among men than women; (iv) an independent telephone survey of 500 randomly selected Brown undergraduates that reveals that Brown offers women participation opportunities in excess of their representation in the pool of interested, qualified students; (v) intramural and club participation rates that demonstrates higher participation rates among men than women; (vi) walk-on and try-out numbers that reflect a greater interest among men

Furthermore, the majority recognizes that institutions are entitled to use any nondiscriminatory method of their choosing to determine athletic interests. Majority Opinion at 53 n.15. If statistical evidence of interest levels is not to be considered by courts, however, there is no way for schools to determine whether they are in compliance. Any studies or surveys they might conduct in order to assess their own compliance would, in the event of litigation, be deemed irrelevant. Regardless of the efforts made by the academic institution, the spector of a lawsuit would be ever-present.

In addition, the majority has put the power to control athletics and the provision of athletic resources in the hands of the underrepresented gender. Virtually every other aspect of college life is entrusted to the institution, but athletics has now been carved out as an exception and the university is no longer in full control of its program. Unless the two genders participate equally in athletics, members of the underrepresented sex would have the ability to demand a varsity level team at any time if they can show sufficient interest. Apparently no weight is given to the sustainability of the interest, the cost of the sport, the university's view on the desirability of the sport, and so on.

IV FIRST AMENDMENT ISSUE

Finally, it is important to remember that Brown University is a private institution with a constitutionally protected First Amendment right to choose its curriculum. Athletics are part of that curriculum. Although the protections of the First Amendment cannot be used to justify discrimination, this court should not forget that it has a

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than women; (vii) high school participation rates that show a much lower rate of participation among females than among males; (viii) the NCAA Gender Equity Committee data showing that women across the country participate in athletics at a lower rate than men.

duty to protect a private institution's right to mould its own educational environment.

The majority pays lip service to these concerns in the final pages of its long opinion, stating that " 'we are a society that cherishes academic freedom and recognizes that universities deserve great leeway in their operations.' " Majority Opinion at 69 (quoting *Cohen II*, 991 F.2d at 906), and "[O]ur respect for academic freedom and reluctance to interject ourselves into the conduct of university affairs counsels that we give universities as much freedom as possible." Majority Opinion at 75. Despite these statements, however, the majority in its opinion today, and the district court before it, have failed to give Brown University freedom to craft its own athletic program and to choose the priorities of that program. Instead, they have established a legal rule that straightjackets college athletics programs by curtailing their freedom to choose the sports they offer.

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

C.A. No. 92-2483

AMY COHEN, *et al.*, each individually and on behalf of all others similarly situated,
Plaintiffs,

v.

BROWN UNIVERSITY, VARTAN GREGORIAN, and DAVID ROACH,
Defendants.

OPINION AND ORDER

PETTINE, RAYMOND J., Senior U.S. District Judge

I. INTRODUCTION

This is a class action lawsuit charging Brown University, its president, and its athletic director (collectively "Brown") with violating Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681-1688 (1988) ("Title IX").[1] Specifically, the plaintiff class, which consists of all present and future Brown University women students and potential students who participate, seek to participate, and/or are deterred from participating in intercollegiate athletics funded by Brown, contends that defendants have discriminated against women in the op-

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[1] Title IX applies only to those institutions that receive federal financial assistance. 20 U.S.C. § 1681. Brown University receives federal funds and is therefore required to comply with Title IX.

eration of Brown's intercollegiate athletic program. After carefully considering the legal arguments and evidence presented throughout the thirty day trial on the merits, I find Brown University to be in violation of Title IX.

This suit was initiated in response to the demotion of the women's gymnastics and volleyball teams at Brown from full varsity to club varsity status in May of 1991. Up until that time, both teams were fully funded by the University. At the same time that Brown demoted these two women's teams, and apparently in an effort to comply with its understanding of Title IX's directives, Brown also demoted two men's fully funded varsity teams, water polo and golf, to club varsity status. At that time, all four teams were stripped of their university funding and most of their varsity privileges.[2] Plaintiffs allege that, against a background in which men at Brown already enjoyed a disproportionately large share of the resources expended on athletics and of the intercollegiate participation opportunities afforded to student athletes, the facially even-handed demotions perpetuated Brown's discriminatory treatment of women.

Prior to the trial on the merits, this Court granted plaintiffs' motion for class certification and denied defendants' motion to dismiss. This Court subsequently heard fourteen days of testimony on plaintiffs' motion for a preliminary injunction. I ordered that the women's gymnastics and volleyball teams be reinstated to fully funded varsity status and prohibited Brown from eliminating or reducing the status or funding of any existing women's

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[2] Financial considerations prompted the demotions. Brown expected to save $77,823 per year as a result of these reductions. Most of the savings realized by eliminating the funding for the four teams came from the women's athletic budget. Brown saved 62,028 by demoting the women's volleyball and gymnastics teams and $15,795 by demoting the men's golf and water polo teams. However, the status reductions did not appreciably affect the athletic participation gender ratio.

intercollegiate varsity team until the case was resolved on the merits. *Cohen v. Brown Univ.*, 809 F.Supp. 978 (D.R.I. 1992). "After mapping Title IX's rugged legal terrain and cutting a passable swath through the factual thicket that overspreads the parties' arguments," the First Circuit affirmed *Cohen v. Brown Univ.*, 991 F.2d 888, 891 (1st Cir. 1993).

At the time of the preliminary injunction, there was virtually no case law on point. Since issuance of the First Circuit's opinion, a number of other circuits have been faced with Title IX athletic discrimination suits. *See, e.g., Horner v. Kentucky High Sch. Athletic Ass'n.*, 43 F.3d 265 (6th Cir. 1994); *Kelley v. Board of Trustees*, 35 F.3d 265 (7th Cir. 1994), *cert. denied*, 115 S.Ct. 938 (1995); *Favia v. Indiana Univ. of Pennsylvania*, 7 F.3d 332 (3d Cir. 1993); *Roberts v. Colorado State Bd. of Agriculture*, 998 F.2d 824 (10th Cir.), *cert. denied*, 114 S.Ct. 580 (1993). The Third, Sixth, Seventh, and Tenth Circuits are in agreement with the First Circuit's interpretation of the law and relevant agency documents. These developments have been explored in a number of recent law review articles.[3] In the instant case, defendants have

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[3] *See, e.g.*, Jennifer L. Henderson, *Gender Equity in Intercollegiate Athletics: A Commitment to Fairness*, 5 Seton Hall J. Sport L. 133 (1995); Janet Judge et al., Perspective, *Gender Equity in the 1990s: An Athletic Administrator's Survival Guide to Title IX and Gender Equity Compliance*, 5 Seton Hall J. Sport L. 313 (1995); Diane Heckman, *The Explosion of Title IX Legal Activity in Intercollegiate Athletics During 1992-93: Defining the "Equal Opportunity" Standard*, 1994 Det. C.L. Rev. 953 (1994); Teresa M. Miguel, *Title IX and Gender Equity in Intercollegiate Athletics: Case Analyses, Legal Implications, and the Movement Toward Compliance*, 1 Sports Law. J. 279 (1994); B. Glenn George, *Miles to Go and Promises to Keep: A Case Study in Title IX*, 64 U. Colo. L. Rev. 555 (1993); William E. Thro & Brian A. Snow, *Cohen v. Brown University and the Future of Intercollegiate and Interscholastic Athletics*, 84 Ed. Law Rep. 611 (1993); Jill K. Johnson, Note, *Title IX and Intercollegiate Athletics: Current*

advanced several provocative arguments that require a thorough examination of the relevant law. In addition, the unusual two-tiered structure of Brown's intercollegiate athletic program presents a unique factual situation requiring this Court to engage in an exhaustive analysis of Title IX and its regulatory complements.

First, I will chronicle the factual background of this case. Second, I will address several preliminary matters. Third, I will outline the legal framework of Title IX and the implementing regulations and interpretation. Fourth, I will review the degree of deference due these agency documents. Fifth, I will set forth this Court's interpretation of the law and will explain why the alternative interpretation offered by counsel must be rejected. Finally, I will discuss the specifics of this case in light of my legal conclusions.

II. FACTUAL BACKGROUND

Brown University is a Division I institution within the National Collegiate Athletic Association ("NCAA"). As

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Judicial Interpretation of the Standards for Compliance, 74 B.U. L. Rev. 553 (1994); R. Lindsay Marshall, Case Comment, *Cohen v. Brown University: The First Circuit Breaks New Ground Regarding Title IX's Application to Intercollegiate Athletics*, 28 Ga. L. Rev. 837 (1994); Mary Beth Petriella, Note, *Injunctive Relief—Title IX—Interim Preliminary Injunction Reinstating Varsity Status to Demoted Collegiate Athletic Teams is Available When That Team Alleges a Title IX Violation and Litigation is Pending —Cohen v. Brown . . .*, 4 Seton Hall J. Sport L. 595 (1994); *Catherine Pieronek, Note, A Clash of Titans: College Football v. Title IX*, 20 J.C. & U.L. 351 (1994); and William H. Webb, Jr., Case Comment, *Sports Law—Cohen v. Brown University: The Promulgation of Gender Equity in Intercollegiate Athletics*, 25 U. Mem. L. Rev. 351 (1994).

The defendants submitted one such piece for my consideration with their post trial memoranda. Walter B. Connolly, Jr. & Jeffrey D. Adelman, *A University's Defense to a Title IX Gender Equity in Athletics Lawsuit: Congress Never Intended Gender Equity Based on Student Body Ratios*, 71 U. Det. Mercy L. Rev. 845 (1994). This Court, however, can hardly accept as authoritative a law review article co-written by defense counsel.

such, Brown participates at the highest level of NCAA competition.[4] Brown currently offers an extensive athletic program for its students.[5] At the intercollegiate level it funds 13 sports for women and 12 sports for men. Additionally, it recognizes, but does not fund, several sports as "donor-funded" varsities (four men's teams and three women's teams).[6] Although the number of varsity sports offered to men and women are equal, the selection of sports offered to each gender generates far more individual positions for male athletes than for female athletes.

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[4] Brown football, however, is a Division I-AA sport and therefore participates at the second highest level of NCAA competition.

[5] Defendants repeatedly point to the fact that Brown's program offerings for women exceed the national average of women's sports per intsitution. However, Brown also exceeds the national average of men's sports per institution. The fact that Brown's athletic offerings are "extensive" cannot and does not excuse its failure to comply with Title IX. That other universities may be even more clearly in violation of Title IX's nondiscrimination mandate does not exonerate an institution that still provides unequal opportunities to its own male and female students.

[6] This "intermediate" program level has been in flux since its inception. Both the name and the treatment of these teams have changed over the last three years. In May 1991 the demoted teams were labeled "club varsity" teams. The athletic director announced that the four teams would no longer receive funds from the Univirsity but would continue to be treated in all other ways as a varsity team. The teams would remain eligible for NCAA competition if they continued to comply with NCAA requirements and if they were able to raise the funds to maintain a sufficient level of competitiveness. During the next season, however, it became apparent that "club varsities" were not receiving the same unviersity privileges as "true" varsities. In December of 1991, the athletic director decided that the term "club varsity" was misleading and changed it to "intercollegiate club" in order to avoid misleading prospective student-athletes. By the time of trial, both the treatment and name of the intermediate teams had further evolved. Brown restored some of the traditional varsity privileges to these teams and now refers to them as "donor-funded," "gift-funded," or "unfunded" varsities. For ease of reference, I will use the term "donor-funded" varsity.

Brown provides the financial resources to sustain the budgets of the "university-funded" varsities, whereas it requires donor-funded teams to raise their own funds through private donations in order to exist. Brown also provides certain services and privileges to the university-funded varsities but not to the donor-funded varsities.[7]

A consequence of this two-tiered system is that most donor-funded varsities have found it difficult to maintain a level of competitiveness as high as their ability would otherwise permit. Their competitive disadvantage in comparison to university-funded teams is due, in part, to the reluctance of some schools to include donor-funded teams in their varsity schedules[8] and in part to the inability of the teams to obtain varsity-level coaching[9] and re-

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[7] While Brown, since the end of the 1993-94 season, has decided to provide donor-funded varsities with access to the weight and training rooms and with special admissions considerations, it is not yet clear to what extent all of these varsity advantages will actually be provided to donor-funded varsities on the *same* basis as they are provided to university-funded varsities. For example, free trainer services are not always available to donor-funded and university-funded varsity teams on an equal basis. Brown does not provide donor-funded varsities with other university amenities, such as office space, campus telephone privileges, secretarial support, and possibly laundry facilities and free interterm housing.

More importantly, Brown also does not guarantee that donor-funded teams will have coaching, equipment and supplies, money for travel (including meals and lodging) and for post-season competition. Brown guarantees all of the above to its university-funded varsities.

[8] For instance, when volleyball was originally demoted, two schools called to cancel their competitions with Brown because of the team's demotion. The volleyball coach also cancelled one tournament because she was unsure if the team would be able to raise enough money to afford the trip. Prelim. Inj. Hr'g Tr. 11/2/92 at 138-39.

[9] The women's ski team, for example, during the 1993-94 season could only afford to hire one coach to train the men's and women's ski teams two nights a week and another to show up for competi-

cruits,[10] or to obtain funds for travel,[11] post-season com-

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tions. Currently, the donor-funded women's ski team can only afford to contribute $1,000 toward coach's compensation; the men's club ski team will match this amount, and the two teams will share the coach. The team captain is responsible for any other training the team does. Trial Tr. 9/29/94 at 11-12, 22, 31.

Similarly, the gymnastics team, in the absence of the preliminary injunction, would have been drastically underfunded. The gymnastics team has never been able to raise close to the amount of money required to retain its coach at her current salary, much less to meet other operating expenses of the team. *See* Trial Tr. 9/27/94 at 171.

[10] Eileen Rocchio, a member of the gymnastics team, testified that she "wouldn't have come to Brown unless [she] knew that it was a varsity team." Prelim. Inj. Hr'g Tr. 10/28/92 at 137. *See also* Prelim. Inj. Hr'g Tr. 10/29/92 at 19-20 ("I would never have gone to Brown knowing and . . . having to worry about fund raising and lockers and . . . trainers and not getting to fulfill my potential as . . . an athlete. Those are things that I . . . would go to a school so that they could provide me with, not that I would have to worry about finding them on my own").

The inability to recruit team members of a high caliber greatly affects the competitive level of a team. For example, when the volleyball team was demoted and lost its recruiting appeal, the team had no alternative but to accept far less accomplished athletes, and it effectively ceased to exist as a varsity level team. Trial Tr. 9/29-94 at 188-90.

[11] Elliot Lilien, former head coach and current assistant coach of men's and women's fencing testified as follows:

> Q: So did you consider the amount of finances that you had in picking a schedule and deciding which teams against which to compete?
>
> A: Sure.
>
> . . .
>
> A: Now if we were to aim at a higher level of competition, no, we didn't have enough [funds] then. (Trial Tr. 9/27/94 at 102).
>
> . . .
>
> A: I've always thought Brown was a gold mine for fencing and if there was sufficient commitment made to it, Brown

petition [12] and equipment.[13]

Extensive testimony demonstrated that several donor-funded teams do have the interest and ability to compete at the top varsity level and would benefit from university-funded status. I find that the donor-funded women's gymnastics, women's fencing, and women's ski teams have demonstrated this interest and ability. The women's gymnastics team was a thriving university-funded varsity team prior to the 1991 demotion; in fact, the team won the Ivy League championship in 1989-90. *See, e.g.*, testimony of Athletic Director Roach, Prelim. Inj. Hr'g Tr. 11/4/92 at 86 (acknowledging that at the time gymnastics was demoted, the team had the interest and ability to compete at the varsity level). The women's fencing team has been successful for many years against a number of club and

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could compete with anyone in the country. (Trial Tr. 9/27/94 at 104).

See also Trial Tr. 9/27/94 at 31-33 (fencing team did not join Ivy League round robin due to insufficient commitment from Brown; team could not compete successfully in the round robin without coaching, travel allotments and practice space comparable to that afforded to the other teams participating in that league).

[12] Gymnast was unable to attend the NCAA Eastern Regional Championships due to team's financial constraints. Prelim. Inj. Hr'g Tr. 10/29/92 at 18.

[13] The captain of the women's ski team testified, for example, that the gates the team uses in practice have not been replaced in over ten years due to the team's lack of funds. "[I]f they break, we're in big trouble because we have no money to replace any of our training gates. So we would be at a loss, a big loss if one of the gates breaks which is very plausible." Trial Tr. 9/29/94 at 34.

A coach of the women's fencing team expressed similar concerns about the team's limited access to electric equipment. He explained that "electric weapons are somewhat differently weighted and feel differently [from conventional weapons]." Trial Tr. 9/27/94 at 107. Electric equipment is used in competition, but the team "seldom used electric equipment in practice because of the fear that it would break and [the team] wouldn't be able to—to replace it." Trial Tr. 9/27/94 at 20.

varsity competitors, and, prior to the demotions, John Parry, who was the athletic director at that time, supported the team's request to be upgraded to varsity status. Prelim. Inj. Hr'g Tr. 10/27/92 at 122-26. Despite a meager budget, the women's ski team has consistently fielded a competitive team in the U.S. Collegiate Ski Association Osborne Division. *See* Trial Tr. 9/28/94 at 12-14 (head coach of Smith College women's varsity ski team testifying to strength and stability of the Brown University women's ski team).

Additionally, women's water polo, a club team, has demonstrated the interest and ability to compete at the highest varsity level.[14] The women's water polo team, according to the coach of men's and women's water polo, is able to compete at a varsity level. *See* Trial Tr. 10/3/94 at 65 (testifying to varsity ability and schedule of the women's water polo team). *See also* Trial Tr. 10/5/94 at 18-20 (head coach of Slippery Rock University men's and women's varsity water polo teams testifying to stability and achievements of Brown University women's water polo team).

I also find that although all four teams would benefit from university-funded varsity status, only two of these teams, volleyball and skiing, would be able to sustain a competitive intercollegiate varsity schedule if supported at donor-funded status. The testimony demonstrated that gymnastics would effectively cease to exist as an intercollegiate varsity team if it were denied university funding. The gymnastics team does not attract enough private donations to afford quality coaching. *See supra* note 9. In addition, a donor-funded gymnastics team will draw less talented individuals to the team, which will, as a

[14] This is a non-inclusive list; there may be other women's club sports with sufficient interest and ability to warrant elevation to varsity status. Plaintiffs, however, did not introduce any substantial evidence at trial to prove the existence of other women's club teams meeting the criteria.

result, suffer competitively. The testimony also established that elevation of women's water polo, currently a club team, to donor-funded status would actually be financially disadvantageous for the team. As a club sport, the team currently receives $3000 from the Student Activities organization; as a donor-funded sport, the team would be required to raise all of its own funds. Trial Tr. 10/3/94 at 26.

In *Cohen, I* summarized the history of athletics at Brown University:

> Nearly all of the men's varsity teams were established before 1927. Baseball was created first in 1869, followed by football in 1878 and track in 1879. The only men's teams established after 1927 were crew in 1961, water polo in 1974 [elevated to varsity in 1981], and squash in 1989 [provided with varsity services but fully endowed through private donations]. By comparison, virtually all of the women's varsity teams were created between 1971 and 1977. The only women's varsity team created after this period was winter track in 1982. Before 1971, all women's sports were operated out of a separate athletic program at Pembroke College, a subunit of Brown University until its merger with Brown College during that year. Before the merger, the women's athletic program at Pembroke bore no resemblance to the program which Brown provided to its male varsity athletes. While Pembroke did have few intercollegiate teams (e.g., field hockey, basketball, tennis), the women's program received very little financial or institutional support from the university.

Cohen, 809 F.Supp. at 981.

At the present time, Brown's intercollegiate athletic program [15] consists of 32 teams. The list of varsity teams

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[15] For a complete definition of intercollegiate athletics as defined by the relevant agency document, see *infra* part VI.A.1.a.

and their respective participants for the last complete season (1993/94), with program offering updates, are as follows: [16]

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[16] Although the 1994/95 season has already started, with new program offerings in place, I have chosen to use data from 1993/94 to calculate participation numbers. The 1994/95 participation numbers are necessarily incomplete and unreliable given that Spring sports had not yet begun at the close of the trial. However, the lists below do reflect the 1994/95 upgrade in status of women's volleyball to university-funded varsity and women's skiing to donor-funded varsity. I have used this combination of 1993/94 number and 1994/95 program offerings in order to reflect most accurately the current program.

I derived the 1993/94 participation numbers from the NCAA Squad Lists, Pls.' Ex. 32, which I find to be the most accurate, if imperfect, representation of varsity participants available. These lists are maintained by the athletic department and periodically updated by team coaches. I did not include student-athletes who either quit or were cut from the team, except where the change occurred very late in the season. I did, however, count participants marked as injured under the assumption that they remained team members.

I decline to rely upon the NCAA Sport Sponsorship Forms submitted to the NCAA by the athletic department at the end of the year. Joan Taylor, Brown's Associate Athletic Director and the Senior Women's Administrator, testified that the number of varsity participants on the sponsorship forms is a rough figure "because the N.C.A.A.'s reason for this form is only to make sure that we have at least met the minimum criteria for Division I sport sponsorship." Trial Tr. 10/3/94 at 169. The NCAA Squad Lists, on the other hand, report on the individual eligibility of each member of the team. For that reason, the NCAA Squad Lists, unlike the NCAA Sports Sponsorship Forms, list the names of individual athletes, thus permitting verification of team particpation numbers. The Squad Lists are maintained by the athletic department and are updated periodically throughout the season.

WOMEN		MEN	
University-funded		*University-funded*	
Basketball:	12	Baseball:	30
Crew:	50	Basketball:	17
Cross-Country:	18	Crew:	45
Field Hockey:	36	Cross-Country:	20
Ice Hockey:	22	Football:	126
Lacrosse:	34	Ice Hockey:	41
Soccer:	22	Lacrosse:	44
Softball:	15	Soccer:	32
Squash:	15	Swimming:	24
Swimming:	27	Tennis:	12
Tennis:	10	Track:	56
Track:	39	Wrestling:	32
Volleyball [17]:	09		
Donor-funded		*Donor-funded*	
Fencing:	10	Fencing:	26
Gymnastics [18]:	10	Golf:	14
Skiing [19]	09	Squash:	15
		Water polo:	21

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[17] During the 1994/95 season Brown guaranteed the volleyball team university-funded varsity status for the next five years.

[18] Gymnastics is currently supported as a university-funded team as required by court order. However, in the absence of this order, Brown has acknowledged that it would demote gymnastics to donor-funded status. *See* Trial Tr. 11/21/94 at 25. I therefore include gymnastics as a donor-funded team.

It is arguable that gymnastics should be counted only as a club team because the testimony demonstrated that gymnastics would, within a few seasons, effectively cease to exist as an intercollegiate varsity team if it were denied university funding.

[19] Women's skiing was upgraded in 1994/95 to donor-funded status. Prior to this season, the athletic department did not maintain an NCAA Squad List for the team because the team was a club sport. I therefore rely on the 1994/95 NCAA Squad List to count ski team participants.

Miscellaneous [20]			
Men's Golf:	01		
Men's Crew:	03		
Total women varsity:	342	Total men varsity:	555

I find that 342 women (38.13% of athletes) and 555 men (61.87% of athletes) were members of varsity teams for the majority of the last complete season and therefore count as "participants" in intercollegiate athletics for the purpose of Title IX analysis.

Defendants argue that there is no consistent measure of actual participation rates because team size varies throughout the athletic season. Defendants observe that injuries, "cuts," and "quits" result in different team numbers depending on when in the season team rosters are tallied. Counting the number of participants at the end of the last complete season, rather than at some arbitrary point in the season, addresses this concern. A team member who participated for the majority of the season should be acknowledged as a participant. Once the season is over, it is possible to assess which of the individuals listed on the roster at the beginning of the season remained team members.

Defendants further argue that there is no consistent measure of actual participation rates because there are alternative definitions of "participant" that yield very different participation totals. For instance, a "participant" could be defined to include every member of the team, even habitual "bench-warmers," or to include only "core" players. Including as "participants" all of the students who were members of the team for a majority of the season addresses this concern. Where both the athlete

[20] There are four women who participate on men's teams: three female coxswains on the men's crew team and a female golfer on the men's golf team.

and coach determine that there is a place on the team for a student, it is not for this Court to second-guess their judgment and impose its own, or anyone else's, definition of a valuable or genuine varsity experience. It is the nature of a team that each student makes a different contribution to the team's success and takes from it a unique experience. *Every* varsity team member is therefore a varsity "participant."

Thus, in 1993/94, there were 897 student athletes participating in varsity athletics. Of this total, 555 (61.87%) were men and 342 (38.13%) were women. During that same year, the undergraduate enrollment was 5722 students; this included 2796 men (48.86%) and 2926 women (51.14%). Pls.' Ex. 33.

III. PRELIMINARY MATTERS

A. Partial Settlement of the Case

On December 16, 1994, during the course of the trial on the merits, this Court entered a Settlement Agreement and Stipulation of Dismissal in Regard to Equality of Treatment ("Settlement Agreement"). The agreement settled plaintiffs' allegations that significant disparities exist in the relative financial support of and benefits given to men's and women's university-funded varsity teams.[21] The treatment issues settled by this agreement concern only university-funded varsity teams as to which there is no dispute regarding status and does not preclude consideration by the Court of any evidence relevant to issues in contention. Thus, the instant Opinion and Order focuses primarily on planitiffs' alternative claim that significant disparities exist in the number of intercollegiate participation opportunities available to men and those available to women. Therefore, in assessing Brown's compliance with Title IX, I will address whether the Univer-

[21] The treatment of men's and women's teams addressed by the Settlement Agreement is governed by 34 C.F.R. § 106.41(c)(2)-(10). *See infra* part IV.B.

sity accommodates effectively "the interests and abilities of students to the extent necessary to provide equal opportunity in the selection of sports and levels of competition available to members of both sexes." Policy Interpretation, 44 Fed. Reg. 71,413, at 71,417 (1979). In addition, this Opinion and Order deals briefly with the treatment of teams as to which there is a dispute concerning status.

B. The Precedential Effect of the First Circuit's Preliminary Injunction Ruling

Brown has advanced the argument that any findings of fact and conclusions of law made by the First Circuit during the preliminary injunction phase of this case are not binding on this Court's ruling on the merits. They note that "[a] preliminary injunction is 'by its very nature, interlocutory, tentative, provisional, ad interim, impermanent, mutable, not fixed or final or conclusive, characterized by its for-the-time-beingness.' " Defs.' Mem. of Law Re Law of the Case at 2 (quoting *Hamilton Watch Co. v. Benrus Watch Co.*, 206 F.2d 738, 742 (2d Cir. 1953)). Further, they reason that a court confronted with different facts, arguments, and issues may reach different conclusions about legal standards or statutory and regulatory interpretations. Defs.' Reply Mem. Re Law of the Case at 3. During the trial on the merits, defendants urged this Court to find that it had the authority to disregard the interpretation of Title IX adopted by the First Circuit in upholding the preliminary injunction issued by this Court.

Defendants are correct that the factual determination set forth in *Cohen*, 809 F.Supp. 978, and upheld by the First Circuit on appeal are not binding on the decision currently before me. Similarly, this Court is not bound by the First Circuit's application of the law to the facts then in evidence. It is well-settled that at the preliminary injunction stage, an appellate court's " 'findings' and

'holdings' as to the merits of the case are not final but should be understood to be merely statements of probable outcomes based on the record as it existed before the district court." *LeBeau v. Spirito*, 703 F.2d 639, 643 (1st Cir. 1983) (citing *Planned Parenthood League of Mass. v. Bellotti*, 641 F.2d 1006, 1009 (1st Cir. 1981)).

Defendants incorrectly extend this general principle to support their position that this Court is not bound to follow the First Circuit's legal pronouncement. A district court is not free to determine anew issues of law already presented to and decided by the appellate court. Statements of law made by an appellate court, whether set forth in an opinion reviewing a preliminary injunction or in an opinion reviewing the outcome of a trial on the merits, become the law of the circuit and, as established precedent, bind the district courts.[22]

In any case, the question is academic because this Court is in accord with the First Circuit's interpretation of Title IX as set forth in *Cohen*, 991 F.2d 888. Nothing in the record before me, now fully developed, undermines the considered legal framework established by the First Circuit at the preliminary injunction stage. However, the existence of new facts and legal arguments presented at trial does require a full examination of and expansion upon the foundations laid by the First Circuit.

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[22] District and circuit courts commonly accord appellate court pronouncements of law rendered in reviewing preliminary injunctions precedential value *sub silentio*. For example, *Planned Parenthood League of Mass. v. Bellotti*, 641 F.2d 1006 (1st Cir. 1981) considered a district court's denial of a preliminary injunction and has been relied upon by district courts and by the Court of Appeals. *See, e.g., Massachusetts v. Secretary of Health and Human Servs.*, 899 F.2d 53, 66 (1st Cir. 1990) (stating "[t]he regulations also run afoul of our holding in [*Bellotti*], in which we invalidated a twenty-four hour waiting period requirement contained in a Massachusetts statute regulating abortions"), *vacated and remanded sub nom. Sullivan v. Massachusetts*, 500 U.S. 949 (1991); and *Women's Medical Center of Providence, Inc. v. Roberts*, 530 F.Supp. 1136, 1143, 1145, 1147, 1149, 1150-51, 1153 (D.R.I. 1982).

Naturally, as defendants contend, to the extent that the appellate court has not been presented with and has not decided any legal issue now material to the case, this Court must interpret the law without the benefit of guidance from the appellate court.

IV. LEGAL FRAMEWORK

A. Title IX

The text of Title IX does not expilictly prohibit gender discrimination in athletics. Rather, Title IX is a general prohibition of sex discrimination in all aspects of educational institutions receiving federal funding:

> No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance [with exemptions not applicable to this case].

20 U.S.C. § 1681(a). In order for this prohibition to apply to an institution's athletic programs, the athletic department need not be the direct recipient of federal funding; rather it is well-settled that Title IX applies to all of an institution's programs if *any* part of an educational institution receives federal funds. *Cohen,* 809 F.Supp. at 982-83 (citations omitted).

In addition, Title IX specifies that its proscription of gender discrimination in athletics should not be "interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of [a gender] imbalance" between the persons participating in the program and the total number of persons in the relevant community. 20 U.S.C. § 1681(b). However, subsection (b) also provides that it "shall not be construed to prevent the consideration in any . . . proceeding . . . of statistical evidence tending to show that

such an imbalance exists with respect to the participation in, or receipt of the benefits of, any such program or activity by the members of one sex." 20 U.S.C. § 1681(b). Thus, Title IX "does not mandate strict numerical equality between the gender balance of a college's athletic program and the gender balance of its student body." *Cohen*, 991 F.2d at 894. The practical effect of subsection (b) is that:

> [A] court assessing Title IX compliance may not find a violation *solely* because there is a disparity between the gender composition of an educational institution's student constituency, on the one hand, and its athletic programs, on the other hand.
>
> That is not to say, however, that evidence of such disparity is irrelevant. Quite the contrary: under the proviso contained in section 1681(b), a Title IX plaintiff in an athletic discrimination suit must accompany statistical evidence of disparate impact with some further evidence of discrimination, such as unmet need amongst the members of the disadvantaged gender.

Cohen, 991 F.2d at 895. Thus, evidence of gender imbalance in Brown's athletic programs is relevant to a determination of non-compliance but not sufficient by itself to mandate a finding of Title IX violation.

B. Regulations

The U.S. Department of Education ("DED") acting through its Office of Civil Rights ("OCR") is responsible for administering Title IX.[23] Pursuant to the statutory

[23] For the shift in agency responsibility for Title IX administration, see *Cohen*, 991 F.2d at 895 (describing the shift of authority from Health Education and Welfare ("HEW") to its successor agency, DED, when HEW was split into the Department of Health and Human Services ("HHS") and DED). The regulations and the Policy Interpretation discussed below were originally promul-

mandate, DED promulgated regulations controlling "Nondiscrimination on the Basis of Sex in Education Programs and Activities Receiving or Benefiting from Federal Financial Assistance." 34 C.F.R. § 106 (1994). The regulations specifically address athletic program administration at 34 C.F.R. §§ 106.37(c)[24] and 106.41.

Paralleling the language of Title IX, section 106.41(a) states:

> No person shall, on the basis of sex, be excluded from participation in, be denied the benefits of, be treated differently from another person or otherwise be discriminated against in any interscholastic, intercollegiate, club or intramural athletics offered by a recipient, and no recipient shall provide any such athletics separately on such basis.

34 C.F.R. § 106.41(a). The regulations go on to clarify, however, that institutions are permitted to "operate or sponsor separate teams for members of each sex" under certain circumstances detailed therein. 34 C.F.R. § 106.41(b).

Section 106.41(c), entitled "Equal Opportunity," addresses the most critical issue in this case. Regardless of what teams, if any, an institution offers, its athletic program must afford equal opportunities to male and female athleties. The section reads, in pertinent part:

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gated by HEW, in 1975 and 1979, respectively. For the purposes of this discussion, however, I will refer to DED as the promulgating agency "because the agency adopted the very same regulation which the Policy Interpretation was issued to interpret." *Horner*, 43 F.3d at 273 n.6 (citing *Cohen v. Brown Univ.*, 991 F.2d 888, 896 n.10 (1st Cir. 1993)).

[24] This provision governs the distribution of athletic scholarships under the general caption of financial assistance in education programs. Brown University, as an Ivy League institution, does not grant athletic scholarships to its students. Therefore, section 106.37(c) is not at issue in this case, and I do not address it.

In determining whether equal opportunities are available the Director will consider, among other factors:

(1) Whether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes;

(2) The provision of equipment and supplies;

(3) Scheduling of games and practice time;

(4) Travel and per diem allowance;

(5) Opportunity to receive coaching and academic tutoring;

(6) Assignment and compensation of coaches and tutors;

(7) Provision of locker rooms, practice and competitive facilities;

(8) Provision of medical and training facilities and services;

(9) Provision of housing and dining facilities and services;

(10) Publicity.

34 C.F.R. § 106.41(c). The trial on the merits focused on the first of these ten factors, the "effective accommodation" element. The other nine factors concern "treatment issues," which were settled by the parties only as to equivalence between men's and women's teams voluntarily maintained by Brown at the university-funded level. *See* discussion *supra part* III.A.

C. Policy Interpretation

Several years after the regulations were promulgated, DED's Office of Civil Rights [25] proposed a policy interpre-

[25] At the time the Policy Interpretation was originally published, the Office of Civil Rights operated within HEW. DED subsequently

tation designed to resolve confusion concerning Title IX compliance. After considering public comments, it published the final policy Interpretation in the Federal Register. 44 Fed. Reg. 71,413 (1979). The Policy Interpretation:

> clarifies the obligations which recipients of Federal aid have under Title IX to provide equal opportunities in athletic programs. In particular, this Policy Interpretation provides a means to assess an institution's compliance with the equal opportunity requirements of the regulation which are set forth at [34 C.F.R. §§ 106.37(c) and 106.41(c)].

44 Fed. Reg. at 71,415. The Policy Interpretation is divided into three categories: "Athletic Financial Assistance (Scholarships)," 44 Fed. Reg. at 71,415; "Equivalence in Other Athletic Benefits and Opportunities," 44 Fed. Reg. at 71,415; and "Effective Accommodation of Student Interests and Abilities." 44 Fed. Reg. at 71,417. Litigation focused on the "Effective Accommodation" section.

The "Effective Accommodation" section of the Policy Interpretation interprets the first of the ten factors found in the regulations at 34 C.F.R. § 106.41(c)(1) (stating that the Director should consider "[w]hether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes"). The Policy Interpretation measures compliance in the area of effective accommodation first by applying a three prong test and second by applying a two part test. The three prong test assesses compliance by determining:

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inherited the final Policy Interpretation. When DED re-promulgated the exact same regulations which the Policy Interpretation was issued to interpret, *see supra* note 23, DED sent "an unmistakably clear signal of the agency's satisfaction with the Policy Interpretation." *Cohen*, 991 F.2d at 896 n.10.

(1) Whether intercollegiate level participation opportunities for male and female students are provided in number substantially proportionate to their respective enrollments; or

(2) Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex; or

(3) Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a continuing practice of program expansion such as that cited above, whether it can be demonstrated that the interests and abilities of the members of that sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. at 71,418. The two part test [20] assesses compliance by examining:

(1) Whether the competitive schedules for men's and women's teams, on a program-wide basis, afford proportionally similar numbers of male and female athletes equivalently advanced competitive opportunities; or

(2) Whether the institution can demonstrate a history and continuing practice of upgrading the com-

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[20] The two part test is not at issue in this case and is listed solely for the purpose of providing a more complete context for the provisions that are central to this case. At the preliminary injunction stage I found, tentatively, that "the competitive schedules at Brown provide men and women with 'equivalently advanced competitive opportunities.'" *Cohen*, 809 F.Supp. at 994. Nothing introduced at the trial on the merits alters my opinion that the competitive schedules offered to men and women at the university-funded varsity level are equivalent to each other and that the competitive schedules offered to men and women at the donor-funded varsity level are equivalent to each other.

> petitive opportunities available to the historically disadvantaged sex as warranted by developing abilities among the athletes of that sex.

44 Fed. Reg. at 71,418.

The "Effective Accommodation" section of the Policy Interpretation, which includes both the three prong test and the two part test, also provides that a school need not establish an intercollegiate team where there is no reasonable expectation of competition in that sport within the institution's normal geographic area of competition. 44 Fed. Reg. at 71,418.

Finally, the Policy Interpretation's "Effective Accommodation" section provides that the following factors should be considered in an overall determination of compliance pursuant to 34 C.F.R. § 106.41(c):

> (a) Whether the policies of an institution are discriminatory in language or effect; or
>
> (b) Whether disparities of a substantial and unjustified nature in the benefits, treatment, services, or opportunities afforded male and female athletes exist in the institution's program as a whole; or
>
> (c) Whether disparities in individual segments of the program with respect to benefits, treatment, services, or opportunities are substantial enough in and of themselves to deny equality of athletic opportunity.

44 Fed. Reg. 71,418.

D. Title IX Athletics Investigator's Manual

The 1990 Title IX Athletics Investigator's Manual, published by OCR, was designed to assist OCR investigators in determining whether an institution is in compliance with Title IX. The Manual serves as a practical guide in the agency's enforcement of the Policy Interpretation. Valerie M. Bonnette & Lamar Daniel, Department

of Education, Title IX Athletics Investigator's Manual (1990).

V. DEFERENCE TO AGENCY REGULATIONS AND INTERPRETATION OF TITLE IX

In *Cohen*, the First Circuit held that the regulations promulgated pursuant to Title IX deserve controlling weight. 991 F.2d at 895. This degree of deference is appropriate because Congress "explicitly delegated to the agency the task of prescribing standards for athletic programs under Title IX." *Cohen*, 991 F.2d at 895 (citations omitted). *See* Javits Amendment, Pub. L. No. 93-380, § 844, 88 Stat. 612 (1974). The appellate court also concluded that the Policy Interpretation, because it is a "considered interpretation" of the aegncy's own regulation, warrants "substantial deference." *Cohen*, 991 F.2d at 896-7.

As I have discussed above, *supra* part III.B, this Court is bound by the law of the circuit. As a result, this Opinion and Order must accord controlling weight to the regulations and substantial deference to the Policy Interpretation. However, I revisit the issue of deference in order to address defendants' position that the First Circuit did not have the benefit of newly developed arguments and information or that "no court has carefully examined the issue of the degree of deference, if any, to which the OCR's Policy Interpretation and Investigator's Manual are entitled." Defs.' Post-Trial Mem. at 25.[27]

It is well-settled that where Congress has expressly authorized an agency to issue regulations, those agency regulations are binding on the courts "unless they are arbitrary, capricious, or manifestly contrary to the statute." *Chevron, U.S.A. v. Natural Resources Defense*

[27] Because I do not rely on the Investigator's Manual, except to refute an incorrect reliance upon it, *see infra* note 51, I decline to address specifically the degree of deference to which this document is entitled.

Council, 467 U.S. 837, 844 (1984). *See also National Latino Media Coalition v. F.C.C.*, 816 F.2d 785, 788 (D.C. Cir. 1987) (stating that "[w]hen Congress delegates rulemaking authority to an agency, and the agency adopts legislative rules, the agency stands in the place of Congress and makes law").

Here, Congress explicitly delegated rulemaking authority to DED, *see supra* note 23, stating:

> The Secretary shall prepare and publish, not later than 30 days after the date of enactment of this Act, proposed regulations implementing the provisions of Title IX of the Education Amendments of 1972 relating to the prohibition of sex discrimination in federally assisted education programs which shall include with respect to intercollegiate athletic activities reasonable provisions considering the nature of particular sports.

Javits Amendment, Pub. L. No. 93-380, § 844, 88 Stat. 612 (1974). This delegation of authority specifically directed DED to include within its intercollegiate athletic regulations "reasonable provisions considering the nature of particular sports." Thus, Congress included within its conferral of rulemaking authority a specific directive with respect to the intercollegiate athletic regulations; this directive mandates the inclusion of one particular subject but does not otherwise limit the broad scope of authority delegated to the agency.

The agency's regulations were duly approved by President Ford in 1975. This approval was required by Title IX itself, which provides that no "rule, regulation, or order" an agency is empowered to enact pursuant to Title IX shall become effective unless and until approved by the President. 20 U.S.C. § 1682. The regulations, which were designed to address extensive evidence of sex discrimination in intercollegiate athletics, clearly meet the *Chevron* standard; they are not arbitrary, capricious or manifestly contrary to Title IX. *Kelley*, 35 F.3d at 270.

An agency's interpretation of its own regulations, while not given the force of law, is entitled to substantial deference. *Lyng v. Payne*, 476 U.S. 926, 939 (1986) (citations omitted). *See also Udall v. Tallman*, 380 U.S. 1, 16 (1965) (noting that "[w]hen the construction of an administrative regulation rather than a statute is in issue, deference is even more clearly in order"). The Supreme Court explained its reasoning for this conclusion in *Martin v. Occupational Safety and Health Review Comm'n*, 499 U.S. 144, 151 (1991) (citing *Ford Motor Credit Co. v. Milhollin*, 444 U.S. 555, 556, 558 (1980)):

> Because applying an agency's regulation to complex or changing circumstances calls upon the agency's unique expertise and policymaking prerogatives, we presume that the power authoritatively to interpret its own regulations is a component of the agency's delegated lawmaking powers.

Thus, for all practical purposes, an agency's interpretation of its own regulations is accorded the force of law unless such interpretation is clearly erroneous or inconsistent with the regulation. *United States v. Larionoff*, 431 U.S. 864, 872 (1977) (quoting *Bowles v. Seminole Rock Co.*, 325 U.S. 410, 414 (1945)). *See also McCuin v. Secretary of Health and Human Servs.*, 817 F.2d 161, 168 (1st Cir. 1987) (the interpretation "must be reasonable in view of the language of the regulations and the policies they were meant to implement").

As the First Circuit has held, the Policy Interpretation should be given substantial weight. *Cohen*, 991 F.2d at 896-97. The Policy Interpretation is a "considered" document: the original draft of the Policy Interpretation was published for public comment, the agency received over 700 comments, and agency staff visited eight universities to evaluate how the Policy Interpretation and other alternatives would be applied in practice. 44 Fed. Reg. at 71,413. *Cf. Udall*, 380 U.S. at 17 (noting with approval that the agency's interpretation had been a matter of

public record and discussion). In addition, since publication of the Policy Interpretation, Congress has had the opportunity to disapprove of the Policy Interpretation, *see* Civil Rights Restoration Act of 1987, 20 U.S.C. § 1687 (1988); however, Congress instead chose to reaffirm its intent that Title IX's prohibition against discrimination be broadly construed. *See Cohen*, 991 F.2d at 894 (recognizing that record of the floor debate on Restoration Act "leaves little doubt that the enactment was aimed, in part, at creating a more level playing field for female athletes") (citations omitted). *Cf. North Haven Bd. of Ed. v. Bell*, 456 U.S. 512, 535 (1982) (where "an agency's statutory construction has been 'fully brought to the attention of the public and the Congress,' and the latter has not sought to alter that interpretation although it has amended the statute in other respects, then presumably the legislative intent has been correctly discerned") (citations omitted).

Defendants dispute the First Circuit and this Court's determination of the degree of judicial deference appropriately accorded to the agency's regulations and interpretations. They argue that the agency exceeded its delegated rulemaking authority, and that the documents are therefore "interpretive" rather than "legislative." Defendants argue that the rulemaking authority Congress delegated to the agency was limited by the Javits Amendment to provisions concerning the nature of particular sports. Thus, defendants conclude that to the extent the regulations went beyond that specific directive they are "interpretive" rather than "legislative" and are thus entitled to the less deferential standard of review articulated in the germinal cases *Skidmore v. Swift & Co.*, 323 U.S. 134 (1944) and *General Electric Co. v. Gilbert*, 429 U.S. 125 (1976). Defendants' reliance on *Skidmore* and *Gilbert* is misplaced because these cases concern agency guidelines issued in the *absence* of an explicit Congressional delegation of authority. Here, however, Congress did authorize the agency to promulgate regulations imple-

menting Title IX. This Court is persuaded that "the directive that those regulations 'include reasonable provisions considering the nature of particular sports' does not limit the scope of the delegation; it merely compels the agency to include such provisions in its broader regulatory framework." Proposed Findings of Fact and Conclusions of Law of Pls. at 28. As I noted above, these regulations must therefore be given controlling weight. Similarly, the Policy Interpretation was issued as a result of the duly delegated rulemaking authority entrusted to the agency, and is therefore entitled to substantial deference. *Cf. Martin*, 499 U.S. at 151 (where the Court acknowledged that an agency's power authoritatively to interpret its own regulations is a component of the agency's delegated lawmaking powers).

Defendants further contend that the Policy Interpretation, because it was never approved by the President, does not have the binding effect of "rules, regulations, or orders" authorized by 20 U.S.C. § 1682. The Policy Interpretation, however, is not a rule, regulation, or order, but is a guideline designed to interpret a rule, regulation, or order, namely, the agency's own regulations published at 34 C.F.R. § 106. The Policy Interpretation therefore need not be approved by the President in order to become effective.

In sum, this Court must abide by the Policy Interpretation unless it is clearly erroneous or inconsistent with the regulations. *See Larionoff*, 431 U.S. at 872. Defendants protest that the Policy Interpretation contravenes the intent of Title IX in at least two respects. First, they claim that the Policy Interpretation, as interpreted by this Court, renders Title IX an affirmative action statute, in derogation of Title IX, which specifically provides that it shall not be interpreted to require preferential or disparate treatment to members of one sex. 20 U.S.C. § 1681(b). This claim, however, is premised on a misunderstanding of the Policy Interpretation. The Policy Interpretation's three prong test does not *mandate* statistical balancing.

In fact, the test is designed to avoid an absolute requirement of numerical equality. Where substantial proportionality has not been achieved (prong one), an institution must be found in compliance if it demonstrates that it has a continuing practice of expanding the athletic opportunities of the underrepresented sex (prong two) or if its existing program fully and effectively accommodates the interests and abilities of the underrepresented sex (prong three). *Kelley*, 35 F.3d at 271. Thus, the test encourages equality but recognizes that some institutions may be unable to attain this goal through no fault of their own; in these cases, the test provides alternatives to statistical parity.

Second, defendants claim that OCR ignored the Javits Amendment's instruction to consider the nature of particular sports in drafting reasonable provisions with respect to intercollegiate athletics. "[D]ue to the nature of particular sports, there are upwards [of] 150 to 175 . . . participation opportunities for men (on football, wrestling, lacrosse and the like) that cannot be available to women." Defs.' Post-Trial Mem. at 27. On the contrary, the Policy Interpretation does consider the nature of particular sports. For example, it permits the operation of separate teams for members of each sex and does not require a school to sponsor a women's team for every men's team offered and vice versa. In addition, it recognizes that different expenditures on men's and women's sports may be permissible if based on factors inherent to the operation of specific sports. The fact that the Policy Interpretation does not consider and accommodate the nature of different sports in the precise manner advocated by defendants does not render it unreasonable. *See Cohen*, 991 F.2d at 899.

VI. LEGAL ANALYSIS

A. The Three Prong Test

The plaintiffs contend that the Brown athletic program is in violation of the "Equal Opportunity" provision of the Title IX athletics regulations. Therefore, I focus my analysis on the Policy Interpretation to "clarif[y] the obligations which [Brown has] to provide equal opportunities in [its] athletic programs." 44 Fed. Reg. at 71,415. I must assess compliance by looking to the regulations applicable in this case. These regulations, as noted above, are: 34 C.F.R. § 106.37(c) (distribution of athletic scholarships—not applicable to this case), 34 C.F.R. § 106.41(a) and (b) (general non-discrimination pronouncement but allowing for separate teams—not at issue in this case), and 34 C.F.R. § 106.41(c) (requiring institutions to provide equal opportunity to both sexes in athletics programs offered, and listing ten factors for consideration in assessing compliance). The subject of this lawsuit is whether or not Brown complies with the "Equal Opportunity" provision found at 34 C.F.R. § 106.41(c). Litigation has primarily focused on the first of the ten "equal opportunity" factors which asks "whether the selection of sports and levels of competition effectively accommodate the interest and abilities of members of both sexes." 34 C.F.R. § 106.41(c)(1). Determining compliance with this factor requires application of the Policy Interpretation's three prong test, recited *supra* part IV.C, which delineates the standards for enforcement of 34 C.F.R. § 106.41(c)(1). Because the proper interpretation of the three prong test is the most hotly contested legal issue in this case, I will extensively analyze and address the relevant arguments presented by the parties.

1. *Prong One*

An institution complies with the three prong test if it meets prong one of the analysis and no other. Plaintiffs

bear the burden of proving that the institution does not satisfy prong one. Prong one asks:

> Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments . . .

44 Fed. Reg. at 71,418. I conclude that an institution satisfies prong one provided that the gender balance of its intercollegiate athletic program substantially mirrors the gender balance of its student enrollment. "Thus, a university which does not wish to engage in extensive compliance analysis may stay on the sunny side of Title IX simply by maintaining gender parity between its student body and its athletic lineup." *Cohen*, 991 F.2d at 897-98. I now discuss the meaning of three contested elements of prong one.

a. Intercollegiate Level Athletics

The Policy Interpretation expressly states that it is intended to apply to intercollegiate athletics.[28] It explains, however, that because the regulations distinguish between club sports and intercollegiate sports, "under this Policy Interpretation, club teams will not be considered to be intercollegiate teams except in those instances where they regularly participate in varsity competition." 44 Fed. Reg. at 71,413 n.1. It was not seriously contended until the eleventh hour, nor did the evidence show, that any of Brown's club teams should be considered to be presently operating as intercollegiate teams under this definition.[29] Therefore, I do not treat any of Brown's club

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[28] However, "its general principles will often apply to club, intramural, and interscholastic athletic programs, which are also covered by regulation." 44 Fed. Reg. at 71,413. Here, plaintiffs have not challenged Brown's non-varsity programs.

[29] For the majority of the trial, defense counsel represented that intercollegiate athletic participation opportunities at Brown relate

programs as intercollegiate teams under prong one. On the other hand, Brown's donor-funded varsity teams resemble university-funded varsity teams in some aspects and club teams in others. *See supra* notes 6-13 and accompanying text. Thus, the question arises whether donor-funded teams may be considered to be "intercollegiate" teams for the purposes of prong one.

It is evident that Brown's donor-funded teams operate at a disadvantage in comparison to its university-funded varsity teams.[30] The issue with regard to funding sources

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only to university-funded and donor-funded varsity teams. Trial Tr. 11/1/94 at 89.

The testimony later offered in support of the position that some of the club teams engage in "intercollegiate competition" was given by Brown's Assistant Athletic Director, Jeffrey Ward. Conceding his uncertainty, he testified that he believed that the following club teams might engage in substantial competition with varsity teams at other colleges: women's water polo, women's soccer, women's skiing, women's and coed sailing, and men's skiing. Trial Tr. 12/8/94 at 139-40. However, in addition to being unable to ascertain from the record which of the clubs' competitors were varsity teams, this Court has no way of determining the number of participants (with the exception of women's water polo) on each of these club teams. As Brown acknowledged in its answer to plaintiffs' interrogatories, club team rosters are not maintained by either the athletic department or the student activities office. Pls.' Ex. 1 at 6-7.

[30] While both men's and women's teams at the donor-funded level may operate at a disadvantage compared to university-funded teams, the burden of this status falls more heavily on women's teams. There was ample testimony that women's teams are less able than men's teams to raise necessary funds from private donations. Although defendants attributed this fund raising disparity to lack of effort on the part of women's coaches and teams, I find Coach Robert Rothenberg's explanation more persuasive. As head coach of both the men's and women's track team, he testified that he and his staff worked equally hard to raise money for both teams but were never able to raise as much money on behalf of the women's team as they were able to raise for the men's team. He

is not *where* the funding comes from but the extent to which funding comes at all to donor-funded teams. Donor-funded teams generally have much less money, have no commitment from the university that the team will be supported in a year when fund raising efforts are less successful, and must expend gift funds for privileges that Brown provides to university-funded teams at no cost to those teams. As a result of their unfunded status, most of the donor-funded teams are prevented from reaching their full athletic potential.[31] However, the evidence presented at trial suggests that, on the whole, Brown's donor-funded teams do engage in "varsity level" competition.

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attributed this disparity to the financial bases available and to traditional patterns of giving, stating:

> [The] women's track and field program at Brown started about 1978, the men's started about a hundred years before. When you look at the giving, you are not going to get major contributions [from] men or women that are in their twenties or thirties. Your biggest contributions will come from people that have raised their children, that are out, that have accumulated some money and are looking for [a] way to [give] back to the university in the sport that he or she participated in. I think traditionally men have probably controlled more of that money available in families. But for whatever the reason, there's a tremendous difference in the ability to fund raise for men and for women and I've been doing [it] for 13 years.

Trial Tr. 12/1/94 at 188-89.

[31] Kim Havell, the 1994-95 women's ski team captain illustrated this point:

> Q: Have you enjoyed all of the aspects of competing to become a top-flight women's ski program at Brown?
>
> A: I would say no to that in the sense that it's been a lot of—it's hard to get everything together. Every year the captains have to put in a lot of work to make sure everyone knows when the races are, when we have to meet. All the details we have to worry about too, the team members have to consider. And it's not just set up, you go, you do the best you can. Your mind is on the duties you have to the team, not just on competing and doing the best that you can.

Trial Tr. 9/29/94 at 75.

Thus, I treat both donor-funded and university-funded varsity teams as intercollegiate teams but as positioned at distinct levels within the athletic hierarchy.[32]

b. Substantially Proportionate

The phrase "substantially proportionate" is necessarily an elusive concept. Consequently, I turn toward other factors to inform my interpretation of this term. Because a positive showing on prong one terminates the inquiry, providing a "safe harbor" for the institution, *Cohen*, 991 F.2d at 897, logic suggests that "substantially proportionate" must be a standard stringent enough to effectuate the purposes of the statute. At the same time, "substantially proportionate" accounts for the possibility of minor fluctuations in the undergraduate population and in the athletic program from one year to the next. Thus, substantial proportionality is properly found only where the institution's intercollegiate athletic program mirrors the student enrollment as closely as possible. This defini-

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[32] The Policy Interpretation applies separately to each level of athletic program within an institution. The Policy Interpretation states that it "is designed specifically for intercollegiate athletics, however its general principles will often apply to club, intramural, and interscholastic athletic programs . . . ." *See* 44 Fed. Reg. at 71,413. Brown's unusual two-tiered treatment of its varsity program defies easy categorization. Because Brown has created another layer of athletic offerings, it is arguable that this Court should assess compliance by independently applying the Policy Interpretation to each tier of its intercollegiate varsity program. This method would give effect to the "Overall Determination of Compliance" element of the Policy Interpretation's "Effective Accommodation" provision. *See* 44 Fed. Reg. at 71,418 (asking "[w]hether disparities in individual segments of the program with respect to benefits, treatment, services, or opportunities are substantial enough in and of themselves to deny equality of athletic opportunity"). *See supra* part IV.C.

I have chosen not to adopt this method; however, I note that the factual record could only support a finding of noncompliance pursuant to this alternative application.

tion takes into account any small variations that are beyond the institution's ability to control or predict.

Defendants argue that "substantially proportionate" must be interpreted very liberally, in favor of the institution, lest a sudden surge in numbers on one team propel a complying institution into violation.[33] Defendants emphasize that the gender composition of the athletic program is both unpredictable and out of Brown's control, asserting that "Brown is stuck with whomever shows up on campus." Trial Tr. 12/16/94 at 61. This position ignores several significant facts. First, prong one compliance is assessed by comparing the gender ratio of the student enrollment with the gender ratio of the *entire* intercollegiate athletic program. It is unlikely that numerical fluctuations on an individual team will significantly alter the gender ratio of any sizable athletic program. In fact, testimony in the trial revealed that the fluctuations, from year to year, of the gender balance in the athletic program at Brown were minimal. Second, this position fails to acknowledge that when significant numerical changes did occur in the intercollegiate athletic program as a whole, these changes were within the control of the University. Plaintiff's expert, Dr. Christine Grant, Athletic Director for the women's program at the University of Iowa and a former official of a number of collegiate athletic associations, testified persuasively that a university "predetermines" the approximate number of athletic participants and the male to female ratio. I conclude that Brown does predetermine the gender balance of its athletic program through the selection of sports it offers (some sports, by their nature, require more players), the size of the teams it maintains (as dictated by each coach's preference), the quality and number of coaches

[33] "[T]hink of the university that in one year has 54 men track participants and in year two has 70 men's track participants. Does that mean that [the athletic director] has to wave a magic wand over the athletic department and create a new team of 16 women?" Trial Tr. 12/16/94 at 52.

it hires, and the recruiting and admissions practices it implements. *Cf.* Prelim. Inj. Hr'g Tr. 10/26/92 at 20. For example, coaches at Brown acknowledged the prominent role recruiting plays in sustaining Brown's varsity athletic program. Most coaches testified that they determine an ideal team size and then recruit the requisite number of athletes to reach that goal. Because recruits constitute the great majority of athletes on nearly all of Brown's university-funded varsity teams, the University should not have been surprised by the gender mix of interested athletes on campus.[34]

c. Participation Opportunities

The First Circuit, in sustaining the preliminary injunction, did not define the term "participation opportunities" as set forth in prong one of the Policy Interpretation. It now rests upon me to formulate a definition. For the purposes of the three prong test, I hold that the "participation opportunities" offered by an institution are measured by counting the *actual participants* on intercollegiate teams. The number of participants in Brown's varsity athletic program accurately reflects the number of participation opportunities Brown offers because the University, through its practices "predetermines" the number of athletic positions available to each gender.[35]

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[34] At the preliminary injunction hearing, John Parry, Brown's Athletic Director from January 1979 to January 1990, was asked, "When you were at Brown, was it true, in your view, that Brown's activities effectively did predetermine the percentage of—the percentage of men and women participating in intercollegiate athletics?" He responded, "Yes." Prelim. Inj. Hr'g Tr. 10/27/92 at 130.

[35] Brown argues that under this "predetermination" analysis it is inconsistent to find that there are club team members who are interested and able to compete at the varsity level. If only recruited athletes have the ability to compete at the Division I varsity level for the purposes of prong one, defendants argue, plaintiffs cannot at the same time maintain that non-recruited club

In addition, as noted below, any other measure of participation opportunities is infeasible. While the First Circuit did not explicitly define "participation opportunities" as participation rates, it implicitly adopted and applied this definition in its prong one analysis.

Defendants contend, however, that the concept "participation opportunity" carries a very different practical meaning from the simpler concept of "participation." They argue that the intercollegiate athletic participation opportunities offered at Brown should be measured by counting each team's filled *and unfilled* athletic slots.[36] The defendants offer several methods of determining the exact number of slots that they contend are available but unfilled.

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team athletes have the ability to compete at the varsity level for the purposes of prong three. Defs.' Reply Br. at 4.

Defendants err in conflating the analyses of prong one and prong three. Under prong one, the ability of recruited athletes is relevant only because Brown effectively limits participation on its varsity teams to recruited athletes, which in turn logically requires this Court to equate "participation opportunities" with actual participation rates, for the purposes of prong one. It is not the position of this Court that only recruited athletes *could* compete on Brown's varsity teams, rather the evidence has demonstrated that it is in fact the practice at Brown to rely almost exclusively on recruited athletes to field varsity teams. Under prong three, the ability of club athletes is a factor of the test itself, but the standard of prong three is generous: the underrepresented sex need only demonstrate the interest and ability to compete in an "intercollegiate schedule" as defined in the Policy Interpretation. *See* 44 Fed. Reg. at 71,413 n.1. A club team can demonstrate the interest and ability to compete in an "intercollegiate schedule" without presently operating at the same level of competitiveness maintained by longstanding university-funded Division I varsity teams.

[36] I have found that Brown "predetermines" the approximate number of varsity positions available to men and women; the concept of any measure of unfilled but available athletic slots does not comport with reality.

First, Brown proposes that participation opportunities should include those additional athletic slots that women's team coaches testified they were able to support, given current resources. This method is flawed because many coaches, while technically able to support more team members, restrict their team size according to their personal coaching philosophies. Thus, these theoretical opportunities are not actually available to athletic hopefuls.[37] I also note that even if I were to accept this definition of participation opportunities, or any other measure of "unfilled but available" positions, I would be compelled to compare the women's *and* the men's theoretically available additional spots.

Second, Brown asserts that each team is necessarily capable of carrying, at a minimum, the number of athletic positions it has supported in recent history. They contend that each team therefore affords at least that number of opportunities to participate, even during years in which the actual participation rates fall short of their historical high. I must reject the assertion that peak numbers achieved during some year in the past are the most accurate measure of participation opportunities *presently* offered by an institution.[38] Numbers from the *cur-*

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[37] Under the same rationale, it is incorrect to equate participation opportunities with the number of athletes permitted to travel with the team to "away" games, as determined by the NCAA, because Brown does not require coaches to maintain their teams at travel squad size. Thus, I reject Brown's proposal to measure participation opportunities by NCAA team travel squad sizes.

[38] A number of factors support this conclusion. First, Brown conceded that each coach employs his or her own philosophy in limiting team size. Because a current coach may make adjustments in his or her coaching practices over the years, and because a newly hired coach may implement different governing policies from that of a predecessor, only the current team size accurately reflects the number of participation opportunities actually offered to students. For instance, although previous swimming coaches had maintained a team with as many as 36 members, the new

rent or most recent, complete competitive season provide the most representative quantification of participation opportunities *presently* offered.

Third, in the alternative, Brown contends that each women's team for which there is an "equivalent" men's team is by definition able to carry at least the number of athletic positions carried by its counterpart in the men's program. Brown maintains that each women's team, therefore, affords at least as many participation opportunities as its "matching" men's team. I decline to adopt this methodology. It is not immediately apparent why the size of men's teams should set the standard for women's team sizes. Nor does the evidence presented at trial justify this approach. Men's and women's teams of the same name are sufficiently distinct from one another to invalidate any approach that rests upon an assumption of similarity.[39] I conclude that intercollegiate

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head coach of men's swimming testified that he did not plan to coach such a large team. Trial Tr. 12/8/94 at 114.

Second, the coaches' testimony demonstrated that the number of positions open to newcomers in any given year depended upon the number of members expected to graduate, the strength of the existing team, and the abilities of the prospective athletes. Because these latter variables may change team size slightly, team numbers from past years may not be a reliable indication of current participation opportunities.

[39] Although many men's and women's teams share the same name, they may not require the same number of team members in order to compete effectively. Different rules of play, including but not limited to, rules of substitution, amount of contact permitted, size of field, and number of specialized positions involved determine appropriate team size. For example, Dr. Donna Lopiano, Executive Director of the Women's Sports Foundation, and an accomplished four sport athlete honored in the softball hall of fame, discussed some of the differences between baseball and softball:

> I think softball and baseball are two completely different sports, that baseball will have a larger team size than softball will primarily because of the [effect of] pitching. It is typical on a baseball team to carry anywhere from six to ten pitchers

" '[a]thletic opportunities' means real opportunities, not illusory ones," *Horner*, 43 F.3d at 274 (quoting *Williams v. School Dist. of Bethlehem*, 998 F.2d 168, 175 (3d Cir. 1993)), and therefore should be measured by counting *actual participants*.

Finally, defendants offer an independent interpretation of the meaning of "participation opportunities" in the context of prong one. They define a participation opportunity as a *chance* for an *interested* person to participate. Defendants contend that where the student body is comprised of equal numbers of men and women, equality means "offering" the chance to participate in athletics to an equal number of men and women.[40] They postulate

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> because of the stress that is involved in throwing a baseball. . . . [I]n the sport of softball a single pitcher can pitch 44 consecutive innings, and I have done so on a number of occasions, without any stress on the shoulder joint because your arm is closer to your body and in a much more well supported position when you're throwing the ball. Where a baseball pitcher typically cannot throw more than 11 or 12 innings at a time and needs two or three days rest to recover. So just that factor alone will result in participation differences of 10 to 20 percent on the size of a baseball to the size of a softball team.

Trial Tr. 12/2/94 at 14-15. *See also* Trial Tr. 9/27/94 at 39 (men's and women's fencing coach testifying that women fence in only one weapon [and now in two] whereas men fence in three, thus resulting in many more positions available for men on a fencing team).

[40] Defendants explain their theory with a hypothetical. In this hypothetical, there are 1000 men and 1000 women in the student body at a university that has 150 gender-neutral athletic slots available. 500 men and 250 women in the student body (50% of men enrolled and 25% of women enrolled) are interested in filling these spots, and a random lottery is conducted in which students are offered a guaranteed position on the team. Where equal numbers of randomly selected men and women are offered such an opportunity, 50% of the men and 25% of the women will accept. Thus, although equal numbers of men and women are offered a position, 100 men and 50 women, due to the relative interest of

that if students were offered a hypothetical opportunity to participate, the students would actually participate in varsity athletics in accordance with the relative interest of their respective genders. Thus, where the gender ratio of a university's interested student population is substantially proportionate to the gender ratio of its athletic program, it may be assumed that men and women in the student body were "offered" an equal "opportunity" to participate. Therefore, defendants claim, Brown provides equal "participation opportunities" if the ratio of men to women among varsity athletes is substantially proportionate to the ratio of men to women among students interested in participating in varsity athletics. Defendants conclude that, in order to succeed on prong one, plaintiffs bear the burden of proving that the percentage of women among varsity athletes is not substantially proportionate to the percentage of women among *students interested in participating in varsity athletics.*[41]

Defendants, through their expert Dr. Finis Welch, a prominent labor economist, borrow from Title VII employment discrimination jurisprudence. There, the relevant comparison is between the qualified applicant pool and the work place demographics, rather than between the population of the United States and the work place demographics. This analogy is the basis for defendants' argument that the relevant comparison in Title IX cases is between the *interested* potential varsity athlete pool, however defined, and the make up of Brown's athletic

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their gender, will fill the 150 slots. *See* testimony of Dr. Finis Welch, Trial Tr. 11/22/94 at 13-15 and 19-24.

[41] At the preliminary injunction stage, defendants similarly sought to make the relative interests of men and women the relevant inquiry. However, at that time, defendants propounded this theory under the authority of prong three. *See infra* part VI.A.3.a. The First Circuit squarely rejected this analysis with respect to prong three, *Cohen*, 991 F.2d at 899-900, and I now decline to adopt it with regard to prong one.

program, rather than between the student enrollment and the athletic program. Comparison to Title VII is inapposite, however.[42] Title VII seeks to determine whether gender-neutral job openings have been filled without regard to gender. Title IX, on the other hand, was designed to address the reality that sports teams, unlike the vast majority of jobs, *do* have official gender requirements, and this statute accordingly approaches the concept of discrimination differently from Title VII. *Cf. Kelley*, 35 F.3d at 270 (stating that "Congress itself recognized that addressing discrimination in athletics presented a unique set of problems not raised in areas such as employment and academics") (citations omitted). Title IX establishes a legal presumption that discrimination exists if the university does not provide participation opportunities to men and women in substantial proportionality to their respective student enrollments, unless the university meets one of the two exonerating situations set forth in prongs two and three. *See Kelley*, 35 F.3d at 271.

Entirely apart from the flaws in the Title VII-Title IX analogy, there are a number of other problems with interpreting prong one to require that a university afford athletic opportunities to men and women in proportion to their relative interests in athletics. Under this Court's interpretation of prong one, concerned parties can assess an institution's compliance simply by comparing the gender ratio of participating athletes with the gender ratio of the student body, both of which are easily ascer-

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[42] *Cf. Cohen*, 991 F.2d at 902 (rejecting analogy to Title VII with respect to allocation of burden of proof on elements of three prong test and noting the substantial differences between Title IX and Title VII statutory purposes and between the education and employment contexts). The factors articulated by the First Circuit in declining to import Title VII burdens of proof also support my rejection of defendants' attempt to superimpose the meaning of discrimination in Title VII upon the plain language of Title IX.

tained. Under the defendants' theory, a concerned party must undertake a complicated assessment of "interested" students before making any comparisons. Any such assessment will be meaningless since it is an impossible task to quantify latent and changing interests.[43] Thus, in addition to contravening the plain language of prong one, defendants' interpretation imposes a heavy burden on student-plaintiffs, the courts, and institutions who wish to monitor their own compliance.[44] In any case, it is unclear what population should be surveyed to assess the interest of the "qualified applicant pool," even if it were possible to do so.

The possible survey populations range from matriculated students, to all actual Brown applicants, to all

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[43] Defendant's distinguished expert, Dr. Finis Welch, acknowledged that there is no single factor by which to measure that degree of athletic interest that will reliably be acted upon when the opportunity is present. "[T]he interest measures that we get vary. I mean there is an overall pattern and they fall within the pattern, but there's—there's no one place that we can go to to get a rock solid measure of interest." Trial Tr. 11/29/94 at 115.

Dr. Welch illustrated the difficulty in quantifying interest when he was asked by the Court, "[W]hat constitutes an interested man or an interested woman?" Dr. Welch responded, "That's hard. And that's what we're going to do is draw information from various sources because we don't know." Dr. Welch listed a variety of survey sources and concluded, "I would try to combine the attitudinal information, the survey kind of question with the realization, 'What do I see by way of people showing up.' " Trial Tr. 11/22/94 at 15-17.

[44] Given the difficulty of measuring the relative interests of men and women, it would be almost impossible for an institution to remain in compliance with Title IX by staying abreast of the ever-changing relative "interests" of its male and female students and adjusting its program offerings accordingly. Because defendants' interpretation would require substantial proportionality between the gender balance of its athletic program offerings and the gender balance of interested prospective student-athletes, constant rebalancing would be necessary to maintain compliance, thereby eliminating the ability of an institution to verify easily that it falls within the "safe harbor" that prong one provides.

academically able potential varsity participants. In an analogy to Title VII and the "qualified applicant pool," defendants argue that the relevant population consists only of those men and women who might be interested and able to participate in varsity athletics. Uninterested and unathletic persons are irrelevant to any assessment of the substantial proportionality between the athletic program and the student enrollment. The question, under defendants' theory, then becomes who belongs to the "qualified applicant pool" from which Brown might draw student-athletes. Each of the possible "pools" from which Brown might draw varsity athletes has inherent theoretical and practical problems as a survey population, which confirms my initial conclusion that defendants' interpretation of prong one is incorrect. I will now discuss each of the possible survey pools.

(i) Matriculated Students

Because Brown, as a Division I school, actively recruits nationwide most of the students who play on its varsity teams, the survey population of potential participants must be broader than the pool of matriculated students. What students are present on campus to participate in a survey of interests has already been predetermined through the recruiting practices of the coaches. What teams are established and can recruit or qualify for admissions preferences has already been predetermined by Brown. Thus, the interest present on campus is controlled by Brown; to then suggest that Brown must only satisfy the relative interests of students present on campus is circular.

(ii) Actual Brown Applicants

Defendants have suggested that an appropriate survey population might consist of all students who applied to Brown. They claim that several already existing questions on Brown's application would provide an easy determination of the relative interests in varsity athletics.

There are two problems with using this group of students as the determinative "pool." First, it revisits the conceptual problems inherent in attempting to measure "interest." *See supra* note 43. It cannot be true that questions on Brown's application provide a reliable measure of interest that will be acted upon given the opportunity.[45] Although many women who later committed to attend Brown expressed some type of interest in sports at the time of application, far fewer actually participate in Brown's intercollegiate athletic program.[46] Second, using the pool of actual Brown applicants fails to consider the fact that college applicants interested in a sport not offered as a varsity sport at Brown may not even apply to Brown. A survey of actual Brown applicants would thus fail to capture the interest of those student-athletes who choose not to apply due to the limits of Brown's program offerings. To suggest that Brown need only satisfy the interests of actual applicants where Brown's selection of program offerings affects who applies to the school in the first place is illogical.

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[45] Question 9 on the application form asked applicants to list activities that they might pursue at Brown. Pls.' Ex. 112. Dr. Welch acknowledged that the answers to question 9 could not be used to measure precisely those interested in participating in varsity athletics, as opposed to club, intramural, and recreational sports. Trial Tr. 11/29/94 at 114-15.

[46] As Dr. Welch noted in his report:

> The fact that only small minorities of those indicating interests actually participate in varsity sports is indicative that reported interests are not necessarily firm commitments. These numbers suggest that applicants expressing potential interests in participating should be viewed as a mixture consisting of some who are seriously committed to participating and others who are, perhaps, not as committed. The alternative treatments of these groups can result in major shifts in calculated female/male interest ratios.

Defs.' Ex. IIIII, Table 30A at 92.

(iii) Academically Able Potential Varsity Participants

If one were to accept the defendants' analogy to the "qualified applicant pool" of Title VII, the most appropriate survey population would consist of all academically able *potential* varsity participants. The "qualified applicant pool" for Brown, as a Division I institution, would consist of all prospective college applicants who might apply to or be recruited by Brown if Brown offered their preferred varsity sports. Because Brown seeks athletic recruits from across the nation, the difficulties in identifying all such persons in order to construct a representative survey population may be insurmountable.

In addition, even a successful survey of all academically able potential Brown applicants could not accurately measure interest in certain sports, crew, for example, that commonly develop only after matriculation. Nor can a survey of this population account for the extent to which opportunities drive interests. *See, e.g.*, testimony of Dr. Welch, Trial Tr. 11/29/94 at 92 (question asking, "Would you agree with the following statement? If Brown provides far more opportunities for women, then maybe the percentage of interested women will rise?" and witness replying, "Sure, I don't see anything wrong with that").

For all the foregoing reasons, I reject defendants' alternative interpretation of prong one.

Under the Policy Interpretation, an institution may fail to provide participation opportunities substantially proportionate to student enrollment but still comply with the Title IX regulatory scheme. The Policy Interpretation recognizes that a school might make every attempt to accommodate women's interests and abilities and still not achieve substantial proportionality. Therefore, an institution is permitted to maintain an athletic program that

provides substantially more opportunities to students of one gender than to the other if it comports with one of the two other prongs. In this way, the Policy Interpretation accommodates the equal opportunity mandate of Title IX without *requiring* strict quotas.

2. *Prong 2*

In the event that an institution fails prong one, it can still prevail by demonstrating compliance with prong two. Defendants bear the burden of proof on prong two, which asks:

> Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex . . .

44 Fed. Reg. at 71,418. Prong two illustrates that "Title IX does not require that the university leap to complete gender parity in a single bound." *Cohen*, 991 F.2d at 898. However, it does require an institution to demonstrate that it has continued to increase the number of athletes participating in intercollegiate athletics. An institution does not demonstrate "program *expansion*" by reducing men's teams so as to increase the relative percentage of female participation in intercollegiate athletics, although it may achieve compliance with prong one if it sufficiently reduces the program of the overrepresented gender. *See Roberts*, 998 F.2d at 830 (stating that "the ordinary meaning of the word 'expansion' may not be twisted to find compliance under [prong two] when schools have increased the relative percentages of women participating in athletics by making cuts in both men's and women's sports programs").

3. *Prong 3*

Even where plaintiffs can prove that an institution does not offer intercollegiate athletic participation opportunities to men and women in substantial proportionality to their respective enrollments (prong one), and where defendants are unable to demonstrate a history and continuing practice of program expansion (prong two), plaintiffs must *additionally* prove that an institution does not satisfy prong three. Prong three asks:

> Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a continuing practice of program expansion such as that cited above, whether it can be demonstrated that the interests and abilities of the members of that sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. at 71,418. Prong three "requires a relatively simple assessment of whether there is unmet need in the underrepresented gender that rises to a level sufficint to warrant a new team or the upgrading of an existing team." *Cohen,* 991 F.2d at 900. Thus, provided that athletes of the underrepresented gender have both the ability and interest to compete at the intercollegiate level, they must be fully and effectively accommodated. Of course, institutions do retain discretion when met with requests for the creation of a new team or the upgrading of an existing team. They need not upgrade or create a team where the interest and ability of the students are not sufficiently developed to field a varsity team. Further:

> [i]nstitutions are not required to upgrade teams to intercollegiate status or otherwise develop intercollegiate sports absent a reasonable expectation that intercollegiate competition in that sport will be available within the institution's normal competitive regions.

44 Fed. Reg. at 71,418. Thus, defendants' concern that the Court's interpretation of prong three would require Brown to "accommodate each and every expressed student interest as long as there [is] any evidence of ability" is not well taken.[47] Defs.' Post-Trial Mem. at 1.

a. Full and Effective Accommodation

Defendants press their interpretation of prong three, originally presented at the preliminary injunction stage of this litigation. Their position is that "to the extent students' interests in athletics are disproportionate by gender, colleges should be allowed to meet those interests incompletely as long as the school's response is in direct proportion to the comparative levels of interest." *Cohen*, 991 F.2d at 899. In other words, Brown argues that it may accommodate less than all of the interested and able women if, on a proportionate basis, it accommodates less

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[47] Defendants colorfully illustrated this concern in their closing statement: "I can go onto any campus in this country, Your Honor, and probably find somebody interested in playing Russian roulette. That doesn't mean that that's an unmet need that ought to be raised to the dignity of an intercollegiate varsity." Trial Tr. 12/16/94 at 71. This portrayal of the practical consequences of this Court's interpretation fails to acknowledge the safeguards embodied in the Policy Interpretation as a whole. An institution is not required to create or elevate a team in the absence of the reasonable expectation of intercollegiate competition within the institution's normal competitive region. 44 Fed. Reg. at 71,418. It follows that there must be both a sufficient number of other teams competing in that region to provide intercollegiate competition and enough interested and able individuals for the institution to draw upon and build a competitive team. *But see* 44 Fed. Reg. at 71,418 (institutions may be required by Title IX regulations to "actively encourage" the development of such competition). As plaintiffs noted in their closing statement. "We represent a class. We don't represent any one individual and [we don't say] this person alone needs this opportunity. If you provide equal opportunities to the class members, to the potential athletes, we're satisfied even though one athlete here or one athlete there is disappointed." Trial Tr. 12/16/94 at 34.

than all of the interested and able men.[48] This is simply not the law. This Court and the First Circuit previously rejected defendants' interpretation of prong three for a number of reasons that still hold true today. Just as with prong one, defendants' theory is inconsistent with the law, is poor policy, and presents a logistical quagmire.

First, as the First Circuit detailed:

> We think that Brown's perception of the Title IX universe is myopic. The fact that the overrepresented gender is less than fully accommodated will not, in and of itself, excuse a shortfall in the provision of opportunities for the underrepresented gender. . . .
>
> In the final analysis, Brown's view is wrong on two scores. It is wrong as a matter of law, for DED's Policy Interpretation, which requires full accommodation of the underrepresented gender, draws its essence from the statute. Whether Brown's concept might be thought more attractive, or whether we, if writing on a pristine page, would craft the regulation in a manner different than the agency, are not very important considerations. . . .
>
> Brown's reading of Title IX is legally flawed for yet another reason. It proceeds from the premise that the agency's third benchmark countervails Title IX. But, this particular imprecation of the third benchmark overlooks the accommodation test's general purpose: to determine whether a student has been "excluded from participation in, [or] denied the benefits of" an athletic program "on the basis of sex . . ." 20 U.S.C. § 1681(a). While any single element of this tripartite test, in isolation, might not

[48] Thus, for example, under defendants' interpretation, where a school with a student enrollment of 1000 men and 1000 women has 500 interested men and 250 interested women, the school satisfies prong three if it provides 100 athletic positions for men and 50 for women. *Contra Cohen*, 991 F.2d at 899.

achieve the goal set by the statute, the test as a whole is reasonably constructed to implement the statute. . . .

As it happens, Brown's view is also poor policy, for, in the long run, a rule such as Brown advances would likely make it more difficult for colleges to ensure that they have complied with Title IX. Given that the survey of interests and abilities would begin under circumstances where men's athletic teams have a considerable head start, such a rule would almost certainly blunt the exhortation that schools should "take into account the nationally increasing levels of women's interests and abilities" and avoid "disadvantag[ing] members of an underrepresented sex . . ." 44 Fed. Reg. at 71,417.

Brown's proposal would also aggravate the quantification problems that are inevitably bound up with Title IX.[49] Student plaintiffs, who carry the burden of proof on this issue, as well as universities monitoring self-compliance, would be required to assess the level of interest in both the male and female populations and determine comparatively how completely the university was serving the interests of each sex. . . .

Furthermore, by moving away from OCR's third benchmark, which focuses on the levels of interest and ability extant in the student body, Brown's theory invites thorny questions as to the appropriate survey population, whether from the university, typical feeder schools, or the regional community.[50] In that way, Brown's proposal would do little more than overcomplicate an already complex equation.

Cohen, 991 F.2d at 899-900. Thus, as the First Circuit found, Brown's interpretation is logistically difficult to

[49] *See supra* note 44 and accompanying text.

[50] *See supra* note 43 and accompanying text.

administer and is inconsistent with the effective accommodation mandate of the Title IX implementing regulations in two respects. It both contravenes the plain meaning of prong three and ignores the Policy Interpretation's directive that an institution determine the athletic interests and abilities of students in such a way as to "take into account the nationally increasing levels of women's interests and abilities" and avoid disadvantaging members of an underrepresented sex. 44 Fed. Reg. at 71,417. Brown's interpretation disadvantages women and undermines the remedial purposes of Title IX by limiting required program expansion for the underrepresented sex to the status quo level of relative interests.

Additionally, the trial on the merits illustrated some of the practical and conceptual difficulties identified above by the First Circuit. Although the plaintiffs bear the burden of proof on prong three, the defendants introduced a great deal of evidence in support of their position that Brown satisfies prong three, as they interpret it. Brown conducted a survey on campus, analyzed students' college applications, and assembled a variety of national studies in an attempt to quantify the relative interest of men and women in athletics. Defendants drew from a variety of populations and survey questions, generating scores of measures of what constitutes "interest." Because no one measure and no identifiable population adequately establish relative interest, *see supra* notes 43-44 and accompanying text, defendants effectively demonstrated how their interpretation of prong three would impose an insurmountable task of Title IX plaintiffs.[51]

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[51] Contrary to this Court's view of the inherent difficulties with requiring a determination of relative interests, defendants argue that OCR plainly advocates the use of surveys as a simple measure of the relative accommodation of interest and abilities:

> [w]e have looked at what the Office of Civil Rights has instructed us to look at in terms of determining interests and abilities as they change in a university context over time. . . . [I]f any court seeks to give deference to the Office of Civil

Finally, contrary to defendants' arguments, this Court's interpretation of the three prong test does give independent meaning to each component of the test. Defendants posit:

> [T]o suggest that prong one and prong three are the same, that they both require student body ratios is to read prong three out of existence. It becomes redundant. And as the U.S. Supreme Court said in *Nordic Village* a statute must, if possible, be construed in such a fashion that every word has some operative meaning. For a court to say I have to be at student body ratios in prong one, and for a court to say I also have to be at student body ratios in prong three if I have anybody that's interested on campus, has basically thrown out the raison d'etre for prong three and said we might as well only have a one prong test.

Rights, it must give deference to how they tell us to determine interest and abilities. . . . And I quote [page 27 of the 1990 Investigator's Manual, which], points out [that] to determine interest and abilities [an institution should look to], quote, "involved club, intramural, feeder school, community, regional, physical education, and other programs." And most importantly, your Honor, they say on page [27], quote, "a survey is mentioned most often since it is usually the simplest method for the institution and O.C.R. to determine interest and abilities."

Trial Tr. 12/16/94 at 85-87. In fact, however, a closer reading of the Athletics Investigator's Manual reveals that OCR identifies surveys as a simple way to identify which additional sports might appropriately be created to achieve compliance. The Manual states on page 27 "[a] survey or assessment may be required as a part of a remedy when OCR has concluded that an institution's current program does not equally effectively accommodate the interests and abilities of students." Valerie M. Bonnette & Lamar Daniel, Department of Education, Title IX Athletics Investigator's Manual 27 (1990). Thus, a survey of interests would *follow* a determination that an institution does not satisfy prong three; it would not be utilized to make that determination in the first instance.

Trial Tr. 12/16/94 at 74-75. This Court's interpretation of prong three does require that the unmet interests and abilities of the underrepresented sex be accommodated to the fullest extent until the substantial proportionality of prong one is achieved. This requirement does not, however, render prong three meaningless. At Brown University the number of interested and able women may match or exceed the number of men participating in the intercollegiate athletic program, thus requiring Brown to achieve substantial proportionality.[62] This depth of athletic talent among the underrepresented sex may not exist to the same extent at other universities. Thus, while Brown may be unable to justify its program under prong three, because of its wealth of unaccommodated female athletes, other universities may point to the absence of such athletes to justify an athletic program that does not offer substantial proportionality. In this way, the Policy Interpretation gives effect to 20 U.S.C. § 1681(b), *see supra* part IV.A, and does not, as defendants' argue, impose an affirmative action/quota scheme on institutions receiving federal funds.

VII. APPLICATION

I now turn to the application of the Policy Interpretation to Brown University's athletic program. I will first apply the three prong test to Brown's intercollegiate athletic program pursuant to 34 C.F.R. 106.41(c)(1)

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[62] In fact, however, plaintiffs did not prove that there are women in addition to those participants in gymnastics, skiing, fencing and water polo who have the interest and ability to compete at the intercollegiate level in a sport for which there is a reasonable expectation of competition in Brown's normal competitive region. Even if Brown were to upgrade each of these teams to university-funded status, a 12% disparity would still exist between female participation in intercollegiate athletics and female representation in the student body, resulting in a failure to satisfy prong one. Therefore, it is most likely that even Brown could find that prong three offers protection for its intercollegiate athletic program where prong one does not.

and 44 Fed. Reg. at 71,417-18 ("Effective Accommodation of Student Interests and Abilities"). I will then evaluate the "equal treatment" of Brown's teams by applying the remaining nine factors of the regulation's ten "Equal Opportunity" factors pursuant to 34 C.F.R. 106.41(c)(2)-(10) and 44 Fed. Reg. at 71,415-17 ("Equivalence in Other Athletic Benefits and Opportunities").

A. Prong One Applied

Plaintiffs have proven that Brown does not satisfy prong one. The gender balance of Brown's intercollegiate athletic program is far from substantially proportionate to its student enrollment. As discussed above, Brown University provides 555 (61.87%) intercollegiate athletic opportunities to men and 342 (38.13%) to women, whereas the undergraduate enrollment for the relevant year is 2796 men (48.86%) and 2926 women (51.14%).[53] Brown currently offers 479 university-funded varsity slots for men and 312 university-funded varsity slots for women. It also provides 76 donor-funded varsity slots for men and 30 donor-funded varsity slots for women. Thus, because Brown maintains a 13.01% disparity between female participation in intercollegiate athletics and female student enrollment, it cannot gain the protection of prong one. Although Brown clearly does not meet the criteria of the first prong, defendants will still prevail if they can demonstrate that they satisfy the requirements of the second prong or if plaintiffs are unable to meet their burden of proof on prong three.

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[53] As I determined above, *see supra* part VI.A.1, "intercollegiate athletic participation opportunities" are measured by counting the number of participants on both university and donor-funded varsity teams. In Brown's case, the most accurate, if imperfect, participation numbers appear on the NCAA Squad Lists. *See supra* note 16 and accompanying text.

B. Prong Two Applied

Although Brown University has an impressive *history* of program expansion, defendants have failed to demonstrate that the University has maintained a *continuing practice* of intercollegiate program expansion for women, the underrepresented sex. As I noted at the preliminary injunction stage, Brown substantially expanded its athletic program for women in the 1970s. However, while I recognize that Brown has improved the quality of its women's program, the fact remains that since 1977 only women's indoor track in 1982 and women's skiing in 1994 have been added to its intercollegiate athletic program. Because merely reducing program offerings to the overrepresented sex does not constitute program "expansion," *see supra* part VI.A.2, the fact that Brown has eliminated or demoted several men's teams does not amount to a continuing practice of program expansion for women. In any case, Brown has not proven that the percentage of women participating in intercollegiate athletics has increased. Since the 1970s, the percentage of women participating in Brown's varsity athletic program has remained remarkably steady. *See Cohen*, 809 F.Supp. at 991.

C. Prong Three Applied

Prong three would excuse Brown's failure to provide substantially proportionate participation opportunities only if Brown fully and effectively accommodated the underrepresented sex. Here, the underrepresented sex is women and thus I focus my attention on the extent to which Brown's women athletes are accommodated. I find Brown has not *fully* and effectively accommodated the interest and ability of the underrepresented sex "to the extent necessary to provide equal opportunity in the selection of sports and levels of competition available to members of both sexes." 44 Fed. Reg. at 71,417.

Plaintiffs have successfully established that Brown has not fully and effectively accommodated the interest and

abilities of women, the underrepresented sex at Brown. In its affirmance of this Court's ruling on the preliminary injunction, the First Circuit recognized the potential difficulty in identifying "interest and ability" where student plaintiffs seek the creation or elevation to varsity status of an entirely new team. *See Cohen*, 991 F.2d at 904. Here, however, plaintiffs have introduced the testimony of student athletes, coaches and experts to verify that at least four existing teams have long been participating in competitive schedules and are capable of competing at Brown's highest varsity level. There are interested women able to compete at the university-funded varsity level in gymnastics, fencing, skiing, and water polo.[54]

Brown fails to comply with prong three in two respects. First, Brown has failed to increase the number of intercollegiate participation opportunities available to the underrepresented sex where it could do so by elevating a team with demonstrated interest and ability from below intercollegiate status to intercollegiate status. Specifically, I find that Brown has failed to accommodate fully and effectively the underrepresented sex by maintaining women's water polo at club status and by demoting women's gymnastics where these teams have demonstrated the interest and ability to operate as varsity teams. I have already determined that the women's water polo team operates as a traditional club sport rather than as an "intercollegiate" team under the definition of the Policy Interpretation. *See supra* note 28 and accompanying text. I have also determined that although gym-

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[54] The record demonstrates that the women's water polo team has the interest and ability to compete as a university-funded varsity team; however, the evidence does not demonstrate that this club team presently operates as an intercollegiate team. I note that the fact that this team does not engage in prong one's definition of "intercollegiate competition" does not mean that it, by definition, cannot demonstrate the interest and ability under prong three to do so if upgraded.

nastics is technically a donor-funded varsity at this time, it will in fact cease to exist, within a few seasons, at an intercollegiate varsity level in the absence of university funding. Neither team can compete as an intercollegiate varsity team if denied university-funded status. *See supra* part II. Thus, Brown violates prong three by maintaining women's water polo at club status and by, in effect, demoting women's gymnastics to club status, although officially designating it a "donor-funded" varsity team.

Second, Brown has failed to maintain and support women's donor-funded teams at Brown's highest level, thus preventing the athletes on these teams from developing fully their competitive abilities and athletic skills. Specifically, I find that Brown has failed to accommodate fully and effectively the underrepresented sex by maintaining women's fencing and women's skiing at a donor-funded level where each of these teams has demonstrated the interest and ability to operate as a university-funded varsity team and where donor-funded status has prevented each of these teams from reaching its athletic potential. Even though both athletic tiers offer participation opportunities in Brown's "intercollegiate" program, I have already determined that there are substantial qualitative differences between university and donor-funded teams. The differences preserved by Brown rise to such a level that the women participating on donor-funded varsities are not being fully and effectively accommodated. Thus, Brown violates prong three by maintaining these two women's teams at the donor-funded varsity level.

I recognize that this second basis for finding a violation is a new application of prong three. However, while prong three has not yet been read by any court to require an institution to upgrade any teams from *within* its intercollegiate athletic program, no other court has been presented with the factual situation of an officially maintained, two-tiered intercollegiate program.

It is true that prong three's "full and effective accommodation" language could be read to require only that an institution elevate or create athletic program offerings for the underrepresented sex from *outside* of its present intercollegiate program. However, Brown has created two distinct levels of athletics within the Policy Interpretation's definition of "intercollegiate" athletics; this unique factual situation calls for a more comprehensive interpretation of the "full and effective accommodation" language of prong three. As the First Circuit noted, institutions "must remain vigilant, 'upgrading the competitive opportunities available to the historically disadvantaged sex as warranted by developing abilities among the athletes of that sex,' [44 Fed. Reg. at 71,418], until the opportunities for, and levels of, competition are equivalent by gender." *Cohen,* 991 F.2d at 898.

Brown's restructured athletic program cannot be used to shield it from liability when in truth and in fact it does not fully and effectively accommodate the women athletes participating on donor-funded teams. It would circumvent the spirit and meaning of the Policy Interpretation if a university could "fully and effectively" accommodate the underrepresented sex by creating a second-class varsity status. The three prong test establishes a standard of equality that requires Brown to provide substantially equal numbers of intercollegiate athletic opportunities for men and for women, unless Brown either (1) steadily increases the number of such opportunities for women under prong two, or (2) fully and effectively meets the athletic interest and ability of women under prong three such that Brown cannot further improve the athletic opportunities for women until their interest and abilities further develop. Clearly, the potential for athletic development and the level of competition of women's donor-funded teams are much less than that of university-funded teams; thus, women on the ski and fencing teams can be more fully accommodated within the structure of Brown's established varsity athletic program.

Finally, I note that, in this instance, Brown cannot excuse its failure to accommodate the interest and ability of the women athletes on these four teams by citing an absence of "a reasonable expectation that intercollegiate competition in [these sports] will be available within the institution's normal competitive regions." 44 Fed. Reg. at 71,418. The evidence demonstrates that adequate intercollegiate competition exists within Brown's normal competitive region for each of these four teams.[55]

D. Equal Treatment Factors Applied

There is an additional ground upon which to rest a finding of Title IX violation.

Brown's program offerings, as currently allocated by gender within the two-tiered structure of the intercollegiate varsity program violate the "treatment" aspect of the regulation. *See* 34 C.F.R. § 106.41(c)(2)-(10) ("Equal Opportunity" factors); 44 Fed. Reg. at 71,415-17 ("Equivalence in Other Athletic Benefits and Opportunities"). At Brown, far more male athletes are being supported at the university-funded varsity level than are female athletes, and thus, women receive less benefit from their intercollegiate varsity program as a whole than do men from their intercollegiate varsity program as a whole. This inequity is a consequence of the qualitative differences between the benefits enjoyed by university and donor-funded varsity teams. Donor-funded teams are not provided with treatment equivalent to that accorded university-funded teams with regard to at least the following

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[55] For discussion of Brown's varsity and club competitors in water polo, see Trial Tr. 10/3/94 at 24; Trial Tr. 10/3/94 at 61-2; and Pls.' Ex. 39. For discussion of Brown's varsity and club competitors in skiing, see Trial Tr. 9/28/94 at 29-30; and Trial Tr. 9/29/94 at 12-13. For discussion of Brown's varsity and club competitors in fencing, see Trial Tr. 11/21/94 at 26-29; Trial Tr. 9/27/94 at 8, 76, 78. For discussion of Brown's varsity and club competitors in gymnastics, see Trial Tr. 9/27/94 at 184-86.

factors: equipment and supplies (§ 106.41(c)(2)), travel and per diem allowance (§ 106.41(c)(4)), opportunity to receive coaching (§ 106.41(c)(5)), assignment and compensation of coaches (§ 106.41(c)(6)), and training services (§ 106.41(c)(8)). *See supra* notes 6-13, 29-30. These differences were not settled by the parties as to the donor-funded varsity teams since the Settlement Agreement does not resolve any *program-wide* treatment inequities. Rather, it settles only the relative support afforded to men's and women's university-funded teams as to which there is no dispute concerning their university-funded varsity status.

VIII. REMEDY

Having determined that Brown University is in violation of Title IX, I now address the remedy required. This Court has the authority to mandate specific relief. *See Franklin v. Gwinnett County Pub. Sch.*, 112 S.Ct. 1028, 1035-37 (1992). However, as I stated in my earlier ruling, I have no desire to "micromanage" Brown's athletic program. Furthermore, I believe that judicial restraint is warranted at this point in light of the wide latitude afforded institutions under the regulations. Title IX does not require an institution to provide *any* athletic opportunities to its students. What it does require is that an institution provide equal opportunity to both genders in any program it chooses to offer. Thus, "Brown may not . . . operate an intercollegiate program that disproportionately provides greater participation opportunities to one sex in relation to undergraduate enrollments, where there is no evidence of continuing program expansion [for the underrepresented sex] or effective accommodation of the interests and abilities" of the underrepresented sex. *Cohen*, 809 F.Supp. at 999.

Brown may achieve compliance with Title IX in a number of ways. It may eliminate its athletic program altogether, it may elevate or create the requisite number

of women's positions, it may demote or eliminate the requisite number of men's positions, or it may implement a combination of these remedies. I leave it entirely to Brown's discretion to decide how it will balance its program to provide equal opportunities for its men and women athletes. I recognize the financial constraints Brown faces; however, its own priorities will necessarily determine the path to compliance it elects to take.

Defendants frequently raised the specter of being forced by financial constraints to eliminate men's athletic opportunities in order to achieve compliance under plaintiffs' interpretation of the law. I feel compelled to point out that an institution has much flexibility, even within a finite resource base. Dr. Lopiano was asked whether it would be prudent for a university confronted with severe budgetary conrtaints to cap the size of men's teams rather than add women's teams to its athletic program. She responded, addressing the false dichotomy posed:

> I believe that philosophically in any case where you have a previously disadvantaged population that you're trying to bring up to snuff to the advantaged population, that it's a bad idea to bring the advantaged population down to the level of the disadvantaged population. [T]he whole idea [of Title IX] is to add participation opportunities for women. And it's unfortunate that across the country that in the name of maintaining the standard of living of football team[s] or the standard of living of one or two special men's sports, that men's sports are being cut and women's gender equity under Title IX [is] being blamed for that.

Trial Tr. 12/2/94 at 59.

Thus, defendants' plea that "[t]here is nothing further Brown can do except cut, cap or eliminate men's teams," Defs.' Post-Trial Mem. at 39, is simply not true. Brown certainly retains the option to redistribute its resources

in a way that may slightly reduce the "standard of living" for its university-funded varsity sports in order to expand the participation opportunities for its women athletes and closer approach equal opportunity between its male and female athletes. Whether it will follow this course of action is, of course, well within its discretion.

IX. CONCLUSION

For all of the reasons stated above, Brown University is in volation of Title IX and supporting regulations.

Brown University is hereby ordered to submit to this Court, within 120 days, a comprehensive plan for complying with Title IX. This portion of the order is stayed pending appeal.

It is hereby further ordered that, in the interim, the preliminary injunction, as outlined in my Opinion and Order of December 22, 1992, *Cohen v. Brown Univ.*, 809 F.Supp. 978, 1001 (D.R.I. 1992), will remain in full force and effect.

So Ordered:

/s/ Raymond J. Pettine
Raymond J. Pettine
Senior U.S. District Judge

March 29, 1995

Entered as an Order of this Court March 29, 1995.

/s/ Celeste-Anne Patnaude
Deputy Clerk

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

Civil Action No. 92-197-P

AMY COHEN, *et al*, each individually and
on behalf of all others similarly situated

v.

BROWN UNIVERSITY, VARTAN GREGORIAN,
and DAVID ROACH

JUDGMENT

☒ Decision by the Court. This action came to trial or hearing before the Court. The issues have been tried or heard and a decision has been rendered.

IT IS ORDERED AND ADJUDGED

Judgment entered for the Plaintiffs on March 29, 1995, in accordance with the Opinion of this Court of that date, is amended in accordance with the Modified Order of this Court filed May 4, 1995.

/s/ Raymond J. Pettine
RAYMOND J. PETTINE
Senior U.S. Judge

Date: May 4, 1995

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

Civil Action No. 92-0197-P

AMY COHEN, *et al.*, each individually and on behalf of all others similarly situated,
Plaintiffs

v.

BROWN UNIVERSITY, VARTAN GREGORIAN, and DAVID ROACH,
Defendants

JUDGMENT IN A CIVIL CASE

☒ Decision by the Court. This action came to trial or hearing before the Court. The issues have been tried or heard and a decision has been rendered.

IT IS ORDERED AND ADJUDGED

Judgment is hereby entered for the Plaintiffs in accordance with the Opinion and Order entered March 20, 1995, by Senior U.S. District Judge Raymond J. Pettine.

Approved:

RAYMOND F. BURGHARDT
Clerk of Court

/s/ Raymond J. Pettine
Sr. Judge 4/5/95
Date: March 29, 1995
nun pro tunc 3/29/95

/s/ Celeste-Anne Patnaude
(by) Deputy Clerk

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

C.A. No. 92-0197

AMY COHEN, *et al.*, each individually and on behalf of all others similarly situated,
plaintiffs,

v.

BROWN UNIVERSITY, VARTAN GREGORIAN, and DAVID ROACH,
defendants.

MODIFIED ORDER

PETTINE, RAYMOND J., Senior U.S. District Judge

Defendants have appealed this Court's Opinion and Order issued on March 29, 1995. Plaintiffs now assert that the judgment is not yet appealable as a final judgment pursuant to 28 U.S.C. § 1291 in that this Court stayed the requirement that defendants submit a compliance plan pending appeal. Plaintiffs contend that the First Circuit may therefore decline to hear the case for lack of appellate jurisdiction. Plaintiffs move, pursuant to Fed.R.Civ.P. 59 and 60, to vacate or amend this Court's judgment in order to ensure the jurisdiction of the appellate court over this case and thereby secure efficient disposition of the case on appeal. Although this is not a clearly defined area in the First Circuit, I am persuaded by plaintiffs' arguments and the interests of the public in expediting an appellate decision in this case. Therefore, the Order will be modified as set forth below.

The jurisdiction of the courts of appeals is normally confined to the review of final orders, 28 U.S.C. § 1291 (1976), or to the classes of interlocutory orders described in 28 U.S.C. § 1292(a) (1976). Plaintiffs contend that this Court's Order is not a "final" judgment within the meaning of 28 U.S.C. § 1291.[1] This Court ordered Brown University to submit a comprehensive plan within 120 days for complying with Title IX. I stayed this order pending appeal.

The traditional definition of a final order is "one which ends the litigation on the merits and leaves nothing for the court to do but execute the judgment." *Catlin v. United States,* 324 U.S. 229, 233 (1945). However, the Supreme Court has recognized a "twilight zone of finality," *Gillespie v. United States Steel Corp.,* 379 U.S. 148, 152 (1946), and has determined that finality should be given a 'particular rather than a technical construction.' " *Massachusetts Ass'n for Retarded Citizens v. King,* 643 F.2d 899, 904 n.12 (1st Cir. 1981) (citing *Gillespie,* 379 U.S. at 152. *See also Brown Shoe Co. v. United States,* 370 U.S. 294, 306 (1962) (noting that "[a] pragmatic approach to the question of finality has been considered essential to the achievement of the 'just, speedy, and inexpensive determination of every action' ") (footnote omitted).

While it is often difficult to assess finality in practical terms, numerous courts have found that a judgment ordering a remedial plan is not "final" for the purposes of appellate court review. *See, e.g., Inmates of Allegheny County Jail v. Wecht,* 874 F.2d 147, 155-56 (3d Cir.) (order requiring county officials to prepare a plan for construction of new jail facility not appealable), *vacated on*

[1] 28 U.S.C. § 1291 provides that:

> The courts of appeals . . . shall have jurisdiction of appeals from all final decisions of the district courts of the United States . . . except where a direct review may be had in the Supreme Court. . . .

other grounds, 493 U.S. 948 (1989); *Balla v. Idaho State Bd. of Corrections,* 869 F.2d 461, 464 (9th Cir. 1989) (order containing a declaration of legal principles as well as a requirement to submit a plan which would establish a psychiatric care program for prisoners was, by its own terms, incomplete); *Sherpell v. Humnoke Sch. Dist.,* 814 F.2d 538, 539-40 (8th Cir. 1987) (order finding school environment racially discriminatory and ordering formation of biracial committee as well as formulation and submission of remedial plans not appealable under section 1291); *Groseclose v. Dutton,* 788 F.2d 356, 358-61 (6th Cir. 1986) (court order finding death row conditions unconstitutional and ordering nomination of a master and submission of a remedial plan not for a final judgment); *Hoots v. Commonwealth of Pa.,* 587 F.2d 1340, 1347-1348 (3d Cir. 1978) (order requiring defendants to prepare and submit a plan for desegregation was neither a final order nor an appealable interlocutory order which could vest the court with appellate jurisdiction); *Taylor v. Board of Educ.,* 288 F.2d 600, 601-02 (2d Cir.) (order directing school board to submit desegregation plan not appealable), *aff'd,* 294 F.2d 36 (2d Cir.), *cert. denied,* 368 U.S. 940 (1961). Although courts have also found some orders requiring submission of remedial plans to be "final" judgments, the parameters of "finality" in the context of remedial plans are not well-settled in the First Circuit. As the Supreme Court has noted, "final" in the context of appealability is sometimes an "abstruse and infinitely uncertain term." *Will v. United States,* 389 U.S. 90, 108 (1967) (Black, J., concurring). Therefore, in the interest of promoting judicial economy and providing the appellate court with certain jurisdiction, this Court will modify its Order of March 29, 1995.

Only that portion of the Opinion and Order requiring Brown University to submit, within 120 days, a comprehensive plan for complying with Title IX, and staying this requirement, is modified. It is hereby ordered that defendants submit to this Court for approval a compre-

hensive plan for compliance with Title IX within 60 days, and this Order is effective immediately. I recognize that this modification places Brown in a different position that I initially sought to avoid in the original Order. However, after defendants submit a plan that is approved by this Court, they may protect their interests by applying to this Court or the Court of Appeals for a stay of execution of the plan pursuant to Fed.R.App.P. 8(a) and Fed. R.Civ.P. 62. *See, e.g., Isla Petroleum Corp. v. Dep't of Consumer Affairs,* 640 F.Supp. 474, 517-19 (D.P.R. 1986), *rev'd on other grounds,* 485 U.S. 495 (1988).

SO ORDERED:

/s/ Raymond J. Pettine
RAYMOND J. PETTINE
Senior U.S. District Judge

May 3, 1995

Entered as an Order of this Court May 4, 1995.

/s/ Celeste-Anne Patnaude
Deputy Clerk

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

C.A. No. 92-0197 P

AMY COHEN, *et. al*, each Individually and on Behalf of all Others Similarly Situated,
Plaintiffs,

v.

BROWN UNIVERSITY, VARTAN GREGORIAN, and DAVID ROACH,
Defendants.

ORDER

In *Cohen v. Brown University*, 879 F.Supp. 185 (D.R.I. 1995) this Court found that Brown's varsity athletic program violates Title IX of the Education Amendments of 1972, 20 U.S.C. §§ 1681-1688 (1988) ("Title IX"). I subsequently ordered the defendants to "submit to this Court for approval a comprehensive plan for compliance with Title IX. . . ." Modified Order, May 4, 1995 at 4. Presently before this Court is the defendants' proposed compliance plan. Having found that the plan is not comprehensive in scope and that it fails to comply with this Court's Order, I now reject the defendants' plan and order specific relief in its place.

I.

The requirements of Title IX are set forth in exhaustive detail in *Cohen*, 879 F.Supp. 185.[1] In the interest of pro-

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[1] The Opinion and Order of March 29, 1995 addressed a number of points raised by defendants in their Memorandum in Response to Plaintiffs' Objection to Compliance Plan. I am dismayed to find arguments presented as if they were novel and heretofore not

viding a clear record, I will briefly summarize the findings of fact and conclusions of law presented in that opinion.

Title IX is given specific meaning by the Department of Education's Office of Civil Rights' regulations and Policy Interpretation. The trial and subsequent Opinion and Order of March 29, 1995 focused on whether Brown's athletic program met the requirements of the Policy Interpretation's three prong test.

Brown University's two-tiered varsity athletic program [2] (i.e., university-funded and donor-funded varsities) failed to satisfy any prong of the Policy Interpretation's three prong test. Prong One: This Court concluded that "intercollegiate level participation opportunities for male and female students" are not "provided in numbers substantially proportionate to their respective enrollments" at Brown. *Cohen*, 879 F.Supp. at 200 (citing 44 Fed.Reg. at 71,418). From the NCAA squad lists maintained by Brown, I determined that Brown provides 555 (61.87%) intercollegiate athletic opportunities to men but provides only 342 (38.13%) to women. The student body consists of 2796 (48.86%) men and 2926 (51.14%) women. Because Brown maintains a 13.01% disparity between female participation in intercollegiate athletics and female student enrollment, the gender balance of Brown's varsity program (including both university-funded varsities and donor-funded varsities) does not *substantially mirror* the gender balance of Brown's student body. On the contrary, men enjoy a disproportionate share of the varsity athletic positions afforded to Brown University students. Rather than reiterate the discussion of prong

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considered by the Court when in fact they were explicitly discussed in the Opinion. For example, defendants suggest that if this Court were truly interested in counting "intercollegiate opportunities" as defined by the Office of Civil Rights, it would include at least three women's club teams. However, as I specifically detailed in *Cohen*, 879 F.Supp. at 200 n.29, this position is untenable.

[2] For a discussion of the structure of Brown's intercollegiate program and the differences between university-funded and donor-funded varsities, see *Cohen*, 879 F.Supp. at 189.

one contained in the Opinion and Order of March 29, 1995, I call the reader's attention to *Cohen,* 879 F.Supp. at 199-207, 211.

Prong Two: Defendants failed to demonstrate that Brown has maintained a history and *continuing practice* of intercollegiate program expansion for women, the underrepresented sex. Thus, defendants' intercollegiate athletic program does not satisfy prong two. For a more detailed analysis of this facet of the Policy Interpretation, see *Cohen,* 879 F.Supp. at 207, 211.

Prong Three: Finally, I determined that Brown's current athletic program, which favors its male students, is not justified under Title IX by prong three. *See Cohen,* 879 F.Supp. at 207-209, 211-213. A university can comply with the third prong by "fully and effectively" meeting the athletic interest and ability of the underrepresented sex. As noted in *Cohen,* 879 F.Supp. at 212-13, the potential for athletic development and the level of competition of women's club and donor-funded teams are much less than that of university-funded teams.[3] The weight of

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[3] I recognize that there appears to be a contradiction in counting donor-funded teams as providing "intercollegiate" participation opportunities for the purposes of prong one, while finding that such teams do not satisfy the "full and effective" accommodation standard of prong three. However, because of the distinct purposes served by each prong and the unique character of Brown's two-tiered athletic program, donor-funded teams properly play different roles in prong one and prong three analyses. *See Cohen,* 879 F.Supp. at 212-13.

Brown has chosen to create a bifurcated varsity program, rendering policy interpretation analysis more complicated than in most Title IX "equal opportunity" cases. However:

> Brown's restructured athletic program cannot be used to shield it from liability when in truth and in fact it does not fully and effectively accommodate the women athletes participating on donor-funded teams. It would circumvent the spirit and meaning of the Policy Interpretation if a university could "fully and

the evidence at trial conclusively demonstrated that four established women's teams (donor-funded gymnastics, skiing, fencing and club water polo), presently excluded from university-funded varsity status by Brown, are capable of competing at Brown's highest varsity level. Therefore, Brown has not "fully and effectively accommodated" the underrepresented sex in its intercollegiate program.

To comply with the Opinion and Order of March 29, 1995 and the Modified Order of May 4, 1995, Brown submitted a proposed plan. The defendants' plan, however, is deficient in a number of respects and cannot be accepted by this Court.

II.

Brown states that its plan is designed to provide "substantially proportionate participation opportunities" (prong one) at the university-funded varsity level. Brown proposes to achieve this goal in two phases. In Phase I, defendants propose to use three different methods to reduce the number of men and increase the number of women participating in varsity athletics. Implementation of the plan would reduce the number of men participating in varsity athletics by limiting squad sizes on *men's* teams only.[4] Execution of the defendants' plan purports to increase the number of women participating in varsity athletics by (1) requiring all head coaches to field squads that meet minimum size requirements set by the athletic department, irrespective of the actual needs of the team (this condition will primarily affect the women's programs); and (2) adding new junior varsity teams to the women's basketball, lacrosse, soccer, and tennis programs.

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effectively" accommodate the underrepresented sex by creating a second-class varsity status.

Cohen, 879 F.Supp. at 213.

[4] Brown intends to enforce this policy by having the athletic director strike names from a coach's roster if team size exceeds the maximum limit set forth in the compliance plan.

In the event that the Court finds this part of the plan (Phase I) insufficient to achieve substantial proportionality under prong one, defendants additionally propose, in Phase II, to eliminate men's teams in order to reach substantial proportionality under prong one.

Defendants' Phase I is fatally flawed in two respects. First, it purports to achieve compliance with prong one (substantial proportionality), but in doing so it disregards donor-funded varsity teams. Because 76 men participated on donor-funded varsities while only 30 women participated on donor-funded varsities, men constitute an even greater percentage of the donor-funded athletes (71.7%) than they do of the university-funded athletes (60.56%). Thus, simply by ignoring all donor-funded varsity programs, defendants improve their total female varsity participation numbers from 38.13% (when both tiers are included) to 39.44% (when only university-funded varsities are included).

The defendants' plan thus disregards the Opinion and Order, which manifestly held that the donor-funded varsity teams, as established at Brown, do qualify under the Policy Interpretation's definition of "intercollegiate competition" even though they are maintained at inferior levels of support and competition. The plan presented by defendants must be rejected; any genuine plan for compliance would, at the very least, address participation in the entire intercollegiate program—including both varsity tiers.

Second, and more significantly, the proposed plan artificially boosts women's *varsity* numbers by adding *junior varsity* positions on four women's teams. Positions on district junior varsity squads do not qualify as "intercollegiate competition" opportunities under the Policy Interpretation and should not be included in defendants' plan. As noted in *Cohen*, 879 F.Supp. at 200, "intercollegiate" teams are those that "regularly participate in varsity competition." *See* 44 Fed.Reg. at 71,413 n.1. Junior varsity

squads, by definition, do not meet this criterion. Counting new women's junior varsity positions as equivalent to men's full varsity positions flagrantly violates the spirit and letter of Title IX; in no sense is an institution providing equal opportunity if it affords varsity positions to men but junior varsity positions to women.[5] Attempting to pad the women's varsity participation numbers in this way indicates a regrettable lack of interest in providing an intercollegiate athletic experience for its female students that is equivalent to that provided to its male students.[6]

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[5] Although Brown has attempted to characterize its proposed creation of junior varsity positions as additions to the varsity teams, this Court cannot accept such representations. These new positions would, in some cases, double the teams' effective maximums (as revealed in coaches' sworn testimony at trial). Defendants argue that this Court must count new women's junior varsity positions as varsity opportunities because the Opinion and Order of March 29, 1995 counted even varsity "benchwarmers" as varsity participants. I remind the defendants that the Opinion deferred to the judgment of the students *and coaches* that all members of varsity teams, as demonstrated by their very membership, enjoyed worthwhile varsity experiences. Now, however, the University seeks to override the judgment of the coaches and students as to how many worthwhile varsity experiences may be enjoyed on a team without impairing the team's level of competition. The University cannot achieve compliance merely by flooding women's teams with members in excess of the coaches' limits, maintaining that the capacity on women's teams is whatever the University says it is.

[6] Defendants suggest that if this Court rejects the new junior varsity positions because they unrealistically inflate the women's varsity rosters, then the Court must also reduce its calculation of men's varsity participation numbers. Defendants ask:

> Where better to apply that politically charged appellation ["massively overstocked"] than the bloated roster of men's track, which has been as high as 75? Of Ice Hockey, which has carried as many as 50 players? Or, most "massively overstocked" of all, Football, which has carried as many as 147 players?

Mem. in Resp. to Pls.' Obj. to Compliance Plan at 10-11. Defendants conveniently overlook the fact that the size of these men's teams was set by the coaches' personal preferences—no more

Contrary to Brown's representations, *see* Mem. in Resp. to Pls.' Obj. to Compliance Plan at 7-9, men's separate junior varsity teams were not counted in *Cohen*, 879 F.Supp. 214 as affording intercollegiate varsity opportunities to men. Brown's statements to the contrary are completely unfounded.[7]

These first two elements of the plan, which disregard the explicit language of the March 29, 1995 Opinion, are more than sufficient to suggest that defendants have not made a good faith effort to comply with this Court's mandate. However, I also note that Brown's proposal to cut members of men's teams and require coaches to maintain more members on certain (mostly women's) teams could, depending on details not included in the "comprehensive" plan for compliance, also render the proposal invalid. An institution does not provide equal opportunity if it caps its men's teams after they are well-stocked with

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players were retained on these teams than were welcomed by the coaches. Furthermore, defendants' position that these teams were unnecessarily and unrealistically large directly contradicts the very arguments they presented at trial. For example, Brown vociferously defended the size of the football team, justifying its numbers by pointing to the special nature of the sport: the high rate of injury, the substantial number of specialized positions, and the need to scrimmage in practice. To now suggest that these large numbers render the team "massively overstocked" is disingenuous. *See also supra* note 5.

[7] Brown argues that if this Court refuses to count women's junior varsity positions as intercollegiate participation opportunities, then, to be consistent the Court must eliminate a number of players from the varsity football total to account for 'junior varsity' members. This statement is gravely misleading because the football team at Brown is a single, integrated varsity team. Although there are a group of players that are referred to as "junior varsity," these players function on a varsity level. For example, the football team is coached as a single unit and the "junior varsity" members are essential to the functioning of the varsity team. In the words of the former head football coach, "We were all one team." Trial Tr. 12/7/94 at 109.

high-caliber recruits while requiring women's teams to boost numbers by accepting walk-ons. A university does not treat its men's and women's teams equally if it allows the coaches of men's teams to set their own maximum capacity limits but overrides the judgment of coaches of women's teams on the same matter.[8]

Finally, as I have already explained in *Cohen*, 879 F. Supp. at 210, I cannot agree with Brown that Title IX imposes a quota system,[9] as that team has traditionally been understood. As *Cohen*, 879 F.Supp. at 210 detailed in language that Brown insists upon disregarding, the Title IX redmedial scheme is fundamentally different from traditional affirmative action programs. Quotas, as commonly understood, require that established positions, which would otherwise have no official gender or racial requirements, be filled with members of a disadvantaged group, even if such candidates are believed to be less qualified than majority group applicants. Title IX, in contrast, requires institutions to establish proportionate numbers of athletic opportunities for each gender where the institution chooses to field *separate* teams for each gender, to the extent that there is the interest *and ability* to field

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[8] Brown's plan to require a minimum number of female participants, regardless of interest and ability, on existing varsity teams more nearly enacts quotas and preferential treatment than do the measures that defendants so vigorously resist. Creating teams, in which there is unsatisfied interest and ability, that will provide a more equal number of positions for men and women, and allowing *all* coaches to determine the ideal size of such teams imposes no advantages or disadvantages on either gender. However, for the athletic department to interfere, in a gender-specific way, with the coaches' decisions imposes unfair advantages and disadvantages.

[9] Thus I give no credence to defendants' statement that "The Court's analysis, based upon [the Policy Interpretation] is cast in considerable doubt as a model for an ongoing remedy in this case by [a recent memorandum of President Clinton] which, *inter alia*, requires elimination of any programs which create a quota, create preferences for unqualified individuals or create reverse discrimination." *See* Mem. in Resp. to Pls.' Obj. to Compliance Plan at 1.

an equal number of athletic positions. To field substantially proportionate numbers of athletic positions for each gender, where this is possible, can hardly be said to impose advantages or disadvantages on one gender or the other. Rather, the statute *eradicates* advantages and disadvantages imposed on the basis of gender.

Both plaintiffs and defendants are correct: the litigation in this case has dragged on long enough. It is my understanding from the text of Brown's proposed plan that the institution has three primary goals in complying with this Court's order. The University wants to save as many men's positions as possible, invest no additional money in its intercollegiate athletic program, and proceed to the Court of Appeals without further delay. *See* Mem. in Resp. to Pls.' Obj. to Compliance Plan at 2, 4. Defendants state in the plan that their Phase II (elimination of men's teams) exists as a supplement to Phase I, in the event that Phase I is found to be insufficient to achieve compliance. However, given that this Court has found Phase I to be wholly inadequate, implementation of Phase II at this juncture would result in massive demotion of men's teams. It is clear that this outcome would defeat the University's goals. While the specter of severe cuts in the men's program lends a dramatic quality to Brown's position on Title IX, drastic reduction in the men's program is totally unnecessary.

Brown would have been in compliance with this Court's Opinion and Order if its plan had met the requirements of any of the three prongs delineated above. Unfortunately, Brown's proposed plan to comply with prong one fails to meet the criteria of prong one. In the interest of avoiding "protracted litigation over a compliance plan," Mem. in Resp. to Pls.' Obj. to Compliance Plan at 13, and expediting the appeal process, I will order specific relief consistent with Brown's stated objectives.

I have concluded that Brown's stated objectives will be best served if I design a remedy to meet the requirements

of prong three rather than prong one. In order to bring Brown into compliance with prong one under defendants' Phase II, I would have to order Brown to cut enough men's teams to eradicate approximately 213 men's varsity positions. This extreme action is entirely unnecessary. The easy answer lies in ordering Brown to comply with prong three by upgrading the women's gymnastics, fencing, skiing, and water polo teams to university-funded varsity status. In this way, Brown could easily achieve prong three's standard of "full and effective accommodation of the underrepresented sex." This remedy would entail upgrading the positions of approximately 40 women. In order to finance the 40 additional women's positions, Brown certainly will not have to eliminate as many as the 213 men's positions that would be cut under Brown's Phase II proposal. Thus, Brown will fully comply with Title IX by meeting the standards of prong three, without approaching satisfaction of the standards of prong one.

It is clearly in the best interest of both the male and the female athletes to have an increase in women's opportunities and a small decrease in men's opportunities, if necessary, rather than, as under Brown's plan, *no* increase in women's opportunities and a *large* decrease in men's opportunities. Expanding women's athletic opportunities in areas where there is proven ability and interest is the very purpose of Title IX and the simplest, least disruptive, route to Title IX compliance at Brown.

III.

Defendants' proposed compliance plan is hereby rejected. Brown University is ordered to elevate and maintain women's gymnastics, women's water polo, women's skiing, and women's fencing to university-funded varsity status. This part of the order is stayed pending appeal. In the interim, the preliminary injunction, enjoining Brown from eliminating or reducing in status any existing women's varsity team, more fully outlined in my Opinion and

Order of December 22, 1992, *Cohen v. Brown Univ.*, 809 F.Supp. 978, 1001 (D.R.I. 1992), will remain in full force and effect.

So ORDERED:

/s/ Raymond J. Pettine
RAYMOND J. PETTINE
Senior U.S. District Judge

August 16, 1995

Entered as an Order of this Court August 17, 1995.

/s/ Celeste-Anne Patnaude
Deputy Clerk

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

C.A. No. 92-0197 P

AMY COHEN, *et al.*,

v. *Plaintiffs*,

BROWN UNIVERSITY, VARTAN GREGORIAN, and DAVID ROACH,

Defendants.

JUDGMENT

Folowing the issuance of the Order of August 17, 1995, this Court received a proposed judgment and order from the plaintiffs. The defendants objected. After consideration, this Court issues the following judgment:

It is ordered and adjudged: Judgment is hereby entered for the plaintiffs in accordance with the Opinion and Order entered March 29, 1995 and as modified by the Order of August 17, 1995. The Order of August 17, 1995 states:

> Brown University is ordered to elevate and maintain women's gymnastics, women's water polo, women's skiing, and women's fencing to university-funded status. This part of the Order is stayed pending appeal. In the interim, the preliminary injunction, enjoining Brown from eliminating or reducing in status any existing women's varsity team, more fully outlined in my Opinion and Order of December 22, 1992, *Cohen v. Brown Univ.*, 809 F.Supp. 978, 1001 (D.R.I. 1992), will remain in full force and effect.

That order is now final.

SO ORDERED:

/s/ Raymond J. Pettine
RAYMOND J. PETTINE
Senior U.S. District Judge

August 31, 1995

Entered as an Order of this Court Sept. 1, 1995.

/s/ Celeste-Anne Patnaude
Deputy Clerk

UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 92-2483

AMY COHEN, *et al.*,
Plaintiffs, Appellees,

v.

BROWN UNIVERSITY, *et al.*,
Defendants, Appellants.

Appeal from the United States District Court
for the District of Rhode Island
[Hon. Raymond J. Pettine, *Senior U.S. District Judge*]

Before
Selya, Cyr and Stahl, *Circuit Judges.*

SELYA, *Circuit Judge.* In this watershed case, defendants-appellants Brown University, Vartan Gregorian, and David Roach appeal from the district court's issuance of a preliminary injunction ordering Brown to reinstate its women's gymnastics and volleyball programs to full intercollegiate varsity status pending the resolution of a Title IX claim.[1] *See Cohen* v. *Brown Univ.*, 809

[1] The individual defendants are, respectively, the President and Athletic Director of the University. Each is sued in his official

F. Supp. 978 (D.R.I. 1992). After mapping Title IX's rugged legal terrain and cutting a passable swath through the factual thicket that overspreads the parties' arguments, we affirm.

I. BROWN ATHLETICS: AN OVERVIEW

College athletics, particularly in the realm of football and basketball, has traditionally occupied a prominent role in American sports and American society. For college students, athletics offers an opportunity to exacuate leadership skills, learn teamwork, build self-confidence, and perfect self-discipline. In addition, for many student-athletes, physical skills are a passport to college admissions and scholarships, allowing them to attend otherwise inaccessible schools. These opportunities, and the lessons learned on the playing fields, are invaluable in attaining career and life successes in and out of professional sports.

The highway of opportunity runs in both directions. Not only student-athletes, but universities, too, benefit from the magic of intercollegiate sports. Successful teams generate television revenues and gate receipts which often fund significant percentages of a university's overall athletic program, offering students the opportuity to partake of sports that are not financially self-sustaining. Even those institutions whose teams do not fill the grandstands of cavernous stadiums or attract national television exposure benefit from increased student and almuni cohesion and the support it engenders. Thus, universities nurture the legends, great or small, inhering in their athletic past, polishing the hardware that adorns field-house trophy cases and reliving heroic exploits in the pages of alumni magazines.

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capacity. For ease in reference, we discuss this appeal as if Brown was the sole defendant and appellant. Nonetheless, our opinion applies equally to all parties.

In these terms, Brown will never be confused with Notre Dame or the more muscular members of the Big Ten. Although its football team did play in the 1916 Rose Bowl and its men's basketball team won the Ivy League championship as recently as 1986, Brown's athletic program has only occasionally achieved national prominence or, for that matter, enjoyed sustained success.[2] Moreover, at Brown, as at most schools, women are a relatively inconspicuous part of the storied athletic past. Historically, colleges limited athletics to the male sphere, leaving those few women's teams that sprouted to scrounge for resources.

The absence of women's athletics at Brown was, until 1970, an ineluctable consequence of the absence of women; Brown sponsored a women's college—Pembroke—but did not itself admit women. In 1971, Brown subsumed Pembroke. Brown promptly upgraded Pembroke's rather primitive athletic offerings so that by 1977 there were fourteen women's varsity teams. In subsequent years, Brown added only one distaff team: winter track. Hence, in the 1991-92 academic year, Brown fielded fifteen women's teams—one fewer than the number of men's varsity teams.

II. THE PLAINTIFF CLASS

In the spring of 1991, Brown announced that it, like many other schools, was in a financial bind, and that, as a belt-tightening measure, it planned to drop four sports from its intercollegiate varsity athletic roster: women's volleyball and gymnastics, men's golf and water polo. The University permitted the teams to continue playing as "intercollegiate clubs," a status that allowed them to compete against varsity teams from other colleges,[3] but cut off

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[2] We note, not without a certain irony, that the now-demoted women's volleyball and gymnastics teams won Ivy League championships in 1988 and 1990, respectively.

[3] As a practical matter, many schools with varsity squads are reluctant to compete against club teams. This case aptly illustrates

financial subsidies and support services routinely available to varsity teams (*e.g.*, salaried coaches, access to prime facilities, preferred practice time, medical trainers, clerical assistance, office support, admission preferences, and the like). Brown estimated that eliminating these four varsity teams would save $77,813 per annum, broken down as follows: women's volleyball, $37,127; women's gymnastics, $24,901; men's water polo, $9,250; men's golf, $6,545.

Before the cuts, Brown athletics offered an aggregate of 328 varsity slots for female athletes and 566 varsity slots for male atheltes. Thus, women had 36.7% of the athletic opportunities and men 63.3%. Abolishing the four varsity teams took substantially more dollars from women's athletic budget than from the men's budget, but did not materially affect the athletic opportunity ratios; women retained 36.6% of the opportunities and men 63.4%. At that time (and for a number of years prior thereto), Brown's student body comprised approximately 52% men and 48% women.

Folowing Brown's announcement of the cutbacks, disappointed members of the women's volleyball and gymnastics teams brought suit. They proceeded on an implied cause of action under Title IX, 20 U.S.C. §§ 1681-1688 (1988). *See Franklin* v. *Gwinnett County Pub. Sch.*, 112 S. Ct. 1028, 1032 (1992) (recognizing implied private right of action under Title IX); *Cannon* v. *University of Chicago*, 441 U.S. 677, 717 (1979) (same); *see also Cannon*, 441 U.S. at 687 n.8 (holding that exhaustion of administrative remedies is not a prerequisite to a Title IX suit). The plaintiffs charged that Brown's athletic arrangements violated Title IX's ban on gender-based discrimination, a violation that was allegedly exacerbated by Brown's decision to devalue the two wom-

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the point. As soon as Brown demoted its women's volleyball team from varsity to club status, Northeastern University and West Point declined to include Brown on future volleyball schedules. *See Cohen*, 809 F. Supp. at 993.

en's programs without first making sufficient reductions in men's activities or, in the alternative, adding other women's teams to compensate for the loss.

On plaintiffs' motion, the district court certified a class of "all present and future Brown University women students and potential students who participate, seek to participate, and/or are deterred from participating in intercollegiate athletics funded by Brown." And, after hearing fourteen days of testimony from twenty witnesses, the judge granted a preliminary injunction requiring Brown to reinstate the two men's teams pending the outcome of a full trial on the merits. *See Cohen*, 809 F. Supp. at 1001. We stayed execution of the order and expedited Brown's appeal.

III. TITLE IX AND COLLEGIATE ATHLETICS

Title IX prohibits gender-based discrimination by educational institutions receiving federal financial support—in practice, the vast majority of all accredited colleges and universities. The statute sketches wide policy lines, leaving the details to regulating agencies. Since this appeal demands that we invade *terra incognita*,[4] we carefully recount the developments leading to the present version of Title IX and then examine the pertinent statutory and regulatory language.

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[4] Although there has been a spate of sports-related Title IX suits during the last two years, *see* Andrew Blum, *Athletics in the Courts*, Nat'l L.J., Apr. 5, 1993, at 1, few have been fully litigated. *See, e.g.*, Carol Herwig, *Massachusetts Reinstates Women's Sports*, USA Today, Oct. 22, 1992, at 14C (announcing agreement to reinstate three women's teams at the University of Massachusetts and reporting the school's intention to become "the first unversity in the country to come into full compliance with Title IX"). While the case we decide today is apparently the first of these to reach the courts of appeals, others are pending. *See, e.g., Roberts* v. *Colorado State Univ.*, No. 93-1052 (10th Cir. 1993) (not yet argued); *Cook* v. *Colgate Univ.*, No. 92-9175 (2d Cir. 1993) (argued Feb. 26, 1993).

A. *Scope of Title IX.*

At its inception, the broad proscriptive language of Title IX caused considerable consternation in the academic world. The academy's anxiety chiefly centered around identifying which individual programs, particularly in terms of athletics, might come within the scope of the discrimination provision, and, relatedly, how the government would determine compliance. The gridiron fueled these concerns: for many schools, the men's football budget far exceeded that of any other sport, and men's athletics as a whole received the lion's share of dedicated resources—a share that, typically, was vastly disproportionate to the percentage of men in the student body.

Part of the confusion about the scope of Title IX's coverage and the acceptable avenues of compliance arose from the absence of secondary legislative materials. Congress included no committee report with the final bill and there were apparently only two mentions of intercollegiate athletics during the congressional debate. *See* 118 Cong. Rec. 5,807 (1972) (statement of Sen. Bayh on privacy in athletic facilities); 117 Cong. Rec. 30,407 (1971) (statement of Sen. Bayh noting that proposed Title IX will not require gender-blended football teams). Nevertheless, under congressional direction to implement Title IX, the Secretary of Health, Education and Welfare (HEW) promulgated regulations in 1975 which included specific provisions for college athletics. Four years later, HEW's Office of Civil Rights (OCR) added another layer of regulatory exegesis when, after notice and comment, it published a "Policy Interpretation" that offered a more detailed measure of equal athletic opportunity.

In 1984, the Supreme Court radically altered the contemporary reading of Title IX. The Court held that Title IX was "program-specific," so that its tenets applied only to the program(s) which actually received federal funds and not to the rest of the university. *Grove City College* v. *Bell*, 465 U.S. 555, 574 (1984). Because few athletic

departments are direct receipients of federal funds—most federal money for universities is channelled through financial aid offices or invested directly in research grants —*Grove City* cabined Title IX and placed virtually all collegiate athletic programs beyond its reach.[5]

In response to *Grove City*, Congress scrapped the program-specific approach and reinstated an institution-wide application of Title IX by passing the Civil Rights Restoration Act of 1987, 20 U.S.C. § 1687 (1988). The Restoration Act required that if any arm of an educational institution received federal funds, the institution as a whole must comply with Title IX's provisions. *See id.; see* also S. Rep. No. 64, 100th Cong., 2d Sess. 4 (1988), *reprinted in* 1988 U.S.C.C.A.N. 3, 6 (explaining that Congress wanted to prohibit discrimination throughout an institution if the institution received any federal funds). Although the Restoration Act does not specifically mention sports, the record of the floor debate leaves little doubt that the enactment was aimed, in part, at creating a more level playing field for female athletes. *See, e.g.*, 130 Cong. Rec. S12,642 (daily ed. Oct. 2, 1984) (statement of Sen. Byrd decrying past discrimination against female athletes); 130 Cong. Rec. S11,253 (daily ed. Sept. 17, 1984) (statement of Sen. Hatch regarding importance of Title IX to ensuring development of women athletes); 130 Cong. Rec. S2,267 (daily ed. Mar. 2, 1984) (statement of Sen. Riegle noting extensive evidence of sex discrimination in education and athletics).

The appellants do not challenge the district court's finding that, under existing law, Brown's athletic department is subject to Title IX. Accordingly, we devote the remainder of Part III to deterrating the meaning of Title IX, looking first at the statute and then at the regulations.

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[5] Following the Court's decision in *Grove City*, the United States Department of Education (which by then had been spun off from HEW, *see infra* Part III(C)) dropped or curtailed seventy-nine ongoing Title IX cases. *See Statements on Civil Rights Restoration Act*, Daily Lab. Rep. (BNA) No. 53, at D1 (Mar. 20, 1981).

B. *Statutory Framework.*

Title IX, like the Restoration Act, does not explicitly treat college athletics.[6] Rather, the statute's heart is a broad prohibition of gender-based discrimination in all programmatic aspects of educational institutions:

> No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance . . . .

20 U.S.C. § 1681(a) (1988). After listing a number of exempt organizations, section 1681 makes clear that, while Title IX prohibits discrimination, it does not mandate strict numerical equality between the gender balance of a college's athletic program and the gender balance of its student body. Thus, section 1681(a) shall not

> be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist with respect to the total number or percentage of persons of that sex participating in or receiving the benefits of any federally supported program or activity, in comparison with the total number or percentage of persons of that sex in any community, State, section, or other area: *Provided,* That this subsection shall not be construed to prevent the consideration in any hearing or proceeding under this chapter of statistical evidence tending to show that such an imbalance exists with respect to the participation in, or receipt of the benefits of, any such program or activity by the members of one sex.

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[6] This lacuna apparently results from a political compromise. After the Conference Committee deleted an amendment to Title IX that would have have exempted "revenue-producing" athletics, Congress asked the Secretary of HEW to provide regulations specifically governing athletics. *See* 44 Fed. Reg. 71,413 (1979).

20 U.S.C. § 1681(b) (1988). Put another way, a court assessing Title IX compliance may not find a violation *solely* because there is a disparity between the gender composition of an educational institution's student constituency, on the one hand, and its athletic programs, on the other hand.

That is not to say, however, that evidence of such a disparity is irrelevant. Quite the contrary: under the proviso contained in section 1681(b), a Title IX plaintiff in an athletic discrimination suit must accompany statistical evidence of disparate impact with some further evidence of discrimination, such as unmet need amongst the members of the disadvantaged gender.

C. *Regulatory Framework.*

As we mentioned above, the Secretary of HEW, following Congress's instructions, promulgated regulations implementing Title IX in the pre-*Grove City* era. *See* 40 Fed. Reg. 24,128 (1975). Thereafter, in 1979, Congress split HEW into the Department of Health and Human Services (HHS) and the Department of Education (DED). *See* 20 U.S.C. §§ 3401-3510 (1988). In a wonderful example of bureaucratic muddle, the existing Title IX regulations were left within HHS's arsenal while, at the same time, DED replicated them as part of its own regulatory armamentarium. *Compare* 45 C.F.R. § 86 (1992) (HHS regulations) with 34 C.F.R. § 106 (1992) (DED regulations). Both sets of regulations were still in effect when the Restoration Act passed. They are identical, save only for changes in nomenclature reflecting the reorganization of the federal bureaucracy.

In short, like pretenders to the emirate of a deceased sheik, both HHS and DED lay an hereditary claim to this oasis which arises from the regulatory desert, asserting authority to enforce Title IX. Nevertheless, DED is the principle locus of ongoing enforcement activity. *See* 20 U.S.C. § 3441(a)(1) (transferring all education func-

tions of HEW to DED); *see also* 20 U.S.C. § 3441(a)(3) (transferring education-related OCR work to DED). Therefore, like the parties, we treat DED, acting through its OCR, as the administrative agency charged with administering Title IX.[7]

Recognizing the agency's role has important practical and legal consequences. Although DED is not a party to this appeal, we must accord its interpretation of Title IX appreciable deference. *See Chevron U.S.A. Inc.* v. *Natural Resources Defense Council, Inc.*, 467 U.S. 837, 844 (1984); *see also Udall* v. *Tallman*, 380 U.S. 1, 16 (1965) (noting that the Supreme Court "gives great deference to the interpretation given the statute by the officers or agency charged with its administration") The degree of deference is particularly high in Title IX cases because Congress explicitly delegated to the agency the task of prescribing standards for athletic programs under Title IX. *See* Pub. L. No. 93-380, § 844, 88 Stat. 612 (1974); *see also Chevron*, 467 U.S. at 844 (holding that where Congress has explicitly delegated responsibility to any agency, the regulation deserves "controlling weight"); *Batterton* v. *Francis*, 432 U.S. 416, 425 (1977); *Alvarez-Flores* v. *INS*, 909 F.2d 1, 3 (1st Cir. 1990).

It is against this backdrop that we scrutinize the regulations and the Policy Interpretation.

1. *The Regulations.* DED's regulations begin by detailing Title IX's application to college athletics.[8] The

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[7] From this point forward, we use the acronym "OCR" to refer to DED's Office of Civil Rights which took on the education-related portfolio of HEW's Office of Civil Rights in May, 1980. *See* 20 U.S.C. 3441(a)(3).

[8] The regulations provide:

> No person shall, on the basis of sex, be excluded from participation in, be denied the benefits of, be treated differently from another person or otherwise be discriminated against in any interscholastic, intercollegiate, club or intramural athletics offered by a recipient, and no recipient shall provide any such athletics separately on such basis.

regulations also recognize, however, that an athletic program may consist of gender-segregated teams as long as one of two conditions is met: either the sport in which the team competes is a contact sport or the institution offers comparable teams in the sport to both genders. *See* 34 C.F.R. § 106.41(b).

Finally, whether teams are segregated by sex or not, the school must provide gender-blind equality of opportunity to its student body. The regulations offer a non-exclusive compendium of ten factors which OCR will consider in assessing compliance with this mandate:

> (1) Whether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes;
>
> (2) The provision of equipment and supplies;
>
> (3) Scheduling of games and practice time;
>
> (4) Travel and per diem allowance;
>
> (5) Opportunity to receive coaching and academic tutoring;
>
> (6) Assignment and compensation of coaches and tutors;
>
> (7) Provision of locker rooms, practice and competitive facilities;
>
> (8) Provision of medical and training facilities and services;
>
> (9) Provision of housing and dining facilities and services;
>
> (10) Publicity.

34 C.F.R. § 106.41(c) (1992).[9] The district court

[9] The same regulation also stipulates that:

> Unequal aggregate expenditures for members of each sex or unequal expenditures for male and female teams if a recipient

rested its preliminary injunction on the first of these ten areas of inquiry: Brown's failure effectively to accommodate the interests and abilities of female students in the selection and level of sports. *See Cohen*, 809 F. Supp. at 994. Hence, this area is the most critical in terms of evaluating the charges against Brown (although it is also the most difficult to measure).

2. *The Policy Interpretation.* In the three years next following the initial issuance of the regulations, HEW received over one hundred discrimination complaints involving more than fifty schools. In order to encourage self-policing and thereby winnow complaints, HEW proposed a Policy Interpretation. *See* 43 Fed. Reg. 58,070 (1978). It then promulgated the Policy Interpretation in final form, *see* 44 Fed. Reg. 71,413 (1979), a matter of months before the effective date of the statute through which Congress, emulating King Solomon, split HEW. The parties are in agreement that, at DED's birth, it clutched the Policy Interpretation, and, as a practical matter, that appears to be the case.[10] *See, e.g.*, DED, *Title IX Athletics Investigator's Manual* 1, 2 (1990) (Manual); *see also* Complaint Letter from Regional Civil Rights Director, DED, to Dr. Martin Massengale, Chancellor, Univ. of Nebraska (July 10, 1989) (noting that DED "ha[s] followed the directions provided in the Policy Interpretation"); Complaint Letter from Regional Civil Rights Director, DED, to Dr. Charles A. Walker, Chan-

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> operates or sponsors separate teams will not constitute noncompliance with this section, but [DED] may consider the failure to provide necessary funds for teams for one sex in assessing equality of opportunity for members of each sex.

34 C.F.R. § 106.41(c) (1992).

[10] Congress clearly assigned HEW's regulatory duties in education to the nascent DED. *See* 20 U.S.C. § 3441. Moreover, in taking up its mantle, DED adopted exactly the regulation which the Policy Interpretation purported to interpret—sending an unmistakably clear signal of the agency's satisfaction with the Policy Interpretation.

cellor, Univ. of Arkansas (Sept. 1, 1989) (same). Although we can find no record that DED formally adopted the Policy Interpretation, we see no point to splitting the hair, particularly where the parties have not asked us to do so. Because this document is a considered interpretation of the regulation, we cede it substantial deference. *See Martin* v. *OSHRC*, 111 S. Ct. 1171, 1175-76 (1991); *Gardebring* v. *Jenkins*, 485 U.S. 415, 430 (1988).

In line with the Supreme Court's direction that, "if we are to give [Title IX] the scope that its origins dictate, we must accord it a sweep as broad as its language," *North Haven Bd. of Educ.* v. *Bell*, 456 U.S. 512, 521 (1982) (quoting *United States* v. *Price*, 383 U.S. 787, 801 (1966)) (collecting cases) (brackets in original), the Policy Interpretation limns three major areas of regulatory compliance: [11] "Athletic Financial Assistance (Scholarships)," *see* 34 C.F.R. § 106.37(c); "Equivalence in Other Athletic Benefits and Opportunities," *see* 34 C.F.R. § 106.41(c)(2)-(10); and "Effective Accommodation of Student Interests and Abilities," *see* 34 C.F.R. § 106.41 (c)(1). The court below, *see Cohen*, 809 F. Supp. at 989, and a number of other district courts, *see, e.g.*, *Roberts* v. *Colorado State Univ.*, —— F. Supp. ——, —— (D. Colo. 1993) [No. 92-Z-1310, slip op. at 3]; *Favia* v. *Indiana Univ. of Pa.*, No. 92-2045, 1992 WL 436239, at *7 (W.D. Pa. Feb. 4, 1993), have adopted this formulation and ruled that a university violates Title IX if it ineffectively accommodates student interests and abilities regardless of its performance in other Title IX areas.

Equal opportunity to participate lies at the core of Title IX's purpose. Because the third compliance area delineates this heartland, we agree with the district courts

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[11] The Manual divides Title IX coverage into the same three areas and notes that "an investigation may be limited to less than all three of these major areas." Manual at 7.

that have so ruled and hold that, with regard to the effective accommodation of students' interests and abilities, an institution can violate Title IX even if it meets the "financial assistance" and "athletic equivalence" standards. In other words, an institution that offers women a smaller number of athletic opportunities than the statute requires may not rectify that violation simply by lavishing more resources on those women or achieving equivalence in other respects.[12]

3. *Measuring Effective Accommodation.* The parties agree that the third compliance area is the field on which this appeal must be fought. In surveying the dimensions of this battleground, that is, whether an athletic program effectively accommodates students' interests and abilities, the Policy Interpretation maps a Trinitarian model under which the university must meet at least one of three benchmarks:

> (1) Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments; or
>
> (2) Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex; or
>
> (3) Where the members of one sex are underrepresented among intercollegiate athletes, and the

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[12] In any event, both the financial assistance and athletic equivalence standards are inapposite for present purposes. As to the former, Brown does not confer athletic scholarships and the plaintiffs do not allege that Brown has discriminated by gender in distributing other financial aid. As to the latter, the district court made only preliminary findings, *see Cohen*, 809 F. Supp. at 994-97, on the explicit understanding that it would revisit compliance *vel non* with the athletic equivalence standard at trial. *Id.* at 997.

> institution cannot show a continuing practic of program expansion such as that cited above, whether it can be demonstrated that the interests and abilities of the members of that sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. at 71,418. The first benchmark furnishes a safe harbor for those institutions that have distributed athletic opportunities in numbers "substantially proportionate" to the gender composition of their student bodies. Thus, a university which does not wish to engage in extensive compliance analysis may stay on the sunny side of Title IX simply by maintaining gender parity between its student body and its athletic lineup.

The second and third parts of the accommodation test recognize that there are circumstances under which, as a practical matter, something short of this proportionality is a satisfactory proxy for gender balance. For example, so long as a university is continually expanding athletic opportunities in an ongoing effort to meet the needs of the underrepresented gender, and persists in this approach as interest and ability levels in its student body and secondary feeder schools rise, benchmark two is satisfied and Title IX does not require that the university leap to complete gender parity in a single bound. Or, if a school has a student body in which one sex is demonstrably less interested in athletics, Title IX does not require that the school create teams for, or rain money upon, otherwise disinterested students; rather, the third benchmark is satisfied if the underrepresented sex's discernible interests are fully and effectively accommodated.[18]

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[18] OCR also lists a series of illustrative justifications for the disparate treatment of men's and women's athletic teams, including (1) sports that require more resources because of the nature of the game (*e.g.*, contact sports generally require more equipment), (2) special circumstances, such as an influx of first-year players, that may require an extraordinary infusion of resources, (3) special operational expenses (*e.g.*, crowd control at a basketball

It seems unlikely, even in this day and age, that the athletic establishments of many coeducational universities reflect the gender balance of their student bodies.[14] Similarly, the recent boom in Title IX suits suggests that, in an era of fiscal austerity, few universities are prone to expand athletic opportunities. It is not surprising, then, that schools more often than not attempt to manage the rigors of Title IX by satisfying the interests and abilities of the underrepresented gender, that is, by meeting the third benchmarks of the accommodation test. Yet, this benchmark sets a high standard: it demands not merely some accommodation, but full and effective accommodation. If there is sufficient interest and ability among members of the statistically underrepresented gender, not slaked by existing programs, an institution necessarily fails this prong of the test.

Although the full-and-effective-accommodation standard is high, it is not absolute. Even when male athletic opportunities outnumber female athletic opportunities, and the university has not met the first benchmark (substantial statistical proportionality) or the second benchmark (continuing program expansion) of the accommodation test, the mere fact that there are some female students interested in a sport does not *ipso facto* require the school to provide a varsity team in order to comply with the third benchmark. Rather, the institution can satisfy the

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tournament), as long as special operational expense needs are met for both genders and (4) affirmative measures to remedy past limitations on athletic opportunities for one gender. 44 Fed. Reg. at 71,415-16.

[14] Success in this regard is, however, attainable. After Washington State University was ordered to increase participation opportunities for women to a level equivalent with the percentage of female undergraduates, *see Blair* v. *Washington State Univ.*, 740 P.2d 1379 (Wash. 1987), the University experienced considerable success in meeting court-ordered goals. *See* Mary Jordan, *Only One School Meets Gender Equity Goal*, Wash. Post. June 21, 1992, at D1.

third benchmark by ensuring participatory opportunities at the intercollegiate level when, and to the extent that, there is "sufficient interest and ability among the members of the excluded sex to sustain a viable team and a reasonable expectation of intercollegiate competition for that team . . . ." 44 Fed. Reg. at 71,418. Staying on top of the problem is not sport for the short-winded: the institution must remain vigilant, "upgrading the competitive opportunities available to the historically disadvantaged sex as warranted by developing abilities among the athletes of that sex," *id.*, until the opportunities for, and levels of, competition are equivalent by gender.[15]

Brown argues that DED's Policy Interpretation, construed as we have just outlined, goes so far afield that it countervails the enabling legislation. Brown suggests that, to the extent students' interests in athletics are disproportionate by gender, colleges should be allowed to meet those interests incompletely as long as the school's response is in direct proportion to the comparative levels of interest. Put bluntly, Brown reads the "full" out of the duty to accommodate "fully and effectively." It argues instead that an institution satisfactorily accommodates female athletes if it allocates athletic opportunities to women *in accordance with the ratio of interested and able women to interested and able men*, regardless of the number of unserved women or the percentage of the student body that they comprise.

Because this is mountainous terrain, an example may serve to clarify the distinction between Brown's proposal

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[15] If in the course of adding and upgrading teams, a university attains gender parity between its athletic program and its student body, it meets the first benchmark of the accommodation test. But, Title IX does not require that a school pour ever-increasing sums into its athletic establishment. If a university prefers to take another route, it can also bring itself into compliance with the first benchmark of the accommodation test by subtraction and downgrading, that is, by reducing opportunities for the overrepresented gender while keeping opportunities stable for the underrepresented gender (or reducing them to a much less extent).

and our understanding of the law. Suppose a university (Oooh U.) has a student body consisting of 1,000 men and 1,000 women, a one to one ratio. If 500 men and 250 women are able and interested athletes, the ratio of interested men to interested women is two to one. Brown takes the position that both the actual gender composition of the student body and whether there is unmet interest among the underrepresented gender are irrelevant; in order to satisfy the third benchmark, Oooh U. must only provide athletic opportunities in line with the two to one interested athlete ratio, say, 100 slots for men and 50 slots for women. Under this view, the interest of 200 women would be unmet—but there would be no Title IX violation.

We think that Brown's perception of the Title IX universe is myopic. The fact that the overrepresented gender is less than fully accommodated will not, in and of itself, excuse a shortfall in the provision of opportunities for the underrepresented gender. Rather, the law requires that, in the absence of continuing program expansion (benchmark two), schools either meet benchmark one by providing athletic opportunities in proportion to the gender composition of the student body (in Oooh U.'s case, a roughly equal number of slots for men and women, as the student body is equally divided), or meet benchmark three by fully accommodating interested athletes among the underrepresented sex (providing, at Oooh U., 250 slots for women).[16]

In the final analysis, Brown's view is wrong on two scores. It is wrong as a matter of law, for DED's Policy Interpretation, which requires full accommodation of the underrepresented gender, draws its essence from the stat-

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[16] Of course, if Oooh U. takes the benchmark three route, it will also have to provide at least the same number of slots for men; but, so long as women remain the underrepresented gender and their interests are fully accommodated, the university can provide as many (or as few) additional slots for men as it sees fit.

ute. Whether Brown's concept might be thought more attractive, or whether we, if writing on a pristine page, would craft the regulation in a manner different than the agency, are not very important considerations. Because the agency's rendition stands upon a plausible, if not inevitable, reading of Title IX, we are obligated to enforce the regulation according to its tenor. *See Chevron*, 467 U.S. at 843 n.11 (holding that a "court need not conclude that the agency construction was the only one it permissibly could have adopted to uphold [it]") (collecting cases); *Massachusetts* v. *Secretary of Agric.*, 984 F.2d 514, 522 (1st Cir. 1993) (similar).

Brown's reading of Title IX is legally flawed for yet another reason. It proceeds from the premise that the agency's third benchmark countervails Title IX. But, this particular imprecation of the third benchmark overlooks the accommodation test's general purposes: to determine whether a student has been "excluded from participation in, [or] denied the benefits of" an athletic program "on the basis of sex . . . ." 20 U.S.C. § 1681(a). While any single element of this tripartite test, in isolation, might not achieve the goal set by the statute, the test as a whole is reasonably constructed to implement the statute. No more is exigible. *See Chemical Mfrs. Ass'n* v. *Natural Resources Defense Council, Inc.*, 470 U.S. 116, 125 (1985).

As it happens, Brown's view is also poor policy for, in the long run, a rule such as Brown advances would likely make it more difficult for colleges to ensure that they have complied with Title IX. Given that the survey of interests and abilities would begin under circumstances where men's athletic teams have a considerable head start, such a rule would almost certainly blunt the exhortation that schools should "take into account the nationally increasing levels of women's interests and abilities" and avoid "disadvantag[ing] members of an underrepresented sex . . . ." 44 Fed. Reg. at 71,417.

Brown's proposal would also aggravate the quantification problems that are inevitably bound up with Title IX. Student plaintiffs, who carry the burden of proof on this issue, as well as universities monitoring self-compliance, would be required to assess the level of interest in both the male and female student populations and determine comparatively how completely the university was serving the interests of each sex. By contrast, as we read the accommodation test's third benchmark, it requires a relatively simple assessment of whether there is unmet need in the underrepresented gender that rises to a level sufficient to warrant a new team or the upgrading of an existing team. We think the simpler reading is far more serviceable.

Furthermore, by moving away from OCR's third benchmark, which focuses on the levels of interest and ability extant in the student body, Brown's theory invites thorny questions as to the appropriate survey population, whether from the university, typical feeder schools, or the regional community. In that way, Brown's proposal would do little more than overcomplicate an already complex equation.

We will not paint the lily. Brown's approach cannot withstand scrutiny on either legal or policy grounds. We conclude that DED's Policy Interpretation means exactly what it says. This plain meaning is a proper, permissible rendition of the statute.

IV. THE CONSTITUTIONAL CHALLENGE

We turn to a series of case-specific issues, starting with Brown's constitutional challenge to the statutory scheme.

A. *Equal Protection.*

Brown asseverates that if the third part of the accommodation test is read as OCR wrote it—to require full

and effective accommodation of the underrepresented gender—the test violates the Fifth Amendment's Equal Protection Clause. We think not.

Brown assumes that full and effective accommodation disadvantages male athletes.[17] While it might well be that more men than women at Brown are currently interested in sports, Brown points to no evidence in the record that men are any more likely to engage in athletics than women, absent socialization and disparate opportunities. In the absence of any proof supporting Brown's claim, and in view of congressional and administrative urging that women, given the opportunity, will naturally participate in athletics in numbers equal to men, we do not find that the regulation, when read in the commonsense manner that its language suggests, *see supra* Part III(C)(3), offends the Fifth Amendment.

What is more, even if we were to assume, for argument's sake, that the regulation creates a gender classification slanted somewhat in favor of women, we would find no constitutional infirmity. It is clear that Congress has broad powers under the Fifth Amendment to remedy past discrimination. *See, e.g., Metro Broadcasting, Inc.* v. *FCC*, 110 S. Ct. 2997, 3009 (1990) (noting that Congress need not make specific findings of discrimination to grant race-conscious relief); *Califano* v. *Webster*, 430 U.S. 313, 317 (1977) (upholding social security wage law that benefitted women in part because its purpose was "the permissible one of redressing our society's longstanding disparate treatment of women"). Despite the little legislative history regarding discrimination in collegiate

[17] In characterizing Title IX as benefitting *only* women, Brown takes a rather isthmian view of the world at large. After all, colleges that have converted from exclusively female enrollment to coeducational enrollment face situations inverse to Brown's. In such a setting, the men's athletic program may well be underdeveloped, or underfunded, or both, while fiscal retrenchment offers

athletics that emerged during the consideration of Title IX, Congress did hold "extensive hearings on higher education" when Title IX was pending, in the course of which "much testimony was heard with respect to discrimination against women in higher education." H.R. Rep. No. 554, 92d Cong., 2d Sess. (1972), *reprinted in* 1972 U.S.C.C.A.N. 2462, 2511. Athletics featured even more prominently in Congress's decision to reverse the *Grove City* rule *See supra* pp. 8-9. Under these circumstances, we find Brown's plaint unbecoming.

B. *Affirmative Action.*

Brown rehashes its equal protection arguments and serves it up as a nominally different dish, arguing that the district court's preliminary injunction constitutes "affirmative action" and violates the Equal Protection Clause because the court lacked a necessary factual predicate to warrant such a step.[18] It is, however, established beyond peradventure that, where no contrary legislative directive appears, the federal judiciary possesses the power to grant *any* appropriate relief on a cause of action appropriately brought pursuant to a federal statute.[19] *See Franklin*, 112 S. Ct. at 1035 (upholding damage remedy for Title

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no reprieve. Under these circumstances, Title IX would protect the athletic interests of men as the underrepresented sex.

[18] The "authority" that Brown cites in support of this proposition, *Regents of Univ. of Cal.* v. *Bakke*, 438 U.S. 265, 307 (1978) (Powell, J. concurring), in fact suggests the propriety of affirmative relief where there are judicial findings of a statutory violation. *See id.*

[19] On this point, Brown cannot win even if its basic theories have merit. If the district court did not engage in the proper factfinding, then its order constitutes an abuse of its discretion. If, on the other hand, Title IX does not provide for equitable relief, the district court will have erred as a matter of law in choosing a remedy outside the statutory margins. In either event, given that the statute itself is compatible with the Equal Protection Clause, Brown cannot prevail *on its constitutional claim.*

IX violation and noting that prospective relief would be inadequate); *see also* Fed. R. Civ. P. 54(c). Hence, this initiative, too, is bootless.

V. BURDEN OF PROOF

In addition to its constitutional challenges, Brown questions the district court's allocation of the burden of proof. It suggests that the analytic model of burden setting and shifting commonly accepted in Title VII and ADEA cases, *see, e.g., Texas Dep't of Community Affairs* v. *Burdine*, 450 U.S. 248, 254 (1981); *McDonnell Douglas Corp.* v. *Green*, 411 U.S. 792, 802-05 (1973); *Mesnick* v. *General Elec. Co.*, 950 F.2d 816, 823 (1st Cir. 1991), *cert. denied*, 112 S. Ct. 2965 (1992), is ripe for importation into the precincts patrolled by Title IX. We reject the suggestion.

In our view, there is no need to search for analogies where, as in the Title IX milieu, the controlling statutes and regulations are clear. To invoke the prophylaxis of Title IX, the statute, 20 U.S.C. § 1681(b), and the regulations, read together, require a Title IX plaintiff to show disparity betwen the gender composition of the institution's student body and its athletic program, thereby proving that there is an underrepresented gender. Then, the plaintiff must show that a second element—unmet interest—is present. In other words, the plaintiff must prove that the underrepresented gender has not been "fully and effectively accommodated by the present program." 44 Fed. Reg. at 71,418. If the plaintiff carries the devoir of persuasion on these two elements, she has proven her case unless the university shows, as an affirmative defense, "a history and continuing practice of program expansion which is demonstrably responsive to the developing interests and abilities of the members" of the underrepresented gender. *Id.*

Over and beyond the express dictates of the applicable statute and regulations, there is another valid reason for

eschewing the Title VII paradigm in most Title IX cases. The scope and purpose of Title IX, which merely conditions government grants to educational institutions, are substantially different from those of Title VII, which sets basic employment standards. *See Franklin* v. *Gwinnett County Pub. Sch.*, 911 F.2d 617, 622 (11th Cir. 1990) (declining to apply Title VII analysis to Title IX litigation), *aff'd*, 112 S. Ct. 1028 (1992). Title IX, while it applies only to schools that receive federal funds, influences almost all aspects of educational management. In contrast, Title VII applies to a much wider range of institutions—virtually all employers—but targets only employment-related matters. Moreover, Title IX is largely aspirational—on the whole, affected institutions choose how to accomplish the statutory goal—whereas Title VII is largely peremptory—covered employers must adhere to statutorily prescribed standards. Thus, the former is a loosely laced buskin, inhospitable to the specialized choreography of presumption and production which the *Burdine/McDonnell Douglas* burden-shifting framework depends.

We conclude, therefore, that excepting perhaps in the employment discrimination context, *see Lipsett* v. *University of P.R.*, 864 F.2d 881, 897 (1st Cir. 1988) (applying Title VII standards in Title IX case, but explicitly limiting the crossover to the employment context), the Title VII burden-of-proof rules do not apply in Title IX cases.[20] Consequently, a Title IX plaintiff makes out an athletic discrimination case by proving numerical disparity, coupled with unmet interest, each by a fair preponderance of the credible evidence, so long as the defendant does not rebut the plaintiff's showing by adducing preponderant history-and-practice evidence.

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[20] *But cf. Cook* v. *Colgate Univ.*, 802 F. Supp. 737, 743 (N.D.N.Y. 1992) (applying Title VII process to Title IX case at urging of parties). *Cook* is presently on appeal to the Second Circuit. *See supra* note 4.

VI. THE PRELIMINARY INJUNCTION

We come at long last to the cynosure of the appeal. This is familiar territory. A district court, faced with a motion for preliminary injunction, must assess the request in four particular ways, evaluating (1) the movant's probability of victory on the merits; (2) the potential for irreparable harm if the injunction is refused; (3) the balance of interests as between the parties, *i.e.*, whether the harm to the movant if the injunction is withheld outweighs the harm to the nonmovant if the injunction is granted; and (4) the public interest. *See Narragansett Indian Tribe* v. *Guilbert*, 934 F.2d 4, 5 (1st Cir. 1991); *Aoude* v. *Mobil Oil Corp.*, 862 F.2d 890, 892 (1st Cir. 1988); *Hypertherm, Inc.* v. *Precision Prods., Inc.*, 832 F.2d 697, 699 & n.2 (1st Cir. 1987). Of course, a district court's conclusions at the preliminary injunction stage are only attempts to predict probable outcomes. Thus, "a party losing the battle on likelihood of success may nonetheless win the war at a succeeding trial . . . ." *Guilbert*, 934 F.2d at 6.

If, in conducting this tamisage, the district court has made no clear error of law or fact, we will overturn its calibration of the four factors only for a manifest abuse of discretion. *See Weaver* v. *Henderson*, 984 F.2d 11, 12 (1st Cir. 1993); *Guilbert*, 934 F.2d at 5.

Here, the district court found that the quadrat of factors favored plaintiffs' position. *See Cohen*, 809 F. Supp. at 985-1001. Brown disagrees with these findings up and down the line, but offers developed argumentation only as to three of the four components. Because Brown does not explain its challenge to the district court's finding that the public interest would be disserved by leaving the two women's teams on the sidelines until the suit is finally resolved, we ignore its *pro forma* protest in that respect. Litigants cannot preserve an issue for appeal simply by raising a pennant and then moving on to another sub-

ject. *See United States* v. *Slade*, 980 F.2d 27, 30-31 & n.3 (1st Cir. 1992) (reiterating that theories not briefed or argued on appeal are waived); *Ryan* v. *Royal Ins. Co.*, 916 F.2d 731, 734 (1st Cir. 1990) (stating that "issues adverted to on appeal in a perfunctory manner, unaccompanied by some developed argumentation, are deemed to have been abandoned"). Accordingly, we limit our review to the three factors briefed and argued.

A. *Likelihood of Success.*

It is old hat, but still very much in fashion, that a movant's likelihood of success at trial is particularly influential in the preliminary injunction calculus. *See Weaver*, 984 F.2d at 12; *Guilbert*, 934 F.2d at 6; *Public Serv. Co.* v. *Town of West Newbury*, 835 F.2d 380, 383 (1st Cir. 1987). In this case, the district court paid meticulous attention to the parties' prospects for success over the long haul. The court plainly visualized both the factual intricacies and legal complexities that characterize Title IX litigation. It held a lengthy adversary hearing and reviewed voluminous written submissions. And at journey's end, it correctly focused on the three-part accommodation test.

The court faultlessly dispatched the first two elements of the test. With respect to the comparison between Brown's athletic agenda and student body, we adopt the lower court's record-rooted finding that the University did not meet—or even closely approach—the "substantial proportionality" threshold because it offered too few varsity opportunities for women. *See Cohen*, 809 F. Supp. at 991. Cognizant, perhaps, that the raw numbers tell an unambiguous tale, Brown does not challenge the inviolability of this finding.

As to the test's second part, the court below found that, although Brown could point to "impressive growth" in its women's athletic program in the 1970s, the school had

not continued filling the gap during the next two decades. *Id.* On this basis, the court concluded that Brown had not met the benchmark. *See id.* Brown asserts that the district court erred by not crediting it sufficiently for its dramatic expansion of women's sports in the 1970s, and we are not entirely unsympathetic to this plea. In the last analysis, however, this was a judgment call and the trial court's judgment was not unreasonable. While a university deserves appreciable applause for supercharging a low-voltage athletic program in one burst rather than powering it up over a longer period, such an energization, once undertaken, does not forever hold the institution harmless. Here, Brown labored for six years to weave a broad array of new activities into the fabric of its palestrian offerings. The district court apparently believed, however, that Brown then rested on its laurels for at least twice that long. The very length of this hiatus suggests something far short of a *continuing* practice of program expansion. And, moreover, a university must design expansion in whatever form and at whatever pace to respond to the flux and reflux of unserved interests. The court below found that Brown failed in this task. *See id.* The issue of responsiveness is fact-intensive and in most instances, as here, its resolution will be within the trier's province. We find no error, therefore, in the district court's resolution of the second aspect of the accommodation test.

The third benchmark presents a more problematic scenario. The district court incorrectly held that Brown bore the burden of showing that it had fully and effectively accommodated the interests and abilities of its women athletes. See id. at 997. Section 1681(b) requires that the plaintiffs, rather than the University, prove a shortfall in the full and effective accommodation of interested female athletes by showing, initially, both numercial disparity and unmet interest. *See supra* Part V. Nonetheless, we do not think that the court's bevue is

fatal. Even when a trial court has misconstrued the law, an appellate tribunal may avoid remanding if the record is sufficiently developed and the facts necessary to shape the proper legal matrix are sufficiently clear. *See, e.g., Societe Des Produits Nestle, S.A.* v. *Casa Helvetia, Inc.*, 982 F.2d 633, 642 (1st Cir. 1992) (coupling district court's factual findings with correct rule of law); *United States* v. *Mora*, 821 F.2d 860, 869 (1st Cir. 1987) (same); *see also Cameron* v. *Tomes*, —— F.2d ——, —— (1st Cir. 1993) [No. 92-1343, slip op. at 14-15] (using findings of fact made in the framework of an unacceptable legal analysis to affirm injunctive relief on a different legal theory).

We find this to be a particularly auspicious setting in which to employ such a device. Although the full and effective accommodation of athletic interests is likely to be a complicated issue where allegedly underrepresented plaintiffs sue to force a university to create a neoteric team or upgrade the status of a club team, *see, e.g., Cook*, 802 F. Supp. at 737, there is unlikely to be any comparably turbid question as to interest and ability where, as here, plaintiffs are seeking merely to forestall the interment of healthy varsity teams.

In this instance, the district court's subsidiary findings of fact render it beyond cavil that the plaintiffs carried their burden of proof. The court found, for example, that there was "great interest and talent" amongst Brown's female undergraduates which, following the cuts, would go unserved. *Cohen*, 809 F. Supp. at 992. Of particular moment, the court also found the interest and talent on campus ample to support women's varsity volleyball and gymnastics teams, *see id.*—a finding that is hardly surprising in view of the teams' robust health before the budget-cutters arrived on the scene. The court proceeded to note that, while club team can be equivalent to intercollegiate teams when they regularly

participate in varsity competition, *see* 44 Fed. Reg. at 71, 413 n.1, the teams that Brown downgraded would not regularly be competing against varsity teams and would suffer a diminution of status in a wide range of other significant respects. *See Cohen*, 809 F. Supp. at 992-93.

The potency of this evidence is an effective antidote to the district court's partial misapplication of the burden of proof. Because the record contains nothing that would allow a trier to find that Brown's athletic agenda reflects the makeup of its student body or that the plaintiff class is so poorly populated as to warrant a reduction in women's sports,[21] the court's error was harmless. In a nutshell, the plaintiffs met their challenge on parts one and three of the accommodation test. This conclusion, in partnership with the district court's supportable finding that Brown did not satisfactorily demonstrate a continuing expansion of its women's athletic lineup, strikes the gold. The court's prediction of plaintiffs' probable success was, therefore, adequately grounded.

B. *Irreparable Injury.*

The next area of inquiry is irreparable harm. The district court heard from a variety of athletic administration experts. The court concluded that, absent judicial intervention, the plaintiffs would suffer irremediable injury in at least three respects: competitive posture, recruitment, and loss of coaching. As club teams, the district court though women's volleyball and gymnastics would increasingly become less competitive, have fewer players, be unable to schedule varsity teams from other schools, become unattractive to potential stars making college choices, and suffer stagnation in the growth of individual talent due to the

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[21] It bears mentioning in this regard that Judge Pettine heard, and apparently credited, evidence indicating that there were other women's club teams sufficiently accomplished and populated to flourish as varsity squads. *Cohen*, 809 F. Supp. at 992.

absence of coaching.[22] *See Cohen,* 809 F. Supp. at 992-93. Certainly, these harms exist to some degree. In highly nuanced cases involving a melange of competing considerations, the aggregate injury, and whether or not it is irreparable, come primarily within the trial court's ken. *See K-Mart Corp.* v. *Oriental Plaza, Inc.,* 875 F.2d 907, 915 (1st Cir. 1989) (acknowledging that "[d]istrict courts have broad discretion to evaluate the irreparability of alleged harm") (citation omitted). So it is here. Although the types of harms the court catalogued might not all rise to the same level of seriousness, the overall record supports, even though it does not compel, the court's assessment of their cumulative severity. Given, especially, the lack of any other concinnous remedy *pendente lite,* we will not second-guess the district court's finding of irreparable injury.

C. *The Balance of Harms.*

Finally, the district court found that the competing equities weighed in favor of granting the injunction. After hearing testimony from Brown's Financial Vice-President and its Associate Athletic Director, the district court concluded that the cost of the interim injunction would be relatively slight; and that, in view of discretionary funds already contained in the Athletic Deuartment budget and a presidential "contingency fund," Brown possessed the wherewithal to defray the costs without undue hardship. *See Cohen,* 809 F. Supp. at 1000-01. By contrast, the court noted the volleyball and gymnastics programs' continuing deterioration in the aftermath of the demotion. *See id.* at 992-93. On balance, the court determined that the financial burden on Brown was tolerable, and, in any

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[22] Brown does not retain coaches for its club teams and few of the teams have the independent financial wherewithal to hire coaches. Here, the district court specifically found that if the gymnastics team was downgraded to club status, it would likely lose its paid coach when her contract expired in June of 1993. *Cohen,* 809 F. Supp. at 992.

event, was overbalanced by the potential harm to the plaintiff class if the court took no action.

Brown contests the results of this balancing on the premise that the district court wrongly discounted the testimony of one of its witnesses and did not adequately consider the possibility that false hopes might be raised by a preliminary injunction. It is, however, axiomatic that a district court, sitting without a jury, may selectively discount testimony as it weighs conflicting viewpoints and adjudicates the facts. *See Bose Corp.* v. *Consumers Union of U.S., Inc.*, 466 U.S. 485, 500 (1984); *Anthony* v. *Sundlun*, 952 F.2d 603, 606 (1st Cir. 1991). This is a trial court's prerogative and, indeed, its duty.

It is similarly fundamental that a preliminary injunction, by its very nature, is sometimes ephemeral. Hence, the risk that some observers might read into a temporary restrainer more than it eventually proves to mean is endemic to the equitable device and cannot tip the scales against its use in any particular circumstances. It defies elemental logic to say that parties who the court has determined will probably succeed at trial should be denied the interim relief to which they are entitled because their ultimate victory is less than absolutely certain.

In fine, the district court did not overspill its discretion either in taking Brown's self-interested description of its financial plight with a grain of salt or in limiting the role that raising false hopes might play in the equitable calculus.

D. *Summing Up.*

We summarize succinctly, beginning with the probability of plaintiffs' success. In an era where the practices of higher education must adjust to stunted revenues, careening costs, and changing demographics, colleges might well be obliged to curb spending on programs, like athletics, that do not lie at the epicenter of their institutional mis-

sion. Title IX does not purport to override financial necessity. Yet, the pruning of athletic budgets cannot take place solely in comptrollers' offices, isolated from the legislative and regulatory imperatives that Title IX imposes.

This case aptly illustrates the point. Brown earnestly professes that it has done no more than slash women's and men's athletics by approximately the same degree, and, indeed, the raw numbers lend partial credence to that characterization.[23] But, Brown's claim overlooks the shortcomings that plagued its program before it took blade in hand. If a school, like Brown, eschews the first two benchmarks of the accommodation test, electing to stray from substantial proportionality and failing to march uninterruptedly in the direction of equal athletic opportunity, it must comply with the third benchmark. To do so, the school must fully and effectively accommodate the underrepresented gender's interests and abilities, even if that requires it to give the underrepresented gender (in this case, women) what amounts to a larger slice of a shrinking athletic-opportunity pie.

The record reveals that the court below paid heed to these realities. It properly recognized that even balanced use of the budget-paring knife funs afoul of Title IX where, as here, the fruits of a university's athletic program remain ill-distributed after the trimming takes place. Because the district court understood this principle, and because its findings of fact as to the case's probable outcome are based on substantial evidence, the court's determination that plaintiffs are likely to succeed on the merits is inexpugnable.

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[23] We note, however, that while the cuts proposed by Brown eliminate a roughly equal number of athletic opportunities for women as for men, those cuts subtract roughly four times more money from the budget for female pancratiasts than from the budget for their male counterparts. *See supra* pp. 4-5. And, as a noted playwright once observed, "where there is no money, there is no change of any kind." Moss Hart, *Act One* (1959).

The district court displayed similar dexterity in touching the other three bases en route to a grant of injunctive relief: irreparability of injury, the relative weight of potential harms, and impact on the public interest. The court found that the harm to the plaintiff class was irremediable, absent prompt injunctive relief; that the balance of harms favored such relief; and that the overridnig public interest lay in the firm enforcement of Title IX. In each of these areas, as in the likelihood-of-success arena, the court made serial findings that, taken at face value, amply justify injunctive relief. Because these findings derive adequate support from the record, the court's decree must stand as long as the specific relief the court ordered was appropriate. It is to this issue that we now turn.

VII. REMEDIATION

After applying the preliminary injunction standard, the district court ordered relief *pendente lite,* temporarily reinstating the women's volleyball and gymnastics teams. Brown argues that such specific relief is inappropriate because it intrudes on Brown's discretion. The point has some cogency. We are a society that cherishes academic freedom and recognizes that universities deserve great leeway in their operations. *See, e.g., Wynne* v. *Tufts Univ. Sch. of Med.*, 976 F.2d 791, 795 (1st Cir. 1992), *petition for cert. filed* (Feb. 3, 1993); *Lamphere* v. *Brown Univ.*, 875 F.2d 916, 922 (1st Cir. 1989). In addition, Title IX does not require institutions to fund any particular number or type of athletic opportunities—only that they provide those opportunities in a nondiscriminatory fashion if they wish to receive federal funds.

Nonetheless, the district court has broad discretionary power to take provisional steps restoring the status quo pending the conclusion of a trial. *See Ricci* v. *Okin,* 978 F.2d 764, 767 (1st Cir. 1992); *Guilbert,* 934 F.2d at 7 & n.3. Considering the district court's proper estimation and deft application of the preliminary injunction stand-

ard, *see supra* Part VI, we think that requiring Brown to maintain the women's volleyball and gymnastics teams in varsity status for the time being is a remedial choice within the district court's discretion. That is not to say, however, that the same remedy will be suitable at trial's end if the Title IX charges prove out against Brown. The district court has noted, we believe appropriately, that if it ultimately finds Brown's athletic program to violate Title IX, it will initially require the University to propose a compliance plan rather than mandate the creation or deletion of particular athletic teams. *Cohen,* 809 F. Supp. at 1001. Although the district court has the power to order specific relief if the institution wishes to continue receiving federal funds, *see Franklin,* 112 S. Ct. at 1035, the many routes to Title IX compliance make specific relief most useful in situations where the institution, after a judicial determination of noncompliance, demonstrates an unwillingness or inability to exercise its discretion in a way that brings it into compliance with Title IX.

VIII. CONCLUSION

We need go no further. This litigation presents an array of complicated and important issues at a crossroads of the law that few courts have explored. The beacon by which we must steer is Congress's unmistakably clear mandate that educational institutions not use federal monies to perpetuate gender-based discrimination. At the same time, we must remain sensitive to the fact that suits of this genre implicate the discretion of universities to pursue their missions free from governmental interference and, in the bargain, to deploy increasingly scarce resources in the most advantageous way. These considerations, each of which is in service to desirable ends, are necessarily in tension in Title IX cases. Thus, there are unlikely to be ideal solutions to all the vexing problems that might potentially arise.

This appeal exemplifies many of the difficulties inherent in Title IX litigation. We do not presume to say that

the district court's interim solution is perfect, but it is fair and it is lawful. On the record compiled to date, the preliminary injunction requiring Brown to reinstate its women's volleyball and gymnastics teams for the time being came well within the encincture of judicial discreiton. We will not meddle.

The preliminary injunction is affirmed, the temporary stay is dissolved, and the cause is remanded to the district court for further proceedings. Costs to appellees.

UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF RHODE ISLAND

C.A. No. 92-197-P

AMY COHEN, EILEEN ROCCHIO, NICOLE A. TURGEON, KAREN A. MCDONALD, MELISSA KURODA, LISA C. STERN, JENNIFER HSU, JENNIFER E. CLOUD, DARCY SHEARER, JODY BUDGE, MEGAN HULL, KYLE HACKETT, EACH INDIVIDUALLY AND ON BEHALF OF ALL OTHER SIMILARLY SITUATED,

Plaintiffs,

v.

BROWN UNIVERSITY, VARTAN GREGORIAN, IN HIS OFFICIAL CAPACITY AS PRESIDENT OF BROWN UNIVERSITY, AND DAVID ROACH, IN HIS OFFICIAL CAPACITY AS ATHLETIC DIRECTOR OF BROWN UNIVERSITY,

Defendants.

OPINION AND ORDER

PETTINE, RAYMOND J., Senior U.S. District Judge

I. *Introduction*

This is a class action lawsuit charging Brown University, its President, and its Athletic Director (collectively "defendants" or "Brown") with discriminating against women in the operation of its intercollegiate athletic program, in violation of Title IX of the Education Amendments of 1972, 20 U.S.C. § 1681, *et seq.* ("Title IX"). The plaintiff class consists of all present and future Brown University women students and potential students who

participate, seek to participate, and/or are deterred from participating in intercollegiate athletics funded by Brown.

Named plaintiffs include student members of the women's gymnastics and volleyball teams at Brown. For almost twenty years, these two teams were accorded full varsity status. In May 1991, however, Brown reduced these two women's teams, along with two longstanding men's varsity squads, to "intercollegiate club" status. Plaintiffs charge that Browns demotion of the two women's teams has undermined their ability to compete in intercollegiate athletics and relegated the members of those teams to "second-class" status. More broadly, plaintiffs allege that Brown's actions have exacerbated the university's discriminatory treatment of women, particularly its continuing failure to provide women with equivalent "opportunities" to participate in intercollegiate athletics.

In two separate Orders, this Court previously granted plaintiffs' motion for class certification and denied defendants' motion to dismiss.[1] Plaintiffs now move for a preliminary injunction. Specifically, they seek a preliminary order: (1) reinstating the women's gymnastics and volleyball teams to full varsity status; and (2) prohibiting Brown from eliminating or reducing the status of any other Brown-funded women's intercollegiate athletic teams unless the percentage of "opportunities" to participate in intercollegiate athletics equals the percentage of women enrolled in the undergraduate program.

The parties presented a total of fourteen days of testimony and twenty witnesses on the prelimiary injunction motion. In addition, both sides have filed lengthy pre- and post-hearing briefs. After reviewing all of the evidence, and considering the arguments by both parties, I must grant injunctive relief, as specified at the conclusion

[1] This Court did, however, dismiss without prejudice plaintiffs' claim against defendant David Roach in his individual capacity.

of this opinion. Among other things, I direct Brown to immediately restore women's gymnastics and women's volleyball to their former status as fully funded intercollegiate varsity teams and to provide these teams with all of the incidental benefits accorded varsity teams at the university.

This case raises novel issues concerning Title IX and athletic programs. In addition, there is virtually no case-law on point. For these reasons, I have undertaken to explore at great length the factual and legal context of this case, including a detailed examination of the U.S. Department of Education's official Policy Interpretation of the athletic regulation promulgated under Title IX.

First, I will discuss the varsity athletic program at Brown and the change in status of the four teams. Next I will outline the legal and regulatory framework for athletic programs under Title IX. Finally, I will address the arguments advanced by both parties under the rubric of this Circuit's well-established preliminary injunction framework, emphasizing what I believe to be the Title IX standards applicable to this case.

II. *Factual Background*

Brown is a member of Division I of the National Collegiate Athletic Association ("NCAA"), the highest level within the NCAA structure. In academic year 1990-91, Brown funded a total of 31 varsity teams through its athletic department that participated in NCAA and other intercollegiate competition. Of these 31 teams, 16 were for men and 15 were for women. In eleven sports, Brown offered teams for both sexes:

Men and Women

(1) Basketball

(2) Crew

(3) Cross-Country

(4) Ice Hockey
(5) Lacrosse
(6) Soccer
(7) Squash
(8) Swimming
(9) Tennis
(10) Fall Track
(11) Spring Track

The remaining sports were confined to either the men's or women's athletic programs. These teams consisted of the following:

Men	*Women*
(1) Baseball	(1) Field Hockey
(2) Football	(2) Gymnastics
(3) Golf	(3) Softball
(4) Water Polo	(4) Volleyball
(5) Wrestling	

In 1990-91, there were a total of 894 men and women undergraduates competing on these 31 varsity teams. Of this total, 566 were men (63.3%) men and 328 were women (36.7%). Plaintiffs' Exhibit 3.[2] Records indicate that during this academic year, there were 2951 (52.4%)

[2] These figures are drawn from a 1991 Gender Equity Study prepared by Brown for the NCAA. According to the Study, there were a total of 541 men and 342 women participating in varsity level competition in 1990-91. However, these numbers included men's and women's fencing, which were treated as "club" sports during that year, not as funded varsity teams. In addition, the Study did not include members of freshman football, a team that was a fully-funded varsity squad. Thus, as suggested by plaintiffs, I have added an additional 50 men to approximate the freshman football team and omitted the 39 members of the two fencing teams to arrive at the figures stated in the text. These numbers do not include junior varsity participants at Brown.

men and 2683 (47.6%) women enrolled as undergraduates at Brown. Plaintiffs' Exhibit 1.

Nearly all of the men's varsity teams were established before 1927. Baseball was created first in 1869, followed by football in 1878 and track in 1879. The only men's teams established after 1927 were crew in 1961, water polo in 1974 and squash in 1989. By comparison, virtually all of the women's varsity teams were created between 1971 and 1977. The only women't varsity team created after this period was winter track in 1982. Before 1971, all women's sports were operated out of a separate athletic program at Pembroke College, a sub-unit of Brown University until its merger with Brown College during that year. Before the merger, the women's athletic program at Pembroke bore no resemblance to the program which Brown provided to its male varsity athletes. While Pembroke did have a few intercollegiate teams (e.g., field hockey, basketball, tennis), the women's program received very little financial or institutional support from the university.

In May 1991, Brown cut off university funding for, and lowered the status of, 4 of the 31 varsity teams: men's golf, men's water polo, women's gymnastics and women's volleyball. Initially, these teams were dubbed "club varsity," but they were later classified as "intercollegiate club." The parties dispute the exact number of players affected by the demotion. In a pre-trial affidavit, defendant David Roach, Brown's Athletic Director, declared that the change in status affected 58 men and 20 women. Roach Affidavit at ¶ 11. However, in a memorandum to Brown's Advisory Committee on University Planning ("ACUP") dated April 9, 1991, Mr. Roach stated that the elimination of funding would affect approximately 34 men and 22 women. Plaintiffs' Exhibit 9. Plaintiffs argue that the cut eliminated 37 men and 23 women based upon 1990-91 team sizes reported by Brown to the NCAA. According to plaintiffs' data, the post-demotion totals,

in 1991-92, were 529 men (63.4%) and 305 women (36.6%)

The decision to eliminate the four teams from varsity status was apparently made in response to a university-wide directive to cut 5% to 8% from the budget over several years, and at least 3% in the 1991-92 budget. By "unfunding" the four teams, Brown expected to realize a total savings of approximately $77,800 per year. Overall, the athletic department proposed a cut of roughly $115,500, or 2.7% of the department's total budget. Broken down by team, the $77,800 savings from the varsity cuts was apportioned as follows: (a) women's volleyball—$37,127; (b) women's gymnastics—$24,901; (c) men's water polo—$9,250; and (d) men's golf—$6,545. Plaintiffs' Exhibit 9.

After the four teams were reduced in status, they were permitted to participate in intercollegiate competition provided they raise all of their own operating funds from private sources and conform to NCAA and Ivy League rules. As the defendants note, all four teams successfully raised the necessary funds to compete in the 1991-92 and 1992-93 seasons. In addition, all four teams continue to be eligible for post-season tournament and championship events, and receive assistance from Brown in meeting Ivy League and NCAA guidelines for such participation.

Nevertheless, in addition to the elimination of university funding, the four teams lost significant privileges in the wake of the demotion. Evidence at the hearing indicates that during the 1991-92 and 1992-93 season, for example, incidents occurred during which varsity teams received priority over intercollegiate clubs in practice time and in access to medical trainers. The university also stripped the coaches of the women's teams of office space, long-distance telephone service and clerical support. Further, the four teams lost "admission preferences" in recruiting freshman. In April 1992, plaintiffs filed suit against Brown.

III. *Legal Framework*

A. *Title IX*

Title IX prohibits gender discrimination in education programs or activities receiving federal financial assistance. The statute provides in relevant part:

> No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance . . ." 20 U.S.C. § 1681(a).

Plaintiffs assert that Brown receives federal financial assistance, including assistance provided through financial aid. Thus, according to them, the university "is subject to the requirements of Title IX including, *inter alia*, in its intercollegiate athletic program." First Amended Complaint at ¶ 24. Brown acknowledges that it receives federal financial assistance, but at the same time does not admit or deny that its athletic program is covered by Title IX. Answer of Brown University, Vartan Gregorian and David Roach at ¶ 24.

Before 1988, it is possible that Brown's athletic program would have been outside the grasp of Title IX. In *Grove City College v. Bell*, 465 U.S. 555 (1984), the U.S. Supreme Court narrowly construed the phrases "program or activity" contained in the Title IX statute. In that case, the Court *did* hold that federal student aid monies flowing to students at Grove City College subjected the school's entire financial aid office to the dictates of Title IX. However, the Court also concluded that the "assumption that Title IX applies to programs receiving a larger share of a school's own limited resources as a result of federal assistance earmarked for use elsewhere within the institution is inconsistent with the program-specific nature of the statute." 465 U.S. at 572. Thus,

the receipt of federal financial aid by students at the college did "not trigger institutionwide coverage under Title IX." *Id.* at 573.

In an effort to overturn the *Grove City* decision, Congress passed the Civil Rights Restoration Act of 1987, Pub. L. No. 100-259, 102 Stat. 28 (1988). In its findings, Congress stated that "legislative action is necessary to restore the prior consistent and long-standing executive branch interpretation and broad, institution-wide application" of four major civil rights acts: Title IX; Section 504 of the Rehabilitation Act of 1973; the Age Discrimination Act of 1975; and Title VI of the Civil Rights Act of 1964. Pub. L. No. 100-259, § 2, 102 Stat. 28. To accomplish this goal, the Civil Rights Restoration Act explicitly defined the phrase "program or activity" and "program" in Title IX and the three other civil rights statutes "to make clear that discrimination is prohibited throughout entire agencies or institutions if any part receives Federal financial assistance." S. Rep. No. 64, 100th Cong., 2d Sess. 4, *reprinted in* 1988 U.S.Code Cong. & Ad. News 6.

Section 908 of the amended Title IX now reads:

> For the purposes of this chapter, the term [sic] "program or activity" and "program" mean all of the operations of—
>
> * * * *
>
> (2)(A) a college, university, or other postsecondary institution, or a public system of higher education. . . .
>
> * * * *
>
> any part of which is extended Federal financial assistance. . .

20 U.S.C. § 1687.

Under this definition, the receipt of federal financial assistance by any segment of a school, or any student, would bind the entire school to the requirements of Title

IX. *See Radcliff v. Landau*, 883 F.2d 1481, 1483 (1989), *clarified*, 892 F.2d 51 (1989), *affirmed after remand*, 930 F.2d 29 (9th Cir. 1991) (interpreting Title VI). Given that Brown admits receiving Federal financial assistance, this Court concludes that the university as a whole, including its athletic department, is subject to Title IX.

B. *Athletics Regulation*

Under Title IX, the U.S. Department of Education has promulgated regulations governing the administration of programs that receive federal funding. One particular regulation relates to athletic programs, and is codified at 34 C.F.R. § 106.37(a) and § 106.41. The first part of this regulation addresses athletic scholarship offered for "interscholastic or intercollegiate athletics." § 106.37(c). The chief goal of this segment of the regulation is to ensure that scholarship monies are awarded in proprotion to the number of students of each sex participating in athletic programs.

The second component of the regulation is broader in scope, encompasing "any interscholastic, intercollegiate, club or intramural" athletic program offered by an institution. 34 C.F.R. § 106.41(a). This part of the regulation addresses the issue of "equal opportunity" between the sexes, the critical issue in the case at hand. The pertinent section reads in full:

> (c) *Equal Opportunity*. A recipient which operates or sponsors interscholastic, intercollegiate, club or intramural athletics shall provide equal athletic opportunity for members of both sexes. In determining whether equal opportunities are available the Director will consider, among other factors:
>
> (1) Whether the selection of sports and levels of competition effectivey accommodate the interests and abilities of members of both sexes;

(2) The provision of equipment and supplies;

(3) Scheduling of games and practice time;

(4) Travel and per diem allowance;

(5) Opportunity to receive coaching and academic tutoring;

(6) Assignment and compensation of coaches and tutors;

(7) Provision of locker rooms, practice and competitive facilities;

(8) Provision of medical and training facilities and services;

(9) Provision of housing and dining facilities and services;

(10) Publicity

Unequal aggregate expenditures for members of each sex or unequal expenditures for male and female teams if a recipient operates or sponsors separate teams will not constitute non-compliance with this section, but the Assistant Secretary may consider the failure to provide necessary funds for teams for one sex in assessing equality of opportunity for members of each sex.

34 C.F.R. § 106.41(c).

C. *Official Policy Interpretation*

The Office for Civil Rights of the U.S. Department of Education is charged with enforcement of Title IX. In 1979, this Office published in the Federal Register an official "Policy Interpretation" of the "intercollegiate athletic provisions" of Title IX and its implementing regulation. 44 Fed. Reg. 71413. (December 11, 1979).[8] The

[8] At the time the Policy Interpretation was published, the Office of Civil Rights was part of the Department of Health, Education, and Welfare.

eleven-page document states that its purpose is to: "clarif[y] the obligations which recipients of Federal aid have under Title IX to provide equal opportunities in athletic programs. In particular, this Policy Interpretation provides a means to assess an institution's compliance with the equal opportunity requirements of the regulation which are set forth at [34 C.F.R. § 106.37(c) and § 106.41c)]." 44 Fed. Reg. at 71415.

To help elucidate the meaning of "equal opportunity," the Policy Interpretation is divided into three sections. The first section focuses on the specific provision dealing with athletic scholarship contained in 34 C.F.R. § 106.37 (c). The second section addresses elements (2) through (9) lisited in § 106.41(c). This second section of the Policy Interpretation raises two additional criteria to be examined in athletic programs: (a) recruitment and (b) support services. The third and final section solely discusses the first element listed in § 106.41(c) pertaining to the effective accommodation of student interests and abilities.

Within each of these three areas, the Policy Interpretation provides specific questions and criteria for evaluating athletic programs. On a general note, the Policy Interpretation states that it is "designed specifically for intercollegiate athletics," but that its "general principles" are applicable to interscholastic, club and intramural athletic programs. 44 Fed. Reg. at 71413. It also declares that "club teams" under the Policy Interpretation "will not be considered to be intercollegiate teams except in those instances where they regularly participate in varsity competition." *Id.* at 71413 n.1.

D. *Athletics Investigator's Manual*

In 1990, the Office for Civil Rights published a manual to facilitate Title IX investigations of interscholastic and intercollegiate athletic programs. This document—entitled "Title IX Athletics Investigator's Manual: 1990"—pro-

vides another layer of guidance for investigators with the Office for Civil Rights in interperting the Title IX regulation. This Manual was intended to supersede two similar guidance documents issued by the Office for Civil Rights in 1980 and 1982.

For the most part, the 1990 Investigator's Manual tracks the outline of the Policy Interpretation. The Manual devotes separate sections to each of the 13 "program components" listed in the Policy Interpretation. In addition, the Manual underscores the tripartite structure of the Policy Interpretation with respect to these 13 components. As stated above, the three areas are:

(1) athletic scholarships—§ 106.37(c);

(2) the effective accommodation of athletic interests and abilities—§ 106.41(c)(1);

(3) other athletic benefits and opportunities—§ 106.41(c)(2)-(10), plus recruitment and support services.

For intercollegiate athletics, the Manual recommends to investigators that all 13 of these program components be examined during an investigation. The Manual recognizes, however, that the Policy Interpretation "permit[s] separate investigations and findings" for these "three major areas." Manual at 7. The Manual further concludes that "[a]n investigation may be limited to less than all three of these major areas where unique circumstances justify limiting a particular investigation to one or two of these major areas." *Id.*

IV. *Discussion*

In determining a motion for preliminary injunction, the district court must consider four factors:

(1) The likelihood of success on the merits;

(2) The potential for irreparable harm;

(3) A balancing of the relevant equities (most importantly, the hardship to the nonmoving party if the restrainer issues as contrasted with the hardship to the moving party if interim relief is withheld); and

(4) The effect on the public interest of a grant or denial of the restrainer.

Narragansett Indian Tribe v. Guilbert, 934 F.2d 4, 5 (1st Cir. 1991); *Aoude v. Mobil Oil Corp.,* 862 F.2d 890, 892 (1st Cir. 1988). Of these factors, the First Circuit has regarded likelihood of success as "critical." *Narragansett Indian Tribe,* 934 F.2d at 6; *Public Service Co. v. West Newbury,* 835 F.2d 380, 383 (1st Cir. 1987); *Lancor v. Lebanon Housing Authority,* 760 F.2d 361, 362 (1st Cir. 1985); *see also El Dia, Inc. v. Hernandez Colon,* 963 F.2d 488, 498 n.12 (1st Cir. 1992). I will address each component in turn.

A. *Likelihood of Success*

1. *Arguments of the Parties*

a. *Plaintiffs*

Plaintiffs allege that the Brown athletic program is in violation of Title IX. They based this claim primarily upon one factor in the "equal opportunity" provision of the Title IX athletics regulation. That factor, spelled out in § 106.41(c)(1), asks "[w]hether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes." Plaintiffs maintain that in evaluating this criteria the Court must apply a three-part test contained in the Policy Interpretation. The test asks:

(1) Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments; or

> (2) Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex; or
>
> (3) Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a continuing practice of program expansion such as that cited above, whether it can be demonstrated that the interests and abilities of the members of that sex have been fully and effectively accommodated by the present program.

44 Fed. Reg. at 71418. Plaintiffs assert that the answer to all of these questions is "no," and as a result Brown is in violation of Title IX.

As a first step, plaintiffs cite to the disparity of athletic "participation opportunities" available to women in comparison to men. Plaintiffs marshall evidence that no time since the inception of Title IX has the percentage of women participating in intercollegiate athletics at Brown been substantially equivalent to the percentage of women undergraduates. Plaintiffs' contention assumes, I note, that the number of *participants* in Brown's athletic program accurately reflects the number of participation *opportunities* offered by the university. In a nutshell, plaintiffs claim that Brown has structured its varsity program to provide no more than 39% of the varsity opportunities to women, even though women have consistently comprised approximately 48%-49% of the undergraduate population.

According to plaintiffs, Brown has systematically controlled the number of athletes through its selection of the sports it provides to men and women, the size of the teams it offers, and the quality of the coaches it employs. In addition, they allege that Brown has predetermined

the number of women athletes by limiting recruitment dollars for women's teams, as well as by restricting the percentage of admissions preferences given to prospective women varsity athletes.[4] Plaintiffs also note that the Investigator's Manual (at 24) directs investigators, for purposes of evaluating compliance with the first question in the Policy Interpretation's three-part test, to compare the number of male and female *participants* in the athletic program with the numbers of full-time undergraduate students. Hence, in support of their assumption that participation equals opportunities, plaintiffs note that the Manual does not distinguish between participation and participation opportunities.

With respect to the second question in the three-part test, plaintiffs assert that Brown halted its expansion of opportunities for women at least ten years ago without achieving equality. While they concede that Brown embarked on a program to expand opportunities for women in athletics during the 1970s, they complain that Brown has not added a single women's varsity sport since winter track in 1982.

As to the third question, plaintiffs contend that Brown is not effectively accommodating the interests and abilities of women, at least at the varsity level. In addition to gymnastics and volleyball, plaintiffs argue that there are other women athletes who have the ability to participate on varsity teams, including those students on the fencing, rugby, water polo and sailing "clubs." Plaintiffs also note that Brown specifically rejected a request by the women's fencing team (and men's team) to be elevated to varsity

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[4] Plaintiffs claim, based on data from Brown's Admission Office, that over the past ten years women have consistently comprised a much lower percentage of the total number of Brown varsity athletic recruits offered admission in relation to men. According to the data, the admissions process produced, on average, approximately 65% admissions of men and 35% admissions of women over the ten year period.

status in 1986 or 1987 and again in 1990. Thus, they conclude, even before the demotion of the four teams in May 1991, Brown failed to meet the third party of the Policy Interpretation's three-pronged test.

Although plaintiffs principally rely upon § 106.41(c)(1) to support their motion, they also assert that there is evidence of Title IX violations in other aspects of Brown's athletic program. Plaintiffs allege that there is inadequate funding for many women's teams, and that significant disparities exist between men and women's teams in the areas of coaching, equipment, publicity and recruitment.[5]

Plaintiffs cite little caselaw to support their claims. One case they do note was recently decided by a U.S. Magistrate Judge in New York. *Cook v. Colgate University*, No. 90-CV-411 (N.D.N.Y. September 23, 1992). In that case, the Magistrate Judge found Colgate University in violation of Title IX because the school had refused four student requests to elevate the women's ice hockey team from a "club" to a varsity team between 1979 and 1988. The court examined several of the ten factors in § 106.41(c) of the athletic regulation (e.g., equipment, locker room facilities, travel allowances, coaching) and scrutinized Colgate's arguments that there was a lack of student interest and ability, and a shortage of funds.

In finding a Title IX violation, the *Cook* court was particularly swayed by the gross inequalities between the women's "club" and the men's varsity ice hockey teams. The Court did not look at any other athletic teams at Colgate, nor did it examine any statistics on the total number of athletic "opportunities" in relation to the percentage of men and women enrolled at the university. The Court simply found what it considered to be inequalities in treatment with respect to the two ice hockey

[5] Because Brown does not offer athletic scholarships, no evidence was presented by plaintiffs on compliance under § 106.37(c).

teams. As a result, it ordered Colgate to grant varsity status to the women's ice hockey program starting with the 1993-94 academic year and "to provide equivalent athletic opportunities for the women's ice hockey players in accordance with the law." *Cook*, slip. op. at 33.

A second case cited by plaintiffs, *Favia v. Indiana University of Pennsylvania*, C.A. No. 92-2045 (W.D.Pa. November 2, 1992), was decided last month by a U.S. District Court judge in Pennsylvania. The facts in *Favia* are strikingly similar to the present case. In August 1991, Indiana University of Pennsylvania ("IUP") announced that the women's gymnastics and field hockey teams, and the men's soccer and tennis teams, were slated for elimination as intercollegiate varsity teams beginning with the 1992-93 season. According to IUP's Athletic Director, the cutbacks were made in response to a directive by the university to reduce their department budget. Before the 1991 cutback, IUP had 313 men (62.2%) men and 190 women (37.8%) athletes on its intercollegiate teams. Following the elimination of the four teams, there were roughly 248 men (62.5%) and 149 women (37.5%) varsity athletes. In 1990-91, IUP had 4790 men (44.4%) and 6003 women (55.6%) enrolled as undergraduates.

Women students at IUP brought a class action lawsuit under Title IX and the Fourteenth Amendment to the United States Constitution alleging systemic discrimination on the basis of sex in the university's intercollegiate athletic program. Plaintiffs sought the reinstatement of the two women's teams and an order prohibiting the university from eliminating further women's teams. In ruling in favor of the plaintiffs, the Court simply applied the three-part test contained in the Policy Interpretation to find IUP in violation of Title IX. The Court found that IUP had "failed to override the proportionality requirement" of the test by failing to show a history of expanding the number of athletic opportunities for women or demonstrating that it had fully and effectively accommo-

dated the interests and abilities of women students. *Favia*, slip. op. at 16-17. The Court ordered the immediate restoration of the two women's teams to their former status, with university backing and funding equivalent to that furnished during their last year as a varsity team.

b. *Defendants*

Brown advances two main counter arguments to plaintiffs' claims. First, Brown asserts that plaintiffs' reading of Title IX is too simplistic. From Brown's perspective, the Title IX athletic regulation, the Policy Interpretation and the Investigator's Manual contain a complex framework for assessing athletic programs *as a whole*. Thus, in their view, plaintiffs would have to address many more questions and factors before proving a Title IX violation. For example, Brown believes that in assessing "equal opportunity," the Court must not only consider § 106.41 (c)(1), but also assess the nine other factors listed in § 106.41(c).

In addition, Brown vehemently disputes plaintiffs' focus on the comparison of the ratio of men and women participating in intercollegiate athletics to their relative ratio in the undergraduate population. From Brown's vantage point, the Title IX statute itself states that it does not require a strict "proportionality" test in assessing violations of the law. In support, they quote the following language contained in 20 U.S.C. § 1681(b):

> Nothing contained in subsection (a) of this section shall be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist with respect to the total number or percentage of persons of that sex participating in or receiving the benefits of any federally supported program or activity, in comparison with the total num-

> ber or percentage of persons of that sex in any community. . . [9]

Brown avers that this provision explicitly recognizes that equal opportunity does not require proportionality. Moreover, Brown contends that this section precludes preferential treatment to members of one sex on account of a disparity that may exist with respect to the other sex. In short, Brown alleges that "Title IX is not an affirmative action statute." Defendant's Post-Hearing Memorandum at 7.

Brown also believes that the plaintiff's proportionality claim is inconsistent with the athletic regulations emphasis on accommodating the interests and abilities of both sexes. They argue that it is the interests and abilities of students, not the relative proportion of the sexes, that determines what "participation opportunities" must be offered to each sex. In other words, it is *opportunity*, not *participation*, that is the crucial factor for determining compliance under the regulation. If not, they suggest, then the regulation would have simply required "equal athletic participation."

Further, Brown flatly denies plaintiffs' argument that it has "structured" its athletic program to achieve a set percentage of men and women participants. Joan Taylor, an Associate Athletic Director at Brown, testified that the roughly 60% men to 40% women ratio of varsity athletes at Brown is simply a reflection of the interests and abilities of the students. Brown concludes that "this Court has absolutely no evidence upon which it could conclude that the ratio of 'participation opportunities provided to

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[9] Section 1681(b) continues:

> . . . State, section, or other area: *Provided*, That this subsection shall not be construed to prevent the consideration in any hearing or proceeding under this chapter of statistical evidence tending to show that such an imbalance exists with respect to the participation in, or receipt of the benefits of, any such program or activity by the members of one sex.

male and female student athletes is not *substantially* proportionate to the relative population of each sex." Defendant's Post-Hearing Memorandum at 37 (emphasis in original).

Brown's second and related argument is that it *is* effectively accommodating the interests and abilities of its students. Brown notes that its athletic program consists of a wide spectrum of sporting services, including the free use of athletic facilities, physical education classes, intramural sports, club sports and intercollegiate club sports, as well as junior varsity and varsity sports.[7] At all of these levels, Brown asserts, it does not discriminate on the basis of sex, nor does it limit the number of "opportunities" available for either men or women. Brown also boasts that it fields one of the highest number of men's and women's teams to compete at the NCAA or Ivy League level. Thus, according to the defendants, any disparities which exist between the number of men and women varsity athletes is merely a reflection of the varying interests and abilities of the students.

Finally, Brown maintains that the change in status of the four teams is "not legally significant" under Title IX. Post-Hearing Memorandum at 21. Brown notes that those teams continue to compete at an intercollegiate level and that the Policy Interpretation specifically allows "club teams" to be considered "intercollegiate teams" where they "regularly participate in varsity competition." The only change, from Brown's perspective, is a shift in funding status. Alternatively, Brown argues that even if the change of status *was* legally significant, its actions ex-

[7] The parties presented little evidence on the full scope of club or intramural programs at Brown. One reason is that club teams are student-run and the Athletic Department apparently does not maintain rosters of these teams. Still, Brown estimates that for the years 1990-91 and 1991-92, there were a total of 12 club sports, including frisbee, cricket, skiing and tae kwan doe. Most of these club teams were coed, with approximately 480 men and women participating.

panded the ratio of men to women in the varsity program because almost twice as many men were affected than women.

2. *Defining The Applicable Standard: Threshold Issues*

a. *Policy Interpretation and Investigator's Manual*

I must state at the outset of my analysis that there are no simple tests to apply in this area. I also recognize that the Policy Interpretation and the unpublished Investigator's Manual do not carry the force of law or establish controlling standards for this Court. Nevertheless, I believe the Policy Interpretation, and to a slightly lesser extent the Investigator's Manual, are important guides in unraveling the requirements of the athletic regulation. Moreover, considerable weight should be given to an agency's interpretation of its own regulation. *Martin v. Occupational Safety and Health Review Commission*, —— U.S. ——, 111 S.Ct. 1171, 1175 (1991); *Sprandel v. Secretary of Health and Human Services*, 838 F.2d 23, 25 (1st Cir. 1988); *McCuin v. Secretary of Health and Human Services*, 817 F.2d 161, 168 (1st Cir. 1987). In addition, given the paucity of caselaw in this area, both parties rely heavily upon the Policy Interpretation and the Investigator's Manual to support their respective arguments. Indeed, to a large extent, the dispute in this case revolves around differing interpretations of these documents.

b. *Can § 106.41(c)(1) Provide A Sole Basis For A Title IX Violation?*

Even accepting the Policy Interpretation as a starting point, a further threshold determination remains concerning § 106.41(c)(1). The parties dispute, and the Court must determine, the fundamental issue whether a violation of Title IX may be grounded solely upon this sole cri-

teria. The defendants insist that Title IX requires a program-wide analysis to determine compliance. The defendants' strongest support on this point derives from the Investigator's Manual.[8] The Manual states that "[i]nvestigations of athletics programs are frequently difficult and lengthy, primarily because of the considerable amounts of information that must be collected, analyzed, and evaluated to determine compliance." Manual at 2. The Manual further emphasizes that compliance with Title IX should ordinarily rest upon more than one particular aspect of an athletic program:

> There is no rule or number of disparities that when reached constitutes a violation. Generally, the determination is whether, in reviewing the program as a whole, the disparities add up to a denial of equal opportunity to athletes of one sex.

Manual at 10.

This language is not conclusive. First, as noted above, the Policy Interpretation distinguishes and discusses

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[8] For support of their program-wide argument, defendants also refer this Court to a recent decision by a U.S. District Court in New Mexico involving Title IX and athletics. *Arnot v. Ramo*, C.A. No. 92-0551 (D.N.M. July 20, 1992) (bench decision). In an oral ruling, Chief Judge Burciaga stated:

> ". . . I'm concerned that the way the plaintiffs read Title IX, that alone would preclude this Court granting a preliminary injunction.
>
> It's my view of Title IX at the present time, and I would have to be persuaded otherwise, that the program requires a program-wide analysis and not a sport-specific analysis." Transcript at 19.

It is difficult for this Court to fully evaluate the decision in *Arnot* because the facts of that case are not fully explained in the court's brief ruling. It appears, however, that the central question in that case is what Title IX obligations an institution has under § 106.41 where it sponsors a specific sport for one sex, but not for the other. This particular issue is not before this Court in the case at bar.

§ 106.41(c)(1) separately from the nine other factors contained in § 106.41(c). Second, the Policy Interpretation states that a finding of noncompliance under § 106.41 (c)(1) may be based upon "disparities of a substantial and unjustified nature . . . in the institution's program as a whole," or based upon "disparities in . . . individual segments of the program [which] are substantial enough in and of themselves to deny equality of athletic opportunity." 44 Fed. Reg. at 71417, 71418. Third, in reference to the Policy Interpretation's three-part framework, the Investigator's Manual itself states on another page that intercollegiate athletic investigations "may be limited to less than all three of these major areas where unique circumstances justify limiting a particular investigation to one or two of these major areas." Manual at 7.

There is little question that this factor is the most important criteria listed in § 106.41(c). In addition, not every institution can be evaluated under all 13 "program components." Brown, for example, does not offer athletic scholarships and thus there is no need to examine compliance under § 106.37(c). In my view, the Policy Interpretation and the Investigator's Manual suggest that Title IX determinations must be flexible to accommodate individual institutions. And both documents indicate that determinations of noncompliance may be limited to § 106.41(c)(1). For all of these reasons, I hold that a finding of violation of under Title IX may solely be limited to § 106.41(c)(1).

3. *Determining The Applicable Standard Under § 106.41(c)(1)*

The next issue to address is how in fact to determine whether an institution is complying with § 106.41(c)(1). The plaintiffs believe that the Policy Interpretation "provide[s] in pertinent part that compliance with Title IX's requirement of providing equal opportunities to participate in intercollegiate athletics will be evaluated by determining" the answers to the three-part test spelled out in

that document. Memorandum In Support of Plaintiffs' Motion For Preliminary Injunction at 6. The defendants disagree. In their view, these three questions only relate to the issue of "levels of competition" within § 106.41 (c)(1), and even on this narrow topic the three questions are not dispositive.

At first blush, the defendants have a point. The three-part test appears to be limited to the issue of "levels of competition" within the Policy Interpretation's section on § 106.41(c)(1). But on closer scrutiny, the three-part test is clearly at the heart of evaluating this factor.

For clarity, I will examine the Policy Interpretation's discussion of § 106.41(c)(1) step by step. First, the Policy Interpretation spells out three underlying factors behind § 106.41(c)(1): (a) the determination of athletic interests and abilities; (b) the selection of sports offered; and (c) the levels of competition available, including the opportunity for team competition. With respect to the first factor, the Policy Interpretation states that in determining the interests and abilities of their students, institutions should take account of several factors, including the "nationally increasing levels of women's interests and abilities" and "the expressed interests of students capable of intercollegiate competition who are members of an underrepresented sex." 44 Fed. Reg. at 71417.

Next, the Policy Interpretation's analysis touches upon the "selection of sports." It notes, for example, that "where an institution sponsors a team in a particular sport for members of one sex, it may be required either to permit the excluded sex to try out for the team or to sponsor a separate team for the previously excluded sex." 44 Fed. Reg. at 71418. The Policy Interpretation then turns to the crucial "levels of competition" subsection. The discussion begins by stating that "[i]n effectively accommodating the interests and abilities of male and female athletes, institutions must provide both the opportunity for individuals of each sex to participate in inter-

collegiate competition, and for athletes of each sex to have competitive teams schedules which equally reflect their abilities." *Id.* The Policy Interpretation then declares that compliance will be assessed under the three-part test. It also adds that compliance with this provision will also be measured by evaluating two additional questions:

> (1) Whether the competitive schedules for men's and women's teams, on a program-wide basis, afford proportionally similar numbers of male and female athletes equivalently advanced competitive opportunities; or
>
> (2) Whether the institution can demonstrate a history and continuing practice of upgrading the competitive opportunities available to the historically disadvantaged sex as warranted by developing abilities among the athletes of that sex.

Id.

Finally, the Policy Interpretation concludes its discussion of § 106.41(c)(1) by offering three "overall" tests for compliance with all of § 106.41(c), not just § 106.41 (c)(1):

> (1) Whether the policies of an institution are discriminatory in language or effect; or
>
> (2) Whether disparities of a substantial and unjustified nature in the benefits, treatment, services, or opportunities afforded male and female athletes exist in the institution's program as a whole; or
>
> (3) Whether the disparities in individual segments of the program with respect to benefits, treatment, services, or opportunities are substantial enough in and of themselves to deny equality of athletic opportunity.

Id.[9]

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[9] These three general questions also appear at the end of the Policy Interpretation's subsection addressing the nine factors in § 106.41(c)(2)-(10), plus recruitment and support services.

The Investigator's Manual provides some additional guidance in this complicated area. In its separate section on § 106.41(c)(1), the Manual specifies that there is a two-part analysis in determining effective accommodation of student interests and abilities. First, it states that an investigation should analyze "equal opportunities to compete." Second, the investigation should assess the "levels of competition." Manual at 21. With respect to the first part, the Manual spells out the Policy Interpretation's three-part test, which it remarks "may be considered consecutively to assess the opportunity for individuals" of each sex to compete. *Id.* Focusing on the second step, the Manual recites the two additional questions relating to competitive opportunities. It states that these questions "also must be considered to assess whether the quality of competition provided to male and female athletes equally reflects their abilities." *Id.* at 22.

What does all of this mean? In my opinion, the three-part test is the point of departure for evaluating compliance under § 106.41(c)(1). In addition, I believe that the two questions addressing competitive opportunities must be asked when evaluating § 106.41(c)(1). Thus, in determining compliance under § 106.41(c)(1), a court must conduct a two step analysis. First, it should apply the three-part test, and second, it should apply the two questions on competitive opportunities. A violation of § 106.41(c)(1) can occur in either one of these two steps, or in both. A court should not attempt to balance a finding of violation in one step with a finding of compliance in the other. I will now apply both steps to the facts in this case.

4. *Applying The Standard Under § 106.41(c)(1)*

a. *The Three-Part Test*

(i) *Substantial Proportionality*

Plaintiffs have demonstrated that Brown does not have a "substantially proportionate" ratio of male and female

varsity athletes to their respective undergraduate enrollments. As noted *supra* Part II, in 1991-92, following the demotion of the four teams, there were 529 men (63.4%) and 305 women (36.6%) in varsity sports. During that year, there were 2917 men (51.8%) and 2716 women (48.2%) enrolled as undergraduates. Thus, Brown fails to satisfy the first question.

(ii) *Program Expansion*

Having failed the requirements of the first question, I must look to the "escape" routes for the university under parts two and three. With respect to the "program expansion" prong, evidence has shown that Brown does not have a *continuing* practice of program expansion for women athletes, even though it can point to impressive growth in the 1970s. At least since the late 1970s, the undergraduate enrollment at Brown has hovered at roughly 51%-52% men and 48%-49% women. During this period, however, the percentage of participants in the intercollegiate athletic program has remained fairly constant at approximately 61% men and 39% female. Precise numbers were not provided for every year. But according to a 1979 Title IX study internally prepared by Brown, in 1978-79, there were 558 men (63.9%) and 315 women (36.1%) participating on varsity teams. In addition, the only women's team added since 1977 was winter track in 1982, a sport that merely involved providing indoor space to the existing women's track team.

Brown argues that equating "expansion" with increased numerical participation is overly restrictive, and that there is considerable evidence showing growth in the women's athletic program. Among other things, they allege that since the 1970s: (1) coaching for women's teams has consistently improved; (2) more coaches have been added for women's teams; (3) "admissions practices" have helped women gain participation opportunities to a greater degree than men; and (4) the level of competition for women has increased. Defendants' Post-Hearing Memorandum at 42-43.

Even accepting all of the above statements as true, I still believe that Brown has failed to satisfy the second question in the three-part test. The Policy Interpretation directly links the "program expansion" step to the number of teams and athletes participating in intercollegiate competition, regardless of whether the quality of the program has improved. Thus, I believe, that in assessing compliance with this question, a court must address past actions and future plans to add or eliminate sports, taking into consideration the interests and abilities of the underrepresented sex. This interpretation is consistent with the Investigator's Manual (at 24-25).

(iii) *Interests and Abilities*

Brown has failed questions one and two under the three-part test. I now move on to the last question. With all due respect to defendants' position, I find that in denying ~~full~~ *varsity* status to the women's volleyball and gymnastics teams, Brown has not accommodated the interests and abilities of women athletes under the existing athletic program. Keeping the two teams at an "intercollegiate club" level is not sufficient to satisfy the third question of the three-part test. If Brown could establish that despite the statistical disparity between the number of men and women participating on varsity teams, there are no other women who want to compete at this level, the university might have a strong defense. Brown might have demonstrated, for example, that it attempted to create new varsity teams, but that there was no interest or ability to play these sports. Or, it might have shown that women have not asked Brown to establish any new varsity teams.

But that is not the case here. Brown is cutting off varsity opportunities where there is great interest and talent, *and* where Brown still has an imbalance between men and women varsity athletes in relation to their undergraduate enrollments. Both the women's gymnastics and volleyball teams have competed as varsity intercollegiate teams since 1974. More importantly, testimony at the

hearing showed that these two teams were viable varsity squads when they were demoted in May 1991. The women's gymnastics team, for example, won the Ivy League championship in 1990. That same year, Eileen Rocchio, one of the plaintiffs, was the individual "all-around" Ivy League gymnastics champion, and was named rookie of the year in the East Coast Athletic Conference. Many of the individual plaintiffs who testified described in detail their dedication to sports and their years of training prior to matriculating at Brown.

Further, some evidence was suggested that other women's teams besides gymnastics and volleyball have been, and continue to be, qualified to compete at the varsity level. At this preliminary stage, I am not in a position to rule definitively on the varsity capabilities of other teams. Nor do I believe that Brown's violation of the three-part test requires it to simply create new women's varsity teams at the request of any students. Rather, Brown may consider the expressed interests of the students, whether there are sufficient numbers of athletes to form a team, and whether there is a reasonable expectation of intercollegiate competition for that team. At the same time, however, as long as men continue to constitute a disproportionate piece of the varsity pie, Brown bears the burden of proof with respect to the second and third components of the three-part test. *See Favia*, slip op. at 15. In my opinion, plaintiffs have shown a sufficient likelihood of success with respect to all three questions.

My finding here rests, in part, upon the premise that intercollegiate club status is not equivalent to varsity status. To be sure, the Policy Interpretation indicates that club teams may be considered intercollegate teams "where they regularly participate in varsity competition." 44 Fed. Reg. at 71413 n.1. But there is evidence that the gymnastics and volleyball teams are struggling not only to remain active in varsity-level competition at Brown, but

also to survive as a team at all. While the two women's teams have raised enough money to engage in intercollegiate competition in the 1991-92 and 1992-93 seasons, the total amount was much less than the modest sums they received as varsity teams.[10] As things now stand, it is unlikely that the gymnastics team will have enough money to employ a head coach after Jacqueline Court's contract with Brown expires in June 1993.

John Parry, Brown's Athletic Director from 1979 to 1990, testified that these two teams have perhaps two years of continued life from the date they lost varsity status. Without admissions preferences, a recruiting budget and varsity status, he believes new team members will not likely have the talent or ability to compete at the level of the former recruited varsity players. Thus, according to Parry, the teams will eventually lose their ability to compete and will cease to exist. Some tangible impacts can already be seen. For example, there are substantial more "walk-ons"—or non-recruited players—on the gymnastics team following the graduation of seniors in Spring 1992. In volleyball, Dorothy Hert, the women's head coach, testified that no freshman joined the team for the past 1992 season to replace graduating seniors; the team is currently down to 11 members and next fall the team will have only five returning varsity members. On the scheduling front, the volleyball team also suffered some adverse consequences in 1991-92 and 1992-93. When an announcement was made that the four sports would no longer receive university funding, Northeastern University and Army called Brown to inform them that they no longer wanted to include the school on their schedule. Plaintiffs' Exhibit 17.

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[10] Volleyball operated on $41,500 in university funds and $2789 in gift funds in 1990-91. In 1991-92, volleyball subsisted on approximately $21,000. In 1990-91, gymnastics had approximately $14,000, plus its head coach's salary of $10,500. In 1992-93, gymnastics operated on roughly $6600, plus the coach's salary.

Current Brown athletic officials have acknowledged that intercollegiate club status is a clear step down for these teams. Robert Clausen, an Associate Athletic Director, conceded that Brown could have kept the women's teams at the varsity level and simply taken away their funding.[11] Jeffrey Ward, another Associate Athletic Director, testified that by changing the status of the two women's squads, Brown was altering the focus of the kind of future students it expected to attract to those teams. He also stated that athletes at the varsity level are more skilled and the level of competition is generally more intense. Finally, David Roach admitted that varsity and intercollegiate club represent separate levels of athletic competition, with varsity at the top. He confirmed that varsity status involves a level of commitment by Brown to a team that the university will support the teams and ensure their continued existence. Indeed, Mr. Roach was so concerned about these differing classifications, that he wrote a memo in December 1991 directing coaches of the four demoted teams (plus the fencing teams) to discontinue the use of the team "club varsity" to avoid leaving "high school seniors with a false impression concerning the present status or future status of these sports." Plaintiffs' Exhibit 8. The bottom line is that Brown knows full well that the two women's teams will not be able to effectively compete at an intercollegiate level without varsity status, recruitment assistance, and some type of guaranteed funding arrangement by the university.

Of course, Brown should be free to downscale its varsity program, or even abolish the program altogether. As the defendants note, the Investigator's Manual states that "Title IX does not require institutions to offer athletics programs nor, if any athletics program is offered, is there any requirement that the program be particularly good . . ." Manual at 10. But if Brown insists on operating its

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[11] This non-funded varsity status currently exists for the men's squash team.

present varsity scheme, it must increase the number of women varsity athletes or demonstrate that there are not sufficient numbers of women interested or qualified to compete at the varsity level, regardless of whether the university provides intercollegiate club, club, intramural or recreational outlets. It is only marginally significant that Brown demoted two men's varsity teams along with the women's teams. Men still occupy a greater percentage of varsity slots than women in relation to their undergraduate populations. And under the three-part test, the university has a continuing burden to justify its lack of statistical parity as long as that imbalance exists.[12]

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[12] In support of their argument that Title IX does not require strict proportionality, defendants bring to the Court's attention two Letters of Findings issued by the Office of Civil Rights (OCR) which found compliance under § 106.41(c)(1) where proportional participation was not present at a university.

In my view, neither of these two letters provide much support for their position. The first letter was issued on July 10, 1989, to the University of Nebraska at Lincoln (UNL). Overall, OCR determined that UNL was *not* in compliance with § 106.41(c). However, OCR did find that the university satisfied § 106.41(c)(1) through the *application of the three-part test spelled out in the Policy Interpretation.* While OCR found that the percentage of women participating in intercollegiate athletics at UNL was proportionate to their enrollment, it also found that: (a) there had been no decrease in the number of opportunities for women to participate in intercollegiate athletics over the previous 8 years; (b) there were no future plans to decrease the number of opportunities for women to compete; and (c) there had been no requests by female students to create additional teams.

In the second letter, sent to the University of Arkansas on September 1, 1989, OCR also found pursuant to the three-part test, that the university complied with § 106.41(c)(1) even though the participation opportunities for male and female athletes were not substantially proportionate to their undergraduate enrollments. But in this case, OCR concluded that "the number of participation opportunities for women has increased since 1974, while the number for men has decreased." In addition, OCR found that there had been "no petitions by students to offer other sports."

b. *Competitive Opportunities: Two Additional Questions*

I now turn to the two questions contained in the Policy Interpretation focusing on competitive opportunities. Little data was presented comparing the competitive schedules of the men's and women's teams. It appears that, historically, women's teams were limited in the number and geographical scope, as well as in the competitive level, of intercollegiate contests in relation to men's teams. In recent years, however, many of these inequalities have dissipated. For example, virtually all varsity teams compete at the NCAA Division I and Ivy League level. Still, Arlene Groton, an Associate Athletic Director and Professor of Physical Education at Brown, testified that while more women's teams have been able to participate in competitions outside of New England, it has not been with the same frequency or distance available to men's teams. Plaintiffs also argue that the quality of competition of the two demoted women's team is now threatened.

My tentative view is that, "program-wide," the competitive schedules at Brown provide men and women with "equivalently advanced competitive opportunities." Thus, Brown appears to satisfy the first question. Even if not completely accurate, I believe Brown has shown "a history and continuing practice of upgrading" the level of competition for women's teams under the second question. This finding does not mean that Brown's program in any way satisfies questions two and three of the three-part test, only that the competitive opportunities in that program are proportionate to the number of men and women athletes *currently* participating. Thus, despite this preliminary ruling on competitive opportunities, I find that plaintiffs have shown a likelihood of success with respect to § 106.41(c)(1) based on Brown's likely violation of the three-part test.

5. *Other Factors Contained In § 106.41(c) And The Policy Interpretation.*

I have just held that: (1) the failure to satisfy the requirements of § 106.41(c)(1), standing alone, is sufficient to support a Title IX violation; and (2) the plaintiffs are substantially likely to prevail on their claim under § 106.41(c)(1). Although not necessary to this opinion. I will also evaluate evidence presented relating to potential violations in the other factors listed in § 106.41(c) and contained in the Policy Interpretation. I believe plaintiffs have presented some compelling facts on the differences in treatment between men's and women's teams. In particular, evidence indicates substantial inequalities between the sexes in the areas of funding, publicity and recruitment. I have documented the most significant evidence presented on several of these additional elements.

a. *Funding*

Neither Title IX nor the athletic regulation require institutions to expend equal amounts of money on members of each sex. The defendants make much of this fact. However, the regulation does state that the Education Department "may consider the failure to provide necessary funds for teams for one sex in assessing equality of opportunity for members of each sex.' § 106.41(c). Further, the Policy Interpretation indicates that compliance with the regulation can hinge at least in part upon "[w]hether disparities of a substantial and unjustified nature exist in the *benefits, treatment, services,* or opportunities afforded male and female athletes . . ." 44 Fed. Reg. at 71417 (emphasis added). Thus, an examination of funding is appropriate under § 106.41(c).

Funding for athletics at Brown derives from two major sources. The first is general revenues allocated by the university to the athletic department each year. The second source is monies raised by the Brown University Sports Foundation, an entity created in 1982 to raise

funds for sports at Brown. Sports Foundation dollars are distributed through the departments regular budget process, but are separately classified as "gift accounts." [13]

In 1990-91, the total operating budget for the Brown athletic department was $7,623,131. Of this total, $5,788,898 was appropriated by the university. The Sports Foundation kicked in another $1,140,860, and the remainder came from other miscellaneous sources. Overall in 1990-91, $4,740,268 was spent on varsity sports. Men's football received the single largest chunk of the varsity money—nearly $1,280,659. Men's ice hockey and men's basketball pocketed the next largest amounts with $354,725 and $335,048, respectively. No further breakdown on the exact amounts of money spent on each men's and women's varsity teams is available from the record. However, limited data can be gleaned from the 1991 Gender Equity Study prepared by Brown for the NCAA, covering the year 1990-91. According to the Study, the total operating expenses for men's sports was $726,378 (71.2%). For women's sports, this figure was $293,798 (28.8%).[14]

With respect to recruiting efforts for varsity sports, the Study indicates that $81,532 (78.2%) was spent for men's teams while $22,737 (21.8%) was spent on women's teams.[15] Not surprisingly, men's football and ice

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[13] Smaller amounts of money are also raised by the Athletic Department through ticket sales, concessions and other activities.

[14] It appears that these figures do not represent the total operating budgets of the men's and women's programs. Rather, they are only those expenses connected with NCAA sporting contests such as lodging, meals, transportation, officials, uniforms, and equipment expenses.

The actual figures on operating expenses in the Study are $766,228 for men's teams and $333,648 for women's teams. However, the sum of $79,700 was doublecounted for track. Thus, I have divided this amount in half and adjusted the totals.

[15] Again, Brown doublecounted the amount of money it spent for track. Thus, I have divided the sum of $4500 in half and adjusted the totals.

hockey topped the list in recruitment dollars by a wide margin. Men's sports also received more money for coaches' salaries during 1990-91. The Study states that $932,227 (72.1%) was expended for head and assistant coaches for the 15 men's varsity teams during that year. On the women's side, $360,862 (27.9%) was allocated for head and assistant coaches for 14 teams.[16]

Plaintiffs claim that the amounts listed for recruiting in the Gender Equity Study do not include significant funds available to men's teams through their gift accounts. Plaintiffs also allege more generally that gift account funds disproportionately favor men's sports and exacerbate the university funding disparities between the men's and women's programs. One reason for the lopsided gift account ledgers is apparently due to the greater difficulty in raising funds for women's sports. According to an internal Brown report issued in January 1990, for example, 65% of all donations to the Sports Foundation were restricted to three men's teams: football, basketball and ice hockey. Defendants deny that the Sports Foundation favors men's teams over women's teams.

Without turning this discussion into a financial spreadsheet analysis, I want to specifically address the issue of

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[16] Brown reported $559,636 for men's head coaches and $487,074 for assistant coaches for men's teams. I subtract $5,600 for fencing and divide the squash coach's salary of $25,000 (shared with women's squash) and the head/assistant track coaches salaries of $111,642 (shared with women's track) in half, subtract $40,562 doublecounted for both men's track and men's cross-country, and adjust the results to a total of $932,227 for men's teams (72.1%).

Brown reported $351,138 for women's head coaches and $190,170 for assistant coaches for women's teams. I omit the doublecounting of the same head coach (subtract $39,831) and the same assistant coaches (subtract $32,294) for women's field hockey and women's lacrosse and for the same head coach for women's soccer and women's softball (subtract $52,500) and divide the head/assistant track coaches salaries of $11,642 in half (shared with men's track), and adjust the results to a total of $360,862 for women's teams (27.9%), with a total of $1,293,089 for coaching salaries.

gift account monies from the Sports Foundation. Brown has adopted somewhat contradictory positions with respect to these funds. On the one hand, Brown argues that their hands are often tied in spending Sports Foundation monies because it "is an entirely separate corporation—Brown does not control its restricted contributions, which can only be used for the sports designated by the donor." Defendants' Post-Hearing Memorandum at 58. The apparent reasoning behind this arrangement is that many donors do not want to "subsidize" teams, but rather seek to "enhance" funding for specific teams (e.g., a special recruiting fund for the football team).

On the other hand, the Athletic Department considers both university funding and Sports Foundation dollars as part of its overall budget. According to Brown's 1992-93 Athletic Department Policy Manual, total budgets for each team are "basically the sum" of university funds and gift accounts. Plaintiffs' Exhibit 22 at 14. The Manual also states that all of these "monies belong to the University." *Id.* It is presumably from this frame of reference that Brown officials have exercised considerable discretion over how gift accounts monies are allocated despite the wishes of specific donors. For example, David Roach prohibited the parents of some volleyball team members from paying Dorothy Hert a salary of $18,000 through the Sports Foundation even though the parents agreed to contribute or raise the necessary funds.

In my view, all monies spent by Brown's Athletic Department, whether originating from university coffers or from the Sports Foundation, must be evaluated as a whole under § 106.41(c). Thus, Title IX covers all Sports Foundation funds allocated to Brown athletics. This position is consistent with the Investigator's Manual, which warns that where "booster clubs" or other fund-raising organizations help only members of one sex, the university must balance out these differences. The Manual states:

> . . . institutions must ensure that equivalent benefits and services are provided to members of both sexes. Therefore, where booster clubs provide benefits or services that assist only teams of one sex, the institution shall ensure that teams of the other sex receive equivalent benefits and services. If booster clubs provide benefits and services to athletes of one sex that are greater than what the institution is capable of providing to athletes of the other sex, then the institution shall take action to ensure that benefits and services are equivalent for both sexes.

Manual at 5. Although I have just held that Sports Foundation monies spent on Brown athletics are within the ambit of Title IX, I am not in a position at this juncture to determine exactly where, if at all, Brown's allocation of Sports Foundation monies has created legally significant inequities with respect to benefits and services, or where such allocations are infringing upon the equal opportunities of one sex. However, this is an issue I intend to address when this case proceeds on the merits.

b. *Equipment and Supplies*

The athletic regulation specifically lists "equipment and supplies" as a factor to consider in determining compliance with Title IX. § 106.41(c)(2). Plaintiffs presented only scattered evidence on this criteria. For example, Arlene Groton testified that in the past the field hockey team did not have enough uniforms to outfit substitutes and that team members had to undress on the field. She also testified that it was her impression that members of the men's ice hockey team are provided new uniforms every one or two years, while the women's ice hockey team gets uniforms every four or five years. There was also testimony that since the gymnastics team lost varsity status, it has not had enough money to provide leotards for each competitor.

c. *Coaching*

The issue of coaching is listed in § 106.41(c)(5). Most of the evidence offered by plaintiffs on this factor related to historical inequalities. At the present time, plaintiffs claim that most of the remaining problems are concentrated at the assistant coach level. For example, the men's basketball team has two full-time assistants, while the women's team has only one full-time assistant and one part-time assistant. Similar assistant coaching disparities apparently exist between the men's and women's lacrosse, ice hockey and crew teams. In addition, as noted above, there is a wide gap in the levels of compensation paid to coaches of women's teams in relation to men's teams.

d. *Facilities*

Section 106.41(c)(7) focuses on "locker rooms, practice and competitive facilities." Again, most of the evidence presented on this factor was historical. Perhaps the most glaring problem that still exists is the ice hockey locker room facilities at Meehan Auditorium. One women's varsity ice hockey player explained at the hearing that the women's ice hockey locker room is significantly smaller than and inferior to the men's locker room.

e. *Publicity*

Publicity is listed as a factor in § 106.41(c)(10). There is strong evidence of inequalities in this area. The chief reason is that Brown's Sports Information Office, which provides media and publicity support for teams, devotes the bulk of its attention on men's football, basketball and ice hockey. Joan Taylor testified, for example, that she believed the Sports Information Office routinely assigns representatives to cover both home and away games of men's football, basketball and ice hockey. On

the women's side, Ms. Taylor could only think of women's basketball as receiving comparable coverage. Intercollegiate clubs do not receive any such Sports Information support.

f. *Recruitment*

Recruitment is not listed under § 106.41(c), but is considered a target area in the Policy Interpretation. As noted above, data show that in 1990-91 men's teams received more than three times the amount of recruiting dollars, than women's teams. In total, Brown spent $81,532 on men's teams and $22,737 on women's teams.[17] The two biggest beneficiaries were men's football and ice hockey.

Robert Clausen also testified that men's teams have more cars available to their coaches than women's teams for recruiting. As of the summer of 1990, no women's team had a car available. In contrast, football had six cars, men's basketball had three cars, and men's ice hockey and lacrosse each had one car. Since that time, women's basketball has been provided a car.

While inconclusive at this stage of the proceeding, plaintiffs have presented evidence showing possible violations of other elements of Title IX. After further discovery, plaintiffs may be able to prove such infractions. For the moment, however, I decline to rule on these issues. Having determined that plaintiffs are likely to succeed on the merits, I now turn to the remaining components for determining whether to grant injunctive relief.

B. *Irreparable Harm*

I see no need to belabor the issue of irreparable harm. Plaintiffs have demonstrated a strong likelihood of irrep-

[17] Again, plaintiffs claim that these figures do not include substantial amounts of recruiting monies available to men's teams from gift accounts.

arable harm in three major areas. The first is recruitment In the absence of injunctive relief, women's gymnastics and volleyball will be unable to attract varsity-caliber athletes to Brown. Both Jacqueline Court and Dorothy Hert testified that they have had a difficult time recruiting qualified students to Brown since the change in status. Both coaches also remarked that even a temporary order by this Court restoring their varsity status would help their efforts to attract freshman recruits. They also testified that over 50 high school seniors have expressed interest to each of them in attending Brown and participating at the varsity level. With restored varsity status, Hert explained, the volleyball team would have the necessary admissions preferences to allow her targeted recruits to be admitted to Brown, even if they had lesser academic credentials than the average incoming freshman. Hert also testified that the Admissions Office did not admit any of the volleyball candidates she submitted to them last year. While the formal application deadline for next year is January 1, 1993, a document written by the Admissions Office entitled, "Coach's Handbook, Admission Procedures, Class of 1997," and dated August 15, 1992, states that applications for varsity athletic recruits will be accepted as late as March 5, 1993. Plaintiffs Exhibit 27 at 5, 10. Thus, immediate injunctive relief would allow these teams to recruit effectively for the 1993-94 seasons.

The second area of irreparable harm is the "competitive" posture of the two women's teams. As discussed in length above, there is little question that the women's teams will be unable to maintain the same level of intercollegiate competition in their demoted capacity as they did when they were varsity sports. Again, part of the problem stems from the inability to recruit new team members that will have the talent or ability to compete at the level of the former recruited varsity players. Already there are substantially more "walk-ons" on both

teams. In addition, both teams have seen cut-backs in their competitive opportunities. As noted, Northwestern University and Army informed Brown shortly after the change in status that they no longer wanted to compete against the volleyball team. Plaintiff Eileen Rocchio was unable to compete in the NCAA regionals due to budgtery constraints. And David Roach, perhaps signifying the Athletic Department's lowered expectations for intercollegiate club sports, refused to allow the volleyball team to host the fall 1992 Ivy League championship.

The third area of harm relates to coaching staff. In the absence of preliminary relief, gymnastics probably will not have enough money to employ a new head coach after Ms. Court's contract expires in June 1993. Based on past fundraising efforts, it appears unlikely that the team will be able to raise at least $10,000 more than it has in the past in order to pay a head coach's salary. Without a coach, there is little chance the gymnastics team will be a viable intercollegiate competitor.[18]

Defendants advance several arguments why plaintiffs have not demonstrated irreparable harm. All are without merit. They first argue that plaintiffs cannot demonstrate irreparable harm because there is no legally significant difference between intercollegiate club teams and varsity teams. I have already explained in detail why I believe intercollegiate club status is not equivalent to varsity status under the existing Brown program. Thus, I reject this argument outright.

Another argument put forward by defendants is that the two women's teams can still actively recruit new members. They note, for example, that at least two of the plaintiffs decided to attend Brown *after* they learned that gym-

[18] I should note that neither of the two demote l men's teams—water polo and golf—are currently in danger of losing their head coaches. At the hearing, testimony revealed that both coaches have paid positions in other areas of the Brown Athletic Department.

nastics and volleyball were "unfunded." Further, defendants argue that many students will come to Brown whether they are recruited or not because of its reputation for academic excellence. The problem with defendants' argument is that it rests upon the assumption that any team, whether it compete at a superior level or a low level, satisfies the requirements of Title IX. As stated repeatedly throughout this opinion, however, § 106.41(c)(1) requires institutions to "effectively accommodate the interests and abilities" of its students. In addition, § 106.41 (c)(1) specifically addresses the issue of "levels of competition." In short, not all intercollegiate teams are the same.

Defendants also refute plaintiffs' claim that there are admission preferences available to varsity teams. David Roach testified that Brown does not guarantee admission of a particular number of people for any varsity sport. Rather, in his words, "[t]here's a range or a pattern or a number but it is only relative to the academic credentials of the people who apply." He added that the "admissions process" between the athletic department and the Admissions office "allows the coach to have a better understanding of what the . . . chances are of someone being accepted and to not waste their time recruiting someone who's not going to be accepted." Transcript, November 12, 1992, at 88.

Despite these disavowals, there was ample evidence presented that recruitment or admissions preferences exist at Brown, even if the exact number of slots for each team are not carved in stone. For example, in a memo dated December 11, 1990 to Ed Reed, the men's swimming and water polo coach, David Roach wrote regarding the "Number of Acceptances from Admissions":

> Ed, to further clarify your number of acceptances for this year. Your minimum numbers are 20 for

> swimming and 4 for water polo. These numbers are the least that you would receive.
>
> I hope this better defines the numbers for you.

Plaintiffs' Exhibit 25. In addition, as indicated above, Brown publishes a "Coach's Handbook" on "admission procedures." Among other things, the Handbook for the Class of 1997 lists the Admission's Office "liaison" for each varsity team. Women's volleyball and gymnastics are not included on the current list, although these teams were assigned liaisons in the Class of 1994 Handbook. The 1997 Handbook also lays out key dates for presenting names of potential recruits and provides forms for ranking top choices that must be submitted to the Admissions Office.[19]

Lastly, defendants assert that Title IX does not recognize individual harm. They quote from the Policy Interpretation, which states: "If women athletes, as a class, are receiving opportunities and benefits equal to those of male athletes, individuals within the class should be protected thereby." 44 Fed. Reg. 71421. But women athletes are *not* receiving opportunities and benefits equal to their male counterparts. I have held that Brown is not effectively accommodating the interests and abilities of the two women's teams under § 106.41(c)(1). Thus, in my view, there is class-wide injury to women athletes at Brown under this provision.

This brings me to an important point about the nature of the relief I am granting. I am sensitive to defendants' concerns about requiring specific teams to be funded as varsity. And I have no desire to micromange Brown's athletic program. Under § 106.41(c)(1), Brown has wide latitude in structuring its intercollegiate athletic program. Brown may choose, for example, to drastically

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[19] John Parry testified that when he was Brown's Athletic Director in 1983, he was told by the Director of Admissions that 90% of the athletes who were accepted by Brown would not have been admitted if they weren't on a coach's admissions preference list.

reduce the number of intercollegiate teams it sponsors. Or it may decide to eliminate the varsity program altogether. Brown may not, however, operate an intercollegiate program that disproportionately provides greater participation opportunities to one sex in relation to undergraduate enrollments, where there is no evidence of continuing program expansion or effective accommodation of the interests and abilities of its students. And that is exactly what plaintiffs have shown a likelihood of success of proving in this case.

Defendants argue that the purpose of a preliminary injunction is to preserve the status quo until a trial on merits can be held. The First Circuit has defined the status quo as the " 'last uncontested status which preceded the pending controversy.' " *Crowley v. Local No. 82, Furniture & Piano Moving, Furniture Store Drivers, Helpers, Warehousemen, and Packers*, 679 F.2d 978, 995 (1st Cir. 1982), *rev'd on other grounds*, 467 U.S. 526 (1984) (quoting *Westinghouse Electric Corp. v. Free Sewing Machine Co.*, 256 F.2d 806, 808 (7th Cir. 1958)). In the case at hand, the status quo existed in May 1991, immediately before the change in status of the four teams. Many of the named plaintiffs protested the change in status from the moment David Roach made the announcement, and continued to resist the demotion until this lawsuit was filed. Moreover, even if the current configuration of teams were considered the status quo, restoring women's gymnastics and volleyball to full varsity status through a preliminary injunction is the only effective tool available to this Court to prevent irreparable harm. *Crowley*, 679 F.2d at 995-996; *see also Ferry-Morse Seed Co. v. Food Corn, Inc.*, 729 F.2d 589, 593 (8th Cir. 1984) (". . . where the status quo is a condition not of rest, but of action, and the condition of rest . . . will cause irreparable harm, a mandatory preliminary injunction is proper").[20] For the same reason, I must also

[20] Defendants also assert that a "mandatory" preliminary injunction should only be granted in exceptional circumstances. Judge

preliminarily enjoin Brown from reducing the status or funding of any other women's varsity team until this case is resolved on the merits. If I should rule in plaintiffs' favor on the merits, I would *then* allow Brown the opportunity to present its own plan to the Court on how it intends to comply with the requirements of § 106.41 (c)(1).[21]

C. *Balancing of Relevant Equities*

Brown argues that the granting of a preliminary injunction would be a significant hardship on the university. I disagree. Brown's primary argument is that the injunction would interfere with the university's budgeting process.

Breyer addressed this argument in *United Steelworkers of America v. Textron, Inc.*, 836 F.2d 6, 10 (1st Cir. 1987), stating that "the relevant First Circuit authority does no more than suggest that courts disfavor injunctions that disturb, rather than preserve, the status quo. And this fact, in turn suggests that we should view [such an injunction] not as mandatory, but as prohibitory" (citations omitted).

I also note that the First Circuit has recognized that " '[d]istrict courts have broad discretion to evaluate the irreparability of the alleged harm and to make determinations regarding the propriety of injunctive relief.' " *K-Mart Corp. v. Oriental Plaza*, 875 F.2d 907, 915 (1st Cir. 1989) (quoting *Wagner v. Taylor*, 836 F.2d 566, 575-76 (D.C.Cir. 1987)).

[21] On a general note, I would like to add that I was rather surprised at Brown's apparent indifference towards Title IX. Both David Roach and Robert Clausen, top decisionmakers in the Athletic Department, testified that while they were cognizant of Title IX, they did not review the statute or the athletic regulation in reaching their decision to reduce the status of the four teams. Mr. Roach and Mr. Clausen also stated that they had not heard of the Official Policy Interpretation, nor did they conduct any studies to assess Brown's compliance with Title IX. In making the cuts, Mr. Clausen also testified that the Department had no intent to structure the number of varsity opportunities to reflect the percentage of men and women undergraduates, but rather only to downsize the program in proportion to the existing varsity athletes. From the evidence presented, it also appears that Brown has not conducted any Title IX studies since 1979.

Their key witness on this point was Brown's Financial Vice-President, Dr. Donald Reaves. In response to a question from the Court, Dr. Reaves testified that complying with a court order to fund the gymnastics and volleyball teams would, in his view, result "in the loss of control over decisions that need to be made at the university." Transcript of November 12, 1992, at 17.

I fully appreciate Brown's position and understand that it faces painful budgetary decisions. However, the amount of money required to restore these two teams is minuscule in relation to Brown's overall budget. Cutting these two teams saved the university roughly $62,000 per year. Dr. Reaves testified that Brown annually sets aside 1% of its operating budget for unanticipated expenses in the President's "contingency fund." At the present time, this fund has approximately $1.5 million in uncommitted monies. Robert Clausen also indicated that the Athletic Department has other sources of unrestricted and unbudgeted revenues. For example, the department receives unrestricted gift monies from the Sports Foundation each year. In 1990-91, the Department spent roughly $50,000 out of that account, with an additional $37,000 left over. In 1991-92, $77,500 was taken out of that account and a total of $139,000 was available that year.

In sum, I do not believe the temporary funding of these two women's teams would be an undue burden on Brown University.

D. *Public Interest*

Brown has likely violated Title IX by not providing women with equal opportunities in the operation of its intercollegiate program. In my view, the public interest will be served by vindicating a legal interest that Congress has determined to be an important one. Moreover, I do not believe the requested injunctive relief would have a detrimental effect on the public interest.

V. *Conclusion*

For all the reasons stated above, Brown University is ordered to take the following actions immediately:

1. Restore women's gymnastics and women's volleyball to their former status as fully funded intercollegiate varsity teams in Brown's intercollegiate athletic program;

2. Provide coaching staff, uniforms, equipment, facilities, publicity, travel opportunities and all other incidentals of an intercollegiate varsity team at Brown to women's gymnastics and women's volleyball on a basis to that provided to these teams during the 1990-91 school year;

3. Provide university funding to the two women's teams in an amount equal to that provided to the teams during the 1990-91 school year;

4. Provide an on-campus office, long-distance telephone and clerical support for the head coaches of the two teams, assign admissions liaisons, restore special admissions consideration to athletic recruits identified by the head coaches, and extend the deadline for filing applications to Brown for such recruits to the same date as the latest accorded to any recruits identified by other intercollegiate varsity teams for 1992-93, or by March 5, 1993, whichever is later; and

5. Prohibit the elimination or reduction in status, or the reduction in the current level of university funding, of any existing women's intercollegiate varsity team until this case is resolved on the merits.

Let me reiterate that I view the restoration of the two women's teams to full varsity status as a temporary solution. If I find at a trial on the merits that Brown has violated Title IX with respect to § 106.41(c)(1), I will leave it to Brown to draw up its own plan for complying with this provision. In short, Brown has the ultimate discretion in how it chooses to structure its intercollegiate athletic

program, if it decides to operate one at all, so long as it satisfies the dictates of Title IX.

So ORDERED:

/s/ Raymond J. Pettine
RAYMOND J. PETTINE
Senior U.S. District Judge

December 22, 1992

Entered as an Order of this Court on December 22, 1992.

/s/ Illegible

CONSTITUTIONAL PROVISIONS, STATUTES, REGULATIONS, AND AGENCY INTERPRETATION

UNITED STATES CONSTITUTION, AMENDMENT V

ARTICLE [V.]

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

20 U.S.C. § 1681(a) (1994)

§ 1681. Sex

(a) Prohibition against discrimination; exceptions

No person in the United States shall, on the basis of sex, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance, except that:

(1) Classes of educational institutions subject to prohibition

in regard to admissions to educational institutions, this section shall apply only to institutions of vocational education, professional education, and graduate higher education, and to public institutions of undergraduate higher education;

(2) Educational institutions commencing planned change in admissions

in regard to admissions to educational institutions, this section shall not apply (A) for one year from June 23, 1972, nor for six years after June 23, 1972, in the case of an educational institution which has begun the process of changing from being an institution which admits only students of one sex to being an institution which admits students of both sexes, but only if it is carrying out a plan for such a change which is approved by the Secretary of Education or (B) for seven years from the date an educational institution begins the process of changing from being an institution which admits only students of only one sex to being an institution which admits students of both sexes, but only if it is carrying out a plan for such a change which is approved by the Secretary of Education, whichever is the later;

(3) Educational institutions of religious organizations with contrary religious tenets

this section shall not apply to an educational institution which is controlled by a religious organization if the application of this subsection would not be consistent with the religious tenets of such organization;

(4) Educational institutions training individuals for military services or merchant marine

this section shall not apply to an educational institution whose primary purpose is the training of individuals for the military services of the United States, or the merchant marine;

(5) Public educational institutions with traditional and continuing admissions policy

in regard to admissions this section shall not apply to any public institution of undergraduate higher education which is an institution that traditionally and continually from its establishment has had a policy of admitting only students of one sex;

(6) Social fraternities or sororities; voluntary youth service organizations

this section shall not apply to membership practices—

(A) of a social fraternity or social sorority which is exempt from taxation under section 501(a) of title 26, the active membership of which consists primarily of students in attendance at an institution of higher education, or

(B) of the Young Men's Christian Association, Young Women's Christian Association, Girl Scouts, Boy Scouts, Camp Fire Girls, and voluntary youth service organizations which are

so exempt, the membership of which has traditionally been limited to persons of one sex and principally to persons of less than nineteen years of age;

(7) Boy or Girl conferences

this section shall not apply to—

(A) any program or activity of the American Legion undertaken in connection with the organization or operation of any Boys State conference, Boys Nation conference, Girls State conference, or Girls Nation conference; or

(B) any program or activity of any secondary school or educational institution specifically for—

(i) the promotion of any Boys State conference, Boys Nation conference, Girls Nation conference; or

(ii) the selection of students to attend any such conference;

(8) Father-son or mother-daughter activities at educational institutions

this section shall not preclude father-son or mother-daughter activities at an educational institution, but if such activities are provided for students of one sex, opportunities for reasonably comparable activities shall be provided for students of the other sex; and

(9) Institution of higher education scholarship awards in "beauty" pageants

this section shall not apply with respect to any scholarship or other financial assistance awarded by any individual because such individual has received such award in any pageant in which the attainment of such award is based upon a combination of factors

related to the personal appearance, poise, and talent of such individual and in which participation is limited to individuals of one sex only, so long as such pageant is in compliance with other nondiscrimination provisions of Federal law.

20 U.S.C. § 1681(b) (1994)

(b) Preferential or disparate treatment because of imbalance in participation or receipt of Federal benefits; statistical evidence or imbalance

Nothing contained in subsection (a) of this section shall be interpreted to require any educational institution to grant preferential or disparate treatment to the members of one sex on account of an imbalance which may exist with respect to the total number or percentage of persons of that sex participating in or receiving the benefits of any federally supported program or activity, in comparison with the total number or percentage of persons of that sex in any community, State, section, or other area: *Provided,* That this subsection shall not be construed to prevent the consideration in any hearing or proceeding under this chapter of statistical evidence tending to show that such an imbalance exists with respect to the participation in, or receipt of the benefits of, any such program or activity by the members of one sex.

20 U.S.C. § 1681 note (1994)

REGULATIONS; NATURE OF PARTICULAR SPORTS: INTERCOLLEGIATE ATHLETIC ACTIVITIES

Pub. L. 93-380, title VIII, § 844, Aug. 21, 1974, 88 Stat. 612, directed Secretary to prepare and publish, not more than 30 days after Aug. 21, 1974, proposed regulations implementing the provisions of this chapter regarding prohibition of sex discrimination in federally assisted programs, including reasonable regulations for intercollegi-

ate athletic activities considering the nature of the particular sports.

20 U.S.C. § 1682 (1994)

§ 1682. Federal administrative enforcement; report to Congressional committees

Each Federal department and agency which is empowered to extend Federal financial assistance to any education program or activity, by way of grant, loan, or contract other than a contract of insurance or guaranty, is authorized and directed to effectuate the provisions of section 1681 of this title with respect to such program or activity by issuing rules, regulations, or orders of general applicability which shall be consistent with achievement of the objectives of the statute authorizing the financial assistance in connection with which the action is taken. No such rule, regulation, or order shall become effective unless and until approved by the President. Compliance with any requirement adopted pursuant to this section may be effected (1) by the termination of or refusal to grant or to continue assistance under such program or activity to any recipient as to whom there has been an express finding on the record, after opportunity for hearing, of a failure to comply with such requirement, but such termination or refusal shall be limited to the particular political entity, or part thereof, or other recipient as to whom such a finding has been made, and shall be limited to the particular political entity, or part thereof, or other recipient as to whom such a finding has been made, and shall be limited in its effect to the particular program, or part thereof, in which such noncompliance has been so found, or (2) by any other means authorized by law: *Provided, however,* That no such action shall be taken until the department or agency concerned has advised the appropriate person or persons of the failure to

comply with the requirement and has determined that compliance cannot be secured by voluntary means. In the case of any action terminating, or refusing to grant or continue, assistance because of failure to comply with a requirement imposed pursuant to this section, the head of the Federal department or agency shall file with the committees of the House and Senate having legislative jurisdiction over the program or activity involved a full written report of the circumstances and the grounds for such action. No such action shall become effective until thirty days have elapsed after the filing of such report.

(Pub. L. 92-318, title IX, § 902, June 23, 1972, 86 Stat. 374.)

42 U.S.C. § 2000d (1994)

§ 2000d. Prohibition against exclusion from participation in, denial of benefits of, and discrimination under federally assisted programs on ground of race, color, or national origin

No person in the United States shall, on the ground of race, color, or national origin, be excluded from participation in, be denied the benefits of, or be subjected to discrimination under any program or activity receiving Federal financial assistance.

(Pub. L. 88-352, title VI, § 601, July 2, 1964, 78 Stat. 252.)

42 U.S.C. § 2000e-2(a) (1994)

§ 2000e-2. Unlawful employment practices

(a) Employer practices

It shall be an unlawful employment practice for an employer—

(1) to fail or refuse to hire or to discharge any individual, or otherwise to discriminate against any individual with respect to his compensation, terms,

conditions, or privileges of employment, because of such individual's race, color, religion, sex, or national origin; or

(2) to limit, segregate, or classify his employees or applicants for employment in any way which would deprive or tend to deprive any individual of employment opportunities or otherwise adversely affect his status as an employee, because of such individual's race, color, religion, sex, or national origin.

42 U.S.C. § 2000e-2(j) (1994)

(j) Preferential treatment not to be granted on account of existing number of percentage imbalance

Nothing contained in this subchapter shall be interpreted to require any employer, employment agency, labor organization, or joint labor-management committee subject to this subchapter to grant preferential treatment to any individual or to any group because of the race, color, religion, sex, or national origin of such individual or group on account of an imbalance which may exist with respect to the total number or percentage of persons of any race, color, religion, sex, or national origin employed by any employer, referred or classified for employment by any employment agency or labor organization, admitted to membership or classified by any labor organization, or admitted to, or employed in, any apprenticeship or other training program, in comparison with the total number or percentage of persons of such race, color, religion, sex, or national origin in any community, State, section, or other area, or in the available work force in any community, State, section, or other area.

34 C.F.R. § 106.41

§ 106.41 Athletics.

(a) *General.* No person shall, on the basis of sex, be excluded from participation in, be denied the benefits of, be treated differently from another person or otherwise be discriminated against in any interscholastic, intercollegiate, club or intramural athletics offered by a recipient, and no recipient shall provide any such athletics separately on such basis.

(b) *Separate teams.* Notwithstanding the requirements of paragraph (a) of this section, a recipient may operate or sponsor separate teams for members of each sex where selection for such teams is based upon competitive skill or the activity involved is a contact sport. However, where a recipient operates or sponsors a team in a particular sport for members of one sex but operates or sponsors no such team for members of the other sex, and athletic opportunities for members of that sex have previously been limited, members of the excluded sex must be allowed to try-out for the team offered unless the sport involved is a contact sport. For the purposes of this part, contact sports including boxing, wrestling, rugby, ice hockey, football, basketball and other sports the purpose or major activity of which involves bodily contact.

(c) *Equal opportunity.* A recipient which operates or sponsors inter-scholastic, intercollegiate, club or intramural athletics shall provide equal athletic opportunity for members of both sexes. In determining whether equal opportunities are available the Director will consider, among other factors:

(1) Whether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes;

(2) The provision of equipment and supplies;

(3) Scheduling of games and practice time;

(4) Travel and per diem allowance;

(5) Opportunity to receive coaching and academic tutoring;

(6) Assignment and compensation of coaches and tutors;

(7) Provision of locker rooms, practice and competitive facilities;

(8) Provision of medical and training facilities and services;

(9) Provision of housing and dining facilities and services;

(10) Publicity.

Unequal aggregate expenditures for members of each sex or unequal expenditures for male and female teams if a recipient operates or sponsors separate teams will not constitute non-compliance with this section, but the Assistant Secretary may consider the failure to provide necessary funds for teams for one sex in assessing equality of opportunity for members of each sex.

(d) *Adjustment period.* A recipient which operates or sponsors inter-scholastic, intercollegiate, club or intramural athletics at the elementary school level shall comply fully with this section as expeditiously as possible but in no event later than one year from the effective date of this regulation. A recipient which operates or sponsors interscholastic, intercollegiate, club or intramural athletics at the secondary or post-secondary school level shall comply fully with this section as expeditiously as possible but in no event later than three years from the effective date of this regulation.

(Authority: Secs. 901, 902, Education Amendments of 1972, 86 Stat. 373, 374; 20 U.S.C. 1681, 1682; and Sec. 844, Education Amendments of 1974, Pub. L. 93-380, 88 Stat. 484)

44 Fed. Reg. 71413-71419

DEPARTMENT OF HEALTH, EDUCATION, AND WELFARE

Office for Civil Rights

Office of the Secretary

45 CFR Part 86

Title IX of the Education Amendments of 1972; a Policy Interpretation; Title IX and Intercollegiate Athletics

AGENCY: Office for Civil Rights, Office of the Secretary, HEW.

ACTION: Policy interpretation.

SUMMARY: The following Policy Interpretation represents the Department of Health, Education, and Welfare's interpretation of the intercollegiate provisions of Title IX of the Education Amendments of 1972 and its implementing regulation. Title IX prohibits educational programs and institutions funded or otherwise supported by the Department from discriminating on the basis of sex. The Department published a proposed Policy Interpretation for public comment on December 11 1978. Over 700 comments reflecting a broad range of opinion were received. In addition, HEW staff visited eight universities during June and July, 1979, to see how the proposed policy and other suggested alternatives would apply in actual practice at individual campuses. The final Policy Interpretation reflects the many comments HEW received and the results of the individual campus visits.

EFFECTIVE DATE: December 11, 1979

FOR FURTHER INFORMATION CONTACT: Colleen O'Connor, 330 Independence Avenue, Washington, D.C. (202)245-6671

SUPPLEMENTARY INFORMATION:

I. Legal Background

A. The Statute

Section 901(a) of Title IX of the Education Amendments of 1972 provides:

> No person in the United States shall, on the basis of sex, be excluded from participation, in, be denied the benefits of, or be subjected to discrimination under any education program or activity receiving Federal financial assistance.

Section 844 of the Education Amendments of 1974 further provides:

> The Secretary of (of HEW) shall prepare and publish * * * proposed regulations implementing the provisions of Title IX of the Education Amendments of 1972 relating to the prohibition of sex discrimination in federally assisted education programs which shall include with respect to intercollegiate athletic activities reasonable provisions considering the nature of particular sports.

Congress passed Section 844 after the Conference Committee deleted a Senate floor amendment that would have exempted revenue-producing athletics from the jurisdiction of Title IX.

B. The Regulation

The regulation implementing Title IX is set forth, in pertinent part, in the Policy Interpretation below. It was signed by President Ford on May 27, 1975, and submitted to the Congress for review pursuant to Section 431(d)(1) of the General Education Provisions Act (GEPA).

During this review, the House Subcommittee on Postsecondary Education held hearings on a resolution dis-

approving the regulation. The Congress did not disapprove the regulation within the 45 days allowed under GEPA, and it therefore became effective on July 21, 1975.

Subsequent hearings were held in the Senate Subcommittee on Education on a bill to exclude revenues produced by sports to the extent they are used to pay the costs of those sports. The Committee, however, took no action on this bill.

The regulation established a three year transition period to give institutions time to comply with its equal athletic opportunity requirements. That transition period expired on July 21, 1978.

II. Purpose of Policy Interpretation

By the end of July 1978, the Department had received nearly 100 complaints alleging discrimination in athletics against more than 50 institutions of higher education. In attempting to investigate these complaints, and to answer questions from the university community, the Department determined that it should provide further guidance on what constitutes compliance with the law. Accordingly, this Policy Interpretation explains the regulation so as to provide a framework within which the complaints can be resolved, and to provide institutions of higher education with additional guidance on the requirements for compliance with Title IX in intercollegiate athletic programs.

III. Scope of Application

This Policy Interpretation is designed specifically for intercollegiate athletics. However, its general principles will often apply to club, intramural, and interscholastic athletic programs, which are also covered by regulation.[1]

[1] The regulation specifically refers to club sports separately from intercollegiate athletics. Accordingly, under this Policy Interpretation, club teams will not be considered to be intercollegiate teams

Accordingly, the Policy Interpretation may be used for guidance by the administrators of such programs when appropriate.

This policy interpretation applies to any public or private institution, person or other entity that operates an educational program or activity which receives or benefits from financial assistance authorized or extended under a law administered by the Department. This includes educational institutions whose students participate in HEW funded or guaranteed student loan or assistance programs. For further information see definition of "recipient" in Section 86.2 of the Title IX regulation.

IV. Summary of Final Policy Interpretation

The final Policy Interpretation clarifies the meaning of "equal opportunity" in intercollegiate athletics. It explains the factors and standards set out in the law and regulation which the Department will consider in determining whether an institution's intercollegiate athletics program complies with the law and regulations. It also provides guidance to assist institutions in determining whether any disparities which may exist between men's and women's programs are justifiable and nondiscriminatory. The Policy Interpretation is divided into three sections:

• *Compliance in Financial Assistance (Scholarships) Based on Athletic Ability:* Pursuant to the regulation, the governing principle in this area is that all such assistance should be available on a substantially proportional basis to the number of male and female participants in the institution's athletic program.

• *Compliance in Other Program Areas (Equipment and supplies; games and practice times; travel and per diem; coaching and academic tutoring; assignment and compen-*

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except in those instances where they regularly participate in varsity competition.

sation of coaches and tutors; locker rooms, and practice and competitive facilities; medical and training facilities; housing and dining facilities; publicity; recruitment; and support services): Pursuant to the regulation, the governing principle is that male and female athletes should receive equivalent treatment, benefits, and opportunities.

• *Compliance in Meeting the Interests and Abilities of Male and Female Students:* Pursuant to the regulation, the governing principle in this area is that the athletic interests and abilities of male and female students must be equally effectively accommodated.

V. Major Changes to Proposed Policy Interpretation

The final Policy Interpretation has been revised from the one published in proposed form on December 11, 1978. The proposed Policy Interpretation was based on a two-part approach. Part I addressed equal opportunity for participants in athletic programs. It required the elimination of discrimination in financial support and other benefits and opportunities in an institution's existing athletic program. Institutions could establish a presumption of compliance if they could demonstrate that:

• "Average per capita" expenditures for male and female athletes were substantially equal in the area of "readily financially measurable" benefits and opportunities or, if not, that any disparities were the result of nondiscriminatory factors, and

• Benefits and opportunities for male and female athletes, in areas which are not financially measurable, "were comparable."

Part II of the proposed Policy Interpretation addressed an institution's obligation to accommodate effectively the athletic interests and abilities of women as well as men on a continuing basis. It required an institution either:

• To follow a policy of development of its women's athletic program to provide the participation and compe-

tition opportunities needed to accommodate the growing interests and abilities of women, or

• To demonstrate that it was effectively (and equally) accommodating the athletic interests and abilities of students, particularly as the interests and abilities of women students developed.

While the basic considerations of equal opportunity remain, the final Policy Interpretation sets forth the factors that will be examined to determine an institution's actual, as opposed to presumed, compliance with Title IX in the area of intercollegiate athletics.

The final Policy Interpretation does not contain a separate section on institutions' future responsibilities. However, institutions remain obligated by the Title IX regulation to accommodate effectively the interests and abilities of male and female students with regard to the selection of sports and levels of competition available. In most cases, this will entail development of athletic programs that substantially expand opportunities for women to participate and compete at all levels.

The major reasons for the changes in approach are as follows:

(1) Institutions and representatives of athletic program participants expressed a need for more definitive guidance on what constituted compliance than the discussion of a presumption of compliance provided. Consequently the final Policy Interpretation explains the meaning of "equal athletic opportunity" in such a way as to facilities an assessment of compliance.

(2) Many comments reflected a serious misunderstanding of the presumption of compliance. Most institutions based objections to the proposed Policy Interpretation in part on the assumption that failure to provide compelling justifications for disparities in per capita expenditures would have automatically resulted in a finding of noncom-

pliance. In fact, such a failure would only have deprived an institution of the benefit of the presumption that it was in compliance with the law. The Department would still have had the burden of demonstrating that the institution was actually engaged in unlawful discrimination. Since the purpose of issuing a policy interpretation was to clarify the regulation, the Department has determined that the approach of stating actual compliance factors would be more useful to all concerned.

(3) The Department has concluded that purely financial measures such as the per capita test do not in themselves offer conclusive documentation of discrimination, except where the benefit or opportunity under review, like a scholarship, is itself financial in nature. Consequently, in the final Policy Interpretation, the Department has detailed the factors to be considered in addressing actual compliance. While per capita breakdowns and other devices to examine expenditures patterns will be used as tools of analysis in the Department's investigative process, it is achievement of "equal opportunity" for which recipients are responsible and to which the final Policy Interpretation is addressed.

A description of the comments received, and other information obtained through the comment/consultation process, with a description of Departmental action in response to the major points raised, is set forth at Appendix "B" to this document.

VI. Historic Patterns of Intercollegiate Athletics Program Development and Operations

In its proposed Policy Interpretation of December 11, 1978, the Department published a summary of historic patterns affecting the relative status of men's and women's athletic programs. The Department has modified that summary to reflect additional information obtained during the comment and consultation process. The summary is set forth at Appendix A to this document.

VII. The Policy Interpretation

This Policy Interpretation clarifies the obligations which recipients of Federal aid have under Title IX to provide equal opportunities in athletic programs. In particular, this Policy Interpretation provides a means to assess an institution's compliance with the equal opportunity requirements of the regulation which are set forth at 45 CFR 86.37(c) and 86.41(c).

A. Athletic Financial Assistance (Scholarships)

1. *The Regulation*—Section 86.37(c) of the regulation provides:

> [Institutions] must provide reasonable opportunities for such award [of financial assistance] for members of each sex in proportion to the number of students of each sex participating in * * * inter-collegiate athletics.[2]

2. *The Policy*—The Department will examine compliance with this provision of the regulation primarily by means of a financial comparison to determine whether proportionately equal amounts of financial assistance (scholarship aid) are available to men's and women's athletic programs. The Department will measure compliance with this standard by dividing the amounts of aid available for the members of each sex by the numbers of male or female participants in the athletic program and comparing the results. Institutions may be found in compliance if this comparison results in substantially equal amounts or if a resulting disparity can be explained by adjustments to take into account legitimate, nondiscriminatory factors. Two such factors are:

a. At public institutions, the higher costs of tuition for students from out-of-state may in some years be unevenly distributed between men's and women's programs.

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[2] See also § 86.37(a) of the regulation.

These differences will be considered nondiscriminatory if they are not the result of policies or practices which disproportionately limit the availability of out-of-state scholarships to either men or women.

b. An institution may make reasonable professional decisions concerning the awards most appropriate for program development. For example, team development initially may require spreading scholarships over as much as a full generation (four years) of student athletes. This may result in the award of fewer scholarships in the first few years than would be necessary to create proportionality between male and female athletes.

3. *Application of the Policy*—a. This section does not require a proportionate number of scholarships for men and women or individual scholarships of equal dollar value. It does mean that the total amount of scholarship aid made available to men and women must be substantially proportionate to their participation rates.

b. When financial assistance is provided in forms other than grants, the distribution of non-grant assistance will also be compared to determine whether equivalent benefits are proportionately available to male and female athletes. A disproportionate amount of work-related aid or loans in the assistance made available to the members of one sex, for example, could constitute a violation of Title IX.

4. *Definition*—For purposes of examining compliance with this Section, the participants will be defined as those athletes:

a. Who are receiving the institutionally-sponsored support normally provided to athletes competing at the institution involved, e.g., coaching, equipment, medical and training room services, on a regular basis during a sport's season; and

b. Who are participating in organized practice sessions and other team meetings and activities on a regular basis during a sport's season; and

c. Who are listed on the eligibility or squad lists maintained for each sport, or

d. Who, because of injury, cannot meet a, b, or c above but continue to receive financial aid on the basis of athletic ability.

B. Equivalence in Other Athletic Benefits and Opportunities

1. *The Regulation*—The Regulation requires that recipients that operate or sponsor interscholastic, intercollegiate, club, or intramural athletics, "provide equal athletic opportunities for members of both sexes." In determining whether an institution is providing equal opportunity in intercollegiate athletics, the regulation requires the Department to consider, among others, the following factors:

(1)[3]

(2) Provision and maintenance of equipment and supplies;

(3) Scheduling of games and practice times;

(4) Travel and per diem expenses;

(5) Opportunity to receive coaching and academic tutoring;

(6) Assignment and compensation of coaches and tutors;

(7) Provision of locker rooms, practice and competitive facilities;

(8) Provisions of medical and training services and facilities;

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[3] 86.41(c)(1) on the accommodation of student interests and abilities, is covered in detail in the following Section C of this policy Interpretation.

(9) Provision of housing and dining services and facilities; and

(10) Publicity

Section 86.41(c) also permits the Director of the Office for Civil Rights to consider other factors in the determination of equal opportunity. Accordingly, this Section also addresses recruitment of student athletes and provision of support services.

This list is not exhaustive. Under the regulation, it may be expanded as necessary at the discretion of the Director of the Office for Civil Rights.[4]

2. *The Policy*—The Department will assess compliance with both the recruitment and the general athletic program requirements of the regulation by comparing the availability, quality and kinds of benefits, opportunities, and treatment afforded members of both sexes. Institutions will be in compliance if the compared program components are equivalent, that is, equal or equal in effect. Under this standard, identical benefits, opportunities, or treatment are not required, provided the overall effect of any differences is negligible.

If comparisons of program components reveal that treatment, benefits, or opportunities are not equivalent in kind, quality or availability, a finding of compliance may still be justified if the differences are the result of nondiscriminatory factors. Some of the factors that may justify these differences are as follows:

a. Some aspects of athletic programs may not be equivalent for men and women because of unique aspects of particular sports or athletic activities. This type of distinction was called for by the "Javits' Amendment"[5] to Title IX, which instructed HEW to make "reasonable

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[4] See also 86.41(a) and (b) of the regulation.

[5] Section 844 of the Education Amendments of 1974, Pub. L. 93-380, Title VIII. (August 21, 1974) 88 Stat. 612.

(regulatory) provisions considering the nature of particular sports" in intercollegiate athletics.

Generally, these differences will be the result of factors that are inherent to the basic operation of specific sports. Such factors may include rules of play, nature/replacement of equipment, rates of injury resulting from participation, nature of facilities required for competition, and the maintenance/upkeep requirements of those facilities. For the most part, differences involving such factors will occur in programs offering football, and consequently these differences will favor men. If sport-specific needs are met equivalently in both men's and women's programs, however, differences in particular program components will be found to be justifiable.

b. Some aspects of athletic programs may not be equivalent for men and women because of legitimately sex-neutral factors related to special circumstances of a temporary nature. For example, large disparities in recruitment activity for any particular year may be the result of annual fluctuations in team needs for first-year athletes. Such differences are justifiable to the extent that they do not reduce overall equality of opportunity.

c. The activities directly associated with the operation of a competitive event in a single-sex sport may, under some circumstances, create unique demands or imbalances in particular program components. Provided any special demands associated with the activities of sports involving participants of the other sex are met to an equivalent degree, the resulting differences may be found nondiscriminatory. At many schools, for example, certain sports—notably football and men's basketball— traditionally draw large crowds. Since the costs of managing an athletic event increase with crowd size, the overall support made available for event management to men's and women's programs may differ in degree and kind. These differences would not violate Title IX if the recipient does not limit the potential for women's athletic events to rise in specta-

tor appeal and if the levels of event management support available to both programs are based on sex-neutral criteria (e.g., facilities used, projected attendance, and staffing needs).

d. Some aspects of athletic programs may not be equivalent for men and women because institutions are undertaking voluntary affirmative actions to overcome effects of historical conditions that have limited participation in athletics by the members of one sex. This is authorized at § 86.3(b) of the regulation.

3. *Application of the Policy—General Athletic Program Components—a. Equipment and Supplies (§ 86.41 (c)(2)).* Equipment and supplies include but are not limited to uniforms, other apparel, sport-specific equipment and supplies, general equipment and supplies, instructional devices, and conditioning and weight training equipment.

Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) The quality of equipment and supplies;

(2) The amount of equipment and supplies;

(3) The suitability of equipment and supplies;

(4) The maintenance and replacement of the equipment and supplies; and

(5) The availabilty of equipment and supplies.

b. *Scheduling of Games and Practice Times (§ 86.41 (c)(3)).* Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) The number of competitive events per sport;

(2) The number and length of practice opportunities;

(3) The time of day competitive events are scheduled;

(4) The time of day practice opportunities are scheduled; and

(5) The opportunities to engage in available pre-season and post-season competition.

c. *Travel and Per Diem Allowances (§ 86.41(c)(4)).* Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) Modes of transportation;

(2) Housing furnished during travel;

(3) Length of stay before and after competitive events;

(4) Per diem allowances; and

(5) Dining arrangements.

d. *Opportunity to Receive Coaching and Academic Tutoring (§ 86.41(c)(5)).* (1) Coaching—Compliance will be assessed by examining, among other factors:

(a) Relative availability of full-time coaches;

(b) Relative availability of part-time and assistant coaches; and

(c) Relative availability of graduate assistants.

(2) Academic tutoring—Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(a) The availability of tutoring; and

(b) Procedures and criteria for obtaining tutorial assistance.

e. *Assignment and Compensation of Coaches and Tutors (§ 86.41(c)(6)).*[6] In general, a violation of Section

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[6] The Department's jurisdiction over the employment practices of recipients under Subpart E, §§ 86.51-86.61 of the Title IX regulation has been successfully challenged in several court cases. Accordingly, the Department has suspended enforcement of Subpart E, Section 86.41(c)(6) of the regulation, however, authorizes the

86.41(c)(6) will be found only where compensation or assignment policies or practices deny male and female athletes coaching of equivalent quality, nature, or availability.

Nondiscriminatory factors can affect the compensation of coaches. In determining whether differences are caused by permissible factors, the range and nature of duties, the experience of individual coaches, the number of participants for particular sports, the number of assistant coaches supervised, and the level of competition will be considered.

Where these or similar factors represent valid differences in skill, effort, responsibility or working conditions they may, in specific circumstances, justify differences in compensation. Similarly, there may be unique situations in which a particular person may possess such an outstanding record of achievement as to justify an abnormally high salary.

(1) Assignment of Coaches—Compliance will be assessed by examining, among other factors, the equivalence for men's and women's coaches of:

(a) Training, experience, and other professional qualifications;

(b) Professional standing.

(2) Assignment of Tutors—Compliance will be assessed by examining, among other factors, the equivalence for men's and women's tutors of:

(a) Tutor qualifications;

(b) Training, experience, and other qualifications.

Department to consider the compensation of coaches of men and women in the determination of the equality of athletic opportunity provided to male and female athletes. It is on this section of the regulation that this Policy Interpretation is based.

(3) Compensation of Coaches—Compliance will be asssessed by examining, among other factors, the equivalence for men's and women's coaches of:

(a) Rate of compensation (per sport, per season);

(b) Duration of contracts;

(c) Conditions relating to contract renewal;

(d) Experience;

(e) Nature of coaching duties performed;

(f) Working conditions; and

(g) Other terms and conditions of employment.

(4) Compensation of Tutors—Compliance will be assessed by examining, among other factors, the equivalence for men's and women's tutors of:

(a) Hourly rate of payment by nature of subjects tutored;

(b) Pupil loads per tutoring season;

(c) Tutor qualifications;

(d) Experience;

(e) Other terms and conditions of employment.

f. *Provision of Locker Rooms, Practice and Competitive Facilities (§ 86.41(c)(7)).* Complance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) Quality and availability of the facilities provided for practice and competitive events;

(2) Exclusivity of use of facitlities provided for practice and competitive events;

(3) Availability of locker rooms;

(4) Quality of locker rooms;

(5) Maintenance of practice and competitive facilities; and

(6) Preparation of facilities for practice and competitive events.

g. *Provision of Medical and Training Facilities and Services (§ 86.41(c)(8)).* Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) Availability of medical personnel and assistance;

(2) Health, accident and injury insurance coverage;

(3) Availability and quality of weight and training facilities;

(4) Availability and quality of conditioning facilities; and

(5) Availability and qualifications of athletic trainers.

h. *Provision of Housing and Dining Facilities and Services (§ 86.41(c)(9)).* Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) Housing provided;

(2) Special services as part of housing arrangements (e.g., laundry facilities, parking space, maid service).

i. *Publicity (§ 86.41(c)(10)).* Compliance will be assessed by examining, among other factors, the equivalence for men and women of:

(1) Availability and quality of sports information personnel;

(2) Access to other publicity resources for men's and women's programs; and

(3) Quantity and quality of publications and other promotional devices featuring men's and women's programs.

4. *Application of the Policy—Other Factors (§ 86.41 (c)).* a. *Recruitment of Student Athletes.*[7] The athletic recruitment practices of institutions often affect the overall provisions of opportunity to male and female athletes. Accordingly, where equal athletic opportunities are not present for male and female students, compliance will be assessed by examining the recruitment practices of the athletic programs for both sexes to determine whether the provision of equal opportunity will require modification of those practices:

Such examinations will review the following factors:

(1) Whether coaches or other professional athletic personnel in the programs serving male and female athletes are provided with substantially equal opportunities to recruit;

(2) Whether the financial and other resources made available for recruitment in male and female athletic programs are equivalently adequate to meet the needs of each program; and

(3) Whether the differences in benefits, opportunities, and treatment afforded prospective student athletes of each sex have a disproportionately limiting effect upon the recruitment of students of either sex.

b. *Provision of Support Services.* The administrative and clerical support provided to an athletic program can

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[7] Public undergraduate institutions are also subject to the general anti-discrimination provision at § 86.23 of the regulation, which reads in part:

"A recipient * * * shall not discriminate on the basis of sex in the recruitment and admission of students. A recipient may be required to undertake additional recruitment efforts for one sex as remedial action * * * and may choose to undertake such efforts as affirmative action* * *"

Accordingly, institutions subject to § 86.23 are required in all cases to maintain equivalently effective recruitment programs for both sexes and, under § 86.41(c), to provide equivalent benefits, opportunities, and treatment to student athletes of both sexes.

affect the overall provision of opportunity to male and female athletes, particularly to the extent that the provided services enable coaches to perform better their coaching functions.

In the provision of support services, compliance will be assessed by examining, among other factors, the equivalence of:

(1) The amount of administrative assistance provided to men's and women's programs;

(2) The amount of secretarial and clerical assistance provided to men's and women's programs.

5. *Overall Determination of Compliance.* The Department will base its compliance determination under § 86.41 (c) of the regulation upon an examination of the following:

a. Whether the policies of an institution are discriminatory in language or effect; or

b. Whether disparities of a substantial and unjustified nature exist in the benefits, treatment, services, or opportunities afforded male and female athletes in the institution's program as a whole; or

c. Whether disparities in benefits, treatment, services, or opportunities in individual segments of the program are substantial enough in and of themselves to deny equality of athletic opportunity.

C. Effective Accommodation of Student Interests and Abilities.

1. *The Regulation.* The regulation requires institutions to accommodate effectively the interests and abilities of students to the extent necessary to provide equal opportunity in the selection of sports and levels of competition available to members of both sexes.

Specifically, the regulation, at § 86.41(c)(1), requires the Director to consider, when determining whether equal opportunities are available—

> Whether the selection of sports and levels of competition effectively accommodate the interests and abilities of members of both sexes.

Section 86.41(c) also permits the Director of the Office for Civil Rights to consider other factors in the determinaton of equal opportunity. Accordingly, this section also addresses competitive opportunities in terms of the competitive team schedules available to athletes of both sexes.

2. *The Policy.* The Department will assess compliance with the interests and abilities section of the regulation by examining the following factors:

a. The determination of athletic interests and abilities of students;

b. The selection of sports offered; and

c. The levels of competition available including the opportunity for team competition.

3. *Application of the Policy—Determination of Athletic Interests and Abilities.*

Institutions may determine the athletic interests and abilities of students by nondiscriminatory methods of their choosing provided:

a. The processes take into account the nationally increasing levels of women's interests and abilities;

b. The methods of determining interest and ability do not disadvantage the members of an underrepresented sex;

c. The methods of determining ability take into account team performance records; and

d. The methods are responsive to the expressed interests of students capable of intercollegiate competition who are members of an underrepresented sex.

4. *Application of the Policy—Selection of Sports.*

In the selecton of sports, the regulation does not require institutions to integrate their teams nor to provide exactly the same choice of sports to men and women. However, where an institution sponsors a team in a particular sport for members of one sex, it may be required either to permit the excluded sex to try out for the team or to sponsor a separate team for the previously excluded sex.

a. Contact Sports—Effective accommodation means that if an institution sponsors a team for members of one sex in a contact sport, it must do so for members of the other sex under the following circumstances:

(1) The opportunities for members of the excluded sex have historically been limited; and

(2) There is sufficient interest and ability among the members of the excluded sex to sustain a viable team and a reasonable expectation of intercollegiate competition for that team.

b. Non-Contact Sports—Effective accommodation means that if an institution sponsors a team for members of one sex in a non-contact sport, it must do so for members of the other sex under the following circumstances:

(1) The opportunities for members of the excluded sex have historically been limited;

(2) There is sufficient interest and ability among the members of the excluded sex to sustain a viable team and a reasonable expectation of intercollegiate competition for that team; and

(3) Members of the excluded sex do not possess sufficient skill to be selected for a single integrated team, or to compete actively on such a team if selected.

5. *Application of the Policy—Levels of Competition.*

In effectively accommodating the interests and abilities of male and female athletes, institutions must provide both the opportunity for individuals of each sex to participate in intercollegiate competition, and for athletes of each sex to have competitive team schedules which equally reflect their abilities.

a. Compliance will be assessed in any one of the following ways:

(1) Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments; or

(2) Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interest and abilities of the members of that sex; or

(3) Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a continuing practice of program expansion such as that cited above, whether it can be demonstrated that the *interests and abilities of the members of* that sex have been fully and effectively accommodated by the present program.

b. Compliance with this provision of the regulation will also be assessed by examining the following:

(1) Whether the competitive schedules for men's and women's teams, on a program-wide basis, afford proportionally similar numbers of male and female athletes equivalently advanced competitive opportunities; or

(2) Whether the institution can demonstrate a history and continuing practice of upgrading the competitive opportunities available to the historically disadvantaged sex

as warranted by developing abilities among the athletes of that sex.

c. Institutions are not required to upgrade teams to intercollegiate status or otherwise develop intercollegiate sports absent a reasonable expectation that intercollegiate competition in that sport will be available within the institution's normal competitive regions. Institutions may be required by the Title IX regulation to actively encourage the development of such competition, however, when overall athletic opportunities within that region have been historically limited for the members of one sex.

6. *Overall Determination of Compliance.*

The Department will base its compliance determination under § 86.41(c) of the regulation upon a determination of the following:

a. Whether the policies of an institution are discriminatory in language or effect; or

b. Whether disparities of a substantial and unjustified nature in the benefits, treatment, services, or opportunities afforded male and female athletes exist in the institution's program as a whole; or

c. Whether disparities in individual segments of the program with respect to benefits, treatment, services, or opportunities are substantial enough in and of themselves to deny equality of athletic opportunity.

VIII. The Enforcement Process

The process of Title IX enforcement is set forth in § 86.71 of the Title IX regulations, which incorporates by reference the enforcement procedures applicable to Title VI of the Civil Rights Act of 1964.[8] The enforcement process prescribed by the regulation is supplemented

[8] Those procedures may be found at 45 CFR 80.6-80.11 and 45 CFR Part 8.

by an order of the Federal District Court, District of Columbia, which establishes time frames for each of the enforcement steps.[9]

According to the regulation, there are two ways in which enforcement is *initiated:*

• *Compliance Reviews*—Periodically the Department must select a number of recipients (in this case, colleges and universities which operate intercollegiate athletic programs) and conduct investigations to determine whether recipients are complying with Title IX. [45 CFR 80.7(a))

• *Complaints*—The Department must investigate all valid (written and timely) complaints alleging discrimination on the basis of sex in a recipient's programs. (45 CFR 80.7(b))

The Department must inform the recipient (and the complainant, if applicable) of the results of its investigation. If the investigation indicates that a recipient is in compliance, the Department states this, and the case is closed. If the investigation indicates noncompliance, the Department outlines the violations found.

The Department has 90 days to conduct an investigation and inform the recipient of its findings, and an additional 90 days to resolve violations by obtaining a voluntary compliance agreement from the recipient. This is done through negotiations between the Department and the recipient, the goal of which is agreement on steps the recipient will take to achieve compliance. Sometimes the violation is relatively minor and can be corrected immediately. At other times, however, the negotiations result in a plan that will correct the violations within a specified period of time. To be acceptable, a plan must describe the manner in which institutional resources will be used to correct the violation. It also must state acceptable time

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[9] *WEAL* v. *Harris*, Civil Action No. 74-1720(D. D.C., December 29, 1977):

tables for reaching interim goals and full compliance. When agreement is reached, the Department notifies the institution that its plan is acceptable. The Department then is obligated to review periodically the implementation of the plan.

An institution that is in violation of Title IX may already be implementing a corrective plan. In this case, prior to informing the recipient about the results of its investigation, the Department will determine whether the plan is adequate. If the plan is not adequate to correct the violations (or to correct them within a reasonable period of time) the recipient will be found in noncompliance and voluntary negotiations will begin. However, if the institutional plan is acceptable, the Department will inform the institution that although the institution has violations, it is found to be in compliance because it is implementing a corrective plan. The Department, in this instance also, would monitor the progress of the institutional plan. If the institution subsequently does not completely implement its plan, it will be found in noncompliance.

When a recipient is found in noncompliance and voluntary compliance attempts are unsuccessful, the formal process leading to termination of Federal assistance will be begun. These procedures, which include the opportunity for a hearing before an administrative law judge, are set forth at 45 CFR 80.8-80.11 and 45 CFR Part 81.

IX. Authority

(Secs. 901, 902, Education Amendment of 1972, 86 Stat. 373, 374, 20 U.S.C. 1681, 1682; sec. 844, Education Amendments of 1974, Pub. L. 93-380, 88 Stat. 612; and 45 CFR Part 86)

Dated: December 3, 1979.

Roma Stewart,

Director, Office for Civil Rights, Department of Health, Education and Welfare.

Dated: December 4, 1979.

Patricia Roberts Harris.

Secretary, Department of Health, Education, and Welfare.

Appendix A—Historical Patterns of Intercollegiate Athletics Program Development

1. Participation in intercollegiate sports has historically been emphasized for men but not women. Partially as a consequence of this, participation rates of women are far below those of men: During the 1977-78 academic year women students accounted for 48 percent of the national undergraduate enrollment (5,496,000 of 11,267,000 students).[1] Yet, only 30 percent of the intercollegiate athletes are women.[2]

The historic emphasis on men's intercollegiate athletic programs has also contributed to existing differences in the number of sports and scope of competition offered men and women. One source indicates that, on the average, colleges and universities are providing twice the number of sports for men as they are for women.[3]

2. Participation by women in sports is growing rapidly. During the period from 1971-1978, for example; the number of female participants in organized high school sports increased from 294,000 to 2,083,000—an increase of over 600 percent.[4] In contrast, between Fall 1971 and Fall 1977, the enrollment of females in high school decreased from approximately 7,600,000 to approximately 7,150,000 a decrease of over 5 percent.[5]

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[1] *The Condition of Education 1979*, National Center for Education Statistics, p. 112.

[2] Figure obtained from Association for Intercollegiate Athletics for Women (AIAW) member survey. *AIAW Structure Implementation Survey Data Summary*, October 1978, p. 11.

[3] U.S. Commission on Civil Rights, Comments to DHEW on proposed Policy Interpretation: Analysis of data supplied by the National Association of Directors of Collegiate Athletics.

[4] Figures obtained from National Federation of High School Association (NFHSA) data.

[5] *Digest of Education Statistics 1977-78*, National Center for Education Statistics (1978), Table 40, at 44. Data, by sex, are

The growth in athletic participation by high school women has been reflected on the campuses of the nation's colleges and universities. During the period from 1971 to 1976 the enrollment of women in the nation's institutions of higher education rose 52 percent, from 3,400,000 to 5,201,000.[6] During this same period, the number of women participating in intramural sports increased 108 percent from 276,167 to 576,167. In club sports, the number of women participants increased from 16,386 to 25,541 or 55 percent. In intercollegiate sports, women's participation increased 102 percent from 31,852 to 64,375.[7] These developments reflect the growing interest of women in competitive athletics, as well as the efforts of colleges and universities to accommodate those interests.

3. The overall growth of women's intercollegiate programs has not been at the expense of men's programs. During the past decade of rapid growth in women's programs, the number of intercollegiate sports available for men has remained stable, and the number of male athletes has increased slightly. Funding for men's programs has increased from $1.2 to $2.2 million between 1970-1977 alone.[8]

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unavailable for the period from 1971 to 1977; consequently, these figures represent 50 percent of total enrollment for that period. This is the best comparison that could be made based on available data.

[6] Ibid., p. 112.

[7] These figures, which are not precisely comparable to those cited at footnote 2, were obtained from *Sports and Recreational Programs of the Nation's Universities and Colleges*. NCAA Report No. 5, March 1978. It includes figures only from the 722 NCAA member institutions because comparable data was not available from other associations.

[8] Compiled from NCAA *Revenues and Expenses for Intercollegiate Athletic Programs*, 1978.

4. On most campuses, the primary problem confronting women athletes is the absence of a fair and adequate level of resources, services, and benefits. For example, disproportionately more financial aid has been made available for male athletes than for female athletes. Presently, in institutions that are members of both the National Collegiate Athletic Asociation (NCAA) and the Association for Intercollegiate Athletics for Women (AIAW), the average annual scholarship budget is $39,000. Male athletes receive $32,000 or 78 percent of this amount, and female athletes receive $7,000 or 22 percent, although women are 30 percent of all the athletes eligible for scholarships.[9]

Likewise, substantial amounts have been provided for the recruitment of male athletes, but little funding has been made available for recruitment of female athletes.

Congressional testimony on Title IX and subsequent surveys indicates that discrepancies also exist in the opportunity to receive coaching and in other benefits and opportunities, such as the quality and amount of equipment, access to facilities and practice times, publicity, medical and training facilities, and housing and dining facilities.[10]

5. At several institutions, intercollegiate football is unique among sports. The size of the teams, the expense of the operation, and the revenue produced distinguish football from other sports, both men's and women's. Title IX requires that "an institution of higher education must comply with the prohibition against sex discrimination im-

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[9] Figures obtained from *AIAW Structure Implementation Survey Data Summary*, October, 1978, p. 11.

[10] 121 Cong. REc. 29791-95 (1975) (remarks of Senator Williams): Comments by Senator Bayh. Hearings on S. 2106 Before the Subcommittee on Education of the Senate Committee on Labor and Public Welfare, 94th Congress, 1st Session 48 (1975): "Survey of Women's Athletic Directors," AIAW Workshop (January 1978).

posed by that title and its implementing regulations in the administration of any revenue producing intercollegiate athletic activity." [11] However, the unique size and cost of football programs have been taken into account in developing this Policy Interpretation.

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[11] See April 18, 1979, Opinion of General Counsel, Department of Health, Education, and Welfare, page 1.

INTERIM

TITLE IX INTERCOLLEGIATE ATHLETICS INVESTIGATOR'S MANUAL

* * * *

CHAPTER SEVEN

ACCOMMODATION OF STUDENT INTERESTS AND ABILITIES
35 CFR § 106.41(C)(1)

TITLE IX REGULATION AND POLICY INTERPRETATION

The Title IX regulation requires institutions to accommodate effectively the interests and abilities of students to the extent necessary to provide equal opportunity in the selection of sports and levels of competition available to both sexes. As used in the regulation and in the Policy Interpretation, "levels of competition" refers to the opportunity to compete in each of the various forms of collegiate—competition e.g., intramural, club, and intercollegiate—while "selection of sports" means type of sport —e.g., basketball, swimming—offered at the intercollegiate level.

The regulation also authorizes the Assistant Secretary to consider other factors in determining whether an institution is providing equal opportunity, and the Policy Interpretation explains that the competitive opportunity available to athletes of both sexes will be considered. As used in the Policy Interpretation, "competitive opportunity" refers to the degree of challenge represented by the competitive schedules of intercollegiate terms.

The Policy Interpretation states:

> The Department will assess compliance with the interests and abilities section of the regulation by examining the following factors:

a. The determination of athletic interests and abilities of students;

b. The selection of sports offered; and

c. The levels of competition available including the opportunity for team competition.

Thus, the Policy Interpretation explains that equal accommodation of student interests and abilities concerns the kinds of intercollegiate participation opportunities (selection of sports), availability of intercollegiate participation opportunities (levels of competition), and quality of intercollegiate participation opportunities (competitive opportunity) available to students of both sexes. Accordingly, as with other program components, compliance determinations require assessment of the comparative availability, quality, and variety of intercollegiate participation opportunities afforded male and female students. Differences between men's and women's programs are justifiable if they are attributable to demonstrated differences in the interests and abilities of the members of each sex. Generally, disparities in the quality of competition will require explanation only in terms of the interests and abilities of intercollegiate athletes, while differences in the availability and variety of participation opportunities must be justified by the interests and abilities in the larger student population.

Title IX does not require institutions to offer the identical sports, a proportional number of intercollegiate participation opportunities (with respect to the division by sex of the total student enrollment) or the same team competitive opportunities to men and women. Rather, it requires institutions to meet the interests and abilities of women to the same degree as they meet the interests and abilities of men, by providing opportunities which address the interests and abilities of each sex equally.

Additionally, you should remember that a determination of whether the institution has selected sports and levels

of competition to accommodate equally effectively the interests and abilities of both sexes, must be considered together with your determination under the other factors (see Chapter six) which the Policy Interpretation directs you to assess in reaching your conclusion on the institution's compliance. (Please refer to Chapter eight for a discussion on the overall assessment of compliance).

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UNITED STATES DEPARTMENT OF EDUCATION
OFFICE FOR CIVIL RIGHTS

The Assistant Secretary

Jan. 16, 1996

Dear Colleague:

It is my pleasure to send you the enclosed "Clarification of Intercollegiate Atheltics Policy Guidance: The Three-Part Test" (the Clarification).

As you know, the Office for Civil Rights (OCR) enforces Title IX of the Education Amendments of 1972, which prohibits discrimination on the basis of sex in education programs and activities. The regulation implementing Title IX and the Department's Intercollegiate Athletics Policy Interpretation published in 1979—both of which followed publication for notice and the receipt, review and consideration of extensive comments—specifically address intercollegiate athletics. Since becoming Assistant Secretary, I have recognized the need to provide additional clarification regarding what is commonly referred to as the "three-part test," a test used to determine whether students of both sexes are provided nondiscriminatory opportunities to participate in athletics. The three-part test is described in the Department's 1979 Policy Interpretation.

Accordingly, on September 20, 1995, OCR circulated to over 4500 interested parties a draft of the proposed Clarification, soliciting comments about whether the document provided sufficient clarity to assist institutions in their efforts to comply with Title IX. As indicated when circulating the draft of the Clarification, the objective of the Clarification is to respond to requests for specific guidance about the existing standards that have guided the enforcement of Title IX in the area of intercollegiate athletics. Further, the Clarification is limited to an elaboration of the "three-part test." This test, which has generated the majority of the questions that have been raised about Title

IX compliance, is a portion of a larger analytical framework reflected in the 1979 Policy Interpretation.

OCR appreciates the efforts of the more than 200 individuals who commented on the draft of the Clarification. In addition to providing specific comments regarding clarity, some parties suggested that the Clarification did not go far enough in protecting women's sports. Others, by contrast, suggested that the Clarification, or the Policy Interpretation itself, provided more protection for women's sports than intended by Title IX. However, it would not be appropriate to revise the 1979 Policy Interpretation, and adherence to its provision shaped OCR's consideration of these comments. The Policy Interpretation has guided OCR's enforcement in the area of athletics for over fifteen years, enjoying the bipartisan support of Congress. The Policy Interpretation has also enjoyed the support of every court that has addressed issues of Title IX athletics. As one recent court decision recognized, the "three-part test" draws its "essence" from the Title IX statute.

The draft has been revised to incorporate suggestions that OCR received regarding how to make the document more useful and clearer. For instance, the Clarification now has additional examples to illustrate how to meet part one of the three-part test and makes clear that the term "developing interests" under part two of the test includes interests that already exist at the institution. The document also clarifies that an institution can choose which part of the test it plans to meet. In addition, it further clarifies how Title IX requires OCR to count participation opportunities and why Title IX does not require an institution, under part three of the test, to accommodate the interests and abilities of potential students.

OCR also received requests for clarification that relate primarily to fact- or institution-specific situations that only apply to a small number of athletes or institutions. These comments are more appropriately handled on an individ-

ual basis and, accordingly, OCR will follow-up on these comments and questions in the context of OCR's ongoing technical assistance efforts.

It is important to outline several points about the final document.

The Clarification confirms that institutions need to comply with only any one part of the three-part test in order to provide nondiscirminatory participation opportunities for individuals of both sexes. The first part of the test—substantial proportionality—focuses on the participation rates of men and women at an institution and affords an institution a "safe harbor" for establishing that it provides nondiscriminatory participation opportunities. An institution that does not provide substantially proportional participation opportunities for men and women may comply with Title IX by satisfying either part two or part three of the test. The second part—history and continuing practice—is an examination of an institution's good faith expansion of athletic opportunities through its response to developing interests of the underrepresented sex at that institution. The third part—fully and effectively accommodating interests and abilities of the underrepresented sex—centers on the inquiry of whether there are concrete and viable interests among the underrepresentd sex that should be accommodated by an institution.

In addition, the Clarification does not provide strict numercial formulas or "cookie cutter" answers to the issues that are inherently case- and fact-specific. Such an effort not only would belie the meaning of Title IX, but would at the same time deprive institutions of the flexibility to which they are entitled when deciding how best to comply with the law.

Several parties who provided comments expressed opposition to the three-part test. The crux of the arguments made on behalf of those opposed to the three-part test is that the test does not really provide three different ways

to comply. Opponents of the test assert, therefore, that the improperly establishes arbitrary quotas. Similarly, they also argue that the three-part test runs counter to the intent of Title IX because it measures gender discrimination by underrepresentation and requires the full accommodation of only one sex. However, this understanding of Title IX and the three-part test is wrong.

First, it is clear from the Clarification that there are three different avenues of compliance. Institutions have flexibility in providing nondiscriminatory participation opportunities to their students, and OCR does not require quotas. For example, if an institution chooses to and does comply with part three of the test, OCR will not require it to provide substantially proportionate participation opportunities to, or demonstrate a history and continuing practice of program expansion that is responsive to the developing interests of, the underrepresented sex. In fact, if an institution believes that its female students are less interested and able to play intercollegiate sports, that institution may continue to provide more athletic opportunities to men than to women, or even to add opportunities for men, as long as the recipient can show that its female students are not being denied opportunities, i.e., that women's interests and abilities are fully and effectively accommodated. The fact that each part of the three-part test considers participation rates does not mean, as some opponents of the test have suggested, that the three parts do not provide different ways to comply with Title IX.

Second, it is appropriate for parts two and three of the test to focus only on the underrepresented sex. Indeed, such a focus is required because Title IX, by definition, addresses discrimination. Notably, Title IX's athletic provisions are unique in permitting institutions—notwithstanding the long history of discrimination based on sex in athletics programs to establish separate athletic programs on the basis of sex, thus allowing institutions to determine the number of athletic opportunities that are

available to students of each sex. (By contrast, Title VI of the Civil Rights Act of 1964 forbids institutions from providing separate athletic programs on the basis of race or national origin.)

OCR focuses on the interests and abilities of the underrepresented sex only if the institutions provides proportionately fewer athletic opportunities to members of one sex and has failed to make a good faith effort to expand its program for the underrepresented sex. Thus, the Policy Interpretation requires the full accommodation of the underrepresented sex only to the extent necessary to provide equal athletic opportunity, i.e., only where an institution has failed to respond to the interests and abilities of the underrepresented sex when it allocated a disproportionately large number of opportunities for athletes of the other sex.

What is clear then—because, for example, part three of the three-part test permits evidence that underrepresentation is caused not by discrimination but by lack of interest —is that underrepresentation alone is not the measure of discrimination. Substantial proportionality merely provides institutions with a safe harbor. Even if this were not the case and proportional opportunities were the only test, the "quota" criticism would be misplaced. Quotas are impermissible where opportunities are required to be created without regard to sex. However, schools are permitted to create athletic participation opportunities based on sex. Where they do so unequally, that is a legitimate measure of unequal opportunity under Title IX. OCR has chosen to make substantial proportionality only one of three alternative measures.

Several parties also suggested that, in determining the number of participation opportunities offered by an institution, OCR count unfilled slots, i.e., those positions on a team that an institution claims the team can support but which are not filled by actual athletes. OCR must, however, count actual athletes because participation op-

portunities must be real, not illusory. Moreover, this makes sense because, under other parts of the Policy Interpretation, OCR considers the quality and kind of other benefits and opportunities offered to male and female athletes in determining overall whether an institution provides equal athletic opportunity. In this context, OCR must consider actual benefits provided to real students.

OCR also received comments that indicate that there is still confusion about the elimination and capping of men's teams in the context of Title IX compliance. The rules here are straightforward. An institution can choose to eliminate or cap teams as a way of complying with part one of the three-part test. However, nothing in the Clarification requires that an institution cap or eliminate participation opportunities for men. In fact, cutting or capping men's teams will not help an institution comply with part two or par tthree of the test because these tests measure an institution's positive, ongoing response to the interests and abilities of the underrepresented sex. Ultimately, Title IX provides institutions with flexibility and choice regarding how they will provide nondiscriminatory participation opportunities.

Finally, several parties suggested that OCR provide more information regarding the specific elements of an appropriate assesment of student interest and ability. The Policy Interpretation is intended to give institutions flexibility to determine interests and abilities consistent with the unique circumstances and needs of an institution. We recognize, however, that it might be useful to share ideas on good assessment strategies. Accordingly, OCR will work to identify, and encourage institutions to share, good strategies that institutions have developed, as well as to facilitate discussions among institutions regarding potential assessment techniques.

OCR recognizes that the question of how to comply with Title IX and to provide equal athletic oportunities for all

students is a significant challenge that many institutions face today, especially in the face of increasing budget constraints. It has been OCR's experience, however, that institutions committed to maintaining their men's program have been able to do so—and comply with Title IX—notwithstanding limited athletic budgets. In many cases, OCR and these institutions have worked together to find creative solutions that ensured equal opportunities in intercollegiate athletics. OCR is similarly prepared to join with other institutions in assisting them to address their own situations.

OCR is committed to continuing to work in partnership with colleges and universities to ensure that the promise of Title IX becomes a reality for all students. Thank you for your continuing interest in this subject.

Sincerely,

/s/ Norma V. Cantu
NORMA V. CANTU
Assistant Secretary
for Civil Rights

Enclosure

CLARIFICATION OF INTERCOLLEGIATE ATHLETICS POLICY GUIDANCE: THE THREE-PART TEST

The Office for Civil Rights (OCR) enforces Title IX of the Education Amendments of 1972, 20 U.S.C. § 1681 *et seq.* (Title IX), which prohibits discrimination on the basis of sex in education programs and activities by recipients of federal funds. The regulation implementing Title IX at 34 C.F.R. Part 106, effective July 21, 1975, contains specific provisions governing athletic programs, at 34 C.F.R. § 106.41, and the awarding of athletic scholarships, 34 C.F.R. § 106.37(c). Further clarification of the Title IX regulatory requirements is provided by the Intercollegiate Athletics Policy Interpretation, issued December 11, 1979 (44 *Fed. Reg.* 71413 *et seq.* (1979)).[1]

The Title IX regulation provides that if an institution sponsors an athletic program it must provide equal athletic opportunities for members of both sexes. Among other factors, the regulation requires that an institution must effectively accommodate the athletic interests and abilities of students of both sexes to the extent necessary to provide equal athletic opportunity.

The 1979 Policy Interpretation provides that as part of this determination OCR will apply the following three-part test to assess whether an institution is providing nondiscriminatory participation opportunities for individuals of both sexes:

1. Whether intercollegiate level participation opportunities for male and female students are provided in numbers substantially proportionate to their respective enrollments; or

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[1] The Policy Interpretation is designed for intercollegiate athletics. However, its general principles, and those of this Clarification, often will apply to elementary and secondary interscholastic athletic programs, which are also covered by the regulation. *See* 44 *Fed. Reg.* 71413.

2. Where the members of one sex have been and are underrepresented among intercollegiate athletes, whether the institution can show a history and continuing practice of program expansion which is demonstrably responsive to the developing interests and abilities of the members of that sex; or

3. Where the members of one sex are underrepresented among intercollegiate athletes, and the institution cannot show a history and continuing practice of program expansion, as described above, whether it can be demonstrated that the interests and abiliities of the members of that sex have been fully and effectively accommodated by the present program.

44 *Fed. Reg.* at 71418.

Thus, the three-part test furnishes an institution with three individual avenues to choose from when determining how it will provide individuals of each sex with nondiscriminatory opportunities to participate in intercollegiate athletics. If an institution has met any part of the three-part test, OCR will determine that the institution is meeting this requirement.

It is important to note that under the Policy Interpretation the requirement to provide nondiscriminatory participation opportunities is only one of many factors that OCR examines to determine if an institution is in compliance with the athletics provision of Title IX. OCR also considers the quality of competition offered to members of both sexes in order to determine whether an institution effectively accommodates the interests and abilities of its students.

In addition, when an "overall determination of compliance" is made by OCR, 44 *Fed. Reg.* 71417, 71418, OCR examines the institution's program as a whole. Thus, OCR considers the effective accommodation of interests and abilities in conjunction with equivalence in the avail-

ability, quality and kinds of other athletic benefits and opportunities provided male and female athletes to determine whether an institution provides equal athletic opportunity as required by Title IX. These other benefits include coaching, equipment, practice and competitive facilities, recruitment, scheduling of games, and publicity, among others. An institution's failure to provide nondiscriminatory participation opportunities usually amounts to a denial of equal athletic opportunity because these opportunities provide access to all other athletic benefits, treatment, and services.

This Clarification provides specific factors that guide an analysis of each part of the three-part test. In addition, it provides examples to demonstrate, in concrete terms, how these factors will be considered. These examples are intended to be illustrative, and the conclusions drawn in each example are based solely on the facts included in the example.

THREE-PART TEST—Part One: Are Participation Opportunities Substantially Proportionate to Enrollment?

Under part one of the three-part test (part one), where an institution provides intercollegiate level athletic participation opportunities for male and female students in numbers substantially proportionate to their respective full-time undergraduate enrollments, OCR will find that the institution is providing nondiscriminatory participation opportunities for individuals of both sexes.

OCR's analysis begins with a determination of the number of participation opportunities afforded to male and female athletes in the intercollegiate athletic program. The Policy Interpretation defines participants as those athletes:

a. Who are receiving the institutionally-sponsored support normally provided to athletes competing at the institution involved, e.g., coaching, equip-

ment, medical and training room services, on a regular basis during a sport's season; and

b. Who are participating in organized practice sessions and other team meetings and activities on a regular basis during a sport's season; and

c. Who are listed on the eligibility or squad lists maintained for each sport, or

d. Who, because of injury, cannot meet a, b, or c above but continue to receive financial aid on the basis of athletic ability.

44 *Fed. Reg.* at 71415.

OCR uses this definition of participant to determine the number of participation opportunities provided by an institution for purposes of the three-part test.

Under this definition, OCR considers a sport's season to commence on the date of a team's first intercollegiate competitive event and to conclude on the date of the team's final intercollegiate competitive event. As a general rule, all athletes who are listed on a team's squad or eligibility list and are on the team as of the team's first competitive event are counted as participants by OCR. In determining the number of participation opportunities for the purposes of the interests and abilities analysis, an athlete who participates in more than one sport will be counted as a participant in each sport in which he or she participates.

In determining participation opportunities, OCR includes, among others, those athletes who do not receive scholarships (e.g., walk-ons), those athletes who compete on teams sponsored by the institution even though the team may be required to raise some or all of its operating funds, and those athletes who practice but may not compete. OCR's investigations reveal that these athletes receive numerous benefits and services, such as training and prac-

tice time, coaching, tutoring services, locker room facilities, and equipment, as well as important non-tangible benefits derived from being a member of an intercollegiate athletic team. Because these are significant benefits, and because receipt of these benefits does not depend on their cost to the institution or whether the athlete competes, it is necessary to count all athletes who receive such benefits when determining the number of athletic opportunities provided to men and women.

OCR's analysis next determines whether athletic opportunities are substantially proportionate. The Title IX regulation allows institutions to operate separate athletic programs for men and women. Accordingly, the regulation allows an institution to control the respective number of participation opportunities offered to men and women. Thus, it could be argued that to satisfy part one there should be no difference between the participation rate in an institution's intercollegiate athletic program and its full-time undergraduate student enrollment.

However, because in some circumstances it may be unreasonable to expect an institution to achieve exact proportionality—for instance, because of natural fluctuations in enrollment and participation rates or because it would be unreasonable to expect an institution to add athletic opportunities in light of the small number of students that would have to be accommodated to achieve exact proportionality—the Policy Interpretation examines whether participation opportunities are "substantially" proportionate to enrollment rates. Because this determination depends on the institution's specific circumstances and the size of its athletic program, OCR makes this determination on a case-by-case basis, rather than through use of a statistical test.

As an example of a determination under part one: If an institution's enrollment is 52 percent male and 48 percent female and 52 percent of the participants in the athletic

program are male and 48 percent female, then the institution would clearly satisfy part one. However, OCR recognizes that natural fluctuations in an institution's enrollment and/or participation rates may affect the percentages in a subsequent year. For instance, if the institution's admissions the following year resulted in an enrollment rate of 51 percent males and 49 percent females, while the participation rates of males and females in the athletic program remained constant, the institution would continue to satisfy part one because it would be unreasonable to expect the institution to fine tune its program in response to this change in enrollment.

As another example, over the past five years an institution has had a consistent enrollment rate for women of 50 percent. During this time period, it has been expanding its program for women in order to reach proportionatity. In the year that the institution reaches its goal—i.e., 50 percent of the participants in its athletic program are female—its enrollment rate for women increases to 52 percent. Under these circumstances, the institution would satisfy part one.

OCR would also consider opportunities to be substantially proportionate when the number of opportunities that would be required to achieve proportionality would not be sufficient to sustain a viable team, i.e., a team for which there is a sufficient number of interested and able students and enough available competition to sustain an intercollegiate team. As a frame of reference in assessing this situation, OCR may consider the average size of teams offered for the underrepresented sex, a number which would vary by institution.

For instance, Institution A is a university with a total of 600 athletes. While women make up 52 percent of the university's enrollment, they only represent 47 percent of its athletes. If the university provided women with 52 percent of athletic opportunities, approximately 62 addi-

tional women would be able to participate. Because this is a significant number of unaccommodated women, it is likely that a viable sport could be added. If so, Institution A has not met part one.

As another example, at Institution B women also make up 52 percent of the university's enrollment and represent 47 percent of Institution B's athletes. Institution B's athletic program consists of only 60 participants. If the University provided women with 52 percent of athletic opportunities, approximately 6 additional women would be able to participate. Since 6 participants are unlikely to support a viable team, Institution B would meet part one.

THREE-PART TEST—Part Two: Is there a History and Continuing Practice of Program Expansion for the Underrepresented Sex?

Under part two of the three-part test (part two), an institution can show that it has a history and continuing practice of program expansion which is demonstrably responsive to the developing interests and abilities of the underrepresented sex. In effect, part two looks at an institution's past and continuing remedial efforts to provide nondiscriminatory participation opportunities through program expansion.[2]

OCR will review the entire history of the athletic program, focusing on the participation opportunities provided for the underrepresented sex. First, OCR will assess whether past actions of the institution have expanded par-

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[2] Part two focuses on whether an institution has expanded the number of intercollegiate participation opportunities provided to the underrepresented sex. Improvements in the quality of competition, and of other athletic benefits, provided to women athletes, while not considered under the three-part test, can be considered by OCR in making an overall determination of compliance with the athletics provision of Title IX.

ticipation opportunities for the underrepresented sex in a manner that was demonstrably responsive to their developing interests and abilities. Developing interests include interests that already exist at the institution.[3] There are no fixed intervals of time within which an institution must have added participation opportunities. Neither is a particular number of sports dispositive. Rather, the focus is on whether the program expansion was responsive to developing interests and abilities of the underrepresented sex. In addition, the institution must demonstrate a continuing (i.e., present) practice of program expansion as warranted by developing interests and abilities.

OCR will consider the following factors, among others, as evidence that may indicate a *history of program expansion* that is demonstrably responsive to the developing interests and abilities of the underrepresented sex:

- an institution's record of adding intercollegiate teams, or upgrading teams to intercollegiate status, for the underrepresented sex;
- an institution's record of increasing the numbers of participants in intercollegiate athletics who are members of the underrepresented sex; and
- an institution's affirmative responses to requests by students or others for addition or elevation of sports.

OCR will consider the following factors, among others, as evidence that may indicate a *continuing practice of program expansion* that is demonstrably responsive to the developing interests and abilities of the underrepresented sex:

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[3] However, under this part of the test an institution is not required, as it is under part three, to accommodate all interests and abilities of the underrepresented sex. Moreover, under part two an institution has flexibility in choosing which teams it adds for the underrepresented sex, as long as it can show overall a history and continuing practice of program expansion for members of that sex.

- an institution's current implementation of a nondiscriminatory policy or procedure for requesting the addition of sports (including the elevation of club or intramural teams) and the effective communication of the policy or procedure to students; and
- an institution's current implementation of a plan of program expansion that is responsive to developing interests and abilities.

OCR would also find persuasive an institution's efforts to monitor developing interests and abilities of the underrepresented sex, for example, by conducting periodic nondiscriminatory assessments of developing interests and abilities and taking timely actions in response to the results.

In the event that an institution eliminated any team for the underrepresented sex, OCR would evaluate the circumstances surrounding this action in assessing whether the institution could satisfy part two of the test. However, OCR will not find a history and continuing practice of program expansion where an institution increases the proportional participation opportunities for the underrepresnted sex by reducing opportunities for the overrepresented sex alone or by reducing participation opportunities for the overrepresented sex to a proportionately greater degree than for the underrepresented sex. This is because part two considers an institution's good faith remedial efforts through actual program expansion. It is only necessary to examine part two if one sex is overrepresented in the athletic program. Cuts in the program for the underrepresented sex, even when coupled with cuts in the program for the overrepresented sex, cannot be considered remedial because they burden members of the sex already disadvantaged by the present program. However, an institution that has eliminated some participation opportunities for the underrepresented sex can still meet part two if, overall, it can show a history and continuing practice of program expansion for that sex.

In addition, OCR will not find that an institution satisfies part two where it established teams for the underrepresented sex only at the initiation of its program for the underrepresented sex or where it merely promises to expand its program for the underrepresented sex at some time in the future.

The following examples are intended to illustrate the principles discussed above.

At the inception of its women's program in the mid-1970s, Institution C established seven teams for women. In 1984 it added a woman's varsity team at the request of students and coaches. In 1990 it upgraded a women's club sport to varsity team status based on a request by the club members and an NCAA survey that showed a significant increase in girls high school participation in that sport. Institution C is currently implementing a plan to add a varsity women's team in the spring of 1996 that has been identified by a regional study as an emerging women's sport in the region. The addition of these teams resulted in an increased percentage of women participating in varsity athletics at the institution. Based on these facts, OCR would find Institution C in compliance with part two because it has a history of program expansion and is continuing to expand its program for women in response to their developing interests and abilities.

By 1980, Institution D established seven teams for women. Institution D added a women's varsity team in 1983 based on the requests of students and coaches. In 1991 it added a women's varsity team after an NCAA survey showed a significant increase in girls' high school participation in that sport. In 1993 Institution D eliminated a viable women's team and a viable men's team in an effort to reduce its athletic budget. It has taken no action relating to the underrepresented sex since 1993. Based on these facts, OCR would not find Institution D in compliance with part two. Institution D cannot show a continuing practice of program expansion that is responsive to the

developing interests and abilities of the underrepresented sex where its only action since 1991 with regard to the underrepresented sex was to eliminate a team for which there was interest, ability and available competition.

In the mid-1970s, Institution E established five teams for women. In 1979 it added a women's varsity team. In 1984 it upgraded a women's club sport with twenty-five participants to varsity team status. At that time it eliminated a women's varsity team that had eight members. In 1987 and 1989 Institution E added women's varsity teams that were identified by a significant number of its enrolled and incoming female students when surveyed regarding their athletic interests and abilities. During this time it also increased the size of an existing women's team to provide opportunities for women who expressed interest in playing that sport. Within the past year, it added a women's varsity team based on a nationwide survey of the most popular girls high school teams. Based on the addition of these teams, the percentage of women participating in varsity athletics at the institution has increased. Based on these facts, OCR would find Institution E in compliance with part two because it has a history of program expansion and the elimination of the team in 1984 took place within the context of continuing program expansion for the underrepresented sex that is responsive to their developing interests.

Institution F started its women's program in the early 1970s with four teams. It did not add to its women's program until 1987 when, based on requests of students and coaches, it upgraded a women's club sport to varsity team status and expanded the size of several existing women's teams to accommodate significant expressed interest by students. In 1990 it surveyed its enrolled and incoming female students; based on that survey and a survey of the most popular sports played by women in the region, Institution F agreed to add three new women's teams by 1997. It added a women's team in 1991 and 1994. Institution F is implementing a plan to add a women's

team by the spring of 1997. Based on these facts, OCR would find Institution F in compliance with part two. Institution F's program history since 1987 shows that it is committed to program expansion for the underrepresented sex and it is continuing to expand its women's program in light of women's developing interests and abilities.

THREE-PART TEST—Part Three: Is the Institution Fully and Effectively Accommodating the Interests and Abilities of the Underrepresented Sex?

Under part three of the three-part test (part three) OCR determines whether an institution is fully and effectively accommodating the interests and abilities of its students who are members of the uderrepresented sex—including students who are admitted to the institution though not yet enrolled. Title IX provides that a recipient must provide equal athletic opportunity to its students. Accordingly, the Policy Interpretation does not require an institution to accommodate the interests and abilities of potential students.[4]

While disproportionately high athletic participation rates by an institution's students of the overrepresented sex (as compared to their enrollment rates) may indicate that an institution is not providing equal athletic opportunities to its students of the underrepresented sex, an institution can satisfy part three where there is evidence that the imbalance does not reflect discrimination, i.e., where it can be demonstrated that, notwithstanding disproportionately low participation rates by the institution's students of the underrepresented sex, the interests and abilities of these students are, in fact, being fully and effectively accommo-

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[4] However, OCR does examine an institution's recruitment practices under another part of the Policy Interpretation. *See* 44 Fed. Reg. 71417. Accordingly, where an institution recruits potential student athletes for its men's teams, it must ensure that women's teams are provided with substantially equal opportunities to recruit potential student athletes.

dated. In making this determination, OCR will consider whether there is (a) unmet interest in a particular sport; (b) sufficient ability to sustain a team in the sport; and (c) a reasonable expectation of competition for the team. If all three conditions are present OCR will find that an institution has not fully and effectively accommodated the interests and abilities of the underrepresented sex.

If an institution has recently eliminated a viable team from the intercollegiate program, OCR will find that there is sufficient interest, ability, and available competition to sustain an intercollegiate team in that sport unless an institution can provide strong evidence that interest, ability, or available competition no longer exists.

a) Is there sufficient unmet interest to support an intercollegiate team?

OCR will determine whether there is sufficient unmet interest among the institution's students who are members of the underrepresented sex to sustain an intercollegiate team. OCR will look for interest by the underrepresented sex as expressed through the following indicators, among others:

- requests by students and admitted students that a particular sport be added;
- requests that an existing club sport be elevated to intercollegiate team status;
- participation in particular club or intramural sports;
- interviews with students, admitted students, coaches, administrators and others regarding interest in particular sports;
- results of questionnaires of students and admitted students regarding interests in particular sports; and
- participation in particular interscholastic sports by admitted students.

In addition, OCR will look at participation rates in sports in high schools, amateur athletic associations, and community sports leagues that operate in areas from which

the institution draws its students in order to ascertain likely interest and ability of its students and admitted students in particular sport(s).[5] For example, where OCR's investigation finds that a substantial number of high schools from the relevant region offer a particular sport which the institution does not offer for the underrepresented sex, OCR will ask the institution to provide a basis for any assertion that its students and admitted students are not interested in playing that sport. OCR may also interview students, admitted students, coaches, and others regarding interest in that sport.

An institution may evaluate its athletic program to assess the athletic interest of its students of the underrepresented sex using nondiscriminatory methods of its choosing. Accordingly, institutions have flexibility in choosing a nondiscriminatory method of determining athletic interests and abilities provided they meet certain requirements. *See* 44 *Fed. Reg.* at 71417. These assessments may use straightforward and inexpensive techniques, such as a student questionnaire for an open forum, to identify students' interests and abilities. Thus, while OCR expects that an institution's assessment should reach a wide audience of students and should be open-ended regarding the sports students can express interest in, OCR does not require elaborate scientific validation of assessments.

An institution's evaluation of interest should be done periodically so that the institution can identify in a timely and responsive manner any developing interests and abilities of the underrepresented sex. The evaluation should also take into account sports played in the high schools and communities from which the institution draws its students both as an indication of possible interest on campus and to permit the institution to plan to meet the interests of admitted students of the underrepresented sex.

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[5] While these indications of interest may be helpful to OCR in ascertaining likely interest on campus, particularly in the absence of more direct indicia, an institution is expected to meet the actual interests and abilities of its students and admitted students.

b) Is there sufficient ability to sustain an intercollegiate team?

Second, OCR will determine whether there is sufficient ability among interested students of the underrepresented sex to sustain an intercollegiate team. OCR will examine indications of ability such as:

- the athletic experience and accomplishments—in interscholastic, club or intramural competition—of students and admitted students interested in playing the sport;
- opinions of coaches, administrators, and athletes at the institution regarding whether interested students and admitted students have the potential to sustain a varsity team; and
- if the team has previously competed at the club or intramural level, whether the competitive experience of the team indicates that it has the potential to sustain an intercollegiate team.

Neither a poor competitive record nor the inability of interested students or admitted students to play at the same level of competition engaged in by the institution's other athletes is conclusive evidence of lack of ability. It is sufficient that interested students and admitted students have the potential to sustain an intercollegiate team.

c) Is there a reasonable expectation of competition for the team?

Finally, OCR determines whether there is a reasonable expectation of intercollegiate competition for a particular sport in the institution's normal competitive region. In evaluating available competition, OCR will look at available competitive opportunities in the geographic area in which the institution's athletes primarily compete, including:

- competitive opportunities offered by other schools against which the institution competes; and

- competitive opportunities offered by other schools in the institution's geographic area, including those offered by schools against which the institution does not now compete.

Under the Policy Interpretation, the institution may also be required to actively encourage the development of intercollegiate competition for a sport for members of the underrepresented sex when overall athletic opportunities within its competitive region have been historically limited for members of that sex.

CONCLUSION

This discussion clarifies that institutions have three distinct ways to provide individuals of each sex with nondiscriminatory participation opportunities. The three-part test gives institutions flexibility and control over their athletics programs. For instance, the test allows institutions to respond to different levels of interest by its male and female students. Moreover, nothing in the three-part test requires an institution to eliminate participation opportunities for men.

At the same time, this flexibility must be used by institutions consistent with Title IX's requirement that they not discriminate on the basis of sex. OCR recognizes that institutions face challenges in providing nondiscriminatory participation opportunities for their students and will continue to assist institutions in finding ways to meet these challenges.

TRIAL EXHIBIT IIIII EXCERPTS FROM REPORT OF FINIS WELCH

Cohen, et al. vs Brown University

No. 92-197-P

Dated November 19, 1994

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XXIII. An extensive search and review of large nationally representative data sources reveals a consistent result; men express greater interest in, and actually participate in, competitive sports to a much larger degree than do women. A more detailed summary of the relevant findings appears in Section 5.

XXIV. None of the reviewed data sources contradicted this finding. None indicates a similar interest or level of participation between men and women.

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[18] Section 2. Interests

The tables presented in this section consider alternative norms for comparisons with the proportions of varsity athletes who are women. The idea in this section is to identify the proportion of women among those who are interested in and able to participate in varsity sports. Interests are approached primarily via direct questions of intent to participate while ability is inferred from recognition and experience arising from participation in high school.

Table 1. Brown Applicants' Interest in Participating in Sports

This is a summary of information from the computer files of applications from the five most recent

entering classes. This data, keypunched by Brown University personnel, includes 463 items from each of 65,829 application forms. It therefore includes over 30 million pieces of information. Here and throughout we follow the convention of referring to classes by their probable year of graduation.

The table describes the percentages of male and female applicants, for the individual classes 1994-1998 and for all five classes combined, whose computerized record shows an interest in participating in at least one college varsity sport. Alongside the percentages there are z-statistics that express the male-female difference in units of standard deviation.

Results are provided for three sets of applicants. First, these are summarized for all applicants. On average 64.4 percent of male applicants express such an interest although the percentage has fallen from 67.3 to 58.9 percent among the five classes considered. In contrast, only 45.7 percent of female applicants express an interest in participating in varsity sports. Interests among female applicants have also fallen, in this case, from 50.9 to 40.6 percent.

The second panel of the table limits applicants to those who were accepted and the third is restricted further to those who agree to their acceptance (i.e., those who committed). In each group, men are more likely then women to identify an interest in [19] participating in varsity sports. The male-female differences are large and statistically significant.

The winnowing process from applicant to acceptance increases the percentage of women who are interested from 45.7 to 46.4 percent. The percentage of women who are interested among those who commit is 46.3 percent.

Table 2. Representation of Women Among Those Expressing Interest in Participating in Sports

This table simply translates the percentages of interested applicants from the previous table to facilitate subsequent comparisons with the representation of women among those with opportunities to participate. Here the pools are restricted to those whose application shows an interest in participating in varsity athletics. The percentages of such persons who are women is then calculated. These calculations depend, first, on percentages of male and female applicants who are interested and, second, on the percentage of applicants who are female. The former percentages are given in the previous table and the latter ones are listed in the first column of this table. The resultant percentage appears in the second column.

Notice, however, that the fraction of applicants who are female has increased during the last five years such that 53-54 percent of current entering classes are female. According to the Sponsorship Forms filed with the NCAA, 51.1 percent of the 1993-94 student body was female, and the estimate for 1994-95 is 51.7 percent. In contrast, the Brown student body was 45.6 percent female as recently as 1989-90.

The final two columns of Table 2 adjust the female composition of applicant classes to the student body counts for the most recent academic years so that applicant interests can be compared with the representation of women among varsity participation opportunities.

* * * *

[21]

Table 8. Planned Participation in College Varsity Sports From the College Board Student Descriptive Questionnaire

This table derives from the College Board's student descriptive questionnaire among students sending information to Brown University. It provides an independent and confirming basis for calculating male-female differences in interests in college sports participation.

Although lower percentages of male and female applicants indicate interest in participation than is found in applications to Brown, the male-female differences are roughly the same. The College Board counts imply that women represent approximately 40 percent of those who are interested in participating in college varsity sports.

Table 8A. High School Varsity Participation of Students Sending SATs to Brown

This table, based on the College Board questionnaire, shows the average number of high school varsity sports played by male and female high school seniors who asked for their information to be sent to Brown.

Most of the varsity high school sports played by students interested in Brown are offered at Brown. On average, male high school students played more Brown-offered sports than did women. Male students also played more sports not currently offered at Brown.

Table 8B. Brown Freshman Students' Participation and Interest in Athletics, as Revealed in CIRP Freshman Survey

This table presents responses of Brown freshmen to questions on sports and athletics contained in the

Freshman Survey conducted by the Cooperative Institutional Research Program (CIRP).

* * * *

[93] Section 5. Larger Nationally Representative Surveys

National Education Longitudinal Study of 1988 (NELS: 88)

Background

- Conducted by National Opinion Research Center (NORC) under the auspices of the US Department of Education's National Center for Education Statistics (NCES)
- Nationally representative sample of 26,432 people who were in grade eight in 1988
- Panel survey: follow-ups conducted every two years

Relevant data

- Percentages of respondents who were members of an athletic team or sports club in the original survey and two followups
- Percentage of respondents on varsity teams during sophomore and senior years of high school
- Participation in several popular team sports
- Percentage of respondents who include schools' athletic reputations in selecting a college
- Percentage of respondents who believe others see them as athletic, and other indicators of the role of sports in the respondents' lives

Tables

- Sports participation, Table 31
- Participation in selected individual sports, Table 32

- Athletic self-image/Other issues, Table 33
- Athletic reputation and college choice, Table 37

Principal results

- Among college-bound high school students with high test scores, 42 percent to 45 percent of respondents participating in sports were female (Table 31)
- Female representation among high school varsity [94] athletes with high test scores was also in the 42 percent to 45 percent range (Table 31)
- Participation in sports is higher among college-bound high school seniors than among high school seniors in general (Table 31)
- Of college-bound seniors with high test scores indicating that athletic reputation was important, about 46 percent were females (Table 37)
- Female representation among high school sophomores participating in at least one sport other than football was about 45 percent in 1980 (Table 32)
- Among college-bound high school students with high test scores who said sports participation was important among their friends, about 45 percent were female (Table 33)

High School and Beyond (HSB)

Background

- Conducted by NORC under the auspices of the US Department of Education's National Center for Education Statistics (NCES)
- Nationally representative sample of 58,270 people who were high school sophomores or seniors in 1980
- Panel survey: followups conducted in 1982, 1984, 1986 and 1992

Relevant data

- Percentages of respondents who were members of an athletic team or sports club, in the original survey and in two followups
- Percentage of respondents on varsity teams during senior year of high school
- Percentage of respondents who include schools' athletic reputations in selecting a college
- Percentage of respondents who believe others see them as athletic and who attend professional sporting events

Tables

[95]

- Sports participation, Table 34
- Athletic self-image/Spectator involvement, Table 35
- Athletic reputation and college choice, Table 37

Principal results

- Among college-bound high school seniors in 1980 and 1982, 38 percent to 41 percent of respondents participating in sports were female (Table 34)
- Female representation among varsity athletes who were high school seniors was slightly lower, ranging from 33 percent to 37 percent (Table 34)
- Of high school students who believed others saw them as athletic, slightly over 40 percent were females (Table 35)
- Of college-bound seniors indicating that athletic reputation was important, about 45 percent were female (Table 37)

National Longitudinal Study of 1972 (NLS-72)

Background

- Conducted by NORC under the auspices of the US Department of Education's National Center for Education Statistics (NCES)
- Nationally representative sample of 19,000 people who were high school seniors in 1972
- Panel survey: followups conducted in 1973, 1974, 1976, 1979, and 1986

Relevant data

- Percentages of respondents who were members of an athletic team or sports club in the original survey and in followups
- Percentage of respondents who consider schools' athletic reputations in selecting a college

Tables

[96]

- Athletic Reputation and College Choice, Table 37

Principal results

- Among college-bound high school seniors in 1972, about 35 percent of respondents participating in sports were female (Table 36)
- Of college-bound seniors indicating that athletic reputation is important in selecting a college, 38 percent are female (Table 37)

CIRP Annual Freshman Survey

Background

- An annual survey of college freshmen conducted by the Cooperative Institutional Research Program (CIRP) at UCLA

- Sample of over 220,000 students at over 400 colleges and universities
- Latest results published in a series of reports titled "The American Freshman: National Norms for Fall 1993"
- We reviewed reports from odd-numbered years beginning 1983

Relevant data

- Percentages of students who devoted at least 16 hours per week to exercising or sports in the previous year, from 1985-1989
- Percentages of students who won a varsity letter in sports in the previous year, from 1987-1993

Tables

- Emphasis on exercise or sports (Tables 38-39)
- Participation in varsity athletics (Tables 40-41)
- Expect to participate in varsity athletics in college (Tables 43-43)

Principal results

[97]

- Between 43 percent and 45 percent of university freshmen who won letters their senior year of high school were female (Table 40)
- Between 32 percent and 36 percent of university freshmen who devoted 16 hours or more per week to exercise or sports were female (Table 38)
- Between 35 percent and 40 percent of university freshman expecting to participate in varsity sports were female (Table 42).

Monitoring the Future

Background

- Conducted by the University of Michigan's Institute for Social Research, with core funding from the National Institute on Drug Abuse
- Nationally representative sample of 15,000 to 20,000 high school seniors
- Survey has been conducted annually since 1975
- We tabulated responses from surveys conducted in 1977, 1983, and 1988

Relevant data

- Percentages of students who participated in sports, athletics, or exercising almost every day, at least once a week, a few times a year, and never

Table

- Daily participation in exercise or sports (Table 44)

Principal results

- Between 35 percent and 41 percent of high school seniors who participated in sports almost every day were female (Table 44)

[98]

Sports Participation Survey—National Federation of State High School Associations

Background

- Conducted annually by the National Federation of State High School Associations
- Questionnaire sent to high schools; 90 percent of high schools are reported to be members
- Survey has been conducted annually since 1971

Relevant data

- Numbers of schools with athletic programs in major sports, tabulated separately for boys and girls
- Numbers of male and female participants in major sports
- Total numbers of male and female participants in all high school sports
  - Figures double-count multiple-sport athletes

Tables

- Numbers of participants in popular sports, 1993 (Table 45)
- Numbers of participants in high school athletics, 1971-1993 (Table 46)

Principal results

- In the 1990s the female percentage of total high school sports participants has been above 35 percent but below 40 percent (Table 46)
- In 1993 basketball and track & field had the most female participants (Table 45)
  - Female programs accounted for 49 percent of all programs in these two sports
  - Female participants accounted for 44 percent and 45 percent, respectively, of all participants in these sports

[99]

National Health Interview Survey (NHIS)

Background

- Conducted annually under the auspices of the National Center for Health Statistics

- The survey is a large nationally representative sample containing over 30,000 respondents
- In 1985, 1990, and 1991 a supplement on "Health Promotion and Disease Prevention" contained questions on exercise, as well as other subjects such as nutrition, smoking, and stress

Relevant data

- Percentages of males and females of varying ages participating in specific activities during two week period prior to survey
- Percentages of males and females that exercise or play sports regularly

Table

- Youth participation in seelcted activities (Table 47)

Principal results

- Women represent about 42 percent of people 18-21 who exercise or play sports regularly (Table 47)
- Female representation in individual sports or activities is generally lower than that 42 percent figure (Table 47).

Earned Degree Conferred, U.S. Department of Education

Background

- The U.S. Department of Education collects annual statistics describing numbers of baccalaureate degrees by the gender of recipients.

Table

- By academic major, percentage of recipients who are female. Majors are ordered from highest to lowest percentage. (Table 48).

* * * *

TABLE 2

REPRESENTATION OF WOMEN AMONG THOSE EXPRESSING INTEREST IN PARTICIPATING IN SPORTS

Class	% in Class Who are Female	Of Those Naming One or More Sports: % Female	% Female Normed to 1993/94 Student Body	% Female Normed to 1994/95 Student Body
All Applicants				
1994	49.69	42.75	44.17	44.72
1995	48.21	40.02	42.86	43.40
1996	49.59	40.94	42.45	42.99
1997	51.67	42.78	42.26	42.80
1998	53.26	44.00	41.92	42.46
Accepted Applicants				
1994	50.12	42.44	43.44	43.98
1995	49.77	43.29	44.64	45.19
1996	53.00	45.93	44.08	44.63
1997	53.69	46.12	43.59	44.13
1998	53.45	45.91	43.62	44.16
Committed Applicants				
1994	51.05	43.61	43.70	44.24
1995	49.57	43.88	45.43	45.97
1996	52.21	45.38	44.32	44.86
1997	54.43	45.24	41.99	42.53
1998	54.09	45.67	42.75	43.29

Note:

In 1993/94, women accounted for 51.14 percent of students. In 1994/95 the corresponding number is 51.69 percent.

Comment:

Although women have represented 48 to 54 percent of candidates for admission to Brown in recent years, their representation among applicants expressing interest has been less than 46 percent.

Because the gender composition of the entering classes has changed over time, for later comparisons it is necessary to normalize measures of representation to the the composition of the student body.

* * * *

TABLE 8

PLANNED PARTICIPATION IN COLLEGE VARSITY SPORTS FROM THE COLLEGE BOARD DESCRIPTIVE QUESTIONNAIRE
(Students Sending SDQ Information to Brown University)

Respondents' Senior Year	Number Sent SDQ	Number Answering Q 31 [a]	Planning Varsity Participation: Number	Planning Varsity Participation: As Percent of Total Sent	Planning Varsity Participation: As Percent of Number Answering Q 31
Female					
94	9,491	9,139	2,832	29.84	30.99
93	9,032	8,727	2,795	30.95	32.03
92	8,748	8,476	2,694	30.80	31.78
Male					
94	8,121	7,736	3,763	46.34	48.64
93	7,990	7,633	3,750	46.93	49.13
92	8,301	7,973	4,039	48.66	50.66
Implied Representation of Women [b]					
94				39.17	38.91
93				39.74	39.46
92				38.76	38.55

Notes:

[a] Question 31 instructs respondents to identify any extracurricular activities they plan to participate in during college. One of the activities on the list is varsity sports.

[b] Assumes equal numbers of male and female students.

Comment:

This source provides additional measures of gender differences in sports participation. These measures imply that women represent about 40 percent of potential Brown applicants with interest in participating in college varsity sports.

* * * *

TABLE 46

MALE AND FEMALE PARTICIPATION
IN HIGH SCHOOL ATHLETICS

From *1993-94 Athletics Participation Survey* by the National Federation of State High School Associations

Numbers of Participants in High School Athletics

Year	Male	Female	Female Representation
1971	3,666,917	294,015	7.4
1975-76	4,109,021	1,645,039	28.6
1980-81	3,503,124	1,853,789	34.6
1985-86	3,354,284	1,757,884	34.4
1990-91	3,406,355	1,892,316	35.7
1991-92	3,429,853	1,940,801	36.1
1992-93	3,416,389	1,997,489	36.9
1993-94	3,478,530	2,124,755	37.9

Notes:

Participants — Students participating in two or more sports may be counted more than once.

Female Representation — Calculated from actual numbers of participants.

* * * *

TRIAL TESTIMONY EXCERPTS

MS. GORTON—CROSS

* * * *

[41] Q Do you have any idea of the relative participation of men to women in those intramural programs?

A Yes. It's probably about eight to one men.

Q Eight men to one women?

A Yes.

Q And there is an equal opportunity in those intramural programs for men and women to participate?

A Yes.

* * * *

MR. ROACH—DIRECT

[69] Q Do you know what the average number of teams which colleges and universities have in the United States?

MS. LABINGER: Objection.

THE COURT: Go ahead. I'll allow it.

Q I was asking, if I didn't say it, women's teams.

A I would say the average is somewhere slightly more than seven because the N.C.A.A. minimum sports [70] sponsorship, I believe, at this time, is still fourteen so it can be anywhere from seven to nine.

* * * *

[176] Q And in terms of the institution considering whether a team is viable, what are the factors which you look at as an athletic director?

A Well, I think you have to look at and see, first of all, what the league that you're in, whether it's a league sponsored or sanctioned sport. You would want to look at availability of competition throughout the region and within close proximity to your own institution. You would want to look at the number of high school students

available who would want to play that sport. You would want to look at your own facilities, whether they are adequate to [177] have practice and home competition. You would want to look at your facilities in terms of locker rooms. You would also want to look at the strain it might put n your trainers, compliance people, support personnel. There are a lot of different things that you would look at before you would add another program.

* * * *

MRS. TAYLOR—DIRECT

[89] Q Has Brown University structured a program that essentially provides approximately 40% of the opportunities to participate in varsity athletics to women and approximately 60% to men?

A No. Brown hasn't structured that program. I believe that ratio just happened and it demonstrates the interests and abilities of the student body but Brown did not set the ratio. That was determined by the participants based on the interest and ability.

* * * *

MR. WARD—DIRECT

[51] Q With respect to clubs, do you have, based upon your experience, an idea of the relative participation at the club level of men and women?

MS. LABINGER: Objection. Relevance.

THE COURT: I don't know if he's finished his question.

MS. LABINGER: I'm sorry.

THE COURT: Have you finished your question?

MR. JEFFREY MICHAELSON: Yes, I have.

THE COURT: I'll allow it. Go ahead.

A Getting precise numbers is difficult for the clubs but I would estimate it to be about three men for every woman participant. In the intramurals it's—there are probably—it's—the ratio is greater. There are more,

many more men participants than there are women participants.

Q And again, there is no limitation in terms of gender as to who decides to participate at those two levels, is that right?

A Not that I'm aware of, no.

* * * *

DR. WELCH—DIRECT

[33] MR. CONNOLLY: I don't know whether what the answer will yield or not. The question was, did he do any data verification.

THE COURT: Just answer "Yes" or "No."

A. Yes.

Q. Is there anything that you did in terms of data verification that suggested to you that women's interests in athletics were understated on the Brown University data base?

A. Were understated? No.

Q. Now going to table number 8, would you tell his Honor what that table purports to be?

A. Table 8 is a summary of the responses sent to Brown from the student demographic questionnaire that was filled out at the time that the applicant students took their S.A.T.'s.

Q. What conclusions do you draw from table 8, Doctor?

A. The key numbers in table 8 are in the bottom panel, which identify the number of students who had their questionnaires sent to Brown who indicate they plan to participate in varsity sports in college. And done two alternative ways, they show that somewhere between —of people who plan to participate in varsity sports— somewhere between 38 and 39 percent are women.

* * * *